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Sirajul Islam

**THE
PERMANENT
SETTLEMENT
IN BENGAL**

**A STUDY OF ITS
OPERATION
1790-1819**

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PREFACE

This book has grown out of my thesis which was approved in February 1972 for the degree of Doctor of Philosophy at the School of Oriental and African Studies, University of London. In spite of constant pressure from my friends and well wishers for its immediate publication, I thought it prudent to defer it for further research into the subject. A precipitate publication, in my view, is worse than no publication at all. In the light of new evidence that I have gathered since 1972, the thesis has been very thoroughly revised and reorganised. One chapter has been withdrawn, and in its stead a new chapter has been added. Three chapters have been renamed in accordance with the latest revisions and alterations. To comprehend all these changes the title of the thesis has also been changed.

In this book I have attempted first, to look at the state of the landed society as it existed immediately before the new system was put to operation, secondly, to see how the landed classes reacted to the new system of permanent settlement, thirdly, to measure the changes in the structure of the zamindar class consequent upon the new system, and finally, to estimate the success and failure of the permanent settlement.

I must record my debt of gratitude to Mr. J. B. Harrison of the School of Oriental and African Studies, University of London, under whose supervision and guidance my Ph. D. dissertation was written. I am equally grateful to Dr. K. N. Chaudhuri of the same School, who was so kind to supervise my work at its final stage. I must acknowledge my indebtedness to the Association of Commonwealth Universities for awarding me a scholarship to complete the Ph. D. course in London. I express my heart-felt gratitude to all my colleagues, friends and well wishers who always pressed me to come out

with the publication of this book. Without their pressure my endless hunt for perfection would not have possibly stopped yet. I am indebted to Dr. A. M. Chowdhury, Professor of History, Dacca University, for the trouble he has taken in reading the manuscript and making many useful suggestions. I thank the Bangla Academy for publishing the book.

Sirajul Islam.

ABBREVIATIONS USED IN THIS BOOK

<i>B. D. R.</i>	Bangladesh District Records.
<i>B. P. P.</i>	Bengal : Past and Present.
<i>B. O. R.</i>	Board of Revenue.
<i>B O. R. P.</i>	Board of Revenue Proceedings.
<i>B. R. C.</i>	Bengal Revenue Consultations.
<i>D. S. R.</i>	Dacca Secretariat Records.
<i>C. D.</i>	Court of Directors.
<i>C. O. W.</i>	Court of Wards.
<i>C. O. W. P.</i>	Court of Wards Proceedings.
<i>C. J. P.</i>	Civil Judicial Proceedings.
<i>G. G. in C.</i>	Governor General in Council.
<i>H. Misc. S.</i>	Home Miscellaneous Series.
<i>I. O. R.</i>	India Office Records.
<i>P. P.</i>	Parliamentary Papers.
<i>H. C.</i>	House of Commons.
<i>P. R.</i>	Personal Records.
<i>S. C.</i>	Select Committee.
<i>S. P. S. K.</i>	Sambad Patre Sekaler Katha.

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INTRODUCTION

The permanent zاميindari settlement was doubtless the greatest land-mark in the history of Bengal. This settlement created for the first time property in land and also a propertied class in the zamindars and some other landed interests who were hitherto considered to be merely hereditary agents of government for the collection of rents or revenues from the *ryots*. There were strong political and economic motives behind the permanent settlement. Politically, it was considered that the confirmation of the hereditary rent collecting agents as the sole proprietors of land and perpetually fixed government demands on them would bind the landholders to the government which had granted, and which alone would maintain, so great a privilege.¹ Economically it was expected that the permanent settlement would encourage the investment of capital in land and, therefore, the growth of a middle class; that it would lead to more lenient and considerate treatment of the tenants by the landlords, and would thus promote general prosperity. That, an increase of commercial and agricultural wealth would lead to the increased ability of the population to contribute to general taxations which would compensate the government's sacrifice of a prospective increase of land revenue.²

It is not however the intention of the present study to investigate whether or not any agrarian revolution, as anticipated by the authors of the permanent settlement, took place in the country. What is intended here is to explore the

¹ See, T. Law, *A Sketch of some late arrangements and a view of the rising resources in Bengal*, para. 18, p. 63; E. Colebrook's Minute, 20 January 1808, paras. 37-9; *Minto Papers*. M338 (no pagination); G. W. Pedder, "The Historical Development of the different Settlement Systems of India", *The Times*, 7 April 1883, p. 6, col. 4.

² See, G. G. in C. to C. D. 12 April 1790, para. 3. *General Revenue Letter* E/4/38. G. G. in C. to C. D., 19 September 1792, para. 46, *General Revenue Letter*, E/4/638, p. 792. G. G. in C. to C. D., 6 March 1793, para. 17, *General Revenue Letter* E/t: 4/52.

social implications of the system. To be more specific, this study sets out to trace the changes in the structure and constitution of the landed interests under the operation of the permanent settlement. The reason for so circumscribing the subject is the universal knowledge that no kind of agrarian revolution ever took place in Bengal consequent upon that system, and in the absence of that much-talked of revolution the social significance of the system has seemed to have appeared now as more important. The elaborate executive and judicial systems that were constructed to make the system work introduced an unprecedented social fluidity. In the context of that background, this study will investigate the changes in the structure, character and habits of the landed interests during the first generation of the permanent settlement.

The expressions 'landed interests', 'landed society', 'landed classes', etc. contained a large variety of occupational groups such as the zamindars, *chaudhuris*, *taluqdars*, *patnidars*, *ijaradars*, and lastly the *ryots*. Each of the above interests has a number of inner interests possessing customary rights and liabilities in relation to their superior interests. No body has ever known all the tenurial varieties that existed in every district of Bengal. From the acquisition of the *diwani* to the abolition of the zamindari system many men and institutions had tried to ascertain the puzzling rights and liabilities of all grades of landed interests. But none had ever succeeded in giving us a fuller knowledge of the problem of rights in Bengal.¹ The scope of this study however has been strictly,

1 About the complicated land tenures and land revenue systems J. W. Kaye remarks : "The land revenue of India is a very large subject. A man of more than ordinary intelligence may confess, without discredit that after thirty years of study he but imperfectly comprehends it, in all its bearings and relations. I know very few men who have attained to anything beyond this imperfect comprehension. It is a subject on which volumes might be written, only to leave it as obscure as before."

See his, *The Administration of the East India Company ; A history of Indian Progress.*, P.162.

as has been asserted earlier, confined to the social positions of the landed interests without becoming entangled with the controversy of land rights. Again, the topic has been further restricted only to those upper strata of the landed interests on whom proprietary rights were conferred by the system of the permanent settlement and, for this newly created proprietary class, the term zamindar has been used throughout in the text to denote only the embodiment of the system rather than to distinguish the zamindars from all other groups as regards their rights and liabilities.

The terminal dates for the core of this study are 1790 and 1819. In examining attitudes of mind, behaviour patterns and policies, however, the time has been extended where necessary back into 1770s and 1780s, and on into 1820s and 1830s. If treated with some flexibility, the period from 1790 to 1819 forms a very satisfactory unit of time for historical purposes. It may be surprising to many that instead of 1793, this study should begin from 1790. True, the permanent settlement was promulgated in 1793. But the system itself was actually put to operation in 1790 in the name of the decennial settlement. Without any alteration this decennial settlement was just confirmed as permanent in 1793.

The year 1819, the other extreme end of this study is a significant land-mark for the history of the permanent settlement. Under the pressure of the permanent settlement the raja of Burdwan devised a peculiar land tenure called the *patni* system. His success had inspired other zamindars to follow his footsteps. The *patni* tenure holders, in turn, had created other lesser rights in the same lines of their superior landlords. These developments has occasioned considerable disorders in the agrarian relations. To tackle the *patni* problems there was no law to guide the courts. In the face of legal and social complications created by the *patni* system, the government was, at last, compelled to enact the Regulation V111 of 1819. This Act confirmed all these mushrooming tenures as

legal institutions and framed the legal basis of their rights and liabilities. For all practical purposes the *patni* system was a second permanent settlement between the zamindars and the *patnidars*. The legalisation of this system, which developed in defiance of the existing law, practically annihilated the original objects of the permanent settlement. It was never imagined by its authors that the zamindars could so ingeniously shift their responsibilities on to others and thereby defeating the whole purpose of the new system. As the greatest modifier of the original constitution of the permanent settlement the Patni Act of 1819 thus forms a very significant milestone indicating the failure of the Cornwallis system to create enlightened leadership in the body of zamindars. The period 1790-1819, therefore, forms an ideal unit of time for the study of the operation of the permanent settlement.

It is odd that such a study should so long have remained unattempted, since for about two hundred years the zamindars ruled society by virtue of their absolute ownership of land and played a tremendously important role in the making of Bengal's social and economic structure as we find it today. This neglect can partly be explained by the character of research into South Asian History in the past when scholars were mostly preoccupied with the history of nationalism, community and communal relations, lives and times of personalities etc. Another reason for the relative neglect of the study of this nature may be the unsatisfactory state of records. Unlike the English landlords the Bengali zamindars had never cared to preserve their records after the expiration of their use. Without such family records it is literally impossible to seek out the details of the activities, characters and thoughts of the zamindars who were doubtless the principal characters of Bengal's social drama and without which such a study must suffer from serious pitfalls, inasmuch as private characters and thoughts will have to be analysed on the basis of public records only. Besides character studies, one has to face

in superable difficulties if he wants to make an attempt to study the economic position of the zamindars. The zamindars of our period were notorious for suppression of facts. No body ever knew what was the true income of a zamindar. All records about their incomes were destroyed immediately after their current use.

Keeping all these limitations in view attempt has been made to study the landed society under the new system. The major part of this work is based on records preserved at the India Office Library, London. The gaps that remained have been largely filled in by the Bangladesh district records now preserved at the Dacca Secretariat Record Room and other survey records preserved at the various district *muhafexkhanas* in Bangladesh. Whatever may be the reason, it is terribly true that so far upto-date and competent studies of the landed society under the institutional setting of the permanent settlement remain a remarkable and serious weakness in our historiography. Until more exhaustive and authoritative works are produced the present venture, I hope, will help to fill the deficiency.

CHAPTER ONE

THE LANDED SOCIETY IN 1790

The idea of permanent settlement was the subject of serious debates and disputations ever since its formulation by Philip Francis in 1776.¹ At last the idea took its concrete shape in 1790 when the decennial settlement was concluded with the zamindars and taluqdars with the declaration that 'the assessment fixed by the decennial settlement, will be continued after the expiration of the ten years settlement, and remain unalterable for ever ; provided such continuance shall meet with the approbation of the Hon'ble Court of Directors, but not otherwise.'² The approbation came in late 1792, and the decennial settlement was accordingly declared 'unalterable for ever' in March 1793. The rules and regulations for the decennial settlement were also incorporated into the permanent settlement system as Regulation 8 of 1793. To study the operation of the permanent settlement it is, thus, more appropriate to take 1790 as the base year rather than 1793 when the decennial settlement was merely confirmed as permanent.

About the possible effects of the permanent settlement forecasts were made by both Cornwallis, the ardent advocate of the system ; and Shore, its vehement critic. The former was sanguine that great benefits would flow from the system but the

-
1. For the origin and development of the idea of permanent settlement see Ranajit Guha, *A Rule of Property for Bengal : An Essay on the Idea of Permanent Settlement*.
 2. J. H. Harington, *An Analysis of the Laws and Regulations Enacted by the Governor General in Council at Fort William in Bengal*, (1821) vol. P. 177.

latter was apprehensive of such prospects. Our line of investigation shall not be, of course, to pronounce whose forecast came true subsequently, but to make an objective inquiry into the actual operation of the new system. What was its impact on the structure, organisation and economy of the landed society? How far the system succeeded in achieving the objects for which it was introduced? How far did it contribute to the stability or change in the landed orders? To estimate the overall effects of the new system we ought to have at least a rough idea as to the nature and conditions of the landed interests immediately before the system was put to operation. In this section we shall, thus, endeavour to have a glimpse of the Bengali landed society as it existed in 1790.

Composition

We might choose various ways of classifying and subdividing the different ranks and orders which together made up the late eighteenth century landed community. But our purpose may be adequately served if we just classify them into some broad composite groups of interests. From top to bottom it was a massive social pyramid. At the peak of it were the great zamindars most of whom were endowed with the state title—Raja or Maharaja. Their zamindaris were extensive, their life-style was princely. The splendour of their household, their connection with the Murshidabad *Durbar*, their power and influence drew spontaneous loyalty and devotion from the common people in whose estimation these Rajas seemed divinely ordained to rule without restraint and they to be ruled without complaint. The Table below shows that at the time of the decennial settlement more than half of the total land-revenue of Bengal was paid by only a dozen of these grand families.

TABLE 1
Twelve Great Zamindaris of Bengal

Total Government revenue demand on Bengal in 1790		
Sicca	Rs. 1,90,40,000	
Sl. No.	Names of Zamindaris	Decennial Jama (in thousands) Percentage of total land Re-venue of Bengal
1.	Burdwan Raj	32,66 17·15
2.	Rajshahi Raj	22,50 11·81
3.	Dinajpur Raj	14,84 07·79
4.	Nadia Raj	8,54 04·48
5.	Birbhum Raj	6,30 03·31
6.	Bishnapur Raj	4,00 02·10
7.	Eusufpur (Jessore)	3,03 01·59
8.	Rajnagar (Dacca)	3,00 01·57
9.	Lashkarpur (Rajshahi)	1,89 ·99
10.	Idrikpur (Rangpur)	1,60 ·84
11.	Roushanabad (Comilla)	1,54 ·84
12.	Jahangirpur (Dinajpur)	1,23 ·64
Total = Sicca Rs. 10,11,3000		53·11%

Immediately below the great zamindars came in rank and status the middling group of zamindars most of whom could claim the same high ancestry as those of their social superiors. Their annual gross incomes from land ranged, let us say, from minimum twenty thousands to maximum one lakh rupees. They, in view of their ranks, incomes, and life-style, could live neither too exclusively as it was in the case of great zamindars, nor too ordinarily as it was in the case of landed interests further below. In this regard they may truly be considered

as the real middle class among the landed orders. From the available documents it is not possible to quantify their individual size and strength. (Regionally speaking, while the Western Bengal districts were monopolistically controlled by the great zamindars, the Eastern Bengal districts were mostly dominated by the medium zamindars. One peculiarity of the Eastern Bengal medium zamindaris was that they were mostly consist of talu-dari estates which paid revenues to Government through the intermediaries of zamindars.)

Next to the middling class of zamindars came the numerous petty zamindars and chowdhuris most of whom were too insignificant to be styled as zamindars. The districts of Chittagong and Sylhet were owned particularly by the very tiny zamindars and chowdhuris. In 1787, the annual revenue demand on Chittagong was slightly above three lakhs of rupees. This revenue was shared by about two thousands of petty zamindars.³ Vast majority of them were so tiny that their annual government revenue did not "exceed the sum of 50 rupees, many so low as 2 or three rupees and some less than one rupee."⁴ The Sylhet landholders generally known as chowdhuris were in general far more insignificant than their Chittagong fellows. In 1790, 7327 villages of Sylhet were held by an army of twenty five thousands of chowdhuris.⁵ Their combined dues to government amounted to only four lakhs of rupees per annum.

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- 3, Chittagong Collector to Board of Revenue, 29 May 1787, Dacca Secretariat Records (Hereafter cited as D. S. R.) Chittagong, vol. 7, PP. 13-14.
 4. Chittagong Collector to Board of Revenue, 9 June 1787, D. S. R., Chittagong, vol. 7, P. 42,
 5. Extract of a letter from the Sylhet Collactor, 24 October, 1790, D. S. R., Chittagong, Vol. 18, PP. 698-4.

In rank and status, zamindars were followed by the taluqdar class. During the Mughal regime taluqdari rights were created by both the government and zamindars for various purposes. The government conferred taluqdari rights to favoured individuals. They were known as *huzuri* taluqdars. They used to pay revenues to government direct. Among the taluqdars they held the highest position in the society. Immediately below the *huzuri* taluqdars were the *mazkuri* taluqdars who had distinct rights in land but paid revenues to government through the agencies of zamindars. The *mazkuri* taluqdars were of two broad categories—*kharija* taluqdar and *patta* taluqdar. The *kharija* taluqdars paid revenues through the zamindars either by the state arrangement or through voluntary agreement between the zamindar and the taluqdar. The *patta* taluqdars were created by the zamindars from various considerations, such as, raising funds by sale of right, clearing jungles for cultivation, providing relations and friends, etc. The *patta* taluqdars enjoyed their taluqa rights on specific conditions that they would pay fixed revenue to their overlords. The *mazkuri* taluqas were particularly numerous in the coastal districts of Bengal. There the zamindars gave *patta* rights at nominal rents as inducements to newcomers who would clear the deep jungles and bring them under plough.

The lowest stratum of the landed society was formed by the *ryots* or actual cultivators of the soil. It was on the toil of this class that all the superior landed interests subsisted. The *ryots* were not a homogenous class. They might be broadly classified into two groups—*khudkast* and *paikast*. The *khudkast* were the resident *ryots* enjoying hereditary occupancy rights paying rents at customary rates. The *paikast ryots* were non-occupancy temporary *ryots* having no fixed rights in land. They were just tenants-at-will. The lowest class of *ryots* were the *adhiars* and *bargadars* or landless peasants who tilled other people's lands on share crop basis.

Rights and Privileges

Under the Mughal constitution, each group of landed interests had some kind of customary rights in land. What were those rights? Could those be defined and discriminated? The English administrators thought that land, as in England, was a solid property. But they were not certain as to who owned that landed property. The zealous revenue officials dugged into old records to find definite answers or clues about the ownership of land. Contradictory results came out of their researches. Some declared that State was the sovereign owner of land; *ryots* paid their rents to the State through the hereditary rent collecting agents called *zamindars*. According to them a *zamindari* was only a "conditional office, annually renewable, and revocable on defalcation". But some others, in contradiction, declared land to be the absolute property of *zamindars*.⁶

Our intention here is not to open the infinitely controversial ownership question again, but to look at the way the Company's government had tried to solve the problem. The government supplied the Court of Directors with the heaps of materials on land question. The Court got lost in those records and finally, discarded them as an "uncontrollable cloud of intricacy and confusion". Instead of looking at the old records for guidance the government was advised by the Court to adopt "a permanent system compatible with the nature of our government, the actual situation of the Company, and the case of the inhabitants."⁷ It was believed by the Company's officials that only a permanent settlement vesting the *zamindars* with the absolute proprietary rights in land could satisfy

6, For detailed discussions on the subject see Harington, *Analysis of the Laws and Regulations*, Vol. 111. (1821) PP.227-418.

7. Court of Directors (hereafter cited as C. D.) to Governor General in Council (hereafter cited as G. G. in C.), 12 April 1786, para. 3, *British Parliamentary Papers* (hereafter cited as P. P.), House of Commons Select Committee Report, 1810 (363), Vol. 5, P. 156.

all these requirements. The Court thus directed the government in 1786 to give up further revenue experiments and make a settlement in every practicable instance with the zamindars, "on the basis of a fixed and permanent Jumma."⁸ Accepting zamindars as owners of land the Court further enjoined that "the proprietor must be left in the undisturbed administration and enjoyment of his estate."⁹

Even the simple process of declaring the zamindars as the proprietors of land and fixing their public dues in perpetuity, required great deal of further local scrutiny into their rights and privileges, relative rights of different orders of landed interests. The zamindars were claiming their customary rights to levy *abwabs* and *mahtuts* on the ryots over and above their *asal jama* which was formerly fixed by Todar Mall Settlement. Besides *abwabs* and *mahtuts* they were also asserting their traditional rights to levy occasional impositions under the denomination of *magan* or contributions at times of social and religious festivals and ceremonies, such as, *shradh*, marriages, pilgrimages, etc. Customs also sanctioned them the feudal privilege of asking for *begar*, or free menial service from the *ryots* in order to construct roads, canals, tanks, and other works of public utility. The zamindars had the duties to maintain roads, bridges, huts, bazars, ganjes, etc. and in return they were allowed to collect *sayer* or internal customs duties, and other taxes called *rahadari* or road tax, *pulbandi* or tax for the maintenance of bridges and dams, etc. The zamindars were also required to maintain law and order within their jurisdictions and for that they were allowed to collect *thanadari* or police duty. In short, the zamindars as we find them in 1790 were possessed of numerous powers and privileges, rights and responsibilities. No matter whether these were acquired by them by legal or illegal means ; the reality

8. *Ibid.* Para. 54, P. 161.

9. *Ibid.* Para. 58, P. 162.

was that they had been exercising their powers for quite a long time past. The big problem before the Company's government was to decide whether or not, along with the permanent settlement their infinite powers and privileges should also be made permanent.

Economic Conditions

What was the economic health of zamindars whom the government had now decided to instal as the sole proprietors of land? Were they economically solvent enough to bear the burden of the new system? Were they really qualified as a class to play the role of improving landlords as was expected of them?

Until 1786, one after another revenue experiment was launched and again rejected always subordinating the interests of the zamindars and *ryots* to those of the government. Every time, in search of more and more profit for the Company, zamindars were either dispossessed or forced to engage at ruinous terms. Result was the economic decay at all spheres of life.¹⁰ The condition into which the zamindars were reduced to, were aptly described by Philip Francis. In November 1775, he wrote to one of his friends at home: "The zamindars, from the Moment they were converted into Pensioners, have gradually sunk into a state of Sloth, Stupidity, Beggary and contempt. Being almost universally overwhelmed with debts, and few of them having any Knowledge of their affairs, they of course have lost all Dignity and Consequence in the

10. In 1775, Warren Hastings issued a circular letter to all the Members of the Provincial Councils inviting them to give their respective opinions as to the effects of the Farming System. All of them replied that the country was almost ruined because of the Farming System. See *Home Miscellaneous Series* (henceforth abbreviated to HMS), vol. 206, pp. 147-207.

Eyes of the People. I am assured, and inclined to believe that the greatest part of the younger generation are likely to be idiots..."¹¹

Within the first two decades of British rule Bengal had the experience of three major famines and eight seasons of scarcities. The major famines were those of 1770, 1784 and 1787. In the great famine of 1770 "one fifth of the inhabitants on the most moderate computation", is supposed to have perished.¹² The other two famines were equally devastating. On the basis of available evidence it is not possible for us to make any quantitative analysis of the demographic changes and their effects on the economy of the landed society. Cornwallis estimated that due to loss of lives in those famines about "one third of the Company's territory in Hindoostan is now a jungle inhabited only by wild beasts".¹³ Some regions, as estimated by Taylor, were "deprived of three-fourths of their industrious inhabitants, who died or emigrated, and the lands were in consequence soon overrun with jungle, infested with tigers and hogs."¹⁴ These calamities must have reduced the zamindari income to corresponding degrees, but government demands on them always remained more or less constant or were further augmented.¹⁵

The greatest problem for the economic life of the country at the time of the decennial settlement was the shortage of silver currency. During the Mughal times, an annual remittance of one crore of rupees to Delhi, and enormous drain, indeed, was always replenished by very large returns of species through

11. To H. Strachey, 23 November 1775, quoted in R. Guha, *A Rule of Property for Bengal: An Essay on the Idea of Permanent Settlement*, p. 121.

12. Shore's Minute on decennial settlement, 18 June 1789, para, 124, *Fifth Report*, Appendix 5.

13. Cornwallis Minute, 18 September 1788, *Fifth Report*, Appendix 5.

14. James Taylor, *A Sketch of the Topography and Statistics of Dacca*, pp. 304-5.

15. Shore's Minute, 18 June 1780. *Fifth Report*, Appendix 5.

extensive foreign and inland trade.¹⁶ But from 1765, Company's remittance to Europe, which was much a greater drainage than it was ever before, was never replenished by equivalent return of species. Since then, "specie was rarely imported by the foreign companies; nor brought into Bengal by them from other parts of Hindoostan, in any considerable quantity."¹⁷ Instead, "the exports of species from the country for the last twenty five years have been great; and particularly, during the last ten of that period."¹⁸ From Bengal specie was exported to answer the China trade. Great part of the sums sent by bills of the shroffs to Bombay and Madras, travelled over the Peninsula in bags. Silver bullion was also remitted by individuals to Europe. Owing to such continuous drainage of species Bengal, what was once called the basin of world's silver, was menacingly dried of silver currency. Gold coins were introduced to ease the situation, but beyond Calcutta it was hardly popular. The shortage of silver currency brought all economic activities to a standstill. The *ryots* were unable to pay their rents because their agricultural products could not be marketed.¹⁹ Being unable to collect rents from *ryots* the zamindars were compelled to borrow money from the *mahajans* at exorbitant interests.²⁰

The farming system, famines, silver crisis, all these external forces contributed to the rising poverty of zamindars. But for their impoverished state many internal causes were also at work. Very few of the zamindars were qualified to manage their affairs efficiently. Against the immediate conclusion of permanent

16. See S. Bhattacharya, *The East India Company and the Economy of Bengal : From 1704 to 1740*.

17. Shore's Minute, 18 June 1789. *Fifth Report*. Appendix 5.

18. *Ibid.*

19. Petition of 20 Dacca Zamindars to Collector, M. Day, 10 December 1789, *Dacca Collectorate Records*, vol. 4, p. 89.

20. *Ibid.*

settlement one of Shore's argument was that the zamindars "in general are ill educated for this task, ignorant of the common forms of business, and of the modes of transacting it ; inattentive of the conducting of it, even where their own interests are immediately at stake."²¹ Narrating the zamindars' incapacity Shore further argued, "Let a zamindar be asked, what are the rents, and rules for demanding and fixing them, in his district or in any part of it ; what is the assessment of any pergunnah ; what is the particular produce of any pergunnah, whether that produce has increased or declined ; what manufactures established in it ; in short, let the question, have any reference to the internal details of the business and state of the country, his replies would probably be the same, as if he had never entered into it, or he would refer to his *dewan* or some officer for information."²²

The contemporary folk literature also gives more or less the similar picture of the zamindari characters. For a zamindar it was weighed to be quite unbecoming and undignified to work and mind for details of zamindari management. The zamindari officials, and for that matter the tenantry at large, wanted that their zamindars should be proudly unmindful of estate affairs, and should be rather concerned with only consumptions and ceremonial functions. To be flattered, soothed and served they must employ as many servants as they could afford, not as many as they actually needed. The ignorance of zamindars and their indifference to zamindari affairs made them ruinously dependent on their *amla* who, taking the advantage of zamindar's situation, always tried to enrich themselves at the expense of their masters. This description is, of course, particularly true for larger zamindars. Because of the unwieldy extent of their estates, backward communications, poor state of public safety system, they found it extremely difficult to manage their estates directly

21. Shore's Minute, 18 June 1789, para 269, *Fifth Report*, Appendix 5.

22. *Ibid*, para, 270.

from the remote headquarters. Thus they decentralised the management by letting the estate to several farmers; the farmers, again, made over their leases, in whole or in part, to others, who in turn, further sub-divided their farms and rented them to local speculators; the lowest rung in the rent collecting ladder being the village chief. To offer only one instance, the zamindar of pargana Roushanabad of Comilla district, was removed from the actual *ryots* by six degrees of rent collecting tiers.²³ The smaller zamindars, on the other hand, were free from the evils that sprang from the multi-tier rent collecting system. Because of their low incomes they could not afford to maintain considerable establishments; consequently, they themselves tried to manage their own affairs without being dependent on chains of intriguing *amla*.

Being responsible to Government for a tax equal to nine-tenths of the expected rents of their estates, they were hardly left with any surplus to compensate risk of bad harvests. Colebrooke is very right in his assertion that "in any calamity, any accident, even a delay in his recoveries of rents, involves a zamindar in difficulties from which no economy or attention can retrieve him."²⁴

Decennial Settlement

As against the above social and economic background of the landed society of Bengal we shall now proceed to see how the zamindars were dealt with under the new system. The Governor General in Council resolved in September, 1789, to conclude a decennial settlement immediately with the zamindars, taluqdars, and other landholders without making further scrutiny into the resources of individual landholders. As regards adjustments of assessment it was ordered to make the *jama* of the

23. Pargans Roushanabad Papers at Comilla Rajbari, Comilla, Bundles, 1190 (1197 B. S. 1789, A. D).

24. H. T. Colebrooke, *Remarks on the Present State of the Husbandry and Commerce of Bengal*, pp. 62-3.

preceding year (1196 B. S.) as the sole basis of the decennial assessment. It was further resolved to separate several categories of taluqdars from the jurisdictions of zamindars and make settlement with them independently. Besides, the following restrictions were laid on the landholders²⁵ :—

That the stipulated revenue be paid regularly into the public treasury, according to the instalments specified in the *kisibundi* in sicca rupees.

That payment of revenue be not withheld, or delayed, on account of drought, inundation, encroachment of rivers, mortality, depopulation, or any other account whatever.

That no part of the lands included in the settlement be appropriated to religious, charitable or other uses, whereby they may become exempt from the public assessment ; and that lands actually held exempt from that assessment : as *debuttar*, *brammuttar*, *mahatran*, *ayma*, *muddadmash*, *peeran*, *fakiran*, or any denomination of *lakheraj*, be assessed as *malguzari* land, without the previous sanction of government.

That all embankments within the limits of the estates be kept in repair. That no exactions or oppressive practices be committed towards the ryots, and other tenants ; and that they be not dispossessed from their tenures, whilst they perform the conditions of them ; and whilst the terms of their tenures be unexpired.

That receipts and discharges be regularly granted for all sums received from them.

The decennial settlement rules were made permanent in March 1793. In addition, more new restrictions were imposed on zamindars in return of the supposed benefits offered by the permanent settlement. How did the zamindars react to these restrictive regulations ?

25. Harington, *Analysis of Laws and Regulations*. pp. 251-258.

CHAPTER TWO

THE ZAMINDARS' REACTION TO THE NEW SYSTEM : (I) PRESSURE FOR REVISION OF REGULATIONS

In spite of the great mass of writings about the permanent settlement in Bengal, one question has not yet been asked. That is, did the zamindars enthusiastically accept the permanent settlement in its original form as proclaimed by Cornwallis? Such a question has not been posed presumably because of the axiomatic assumptions that, as the settlement had created a privileged class in the zamindars, the latter, as obvious beneficiaries, could not but have welcomed the work of Cornwallis. This chapter, however will now raise this question, and in answering, it will try to show that the detailed terms, though not the principles, of the permanent settlement utterly disappointed the zamindars, so that their initial reaction was to resist the smooth operation of the new system until their grievances were redressed.

The constitutional position of the zamindars in 1793, an understanding of which is essential if we are to chart out the course of the conflict between them and the Government, was defined in the Regulations 1, VIII, and XVII of 1793.

On 23 March 1793, Lord Cornwallis proclaimed that "at the expiration of the terms of the [decennial] settlement, no alteration would be made in the assessment which [zamindars had] respectively engaged to pay, but that they, and their heirs and lawful successors, would be allowed to hold their

estates at such assessment for ever.”¹ But in return for the benefits which the zamindars would derive from the fixed revenue demand, they were required to observe the following rules and regulations :

That in future the landholders would have no right to claim for suspension or remission on account of drought, inundations, or other natural calamities, but that in the event of any landholder “failing in the punctual discharge of the public revenue..., a sale of the whole of the lands of the defaulter, or such portion of them as may be sufficient to make good the arrear, *will positively and invariably take place.*”²

It was laid down that the zamindars would have no legal right to “distrain or sell lands, houses or other real property of their under farmers and ryots, or the taluqdars paying revenue through them.”³

The zamindars were also prohibited from distraining ploughs, seed grains, implements or husbandry and the cattle actually trained to the plough.⁴

It was then enacted that the zamindars must withdraw the attachment of defaulters’ property if they preferred to contest the distrainers’ demands in law courts.⁵

The zamindars were then strictly prohibited from confining or inflicting corporal punishment on any defaulting tenant or dependent taluqdar to enforce the payment of arrears of their demands. “If any landholder or farmer shall offend against this prohibition, the persons so punished or confined shall be at liberty either to prosecute the offender for assault or imprisonment in the Criminal Court, or to institute a suit against him in the *diwany adawlut*

1. Proclamation Article III, section 4, Regulation I, 1793.

2. Proclamation Article VI, sec. 7, Regulation I, 1793.

3. Section 3, Regulation VII, 1793.

4. Section 4, Regulation XVII, 1793.

5. Section 9, Regulation XVII, 1793.

of the zillah, which court shall award damages against such offender, according to the circumstances of the case, with costs of suits.”⁶

It was prescribed that no proprietor would “impose any new *abwab* or *mahtoot* upon the ryots under any pretence whatever. Every exaction of this nature shall be punished by a penalty equal to three times the amount imposed.”⁷

With a view to eliminating existing confusion and uncertainty in consequence of manifold impositions on the *ryots* the zamindars were enjoined to issue *pattas* in which they would have to specifically state the exact sum to be paid by the *ryots*.⁸ It was also made obligatory on the part of the zamindars to register the counterfoils of the forms of *pattas* in the district courts.⁹

Finally, it was enacted that under the system of the permanent settlement, the zamindars would have to abdicate their traditional overlordship over the *taluqdars*, who, hitherto, paid their revenues to the government through their mediation. Henceforth all independent *taluqdars* and some other categories of *taluqdars* who were entitled to independence according to justice were ordered to be separated from the jurisdiction of the zamindars.¹⁰

Thus, the permanent settlement gave the zamindars the benefit of a permanently fixed assessment of government demand, but in return took away many powers previously enjoyed by them. Whatever may have been the philosophy and policy behind the permanent settlement, the zamindars could scarcely reconcile themselves to the idea that, under the new system, they were to lose all their traditional powers and privileges, powers which were a source not only of additional means but also of their social status and authority. Yet, at the same time, the zamindars

6. Section 28, Regulation XVII, 1793.

7. Section 55, Regulation VIII, 1793.

8. Clause 1, Section 57, Regulation VIII, 1793.

9. Section 58, Regulation VIII, 1793.

10. Section 5, Regulation VIII, 1793.

were firmly told that, in future, no clemency would be shown should they default in their revenue payments to Government, whatever the cause, natural calamity included. Rather, they would find their lands "positively and invariably" brought to sale for such a default.

The zamindars reacted sharply against such a constitution. The fixed assessment and the absolute ownership of land conferred on them by the new constitution scarcely reconciled them to its passage. On the first point they could hardly place much trust on the promise that the government demand on them would remain fixed for ever. Their past experience made them too sceptical to believe in such an assurance. As late as 1802, the collector of Mymensingh reported that, "[he had] not met with any landholder whom [he] could persuade of the permanency of such settlement and [he knew] that Mr. Tufton when collector here laboured but in vain to convince them of it."¹¹ And as for the second privilege, they did not remember when they had not enjoyed absolute ownership in practice, whatever the theory. What did vitally concern them was the likelihood that the new constitution would enable them to keep their estates permanently in their own families. This was what really mattered, and the clause which threatened them with the automatic sale of their land in case of default was what just caught their eye.

Under the circumstances, their natural reaction was to resist the smooth operation of the new system so as to save themselves from ruin. Such resistance, of course, did not take the shape of an organised movement on their part to overthrow British rule or even to compel the government to introduce an alternative system of their own choice. As small groups or as individuals their resistance took the form of petitions, obstructions, defiance of laws, collusions and frauds, all of which aimed at neutralising the effects of the restrictive regulations and at making the

11. Mymensingh Collector to Lord Wellesley, 9 January 1802, Civil Judicial Proceeding, 8 July 1802, No. 106, para. 10, pp. 147-57.

government revenue so insecure and uncertain as ultimately to force the government to accede to their demands. Their main demands were for remissions of government demand on them at times of natural calamities, reductions of assessment, discontinuation of the policy of separation of taluqas, and of the *patta* rules and, above all, for the restoration of their traditional coercive powers over their tenants. How far did they succeed in achieving their goals? According to Holt Mackenzie, a contemporary revenue expert, the zamindars had been "very successful in their resistance to all such measures," stated above.¹²

Remission Question

The Court of Directors' despatch of 12 April 1786, which laid down the guiding principles of a durable and permanent system of revenue administration directed the Government to abandon the policy of arbitrary increases of revenue that resulted in a huge amount of balances and defalcations every year in the past with all their attending evils to the country and to the Company.¹³ The Court advised, "It is highly desirable to establish a revenue system, that may not be subject to these great annual defalcations. We are sensible to the zeal of our servants in endeavouring at various times, since we have possessed the *Dewanee* to effect an augmentation of Land Revenue. At the same time it would be bad policy in us to swell that article beyond its just and reasonable bounds."¹⁴ The letter emphasized that future assessments should be moderate and fixed and when it was fixed, the court said, "no plea should be left for abatements, and remissions, but we are also sensible that cases may occur, where

12. Holt Mackenzie's evidence before the Parliamentary Select Committee, *Parliamentary papers*, House of Commons (hereafter cited as P. P., H. C.) 1831-2, vol. II, evidence p. 221, Q. No. 2632.

13. Court of Directors (hereafter cited as C. D.) to Governor General in Council (hereafter cited as G. G. in C.), 12 April 1786, *ADD. MSS. 12571*, *Wellesley Papers*, p. 8.

14. *Ibid*, para. 29, p. 10.

a zamindar has actually fallen in arrears from some peculiar calamity of a local nature ; and that it may then be advisable to grant him a temporary respite of a portion of his fixed revenue, instead of compelling him to complete his engagement by money borrowed at a heavy interest.”¹⁵ But Cornwallis went further. For the sake of absolute certainty and security of public revenue he laid down, contrary to the Court’s suggestion, that the zamindars would be bound to pay their stipulated amount of revenue punctually regardless of any natural or other calamity. The decennial engagement required the undertaking from the zamindars that they would “claim no remission from [their] Jumma, on account of drought, inundation, encroachments and depredations of rivers, death or flight of [their] ryots.”¹⁶

It was expected by the Government that the zamindars would derive so much benefit from the new system and their profits would be so enlarged that “the deficiencies of bad seasons [would] on the whole be more than counterbalanced by the fruits of favourable years.”¹⁷ In other words, the Government wanted to make it absolutely clear to the zamindars that henceforth, the Government would remain satisfied with the fixed revenue and would neither make any claim upon the future profits of the zamindars nor would be ready to bear any losses incurred by them.

The zamindars tried to persuade the authorities that the idea of immediate improvement in the country’s agrarian economy in consequences of the very fixation of the public revenue was illusory and that natural conditions would make such a rigid

15. *Ibid*, para, 34, p. 12.

16. *Kubuleat* or engagement of the Raja of Rajshahi, para. 4, enclosed with collector’s letter, 16 August 1791, *Bengal Revenue Consultations*, (hereafter cited as B. R. C.), 2 September 1791, No. 11, P52/37.

17. T. Law, *Correspondence of the Honourable Court of Directors of the East India Company and of the Governor General in Council respecting the Permanent Settlement of land revenue*, p. 16.

system unworkable. The zamindars of Chittagong jointly protested that the local peculiarities there were such that without occasional remissions or abatements, cultivation was impossible. They pointed out that the crops in Chittagong, which were mainly produced in the coastal areas, were frequently exposed to cyclonic storms and to destructive flooding with salt water on the one hand, and to the ravages of elephants from the hills, on the other.¹⁸ Besides, they argued that unlike other districts, an extension of agriculture in Chittagong was not possible without the payment of extra revenue. Because all waste lands, according to an injunction of Hastings' era, belonged to the estate of Joynarayan Ghoshal, a *banian* of Herry Verelst, from whom taluqdari *pattas* had to be secured before any such land would be brought under the plough.¹⁹ Demanding remission on account of natural calamities, they concluded their memorandum thus : "If anything conducive to our future prosperity be written in the book of fate, our complaint will doubtless be attended to ; if not, the dead are always at the disposal of the living."²⁰ The zamindars of the 24—Parganas, on the other hand, did not beg for justice like the Chittagong zamindars. Instead, they concertedly boycotted the decennial settlement because of the no-remission clauses.²¹ The no-remission policy was ruinous for them because the district of the 24-Parganas, though fertile, was periodically devastated by the furies of the Damudar river. Their firm stand compelled the Board to recommend to the Council for relaxing the rigidity of no-remission policy. The Council, however, authorised the Board to assure them that "in the event of any serious calamity arising either from inundation, drought, or

18. Combined Memorandum from the Zamindars of Chittagong, 29 April 1790. Quoted in H. J. S. Cotton, *Memorandum on the Revenue History of Chittagong*, p. 69.

19. *Ibid.*

20. *Ibid.*

21. Collector of the 24-Parganas to Board of Revenue (hereafter cited as B. O. R.), 17 Nov. 1791, B. R. C., 23 Nov. 1791, No. 72, P52/37.

other cause which [might] render the assessment of their lands immoderate, the circumstances of their situation [would] be duly attended to by Government."²² But in spite of this assurance from the Council, the zamindars refused to engage unless the undertaking was withdrawn from the engagement form altogether. They argued, "should we execute such deed it will involve us in the utmost difficulty, and ultimately must inevitably prove our ruin." They continued, "we are required to enter into engagements stating that without murmur or any plea on account of drought or inundation, whether from too much rain, or the banks of rivers being overflown, desertion or death of *ryots* etc., we shall bind ourselves to pay our compleat (sic) revenue ; this we can by no means agree to."²³ The collector, being exasperated, requested sanction to punish those audacious zamindars for disobedience to the Council's orders.²⁴ But the Council, disapproving, preferred to offer assurances to the zamindars for the second time.²⁵ At last they agreed to engage, though the undertaking was still included in the bond. That their trust was well placed and that the Council intended to faithfully to adhere to its promise, even though the no-remission clauses were renewed in the proclamation of the permanent settlement, was proved by subsequent grants of remissions at times of calamities, though the amount given by way of relief was always much below the actual losses. The raja of Nadia, for example, claimed that he lost lakhs of rupees on account of devastating drought in 1793, but the amount of remission he got

22. B. O. R. to G. G. in C., 18 Nov. 1791, *B. R. C.*, 23 Nov. 1791, No. 71, P52/37.

23. 24-Pargana Zamindars' petition, *B. R. C.*, 16 March 1792, No. 26, P52/42,

24. 24-Pargana Collector to B. O. R., 29 Feb. 1792, *B. R. C.*, 16 March 1792, No. 26, P52/42.

25. G. G. in C. to B. O. R., 16 March 1792, *B. R. C.*, 16 March 1792, No. 27, P52/42.

amounted to only Rs. 67954.²⁶ In order to raise the government relief to the level of actual losses, the zamindars often gave false returns. The raja of Burdwan, for example, demanded a suspension of public revenue amounting to twelve thousand rupees on account of a drought in one of his *parganas*. He gave to the collector a list of *ryots* to whom he granted suspension of their rents. But on verification the collector found that many *ryots* in the raja's suspension list had already paid their full rents. Fourteen *ryots* admitted that the raja's officers collected from them even excess rents.²⁷

Decennial Assessment

No detailed investigation into the resources of the zamindari estates was made before fixing the decennial *jama* on them. The Court of Directors believed that under the various plans tried out since 1765, adequate information as to the resources of the country had been already acquired, "much [could] not still remain unexplored".²⁸ The Court apprehended that further local inquiries would be "open to numberless objections."²⁹ The government was thus advised to strike out an average of the assessment from 1772 to 1786 and use this as the basis for the decennial settlement.³⁰ Cornwallis further simplified this formula by making the *jama* of the previous year 1196 B. S. as the basis of settlement.³¹ To this mode of proceeding John Shore, the President of the Board of Revenue, however, objected.

26. Nadia Collector to B. O. R., 2 February 1793, *B. R. C.*, 22 February, 1793, No. 50.

27. Burdwan Collector to B. O. R., 6 April 1792, *B. R. C.*, April 1792, No. 25, para. 3.

28. C. D. to G. G. in C. 12 April 1786, General Revenue Letter, para. 44, E/4/630.

29. *Ibid.*

30. *Ibid.*

31. Bengal Special Orders, *B. R. C.*, 23 Nov. 1791, No. 66, para. 1, P52/37.

His argument was that the government's knowledge respecting the real resources of the country was still grossly imperfect and because of that imperfect knowledge, the distribution of assessment between different estates in a district was bound to be notional, and therefore, unequal.³² Faced with the prospect of further delay and uncertainty which Shore opened up, the Court of Directors plumped finally for the contrary views of Cornwallis who argued that the knowledge that had been acquired in the past twenty five years could hardly be improved by further researches.³³

Thus the assesment of the preceeding year, that is of 1789-90, was made the basis of the decennial settlement. In that year, the net *jama* of Bengal, Behar and Orissa, including *sayer* or internal custom duties, had amounted to twenty five crores and nine lakhs of rupees.³⁴ The decennial settlement, despite the deduction of *sayer* revenues, which had recently been abolished, was still made at twenty five crores and eight lakhs of rupees.³⁵ But the *sayer* revenues, collected and paid by the zamindars, it should be noted, had amounted to some ten lakhs of rupees.³⁶ The revenue demand upon them was thus, in reality, raised by some nine lakhs of rupees above the basic level proposed by the Court. The Government's deficit of nine lakhs of rupees in consequence of the abolition of the *sayer* duties, was made up by a new imposition called *rasad*. This was a progressive increase on the original decennial assessment which was to last for three years from the beginning of the decennial settlment. The amount of assessment in the last year of the payment of *rasad* was to be the revenue fixed for ever. For example, the Burdwan zamindari was originally settled at S. Rs. 29, 66, 207 in 1791.³⁷ The amount

32. J. Shore's Minute, 18 June 1789, *Fifth Report*, Appendix 5.

33. C. D. to G. G. in C., 19 Sept. 1792, p. 775, E/4/638.

34. *Ibid.*, p. 710.

35. *Ibid.*, pp. 709-710.

36. *Ibid.*, p. 711.

37. B. R. C., 24 June 1791, No. 1, P52/32.

of *rasad* upon this sum was S. Rs. 1,50,000 in the first year, S. Rs. 1,00,000 in the second year, and S. Rs. 1,50,000 in the third year. Thus three lakhs of rupees were added to the basic decennial figure.³⁸ So the perpetual *jama* of the Burdwan zamindari stood at S. Rs. 32, 66,207 which meant about ten percent increase upon the basic decennial *jama* of the zamindari. Though there was considerable variation in the rate of *rasad* at individual level, the average revenue demand upon a district was always higher than that of the basic year 1196 B. S./1789-90 A. D.³⁹

Thus, as a result of the *rasad* policy, the decennial assessment became the highest demand ever made before and this the Governor General in Council boastfully reported to the Court.⁴⁰ The Court of Directors showed no concern, but rather expressed their pleasure that the enhanced assessment would be sufficient "not only for all the exigencies of government but for the gradual extinction of our debts abroad at the same time."⁴¹ It sounds as if the assessment was fixed according to the needs of the government rather than according to the zamindars' ability to pay. As will be seen later the Government did succeed in securing its full pound of flesh in the years which followed the decennial settlement. The question is, however, what was the state of the body from which it was taken? Were the zamindars capable of paying what in practice was the ever highest assessment? How equitably had the assessment been distributed among the zamindars? It has been already explained in the preceding chapter how indigent were the zamindars at the time of the decennial settlement. The Court of Directors

38. *Ibid.*

39. N. K. Sinha, *The Economic History of Bengal*, Vol. 11, p. 159.

40. G. G. in C. to C. D., General Revenue Letter, 10 August 1791, para. 16, E/4/50.

41. G. G. in C. to C. D., General Revenue Letter, 19 September 1792, para. 17, E/4/638.

frankly admitted that the Government's frantic search for higher and higher revenues from the acquisition of the *diwani* onwards, had allowed the country to be "drained by farmers, or by the *Tahsildars*, *sezawals*, and *ameens* of Government, none of whom [had] any permanent interest in its prosperity; the zamindars [were] discontented; many of them deprived of their lands, overwhelmed by debts, or reduced to beggary..."⁴²

The decennial assessment of 1790, which was made permanently fixed in 1793, was not only unbearably high in the context of the economic conditions of the zamindars at that time, but also highly unequal in its distribution. In some cases the assessment on their property was "very moderate, in others it was almost extortionate; in many cases engagements were entered into for lands that had no existence, or for lands that were included in other estates."⁴³ In the absence of any survey or registers, and owing to the confusion in, and subsequent abolition of the *Kanungo's* office, it was an impossibility for the collector to examine in detail the returns filed by the myriads of small landholders. His main efforts were "directed towards maintaining the amounts of the assessment of the previous year without examining its distribution—such an examination being impossible in view of the huge of number separation of taluqa from the parent estates."⁴⁴

In protest against the unequal distribution of *jama* hundred of petty zamindars of Dacca deserted their estates and many more refused to engage.⁴⁵ It was estimated by the collector that four thousand and fourteen zamindars paying revenue of about two lakhs of rupees annually refused to accept the terms offered by the decennial settlement.⁴⁶ In 1793, the

42. C. D. to G. G. in C. *General Revenue Letter*, 12 April 1786, para. 22, p. 339, E/4,630.

43. F. D. Ascoli, *Early Revenue History of Bengal and the Fifth Report*, p. 73.

44. *Ibid.* p. 73.

total number of estates in the Dacca district was 14500.⁴⁷ The forthright refusal to accept the decennial settlement by about one third of the zamindars paying about one fourth of the total revenue demand on the district was, indeed, a serious challenge against the revenue policy of the government. Under the circumstances, the government had two possible alternatives. It could either defer the conclusion of the decennial settlement for indefinite period or the unwilling landholders could be pensioned off by bringing their estates under *khas* or official management till the expiry of the decennial period in 1800. The government preferred the latter. But the dispossessed proprietors tried their utmost to frustrate such arrangements. Their *lathials* or clubmen not only stirred the *ryots* to commotion, but even beat up the officers of government when they visited the villages to collect rents.⁴⁸

Like their Dacca neighbours, large number of Tipperah zamindars also refused to accept the decennial settlement offer and were, consequently, dispossessed of their estates. By way of passive resistance to such dispossessions they applied their local influence to make the *khas* management a failure. The *ryots* were intimidated into not paying rents to government and into keeping their lands fallow.⁴⁹

Rangpur zamindars also objected to the decennial assessment policy in the strongest terms. They declined to engage if the

45. B. O. R. to G. G. C., 25 April 1794, B. R. C., 25 April 1794, No. 10, P53/15.

46. Dacca Collector to B. O. R., 16 April 1795, *Board of Revenue Proceedings* (hereafter cited as B. O. R. P.) 16 April 1795, No. 11, P72/42.

For details about the impoverished conditions of the Dacca Zamindars of 1790s see Sirajul Islam, 'The operation of the Sun-set Law and Changes in the Landed Society of Dacca District', 1793-1817, *Journal of the Asiatic Society of Bangladesh* vol. XIX, No. 1, April, 1974.

47. F. D. Ascoli, *Final Report on the Survey and Settlement in Dacca District* p, 54.

48. Dacca Collector to B. O. R., 17 Nov. 1796, B. O. R. P, 22 Nov. 1796, No, 26.

49. B. O. R. P., 15 June 1795, No, 16, P73 11, and 23 June 1795, No. 19, P73/11.

assessment was not revised according to the current actual resources of their estates.⁵⁰ They submitted that the resources of the district had much depreciated in recent years, due to the flood and famine of 1787-88.⁵¹ They also refused to pay any *rasad* which, they alleged, was based on a quite imaginary prospect of growth in the produce of the country.⁵² The collector, being convinced of their just demands, recommended to the Board that a proper investigation into the resources of the district should precede a settlement.⁵³ The Council agreeing to a similar recommendation from the Board of Revenue ordered the cancellation of the previous settlement in favour of a new settlement to be based on the individual capacity of the zamindars.⁵⁴

Raja Tej Chandra of Burdwan accepted the basic decennial assessment, but not the imposition of *rasad* amounting to three lakhs of rupees. He himself visited Calcutta to convince the Board of his inability to pay the *rasad*.⁵⁵ The Board refused to comply with his plea and called upon him to accept the terms offered unconditionally. But the raja, to the very face of the members of the Board, refused to engage if the *rasad* was not withdrawn.⁵⁶ His conduct was reported to Cornwallis who angrily ordered his immediate expulsion from the capital and held him responsible for any deficiency that might occur due to the delay caused by him in making the settlement.⁵⁷ Though under this pressure, the raja agreed to engage, he later adopted fraudulent means to obtain reductions. In order to show

50. Rangpur Collector to B. O. R., 9 June 1790, *B. O. R. P.*, 21. June 1790, P71/26.

51. Memorandum of Rangpur Zamindars, 2 January 1790, Rangpur District Records, Vol. 27, pp. 37-38. (D. S. R.).

52. *Ibid.*

53. *Ibid.*

54. B. O. R. to Rangpur Collector 3 July 1790, *B. O. R. P.*, 30 July 1790.

55. *B. R. C.*, 24 June 1791, No. 2, P. 52/32.

56. *Ibid.*

57. G. G. in C. to B. O. R., *B. R. C.*, 24 June 1791, No. 3, P. 52/32.

a deficiency of assets in his estate he let lands to his underlings at reduced *jama* with verbal agreements that the balance of the actual *jama* should be paid privately to him without receipt.⁵⁸ By this method he created, so the collector alleged, an artificial shortfall in his rent roll to the tune of S. Rs. 1,42,981 in three years.⁵⁹ Finally he deliberately withheld the biggest instalment of the month of *Poose*, (that is the month for the tenth instalment of the revenue year) amounting to seven lakhs of rupees and transferred the zamindari to his mother.⁶⁰ This transfer was interpreted by the collector as a tactical manoeuvre on the part of the raja. "As far as the Raja's object can be inferred from his conduct in the late transaction," wrote collector S. Davis, "it appears to have been to embezzle as much as he could of the rents, and leave Government to look to the Ranny for the balance which would happen in consequence ; this would not subject the Ranny to any inconvenience ; for, being by her sex, exempted from imprisonment or coercion of any kind, she would remain undisturbed till the end of the year while the Raja, no longer subject to restraint, would be at full liberty to try every means he might think conducive to the reduction of the assessment on the district, which appears to me to have been his aim ever since he entered into his decennial engagement.⁶¹ But the Government, being determined not to be outwitted by such subterfuges, arrested the raja and exiled him to Chandannagar till all the arrears had been recovered and all his frauds exposed under the *khas* management

58. Burdwan Collector to B. O. R., 19 August 1794, *B. R. C.*, 29 Aug. 1794, No. 15, P. 53/19,

59. Burdwan Collector to B. O. R. 19 August 1794, *B. R. C.*, 29 Aug. 1794, No. 15, P. 53/19.

60. Burdwan Collector to B. O. R., 28 January 1794, *B. O. R. P.*, 21 January 1794, P. 72/26,

61. Burdwan Collector to B. O. R., 27 Feb 1794, *B. O. R. P.* 14 March 1794 P. 72/28 No. 5.

of his zamindari.⁶² To prevent the other zamindars from adopting the fraudulent methods of Raja Tejchandra, a Regulation was enacted abolishing the practice of confining the defaulting zamindars. Instead, their property landed or other was made liable to be promptly sold in public auction in order to recover the arrears from them.⁶³ It was also prescribed that "all proprietors of land withholding the public revenue shall be liable, as fine, to the payment of interest on the amount of the arrears at the rate of twelve per cent per annum from the day on which it became due, to the date of its discharge."⁶⁴ The raja of Nadia also claimed a reduction on account of an inequitable assessment, but under official pressure he agreed to engage.⁶⁵ Even so it was discovered later that he had succeeded in deceiving the Government by alienating 2,66,426, *bighas* of land, yielding an income therefrom of about one lakh of rupees a year.⁶⁶ Among the principal zamindars who fought for a reduction of the assessment upon them, the raja of Bishnapur alone succeeded in securing any relief.⁶⁷

Since appeals to Government against inequalities in the revenue assessment or against the burden of *rasad* met virtually with no success, the zamindars were drawn to take matters into their own hands. In some cases, doubtless, the despairing cries against the revenue demand were make-believe,

62. Burdwan Collector to B. O. R., August 1794, B. R. C., 29 August 1794, No. 15, P. 53/19.

63. G. G. in 6. to B. O. R., 14 March 1794, See, *West Bengal District Records (New Series) Murshidabad, Letters Received, 1789-1803*. S. K. Bose (ed.) p. 159.

64. G. G. in C to C. D., 18 Aug. 1794, General Revenue Letter, para 8., E. 14/54.

65. Petition of Raja Iswar Chandra of Nadia, B. R. C., 28 October 1791, No. 4, P. 52/36.

66. Nadia Collector to B. O. R., 11 April 1817, B. R. C., 27 June 1817. No. 3.

67. B. O. R. to G. G. in C., 18 May 1795, B. R. C., 18 September 1795, No. 11, P53/35.

part of an ingrained habit of bargaining. But in others the protests were justified, the burden was too heavy, and deceit or illegality was a necessary, indeed the only, defence available. Thus, a great many zamindars tried to save their estates by nominally transferring them to others. About this method, the Governor General in Council wrote to the Court, "We had reason to believe from the instances which came before us that they were fictitious and intended to answer the temporary purposes of the proprietor, who after having greatly diminished the assets of his estate by mismanagement, was desirous of evading future responsibility. The institution of the Court of Wards was intended as a security to the property inherited by minors and other individuals who could not be considered competent to the management of their estates..., but it was never intended to allow landholders to transfer their estates during their own lives to their minor sons or other disqualified heirs, such a permission would have enabled every individual who had rendered his estate unprofitable by his misconduct to throw the management of it on government, and consequently to compel them to submit to a loss of revenue adequate to the deficiency in the revenue assets of the land." ⁶⁸ Such arguments against the zamindars who transferred their estates to their minor successors during their life times does not sound convincing. Because it is quite unlikely that those zamindars who had the ability to acquire their estates either before or since the British rule and steered clear of all difficulties ever since would become so unworthy all of a sudden that within a couple of years of the decennial settlement they made their estates deficient of assets and tried to pass the responsibility on to the Government by nominally transferring their estates to their minor successors, notwithstanding the adverse social implications of such an abdication. When the authorities saw that an

68. G. G. in C. to C. D., General Revenue Letter, 1 December 1796, para. 627, E/4/57.

increasing number of estates incapable of paying the government revenue demand upon them were coming under the official management and thereby threatening the security of the public revenue, a Regulation was enacted, limiting the jurisdiction of the Court of Wards only to those disqualified landholders who would inherit the estates after the death of their guardians.⁶⁹ But the authorities found it impossible to check all the artifices that most of the zamindars were forced to adopt with a view to ameliorating their conditions. So, though the Regulations of the decennial settlement abolished all *sayer* duties, and granted zamindars a reduction in government demand as compensation, zamindars never stopped from collecting them.⁷⁰

Separation of Taluqas

Under the Mughal constitution, the revenue collecting agencies were not always of the rank or extent implied by the title zamindar. There was another class of minor landholders of the same kind but of lesser importance, called *Taluqdars*, that is to say, holders of *talukas*, or dependencies. At the time of the decennial settlement, broadly there were two types of *taluqdars*, such as *Huzuri taluqdars* and *Mufassal taluqdars*. *Huzuri taluqdars* were those who held their right by immemorial possession of sanads from the zamindars or government and whose rights were duly recognised by the Mughal Government. In that case they were fully independent of the influence and control of any zamindar and they were termed as *Huzuri taluqdars*, because they paid their revenues directly to Huzur or government. But the *mufassal*, also called *Mazkuri*, *taluqdars*, were those who did not have any such recognition from the Mughal Government and who customarily paid their fixed

69. G. G. in C. to C. D., *General Revenue Letter*, 1 December 1796, para. 7, E/4/57.

70. G. G. in C. to C. D., 6 March 1793, *General Revenue Letter*, para. 24, E/4/52, also see, Merchant's Petition to Council, 14 August 1795, D. R. C. 28 August 1795, No. 1, P53/33,

revenues through the mediation of a superior zamindar. Their rights and liabilities in relation to their superior zamindars were undefined and widely varied from one district to another. So far as the Huzuri or independent taluqdars were concerned, the government found it simple to make the decennial settlement directly with them, for they were considered equal to zamindars in rights and ranks, though not in the extent of territorial possessions. But what policy should the government adopt towards the *mazkuri* or dependent taluqdars? The problem before the government was whether to recognise them as vassals of zamindars or to separate them from zamindar's control and make settlement with them independently.

Thomas Law, who first earned his reputation as a collector of Bihar, then as an intellectual guide of Cornwallis, was of opinion that both *Huzuri* and *mufassal* taluqas enjoyed the same rights with two different names only.⁷¹ He advocated that if the *mufassal taluqas* were not made independent by separating them from the control of their overlords, then "the principal zamindars [would] naturally endeavour to burthen the inferior ones with a view to lighten their own estates and ultimately to force the sale of the others to themselves..."⁷² Like Law, Cornwallis also found no differences in rights between the zamindars and *mufassal* taluqdars excepting the fact that one was big and influential and another was small and insignificant.⁷³ He reinforced his argument about the proprietary rights of the taluqdars by stating that they acquired their *talukas* by purchase or inheritance or gift or by other lawful means and that the ancestors of many of them were in possession of their taluqas long before the zamindars jurisdictions in which they were now included were formed.⁷⁴

71. T. Law's Minute, 15 April 1790, *H. Misc. S.*, Vol. 384B (Part 2) p. 103.

72. T. Law's Minute, 15 April 1790, *H. Misc. S.*, Vol. 384B, part 2, pp. 193-4.

73. Cornwallis Minute, 21 April 1890, *H. Misc. S.*, Vol. 384B, part 2, p. 235.

74. *Ibid.*, p. 237.

He went on that it was the policy of the Mughal Government to collect rents from the taluqdars and small zamindars through the mediation of the large zamindars as a matter of convenience, because such arrangement was attended with less trouble and expence than it would have been incurred by taking separate engagements from them. Thus he concluded, "The rent therefore paid by the dependent Taluqdars who are the proprietors of the soil is not the rent of the zamindar but the rent of government, which it is obvious we have a right to collect by the hands of our own officers instead of receiving it as hitherto through the mediation of the zamindars should the former mode appear to us most conducive to the prosperity of the country."⁷⁵ One month later, Cornwallis wrote another minute advocating the need for separation of the *talukas* from the zamindari jurisdiction. He gave the following grounds for such separation.⁷⁶ Firstly, he argued that to bring agricultural improvement to the country, the monopoly control of land should be demolished and the creation of manageable economic units must be encouraged. The hiving off of the *talukas* currently under their jurisdictions was to be one means to that end. Secondly, Cornwallis argued that since the taluqdars had been made subordinate to the zamindars merely for administrative convenience, it was only simple justice to recognise now that in respect of inherent rights the taluqdars were as independent as the zamindars. Moreover, and this was his third point, if that independence was not established now, the zamindars would use the finality of the permanent settlement and the withdrawal of government from day to day involvement in revenue administration to override the customary rights of the taluqdars, to treat the talukas as integral parts of their zamindaris and to impose increased rents upon them. Lastly, though zamindars might treat talukas as part of their

75. Cornwallis' Minute, 21 April 1790, *H. Misc. S.* Vol 384B. part 2, p. 238.

76. Cornwallis' Minute on talukas, 12 May 1790, *B. R. C.* 12 May 1790, No. 36, P. 52/10.

estates, government by respecting taluqdari rights would find itself debarred from selling them when the superior zamindar was in default. The Council accordingly resolved: "that all talookdars being actual proprietors of the lands comprising their *talooks* and who now pay their rents through the mediation of a zamindar be immediately separated from the jurisdiction and authority of such zamindars and that the rents of the latter be adjusted exclusive of the *talooks* so separated."⁷⁷ The following categories of *talukas* were resolved to be separated,⁷⁸ (1) taluqdars who had purchased their lands by private or public sale, or obtained them by gifts from the zamindars; (2) taluqdars whose *talukas* had been formed prior to the zamindaris through which they now paid their revenue; (3) taluqdars whose lands had never been placed under a zamindar, and (4) taluqdars who held their *talukas* under a special grant from the government.

It is evident that being imbibed by the idea of improvement Cornwallis wanted to bring a change both in the ownership and distribution of landed property in order to imbue the stagnant agrarian economy of the country with a new life and vigour. Separation of *talukas* was chosen to be only one of the several weapons in his hands to bring about the intended change. The legal arguments that he brought into the defence of his measure had its strength and weakness. It was rightly argued that it was merely a matter of fiscal convenience that under the Mughals such categories of taluqdars had been lumped in with the zamindars. The number of talukas were so great and *sadar jama* individually due so small that direct revenue transaction would have been inconvenient both to the government and to the taluqdars. As an example, one could point to the district of

77. G. G. in C.'s Resolution, 12 May 1790, *B. R. C.*, 12 May 1790, No. 37, p52/10.

78. G. G. in C.'s Resolution, 19 May 1790, *B. R. C.*, 19 May 1790, No. 35, p52/12.

Nadia, which contained some four hundred taluqdars, of which only eight paid more than one hundred rupees as revenue, the remainder paying in some cases as little as eight annas.⁷⁹ The zamindar had been used, perhaps even required as a part of their duties, to collect that revenue from these myriad taluqdars, receiving a commission for so doing from the Mughal authorities. But lately, because of the decline of Mughal power and the confusion of early British rule, they had been able to apply their superior power either to annex taluqas outright, or to exact larger revenues from them, as though they were proprietors of those taluqas. Cornwallis took as an example of this latter behaviour the treatment of Hyder Ali, a large taluqdar at the hands of the Burdwan raja. In 1785, the raja had raised the original Mughal revenue demand of Rs. 24,000 to Rs. 27,000 and had imposed a further Rs. 1,000 as a *salami* or acknowledgement. Still not being satisfied the raja had seized Hyder Ali's estate accounts papers in order to make a valuation of the taluqa outright in preparation for a further enhancement of the revenue demand.⁸⁰ But Cornwallis failed to mention that such an abuse of powers on the part of the zamindars was largely dictated by the British revenue policy prior to the decennial settlement. It is well known that the zamindars were every year forced to pay more and more revenue to government. Under such pressing circumstances the zamindars, in turn, applied their superior power with equal high handedness to pass some of their burdens on to their taluqdars.

The zamindars had, indeed, no valid answer to Cornwallis' arguments that there were numerous taluqas which were formed long before their principals came into being. These were known as *milkiat* taluqas. *Milkiat* is from the Arabic word *malik* meaning sovereign or king. The *milkiat* taluqas were the

79. Nadia Collector to B. O. R., 19 June 1790, B. R. O., 9 July 1790, No. 2, p52/14,

80. Cornwallis' Minute, 12 May 1790, B. R. C., 12 May 1790, No. 36, p52/10.

remnants of the ancient ruling families of Bengal. These senior families had every right in theory to become independent by separating themselves from the zamindars under whom they were placed subsequently for administrative convenience. But the theory of their independent status on the basis of their historical rights had been largely nullified by the actual practice of the British government in Bengal. Until the decennial settlement the taluqdars were never considered by the British as a separate class with proprietary rights. In every successive revenue experiment before the decennial settlement the zamindars had received 10 p. c. of the *sadar jama* as *malikana* or proprietary allowance. The taluqdars received their due allowance from the zamindars. The zamindars were held responsible for all deficiencies even when these originated in the *talukas*.⁸¹ The zamindars were permitted to raise money to pay the public revenue by mortgaging *talukas*.⁸² Above all, many zamindaris were publicly sold in the past in order to recover revenue arrears, and along with them were sold their dependent *talukas* as if these were the property of the zamindars.⁸³ The zamindars thus could quite legitimately argue that if under the Mughals they acted as mere intermediaries between the government and the taluqdars, the practice of the British government bestowed on them the new rights to hold the *talukas* as integral parts of their zamindaris. They could further argue possibly with greater force that if the Mughal constitution was not allowed to operate regarding their police, military and judicial powers and privileges as they hitherto enjoyed, then why should it be so faithfully observed so far as their relations with the taluqdars were concerned? Was it because the British

81. Memorandum from the Zamindars of Mymensingh, B. R. C., 11 June 1790, No. 9, p 52/13.

82. *Ibid.*

83. T. Graham's (Member, B. O. R.) Minute, B. R. C., 11 June 1790, No. 13, p 52/13.

Government was eager to use only that part of the Mughal constitution which suited the ideas and interests of the British best?

Cornwallis did however recognise that certain types of taluqas ought not to be separated. He maintained that the taluqdars who held their taluqas by *pattas* or letter of lease from the zamindars were merely *pattadars* or perpetual leaseholders, not taluqdars and thus not entitled to separation. In such circumstances, he argued, the zamindars did not intend originally to part with his lands.⁸⁴ It was thus laid down that there should be no separation of the following types of taluqas :⁸⁵

- (a) Taluqas whose owners had stipulated in their engagements that they would pay their revenues through zamindars ;
- (b) Taluqas which were held in perpetual leasehold from a zamindar ;
- (c) and lastly, *junglebury* taluqas, which were created on condition that junglelands will be cleared by the taluqdars.

This was far from sufficient, however, to satisfy the zamindars who strongly objected to the government's dealing separately with any category of taluqas over which during the last century they claimed to have acquired customary rights. Thus the zamindars of Mymensingh, who controlled about ten thousand separable taluqas protested : "The talookdars to whose forefathers our ancestors granted *pottahs* for the lands they hold, who have been always subject to and never independent of their zamindars are now at once, contrary to the established and invariable custom observed by the former rulers of the

84. Cornwallis' Minute, 21 April 1790, *H. Misc. S.*, vol. 384B part 2, pp. 251-2.

85. D. G. in C.'s Resolution, 12 May 1790, *B. R. C.*, 19 May 1790, No. 35, p 52/12.

empire and the English government till this moment, to be removed from under the wing of their natural parent, to shake off the control of the hereditary superiors, and to be set up as principals themselves. This has alarmed the minds of the people who break out in complaints of the injustice of government."⁸⁶ About their dissatisfaction, the Collector wrote that the publication of the resolution of the Council for the separation of taluqas had "created universal dissatisfaction among the zamindars, who [considered] the orders as an infringement on those rights and privileges which custom and ancient usage had established and which this Government by long recognition had confirmed."⁸⁷

Raja Ramkrishna of Rajshahi appealed to the Governor General in Council to revoke its resolution for separation of taluqas. He said that his ancestors and his mother Rani Bhavani raised money at different times by creating dependent taluqas and now if these taluqas were separated, then he would be unjustly deprived of about one fourth of his zamindari.⁸⁸ In fact the *sadar jama* of the taluqas within his zamindari amounted to S. Rs. 371000 and all of them were separated.⁸⁹ But the sharpest reaction came from Dacca, where the separation of taluqas had devastating effects on almost all the principal zamindars. The table below will show how severely the Dacca zamindars were affected by the policy of separation of taluqas.⁹⁰

86. Memorandum of the Mymensingh Zamindars enclosed with Collector's letter to B. O. R., 26 May 1790, *B. R. C.*, 11 June 1790, No. 9, p 52/13.

87. Mymensingh Collector to B. O. R., 26 May 1790, *B. R. C.*, 11 June 1790, No. 9, p 52/13.

88. Raja Ramkrishna's Petition, *B. R. C.*, 28 October 1791, No. 36 (petition one), p 52/36.

89. Rajshahi Commissioner to B. O. R. 26 May 1792 *B. R. C.*, 15 June 1792, No. 19, p 52/45, also Rajshahi Commissioner to B. O. R. 5 June 1793, *B. R. C.*, 5 July 1793, No. 15, p 53/4.

90. Dacca Collector to B. O. R., 25 May 1790, *B. O. R. P.*, 4 June 1790 (number nil), p 71/26.

TABLE 2
Select Zamindars and Separable Taluqas
Under Their Control.

Principal zamindaris	No. of Taluqas	Total Jama	Jama of separable taluqas	Jama of zamindari lands
		S. Rs.	S. Rs.	S. Rs.
Pargana Jalalpur	2148	87001	76001	11000
„ Chandradip	400	90450	72725	17725
„ Bikrampur	268	27652	25642	2010
„ Rajnagar	400	293673	201118	92555
Tuveh Mysundi	501	18004	14004	4000
Pargana Isakabad	200	3700	2000	1700
Tuveh Hydrabad	200	1985	750	1235

It shows that four fifths of these seven parganas were owned only by taluqdars whose separations must have reduced the once considerable zamindars to insignificance. Precisely 14,500 taluqas were separated from the original 394 zamindars of Dacca district.⁹¹ It was in great agony that the zamindar of Jalalpur, who had lost almost the whole of his once great zamindari, complained, "If it had been foreseen, that governing power were to have separated the talookdars from the zamindaries, no one would have paid so much for the purchase of zamindari nor would *pottahs* have been granted to talookdars by any one."⁹² In Jessore, 3444 taluqas were separated from 122 zamindaris.⁹³

91. F. D. Ascoli, *Final Report on the Survey and Settlement Operations in the District of Dacca*, p. 54.

92. Petition of the Zamindar of Jalalpur, *B. R. C.*, 23 June 1790, No. 5, p. 52/14.

93. M. A. Momen, *Final Report on the Survey and Settlement Operations in the District of Jessore*, p. 96.

In spite of zamindars' resistance to the policy of separation of taluqas the government continued to follow the policy faithfully till the closing years of the eighteenth century. The working of the policy was reviewed in 1801, and it was found to have created considerable social tension which was one contributory factor for the fall of law and order situation in the countryside. Furthermore, out of the taluqa policy had emerged tens of thousands of very tiny taluqa estates in every district. To administer these estates district establishments had to be increased. Moreover, such a policy tended to decrease the public revenue, because, many of these estates were so tiny and so oddly situated that revenue demands on them hardly equalled their collection charges. The government of Wellesley, which was involved in expensive wars, was not in a position to spare a penny for the increase of collector's establishments, nor could it afford diminution in the public revenue. He was badly in need of steady supply of money to finance his expansionist wars and also support from the ruling classes to keep the home front quiet. Thus after much deliberations, the policy of separation of taluqas was abandoned and zamindars were assured of no further government intervention into their affairs.⁹⁴

Patta Problem

The unequitable distribution of the state revenue demand, coupled with sales for default, and separation of taluqas both threatened the security of the zamindars from outside. A further measure, Regulation VIII of 1793, which prohibited the levying of unauthorised *abwabs* or cesses and required the conclusion of written agreements with the *ryots*, setting out definite terms and conditions upon which they were to hold from the zamindars, threatened zamindars from within. When the government tried to enforce the Regulation VIII, 1793—commonly

94. Regulation 1, 1801.

known as *patta* law, there was further uproar from the zamindars.

Under the existing system, the zamindars' demands on their *ryots* were not governed by any fixed rule. The *ryots* never knew exactly how much they would have to pay to their master, over and above the *asal* or original jama fixed by Todar Mal settlement.⁹⁵ Above the *asal* jama they were made to pay numerous variable cesses called *abwabs*.

There was a cess for almost everything : a cess for collection expenses, a cess for police duties, a cess for roads, new houses, hats or small shopping centre and bazars or commercial centre, a cess on all occasions that happened in the zamindari family, such as births, deaths, marriages, festivals, a pilgrimage to the Ganges, or holy cities such as Banares, Brindaban, Puri, etc.⁹⁶ All these cesses were added to the *asal* jama, the grand totals being as high as the *ryot* could bear without being ruined or drawn to desertion.⁹⁷

It must be noted here that the zamindars had no right to demand more than the *asal jama* or the *jama* that was originally fixed by Todar Mal in 1588. All demands over and above that *asal jama* were to be considered as *abwabs* or temporary cesses. The zamindars obviously tried to keep pace with the increased price and productivity and also with increased government demands on themselves by levying *abwabs* under different heads. But unlimited scope for levying *abwabs* tended to make the zamindars oppressive towards their *ryots*. It was to stop this kind of oppression for ever that Cornwallis wanted to subject the zamindars to some definite rules, the gist of which is as follows :⁹⁸

95. Dacca collector to B. O. R., 27 May 1790, D. S. R., Dacca vol. 7, p. 18.

96. J. Westland, *A Report on the District of Jessore*, p. 97.

97. *Ibid.*

98. Sections 54-61, Regulation VIII, 1793.

- (1) All proprietors must consolidate their demands upon the ryots into one single sum above which they were strictly prohibited from collecting any further *abwabs*.
- (2) Every exaction above the consolidated *jama* should be punished in the *diwani* court.
- (3) Every proprietor must issue a *patta* or deed of agreement to each ryot which should specify all the terms and conditions of the lease which must not be agreed for more than ten years. The *patta* must lay down the rent payable per bigha and quality of the land.
- (4) The counterfoils of *patta* of which the government supplied a prescribed form, must be registered in the district courts.
- (5) *Pattas* of *khudkast* ryots must not be cancelled.
- (6) Landholders prosecuting claims for rent which had not been consolidated into one demand set out in the *patta* would be unsuited, with costs and damages.

It was one thing for the Council to decree the use of regular *pattas* and the registration of their terms and quite another to secure obedience to it. The relationship between the zamindars and the *ryots* was governed by the unwritten laws of customs and usages of the country. Any constitutional innovation brought in to disturb their traditional relations was sure to create suspicion and doubt among them. Thus from the districts came back a stream of reports from the collectors stating the objections raised and the difficulties encountered. In July 1793, the Collector of Chittagong reported that he tried to enforce the rules, but he totally failed to do so because of the non-cooperation of the landholders.⁹⁹ He wrote that the zamindars pleaded inability

99. Chittagong Collector to B. O. R., 20 July 1793, B. O. R. P., 28 February 1794, No. 14, p 72/27.

to adhere to the Council's orders for introducing *patta* "alleging that the greater number of the zamindars, and talookdars in this province, from poverty and ignorance have never been accustomed to keep any accounts."¹⁰⁰ The zamindars from Rangpur in a body petitioned that any innovation in the established customary rules governing their relationship with their *ryots* would alarm the latter and impel them to leave the district.¹⁰¹ The Raja of Nadia expressed his inability to compel the *ryots* to accept *pattas* because they, according to the raja, were all at one against the *patta* rules.¹⁰² The *ryots* apprehended that the acceptance of *pattas* would destroy their permanent occupancy rights; after the expiry of the lease the zamindars could either evict the *ryots* by refusing to renew the *pattas*, or the issue of their renewal might be used as a lever to enhance rents. The collector of Nadia thus wrote: "The *ryots* object that at the expiration of the lease, either they or their heirs will be subject to *salamee* or present to the landholder before a new *pottah* will be granted them or turned them out of their *mehaul* at his pleasure."¹⁰³ The Collector of Rajshahi himself tried his best to convince the *ryots* of the advantages of *pattas* but failed to persuade them. "In one instance", he wrote "the parties being in attendance the subject was discussed before me, and the *ryots* declared themselves ready to accept *pottahs* in the terms to which the *zeminder* declared he restricted his demands; but I understand that, on their return to the *mofussal* they again refused the *pottahs* tendered."¹⁰⁴

100. *Ibid.*

101. Rangpur Collector to B. O. R., 17 August 1793, B. O. R. P., 28 February 1794, No. 3.

102. Raja Iswar Chandra of Nadia to Collector, enclosed with Collector's letter, 27 June 1793, B. O. R. P., 28 February 1794, No. 6, enclosure No. 5, para 3, p 72/27.

103. Nadia Collector to B. O. R., 27 June 1793, B. O. R. P., 28 February 1794, No. 6, p 72/27.

104. Rajshahi Collector to B. O. R., 28 October 1793, B. O. R. P., 28 February 1794, No. 20, para 7, p 72/27.

It is certain that the *patta* rules were disliked by both the zamindars and their *ryots*, who offered a combined opposition to their successful implementation. The zamindars opposed for several reasons. Firstly, it was said that in the Province of Bengal "near two-thirds of the lands [-was] cultivated by under ryots, who [had] no connection at all with the proprietors or even with farmers themselves."¹⁰⁵ The great majority of these under-ryots were either landless labourers or *paikast* or non-resident temporary *ryots*. They cultivated lands mostly for one season. If the crops failed, they left for another place, and if they got favourable harvests, then they engaged themselves for the next seasonal crops.¹⁰⁶ They were least disposed to come to written agreements with a zamindar for a definite period of time with the obligation of paying a definite amount of rents. Any attempt to force them to bring themselves under written agreements with the proprietors would alarm them and drive them to desertion. Moreover, other than the most settled and populous areas, the cultivation in other zones was always variable due to the migratory nature of the cultivators. A particular village, if it could attract migratory cultivating labourers, could pay, for example, five hundred rupees in one year, but the very next year the revenue might fall far below the former mark or it might go further up with the departure or arrival of a considerable number of cultivating labourers. Hence it was impossible on the part of the zaminders to insist upon them accepting *patta*. If he did so he was sure to lose most of his *paikash* *ryots*. Secondly, the more important reason for zamindars' reluctance to distribute *patta* was their lack of confidence in the new system and in the promises of the authorities. They were required to register compulsorily all the counterfoils of the *pattas* in the district courts. From these

105. Tipperah Collector to B. O. R., 27 June 1793, B. O. R. P., 28 February 1794, No. 33, p 72/27.

106. *Ibid.*

papers, the Government was capable of knowing everything about the state of zamindari. Such information the zamindars were not ready to supply. H. T. Forster, the Collector of Tipperah, rightly observed: "If I might be permitted to assign what I think is the real cause on the part of the landholders for not granting *pottahs*—I should not hesitate to say that it is want of confidence in the Regulations, or rather the permanency of the Decennial Settlement itself. They are, therefore, afraid of exposing the true state of their zamindars lest an unfair advantage may hereafter be taken of them. The peremptoriness of the orders, in all probability tends to rather strengthen their apprehensions of government having some private object in view than to inspire them with confidence in their good faith."¹⁰⁷ Thirdly, as lease could be granted for a maximum of ten years only, the large zamindars found it difficult to find farmers and renters at advantageous terms. Few people were likely to come to invest their capital for short term lease. Moreover, under short term lease, the farmers were least inclined to invest their capital and improve the lands under their control and at the end of the lease they tended to take to rack-renting.

The *ryots* refused to receive *pattas* because they could hardly believe, in the first place, that the zamindars would refrain from imposing any more *abwabs* after consolidating all of their demands into one single amount. Secondly, most of the principal *ryots* occupied more lands than they were authorised to hold.¹⁰⁸ Any measurement of their holdings in compliance with *patta* rules, would expose their secret gains and make them liable to pay more. Hence they were ready to prefer "the risk of suffering exactions than come under specific engagements and have their lands measured."¹⁰⁹

107. Tipperah Collector to B. O. R., 27 June 1793, *B. O. R. P.*, 28 February 1794, No. 33, p 72/27.

108. See N. K. Sinha, vol. II, pp. 131-33.

109. Tipperah Collector to B. O. R., 27 June 1793, *B. O. R. P.*, 28 February 1794, No. 33, p 72/27.

Both the zamindars and the *ryots* were thus united against the introduction of a uniform and state supervised *patta* system. In the face of their combined opposition, the government seemed to have abandoned the idea of its rigid enforcement. From 1795 onwards, no discussion regarding the enforcement of the *Patta* Regulation had been recorded in the proceedings of the Board of Revenue. The resistance from the zamindars and the *ryots* was not the only force that made the Regulation a dead letter. Another important factor was the government's realisation that land itself was the ample security for the safety of the public revenue. After all, though the *Patta* Regulation was enacted professedly to protect the respective interests of the zamindars and the *ryots*, it was evident that the evil against which the regulation was especially intended to provide was the permanent diminution of the resources of government, which would be the consequence of the landholders reserving a rent insufficient for the discharge of the public revenue. It was apprehended that landholders, "if vested with an unlimited power of discretion of fixing the amount of rent and the term of the lease, would abuse that power, and would either grant imprudent leases at very reduced rents, for a perpetual or at least a long term with the view of obtaining an immediate supply of funds, or might grant such leases collusively for the purpose of creating beneficial estates for themselves under borrowed names, or for relations, favourites and dependents."¹¹⁰ But under the operation of the permanent settlement the zamindars were allowed to go up and down the scale of the society so freely that "there [was] no longer any sufficient motive for holding the landholders and tenantry of the country in this sort of pupilage, prescribing them the manner and form of their reciprocal engagements."¹¹¹

110. H. T. Colebrooke's minute, 1 May 1812, *C. J. P.*, 1 May 1812, No. 7, p 148/75.

111. *Ibid.*

It was thus suggested by the *Diwani Adalat* to give the zamindars the fullest liberty to regulate their relations with their tenants according to best mutual interests. Accordingly, the Regulation V of 1812 was enacted. The Regulation laid down that the previous rules limiting the period of leases to ten years were "hereby rescinded, and proprietors of land [were] competent to grant leases for whatever period they may seem proper and at whatever rent."¹¹² Next, the zamindars were to be no longer required to observe the official prescribed forms of *pattas*.¹¹³

112. Section 2, Regulation V, 1812.

113. Section 3, Regulation V, 1812.

CHAPTER THREE

THE ZAMINDARS' REACTION TO THE NEW SYSTEM :

(2) PRESSURE FOR COERCIVE POWERS

In the preceding chapter we have discussed how successfully the zamindars put up their grievances before the government. We have seen how, under their pressure, the authorities were constrained to revise and repeal many of the restrictive laws. Their objectives, however, were not only to get rigid revenue laws flexible in their favour, but also to be rearmed again with the traditional coercive powers over their tenantry. The permanent settlement system had placed the government and the zamindars on a very different footing when it came to the collection of land revenue ; it could, indeed, reasonably be said that they were not governed by the same principle of law. Government was exempt from the operation of the ordinary judicial process in regard to its collection of revenue from the zamindars. It possessed summary powers for the recovery of its arrears by selling the lands or other property of the defaulting zamindars ; but for the recovery of the same arrears from their undertenants, the zamindars had to go to courts and legally establish their claims there against their defaulters. The ryots were given the rights to challenge the unjust claims of zamindars in the civil court ; any violence on their persons on the part of zamindars was also made a punishable crime. Such a sudden departure from the traditional methods of rent collection was, indeed revolting for zamindars, particularly the large zamindars who, by the very nature of their extensive estates,

had to build up a multi-tier-power structure basing its bottom on intimidation, force and coercion. The Cornwallis Code had certainly emboldened the locally influential renters and farmers to resist the unjust zamindari demands. Many even, taking the advantage of the delatory legal system, contumaciously withheld their dues forcing the zamindars to expensive litigations.

The result was the pile-up of undecided revenue suits in the courts. The Burdwan Collector reported in February 1795 that so many revenue suits had been filed in the last nine months that if no more cause was entertained and ten causes were decided every day all round the year, then "the period requisite for it to clear off its present load of business [would] be no less than between eight and nine years ;..."¹ That the courts in other districts also were under similar pressure is evident from the Fifth Report which remarked : "In the Courts of Civil Judicature, the accumulation of causes undecided, had proceeded to such an extent, as almost to put a stop to the Courts of justice ; or at least, to leave to a zamindar little prospect of the decisions of a suit, instituted to recover payment of his rent, before his own land, by the more expeditious mode of procedure, established against him by government, was liable to be brought to sale in liquidation of an outstanding balance."² It was tragic that the government undertook no responsibility for the revenue suits though these were the outcome of the new constitution and were pending in the government's courts ; whereas, government's own demands were realised by the summary process of sale of the defaulter's property.

The zamindars never ceased to protest against such double standard of justice until their grievances were redressed. The principal zamindars were obviously in the van of such protest movement, because it was they who stood for power

1. Burdwan Collector to B. O. R., 27 Feb. 1795, para 4, *B. R. C.*, 27 March 1795, No. 29, p 53/28.

2. *P. P. The Fifth Report*, 1812, vol. 7, Report, p. 55.

and authority in the traditional structure of the society and it was they who faced the greatest challenge from the new system. It is remarkable that these traditional rulers applied themselves not to compel the government to renounce its despotic privilege and come under the rule of law, but to regain their own despotic powers over their inferiors, that they had lost under the new system. The raja of Rajshahi thus argued that without the use of traditional methods of coercion it was impossible to recover rents from the defaulters. He intimated that in case of failure in payment of rents, the defaulters in the past were "confined and fettered ; and if this [failed] of obtaining the realization of the public revenue, corporal punishment [was] inflicted. No person [received] indulgence, but all persons, without distinction [were] confined, pressed, and beaten, and every means taken to collect the revenue from them, without favour to any one ; and the houses and effects of these in balance [were] attached and held in sequestration, till the full discharge of the arrears, due, when they [were] released again."³ In a subsequent memorandum he reiterated that in the absence of all these summary powers he was going to be ruined at the hands of his farmers, renters and *jotedars* or powerful ryots.⁴ The raja of Birbhum similarly complained that his officers were unable to distrain the property of the defaulters under the new Regulation and without effective distraining power, he said, it was impossible to collect rents from the defaulting tenants.⁵ In consideration of all these representations the Board recommended the Council to give more power to the zamindars at least to enable them to distrain the defaulters'

3. Raja Ramkrishna to B. O. R., enclosed with Collector's letter, 21 June 1792, B. R. C., 20 July 1792, No. 15, p 52/47.

4. Raja Ramkrishna to B. O. R., enclosed with Collector's letter, 15 March 1795, No. 16, p 53/1.

5. Raja Zaman Khan's petition to B. O. R., enclosed with Collector's letter, 26 March 1795, B. R. C., 5 April 1793, No. 6, p 53/1.

property more effectively. Under the new Regulations, as stated earlier, the zamindars had no power to distrain any property if the zamindars' demands were contested by the defaulters in the courts. But the Board's recommendation was turned down by the Council which believed that the existing regulations were sufficient to safeguard the interests of all the parties.⁶ It is, however, doubtful whether the Council was right in its judgement so far as the interests of the principal zamindars were concerned. These zamindars, in view of the unmanageable size of their estates managed them through numerous farmers and sub-farmers. Now, the question of these farmers was not considered as a separate group of landed interest when the regulations of the permanent settlement were formulated.⁷ So the relations between the zamindars and their farmers were regulated by the same law as was applicable to ordinary ryots. Consequently, the large zamindars faced some practical difficulties in the collection of rents from which the smaller zamindars were comparatively free. For, while the smaller zamindars who personally managed their estates could easily make their ryots pay by persuasion, intimidation and force, the same could not be done to the farmers who being proud of their social influence and wealth, never hesitated to challenge the zamindars in law courts if they exceeded the limits set by law. And as justice was almost denied by its indefinite delay, the cunning and ambitious farmers could cause their principals' lands to be sold by withholding their dues from payment.⁸ The principal zamindars, therefore, were more resolute and vocal in their agitation against the new zamindari regulations than the medium and petty landholders.

6. G. G. in C.'s Resolution upon B. O. R.'s letter dated 1 April 1793, *B. R. C.*, 5 April 1793, No. 5, p 53/1.

7. See, the Proclamation of the permanent settlement, 22 March 1793, R. Clarks, *Zamindari Regulations*, p. 9,

8. Nadia Collector to B. O. R., 21 July 1800, *B. O. R. P.*, 25 July 1800, No. 43, p 74/14.

Thus in spite of the Council's refusal to extend the zamindari powers, the principal families put on constant pressure on the authorities to change their minds in their favour. The raja of Burdwan, thus argued in January 1794 : "It must have proceeded from the oversight, rather than from any just and avowed principle, that there should be established two methods of judicial process under the same government, the one summary and efficient for the satisfaction of its own claims, the other tardy and uncertain in regard to the satisfaction of claims due to its subjects, more especially in a case like the present, where ability to discharge the one demand necessarily depends on the other demand being previously realised."⁹ Collector S. Davis, the future author of the Bengal portion of the Fifth Report, fully supported the logic of the raja's arguments.¹⁰ The raja of Nadia in March 1794 represented that the present regulations placed him in a fatal predicament since he was unable to collect his rents due to the contumacy of his renters and farmers.¹¹ Jiban Lal, the *sarburkar* or manager of the raja of Bishnapur, reported in February, 1795 that the raja was about to be ruined in the hands of his farmers. They did not care to pay their dues punctually, since they knew that the raja had no power to coerce them to pay and the court had no means to render justice by prompt decisions. Hence, he continued, they safely withheld the payment of their dues and moved freely with impunity.¹² Reviewing the report of Jiban Lal, Collector S. Davis wrote : "Independent of the credit due to an intelligent person as the *survacaur*

9. The raja of Burdwan wrote to Collector S. Davis. His arguments were inserted in the Collector's letter to B. O. R., dated 9 January 1794, B. O. R. P., 21 January 1794 (no number), p 72/26.

10. *Ibid.*

11. raja of Nadia to B. O. R., 26 March 1794, B. O. R. P., 28 March 1794, No. 26, p 72/2 .

12. Jiban Lal to Burdwan Collector, enclosed with Collector's letter to B. O. R., B. R. C., 27 February 1795, No. 29, p 53/28,

appears to be, who can have no interest in misrepresenting the circumstances stated, I have reason to believe from my own experience in other parts of the district, and more especially from the part I am now in, that the inconvenience, delays and obstructions, do really exist; that the grievance is increasing, and that unless effectual means be taken to remove or diminish it, embarrassments must ensue that will eventually involve the public interest in loss of revenue."¹³

S. Davis's conversion to the cause of the zamindars was a solid gain for them. As the collector of the greatest revenue paying district, Burdwan, and also as the commissioner of Bishnapur at the same time, he had much greater weight and influence on the central authorities than any other district officer. He could well convince the Board that unless early measures were taken to remove zamindars' difficulties in the collection of rents from the tenants, it would "eventually involve the public interest in loss of revenue." The Board thus wrote to the Council: "As the conclusions which the Collector [S. Davis] has endeavoured to establish appear to be the natural result of the circumstance stated in his letter, and as we have no reason to doubt the truth or accuracy of the facts adduced by him, we think it our duty to express our concurrence in the sentiments delivered by him, considered in their relation to the public revenue; but what appears to us to render the object of his address the more worthy of attention is, that judging from the representations which have at different times come under our consideration from most of the collectors, as well as the principal landholders, particularly in the Bengal Provinces, we are led to apprehend that the same inconvenience is pretty generally felt throughout the country."¹⁴ The Board, however, did not

13. *Ibid.*

14. B. O. R. to G. G. in C., 17 March 1795, *B. R. C.*, 27 March 1795, para 2, No. 28, p 53/28.

suggest this time for granting more powers to the zamindars. Instead, they suggested for establishing more courts to expedite justice."¹⁵ But the Council, though fully convinced of the difficulties faced by the zamindars on account of delayed justice, was not prepared to solve the problem by expanding the judiciary as suggested by the Board.¹⁶ Such expansion involved considerable increase in the administrative, expenditure leading to no corresponding increase in government revenue. In an attempt to remove the zamindars difficulties in collecting rents as well as to keep the administrative expenditure at its present level, the Council decided to arm the zamindars with some more effective powers to enforce payment of revenue due to them from their farmers, renters, and dependent taluqdars, *ryots* etc.¹⁷ The Regulation XXXV that was passed consequently in March 1795 laid down the following rules concerning zamindari powers :¹⁸

- i) After the expiration of the fifth day of the due demand the proprietors or their deputed agents were empowered to distrain the property of the defaulters. But the actual sale of the distrained property was to be conducted by the local government officials,
- ii) The proprietors could apply to the district judge for the defaulters' confinement if they failed to pay their outstanding dues within three days of the notice.
- iii) The proprietors and other rent receiving interests now having suits depending in courts for arrears were declared to be at liberty to withdraw such suits and to proceed against the person from whom they may claim the arrear, in the manner above mentioned.

15. *Ibid.*, para 4.

16. Board's Minute, 27 March 1795, paras. 27-32, *B. R. C.*, 27 March 1795, No- 30, p 53/28,

17. See Preamble to Regulation XXXV of 1795.

18. Section 5-18, Regulation XXXV, 1795.

- iv) On making the summary investigation, the judge should decide on merits of each case whether or not the defaulter should be confined or should leave the proprietor to institute a regular suit in the *adalat* for the amount of his demand.
- v) The confinement of the defaulter should not be considered to preclude the proprietor or farmer from distraining the personal property of the defaulter for the recovery of the arrears for which he might have been imprisoned or for any other arrear.
- vi) Persons imprisoned would be at liberty to institute a regular suit against the person at whose instance he was imprisoned and if it was found that he was unjustly imprisoned heavy damages would be awarded to the proprietor.

A close look at the above rules would reveal that the Regulation, though considerably increasing the zamindari powers, was least likely to please the zamindars. Now they could attach the defaulters' property ; true. But for its actual sale they would have to depend on the government officers. For the confinement of the defaulters, they could only request the court. It was the judge who would decide whether or not the defaulter was to be confined. Even if he was confined, he could equally harass the zamindar by instituting a regular civil suit from inside the jail. But as will be seen, this regulation was only their initial success. The zamindars soon launched their second phase of their campaign to get still more coercive powers. Though their constant pressure until now effected significant change in the minds of the authorities, the government still fondly clung to the idea of the Cornwallis era that the zamindars were oppressors and the general peasantry were oppressed. It gave evident satisfaction to the governor General in Council that it was the

zamindars and not the *ryots* who now raised complaints of oppression. He thus complacently reported to the Court of Directors that "the very complaints of zamindars against their *ryots* evinces that the great body of the people employed in the cultivation of the lands, now experience ample protection from the laws and that they are no longer subject to the arbitrary exactions, by which their industry was formerly depressed. To afford them this protection, was one of the primary objects of the Regulations, the attainment of it being indispensable to the future security of the public revenue, and the prosperity of the country at large."¹⁹

But such optimistic idealism gradually receded as the difficulties or obstinacies of the zamindars were reflected in the figures for government's revenue collections. The security and certainty of the revenue had been one of the principal objectives of the permanent settlement and a full collection was vitally important in view of the chronic trade deficits and government's expensive involvement in the Deccan politics.²⁰ The accompanying table shows how uncertain the land revenue yield became, with large sums having to be recovered by sales of lands.

19. G. G. in C. to C. D., *General Revenue Letter*, 15 May 1795, para 3, E/4/54.

20. See C. H. Philip, *The East India Company*, pp. 154-55, A. Tripathi, *Trade and Finance in the Bengal Presidency*, p. 17.

TABLE 3
Statement of the Collections and Balances of
Revenue, 1794-5—1798-9

Years	Amount of balance (rounded into thousand)	Balances recovered by sales of lands
	S. Rs.	S. Rs.
1794-5	31,43,000	7,66,000
1695-6	28,69,000	2,35,000
1796-7	34,61,000	11,16,000
1797-8	38,80,000	21,12,000
1798-9	38,36,000	36,15,000
	171,89,000	78,44,000

Sources :

B. R. C., 22 April 1796, No. 59, P. 53/43.

B. R. C., 11 August 1797, No. 15, P. 53/52.

B. R. C., 23 February 1798, No. 15, P. 53/55,

B. R. C., 20 August 1799, No. 5. P54/4.

B. R. C., 7 November 1799, No. 8, P. 54/6.

It is therefore certain that from 1794-5 to 1798-9 the average annual balances of revenue represented about 19 p. c. of the whole, about 9 p. c. of which were recovered by selling the lands of the proprietors, and the rest of the balance were partly written off as irrecoverable. It is not certain, however, how much revenue was struck off as irrecoverable every year. The Board, of course, reported, though giving no figure, that the annual loss of revenue on account of irrecoverable balances was quite substantial.²¹

21. *B. O. R. to G. G. in C.*, 26 July 1799, *B. R. C.*, 29 August 1799, para. 4, No. 3, P54/4.

It is doubtless that, while unequal assessment, natural calamities, mismanagement, family disputes, judicial delays, etc. contributed to the huge annual balances of revenue, the situation was specially aggravated beyond endurance for the government by the zamindars' stubborn resistance to making the system unworkable. They could never accept a system that brandished the axe of sale over their heads, ready to descend and destroy them if the smallest arrear accrued, no matter from what cause. The families which were liable to be dispossessed if in arrear at a smart stroke of an auctioneer's hammer, took several generations, even centuries, to establish their position in the society. Throughout that period they ruled the society as established members of the country's aristocracies. The scions of these families obviously thought it almost by instinct that they were born to rule. Hence when their lands were publicly sold for arrears, they were not only deprived of their means of livelihood, but also of their social leadership and supremacy. Thus it is quite natural that they, in order to preserve their traditional authority and power, would resist the operation of the new system.

It has been already stated how the zamindars tried at first to ventilate their grievances through petitions. Subsequently, when the Regulation XXXV of 1795, that was passed in consequence of their repeated petitions for more powers, failed to satisfy them, they moved out of their petitioners' position and took to other methods, including violence, in order to get their grievances redressed. The zamindars had confrontations with the authorities at two main stages from the dates of their default to actual transfer of their lands for such default. First, when the zamindars were asked to deliver the zamindari accounts for the allocation of jama to the lots under sale, and second, when their lands were actually transferred to new men.

To begin with, the first confrontation, the government, in the absence of detailed records in the collectorate, was

always dependent on the zamindari accounts for the allocation of jama to a particular portion of an estate to be sold for arrears. But the zamindars consistently refused to co-operate with the government by releasing their estate accounts though they were legally bound to do so. To cite a typical example the rani of Burdwan fell in a balance of about seven lakhs of rupees in 1794-5. In order to recover that balance by selling her lands, the Collector requisitioned the necessary zamindari papers. But the rani's officers reported that all those papers wanted by the Collector were deposited at Amboa, the summer residence of the rani. On application to Amboa, it was informed that all those papers had been sent to Burdwan again.²² The Board then ordered that she must submit the papers requisitioned by the Collector within ten days failing which a daily fine of one thousand rupees was to be imposed on her.²³ But when the papers were not still coming forth, the Collector recalled sixty *patwaris* or village accountants to come with their accounts; but of them only two presented their papers, and the rest fled from their villages.²⁴ The Collector then himself visited Amboa to persuade the rani to deliver the papers without further delay. The rani wanted further time to compile the necessary accounts. The time was given, but to the utter disappointment of the government, the papers delivered after so much pain were all unnecessary.²⁵ The Council then ordered the attachment of the whole zamindari and seizure of all the zamindari papers

22. Burdwan Collector to B. O. R., 25 April 1794, B. R. C., 2 May 1794, No. 24, P53/16,

23. Burdwan Collector to B. O. R., 5 May 1794, B. R. C., 23 May 1794, No. 5, P53/16.

24. Burdwan Collector to B. O. R., 5 May 1794, B. R. C., 23 May 1794, No. 5, P53/16.

25. Burdwan Collector to B. O. R., 13 May 1794, B. R. C., 30 May 1794, No. 20. P53/17,

without being further beguiled by the rani.²⁶ Such strategem, which was practised by all categories of zamindars, big or small, in different forms, largely frustrated the authorities in their plans to recover the arrears by a prompt sale of the defaulters' lands.²⁷

The Government was faced with still greater difficulties when the lands of the defaulting proprietors were sold to recover the arrears from them. The auction purchasers found it difficult, often impossible, to take possession of their auction lands from the former proprietors who applied their local influence to oust them as interlopers.²⁸ The established families, who obviously commanded sentimental attachment and respect from the large section of the society, let loose their die-hard supporters against the new men. In order to bring them to their knees, a series of manufactured civil and criminal cases was filed against them and the village leaders were told not to pay their rents to them. As for example, the zamindar of the raja of Chandradip of Bakarganj, who claimed his origin from the moon and who paid about one lakh rupees as Government revenue at the time of the permanent settlement, was sold for arrears to three Dacca merchants in 1798. But at the instance of the raja, the principal *ryots* refused to express their loyalty to them and filed suit after suit against them alleging torture

26. G. G. in C. to B. O. R., 6 June 1794, B. R. C., 6 June 1794 No. 3, P53/17.

27. See, B. O. R., to G. G. in C., 11 April 1794, B. O. R. C., 11 April 1794, No. 30, P72/29. Board's resolution, 24 Nov. 1794, B. O. R. P., 1 Dec. 1797, No. 1, P73/26. Harington's Minute, 2 July 1799, B. R. C., 29 Aug. 1799, No. 5, P54/4. Buller's second and third minutes, 2 July 1799, B. R. C., 29 Aug. 1799, No. 5, P54/4.

28. See, Harington's Minute, 2 July 1797, B. R. C., 29 Aug. 1799. No. 5, P54/4. R. Carstairs, *Human Nature in Rural India*, pp. 287—308. B. M. Whitcome has also shown that original proprietors of the north-west Provinces prevented the auction purchasers from taking possession of their lands by force, *Agrarian conditions in the North-West Provinces 1860.1900*, (Ph. D. Thesis).

and unlawful demands. Heavily aggrieved they wrote to the Board, "It appears to us that what we intended as a purchase of lands has only been the purchase of disputes in the Faujdari and the Dewany Adaluts, and Courts of Appeals ; and not obtaining possession, we are going to be ruined." ²⁹ Under these circumstances, many new zamindars who could neither afford continuous litigations nor could exert enough physical force to compel the tenants to switch over their loyalty from the old houses to themselves either retired from land by transferring it to others or made compromise with the former proprietors.

The resistance of the zamindars and their supporters thus created great administrative problems for the government and made the public revenue as uncertain as before the decennial settlement. In 1798 9, the total jama of lands sold for arrears amounted to S. Rs. 3685400 or about 20 p. c. of the whole land revenue of Bengal.³⁰ The government suffered both temporary and permanent losses from such transfer. When the sale price of an estate was less than the arrears, the government was compelled to forego the balances of the arrears since no more lands or other property of the former proprietor might be available for sale.³¹ But when, by intrigues between proprietor and outside competitors or collectorate officers or both, no bids were received for an estate at a sale for arrears or revenue, the estate was ordinarily resettled by government at a lower revenue. This caused a permanent diminution in the revenue. The permanent diminution in the revenue also occurred when a proprietor collusively overrated some portion of his estate and caused it to be sold through public sale, since

29. Petition of Paniatty and Dulal Sing to B. O. R., *B. O. R. P.*, 15 April 1599, No. 55, P74/10

30. *B. R. C.*, 7 November 1799, No. 8, P54/6.

31. F. D. Ascoli, P.78, also Harington's first minute, 2 July 1799, *B. R. C.* 29 August 1799, No. 5, P59/4.

ultimately such overburdened lots had to be resettled at equitable *jama*.³²

Confronted by these problems, the government had just two equitable alternatives if the sale laws were not to be annulled altogether. Either it could give up its own summary powers over the zamindars, and go to the ordinary courts for the satisfaction of its claims as did the zamindars, or it could so expand the system of courts and make them so efficient that the zamindars could get prompt decisions of their revenue suits. The government, however, felt that it could afford neither of these two alternatives. The first method must make the public revenue rather more uncertain and insecure. But the government's costly involvement in the Deccan politics with a view to containing the Mysore king, Tipu Sultan, and also the chronic trade deficits, made it imperative on the part of government to secure the land revenue, the mainstay of the Company's finance at any cost.³³ For the same financial reason the government could hardly afford to increase the administrative expenditure by expanding the judiciary significantly.

There was, of course, a third course which involved no extra cost to the government and which could satisfy both the parties, though at the cost of the rights of the third party, the *ryots*. That was to grant to the zamindars summary powers over their tenants equal in their efficiency to those which the government exercised against the zamindars. Under the circumstances, the authorities chose the third course and appointed J. H. Harington, the registrar of the Nizamat Adalat and also a member of the Board of Revenue at the same time, to find out the means that could bring the current crisis to an end.

32. Harington's first minute, 2 July 1799, B, R. C., 29 August 1799, No. 5, P54/4.

33. See, A. Trpathi, *Trade and Finance in the Bengal Presidency* p. 17.

Harington was one of those few officers who advocated the strengthening of the hands of the zamindars as early as 1792. When Commissioner of Rajshahi in 1792, he had written to the Board that some real means, other than recourse to established courts of justice was, 'indispensably requisite to enable the landholders and renters to realise their just dues from the *ryots*.³⁴ He believed that it was the habit of the *ryots* not to pay rents unless forced to do so.³⁵ He argued: "In England it has been found necessary to allow landlords to distrain and sell under restrictions, the personal chattels of their tenants for the speedy recovery of arrears of rent; and perhaps a similar authority to the landholders and renters in this country may be the least objectionable power that can be entrusted to them."³⁶ His conviction was further deepened by the subsequent developments, and in 1799, as he declared in his minute, he felt that it was his first duty on his taking seat on the Board to find on these lines a solution of the landed crisis and the consequent losses of the public revenue.³⁷ He maintained that laws, even if these had aimed at answering the most benevolent purposes required to be changed according to changing circumstances. He argued, "such a change has, I believe, already taken place with respect to the *ryots* and other undertenants, who instead of being the weaker party, as they were when the zamindars exercised almost arbitrary powers, are now (according to general opinion) become the stronger party, under the support of the courts of justice."³⁸ Accordingly, he drew up a draft Regulation

34. J. H. Harington, the Rajshahi Commissioner, to B. O. R., 23 June 1792. B. R. C., 20 July 1792, No. 15, P52/47.

35. *Ibid.*

36. *Ibid.*

37. Harington's first minute, 2 July 1799, para. 1, B. R. C., 29 Aug. 1799, No. 5, p54/4.

38. Harington's first minuuue, 2 July 1799, para. 4, B. R. C., 29 Aug. 1799, No. 5, p54/4.

to restore power-equilibrium between the zamindars and other subordinate landed interests. Its contents, so far as the powers of the zamindars were concerned can be summed up as follows :

That the proprietors, dependent taluqdars and farmers were to be empowered to arrest and detain their respective defaulters if they were suspected to be preparing to abscond.³⁹ When their cases were under judicial investigation, they would be at liberty to attach and sell their defaulters' property without waiting for judicial decisions.⁴⁰ The tenants with occupancy and other leaseholders could be evicted if they failed to clear off their past year's dues.⁴¹ The proprietors and other rent receiving interests could summon, even compel the attendance of their defaulting tenants at their offices.⁴²

In reviewing this draft Regulation, Graham, the acting president of the Board of Revenue, commented that for the insecurity of the public revenue the zamindars' difficulties in collecting their rents might be one important factor, but their own contumacious conduct was definitely another. He, therefore, suggested that since security of the public revenue was the main object of this Regulation, "no measures can be adopted which shall prove more efficacious towards the accomplishment of that object than that of rendering defaulting proprietors of land liable to confinement as prescribed in Regulation XIX A.D. 1793 since rescinded by Regulation XII, 1794."⁴³ Buller and Hatch, the other two members of the Board, supported

39. Clause 1, section 15 of the draft Regulation, 1799, *B. R. C.* 29 Aug. 1799, No. 4, p54/4

40. Clause 6, section 15 of the draft Regulation 1799, *B. R. C.*, 29 Aug. 1799, No. 4, P54/4,

41. Clause 7, section 15 of the draft Regulation 1799, *B. R. C.*, 29 Aug. 1799, No. 4, P54/4.

42. Clause 8, section 15 of the draft Regulation 1799, *B. R. C.*, 29 Aug. 1799, No. 4, p 54/4.

43. Graham's first minute on the Regulation, *B. R. C.*, 29 Aug. '99, No. 5, p. 54/4.

Graham's suggestion for the confinement of the defaulting zamindars. Challenging Harington's conclusion that the present heavy balances were ascribable to the inability of the zamindars to recover their dues from their tenants, Buller remarked : "On this point therefore I think it necessary to observe that although I certainly think the balances are in part ascribable to that cause I am still perfectly convinced that they do not in a less degree arise from contumacy and ill faith on the part of the landholders."⁴⁴ He cited the example of the rani of Burdwan who, he maintained, allowed the whole of her vast zamindari to be sold but again bought in *benami*. In an earlier minute he concluded that without confining the zamindars Harington's Regulation could never "operate to deter a repetition of collusion, whilst these people [were] left in the enjoyment of the fruits of their fraud."⁴⁵ Hatch maintained that the zamindars always represented their difficulties in highly exaggerated forms and it would "be a dangerous mistake to accept their viewpoints literally."⁴⁶

But the Council was not ready to accept their recommendation to confine the zamindars in case of default. Such a measure was thought by the Council to be both "unnecessary and impolitic."⁴⁷ It was felt to be unnecessary because the zamindars were agitating for summary powers and once they were vested with those powers they would have no new ground to withhold the government demands upon them. Moreover, as men of rank and status, the zamindars were the natural leaders of the society. Their confinement, the authorities apprehended, would not only incite their followers to disturb the peace, but also lead to the arrest of the rising value of the landed property. For, many landholders in that case would

44. Buller's third minute, *B. R. C.*, 29 August 1799, No. 5, P54/4.

45. Buller's second minute, *B. R. C.*, 29 August 1799, No. 5, P54/4.

46. Hatch's second minute, *B. R. C.*, 29 August 1799, No. 5, P54/4.

47. Council's Resolution, 29 August 1799, *C. J. P.*, 29 August 1799 No. 1, P147/42.

flee from land in order to avoid the disgrace of imprisonment, and few outsiders would try to get entry into land for the same reason. The Council thus rejected the recommendation of Graham, Buller and Hatch for the confinement of the zamindars in balance and approved of the draft Regulation of Harington as it was presented and duly enacted as Regulation VII, 1799.⁴⁸

The Regulation VII, 1799, popularly known as *Haftam* or seventh, thus threw the idealism of Cornwallis overboard. This iron law made the *ryots* mere tenants-at-will. That was never the intention of Cornwallis who believed that it was only the zamindars who were in position to oppress the other landed interests. So he did not remain satisfied with the abolition of all the feudalistic powers and privileges. He also made it plain in his proclamation of the permanent settlement that if the present regulations proved insufficient to protect the interests of the *ryots*, then the government would always have the right to interfere in favour of the *ryots*. He proclaimed, "It being the duty of the ruling power to protect all classes of people, and more particularly those who from their situation are most helpless, the Governor General in Council will, whenever he may seem it proper, enact such Regulations as he may think necessary for the protection and welfare of the dependent talookdars, ryots, and other cultivators of the soil; and no zemindar, independent talookdar or other actual proprietor of land, shall be entitled on this account to make any objection to the discharge of the fixed assessment which they have agreed to pay."⁴⁹ It was indeed ironic that such principle of policy was applied quite reversely within six years of the proclamation of Cornwallis.

48. Council's resolution, 29 August 1799, C. J. P. 29 August 1799, No. 1, P147/42,

49. Proclamation Article VIII, Clause I, See R. Clarks, *Bengal Zamindari Regulation*, p. 10.

Did the ryots deserve such punitive treatment? As has been said earlier, the zamindars always complained of their inability to collect rents from the farmers, renters and *jotedars* who contumaciously with-held public revenue and of having no means of recovering arrears from them other than by dilatory judicial suits. But they rarely complained against the ryots. Harington himself remarked that "the powers given to the landholders and farmers by Regulation 17, 1793 and 35, 1795 to distrain the crop and other personal property of their under tenants are in general effectual and sufficient when the arrear is due from the immediate cultivators of the soil, or such under tenants as have the crop in their possession; but they are found altogether insufficient for the recovery of the arrears of the rent due from the other intermediate tenants between the proprietor and cultivator, who have no crop, and very little other personal property that can be attached."⁵⁰ But no consideration was paid to the ryot's known behaviour when he drafted the Regulation. The contumacious intermediaries and the docile and helpless ryots were treated alike when the zamindars and other rent receivers were vested with summary powers.

The operation of this iron-law subsequently proved to be so oppressive to the peasantry that the judicial department came forward to recommend the revenue authorities to modify this law on humanitarian grounds. As proofs of its oppressive operation, the *Sadar Diwani Adalat* forwarded, in early 1811, some representative reports from the district judges as to the ruinous effects of this law on the peasantry, to the Board of Revenue for consideration.⁵¹ But ruinous though it was for the peasantry, this law guaranteed the greatest security of the public revenue and that unexampled punctuality was the

50. Harington's first minute, 26 July 1799, para 2, *B. R. C.*, 29 August 1799 No. 5, p54/4.

51. The Registrar, *Sadar Diwani Adalat* to B. O. R., 7 June 1811, *B. O. R. P.*, 7 June 1811, No. 106, p76/56.

argument of many revenue authorities against any alteration in the present regulations. But Dowdswell, the Acting President of the Board who was probably the solitary figure in the revenue department in favour of reform, argued that the attainment of the punctuality of revenue collections was "certainly a great and important object. It evidently is not however the only object. Until we can combine with it the security of the peasantry from illicit and burthensome exactions, until we can remove the apprehension which I know are entertained that the ryots are not unfrequently driven by the oppressions of the zamindars and farmers and their local agents to the commission of the worst of crimes, dacoity, the purpose of our revenue laws must be deemed to have been very imperfectly accomplished."⁵²

Being divided in their opinions over the question of reforms, the members of the Board agreed to act on the basis of the views of the district collectors who were supposed to be most competent to comment on the operation of the *Haftam* law. Hence a circular letter was issued to all the collectors calling upon them to give their most impartial opinions on the Regulation 7. They were directed that judgment was not to be "founded on the information obtainable from a few opulent individuals but from local and personal communication with the class of people, the peasantry for whose benefits the present enquiry has been undertaken."⁵³ All the collectors without exception reported that being protected by the Regulations, the zamindars, farmers and their agents were oppressing their helpless *ryots* most outrageously.⁵⁴ The Collector of Dinajpur, for example, reported,

52. The Registrar of Sadar Diwani Adalat to B.O.R., 7 June 1811, *B. O. R. P.*, 7 June 1811, No. 106, p76/56.

53. Board's circular letter to Collectors, 7 June 1811, *B. O. R. P.*, 7 June 1811, No. 108, p76/56.

54. Bengal district Collectors to B. O. R.; *B. O. R. P.*, 31 December 1811, Nos. 2-15, P.77/1.

"I have only to add that the peasantry in this district complains loudly and grievously of the oppressions of the zamindars and their officers, in regard to surplus exactions, *abwauhs*, deductions and distrains—that I understand half of the complaints in the *Fouzdaree* are by *ryotts* against the zamindaree amla for false imprisonment and other duress in order to compel payments, or to obtain security or bonds from them, and that at present the people are precluded, by the poverty from prosecuting for their grievances with any prospect of success."⁵⁵

The revenue authorities were evidently disturbed by the reports of the collectors and judges, which put them in such a dilemma that they could neither ignore the peril of the peasantry under the operation of the existing rules, nor could they afford liberal reform that might threaten the security of the public revenue again. Under the circumstances, they followed the middle path. They thus observed that while the problem created by the Regulation 7 should be remedied, "great caution therefore must be observed not to relax too much on a sudden in favour of the *ryots*, lest we should run into the other extreme, and afford to them, by an abuse of the protection which the law affords, the means of withholding payments of their just rents."⁵⁶ Accusing the judicial department which little bothered about financial problems, they said, "from the reports from the officers in the judicial department, which have been forwarded to us, it would appear that they had only considered the evils arising from the oppression on the part of the zamindars; without taking into consideration what may be expected on the other side of the question."⁵⁷ The collectors were not similarly accused because the majority of

55. Dinajpur Collector to B. O. R., 10 July 1811, B. O. R. P., 31 December 1811, No. 5, P77/1.

56. B. O. R. to G. G. in C., 31 December 1811, para 2. C. J. P., 1 May 1812, No. 2, P148/75.

57. *Ibid.*, para 3.

them, though vocal of zamindari oppression, expressed apprehension that the sudden withdrawal of the Act 7 might make the collections of land revenue unpunctual.⁵⁸ They suggested a little reform of the Act rather than its total annulment.

The Governor-General in Council accepted the recommendation of the Board for limited reform and enacted Regulation 5 of 1812. The Act laid down that the zamindars could no longer sell the defaulters' property without reference to the Court. Before they proceeded to distress the property of the defaulting tenants they were required to "serve the tenants with a written demand for the amount of it accompanied with a *Jumma Wasil Bauki* (demand, collections and balance), exhibiting the grounds on which the demand is so made."⁵⁹ It was also laid down that "ploughs and other implements of husbandry, bullocks and other cattles employed in agriculture, together with tools of artisans, shall not be subject to distress and sale on account of arrears of rent."⁶⁰ Lastly, the zamindars were enjoined under heavy penalty to withdraw the distress if their demands were contested by their tenants in the courts.⁶¹ The imposition of this restraint on the distraining power of the zamindars was, however, more than offset by the withdrawal of other restrictions on them in respect of the management of their soil. As has been described earlier, the same Act, that is Regulation V of 1812, empowered the zamindars to lease out their land for any unlimited period, instead of for only maximum ten years under the former rules, that is, Regulation 14 of 1793. The Act also empowered them to regulate the rate of rent by any criterion of their own.⁶² Moreover, as the zamindars and other superior landed interests were still vested with the

58. Bengal district Collectors to B. O. R. ; B. O. R. P. 31 December 1811, Nos. 2-15, P77/1.

59. Section 13, Regulation V, 1812, C. J. P., 1 May 1812, No. 8, P148/75

60. Section 14, Regulation V, 1812, C. J. P., 1 May 1812, No. 8, P148/75.

61. Section 15, Regulation V, 1812, C. J. P., 1 May 1812, No. 8, P148/75.

62. Section 2, Regulation V, 1812.

summary powers of summoning, confining and evicting their defaulting tenants, the mere ban on their summary distraint of their defaulter's property was not likely to affect the paramount position of the zamindars to extort their *ryots*, if not the relatively stronger intermediaries.

The next phase of the growth of zamindari powers was concerned with their liberty to create perpetual intermediary landed interests between themselves and the actual cultivators. This is the story of the origin and development of the famous *patni* system. *Patni*, a Bengali term, is defined by H. H. Wilson as a "tenure by which the occupant holds of a zamindar a portion of the zamindari in perpetuity, with the right of hereditary succession, and of letting or selling the whole or part as long as a stipulated amount of rent is paid to the zamindar, who retains the power of sale for arrears, and is entitled to a regulated fee or fine upon any transfer."⁶³ The system was first introduced by the raja of Burdwan. He felt that under the regulation of the permanent settlement, it was not possible to save his zamindari from dismemberment by traditional methods of management. He realised that if he farmed out his zamindari, the farmers rack-rented and impoverished the *ryots* at the end of their lease; while, if he managed it himself his *amlas* or officers embezzled the rents and in collusion with the village chiefs, alienated lands fraudulently.⁶⁴ To get rid of these ruinous evils, the raja divided his great zamindari into thousands of lots each yielding an average jama of about two thousand rupees.⁶⁵ Each of these lots was called *patni taluqa* and its holder *patnidar* to whom he applied the same rules and regulations which Government applied to him. In other words, he made a second permanent settlement with his *patnidars* at a perpetually fixed jama.

63. H. H. Wilson, *A Glossary of Judicial and Revenue Terms...*, p. 410.

64. Prinsep's Report on the *patni* tenure, 12 July 1819, para. 5, *C. J. P.*, 8 October 1819, No. 35, p 149/66.

65. *Ibid.*, No. 37

Such an unexpected move on the part of the raja, though against the spirit and letter of the permanent settlement, not only saved the raja from ruin, but also contributed to further enlargement of his already unmanageably large zamindari. Out of the massive capital that he acquired by selling *patni* taluqas, he purchased the whole of the Bishnapur zamindari, parts of the Nadia, Birbhum and Rajshahi zamindaris and many other lots in other districts.⁶⁶ But the raja was soon out of luck when following his footsteps, his *patnidars* started creating *dar* or second *patnidar* and *dar-patnidar* creating third *patnidar* and so on. The raja himself described the situation in 1819 thus: "After some time the *patnidars*, prompted by an avaricious desire to augment their own profits, granted sub-leases on their *patni-mahals* to *dur-putni* renters, these persons again adopting the same line of conduct, let out their *Dur-putnees* to others, and so on, as far as three, four or five under-renters. Now when five people expect to derive distinct profits from the same *mehals* it is perfectly needless to explain how distressed and miserable the situation of the *ryots* must be; many of the *mehals* in consequence became deserted and waste, and the amount of the collection has also necessarily decreased. Wherever the *putneedar* last in the series, falls into arrears and is unable to discharge his rents, the same must be the case with all the other renters, successively, inclusive of the original *putneedar*."⁶⁷

Now, aside from *ryot's* distress, zamindars' ability to pay the government revenue depended on that of five or six other landed orders. If any one in the chain for one reason or other failed to pay, it affected all the other superior *patnidars* up to and including the zamindar himself. When the Government attempted to collect arrears of revenue, the Courts,

66. *Ibid.*

67. Raja of Burdwan to Sadar Diwani Adalat, *C. J. P.*, 8 October 1819 No. 30, p142/56.

lacking any express law to guide them, gave conflicting verdicts about where the rights and obligations of these new tenure holders lay.⁶⁸ Superior tenure holders found themselves in a similar plight, so that between 1817 and 1819 the raja of Burdwan accumulated nineteen lakhs of rupees worth of unsettled claims upon his *patnidars*.⁶⁹ With his private resources exhausted and unable to secure prompt redress through the courts he fell into arrears in his turn, owing a balance of S. Rs. 3,72,101 to Government by 1818-19.⁷⁰ Government in turn then found itself in difficulties, for when the raja's lands were advertised for sale, the whole body of *patnidars* who were to be affected by the sale vigorously petitioned for a halt to the process. They argued that they had invested their capital in buying these taluqas and that they were not responsible for the raja's arrears. Under their concerted pressure the sale had ultimately to be put off.⁷¹ In the meantime, the raja's balances to Government were mounting fast. He said that he was unable to dispose of the defaulting *patnidars'* lands, because all those subordinate *patnidars* in the chain of tenure holders who had paid off their dues protested and prevented the purchasers from taking possession.⁷² At last, in May 1819, the Government had been driven to a full review of the novel situation caused by the creation of *patni* tenures. The Board of Revenue first considered possible legal remedies, for they held that all the *patni* tenures which had been created before Act 5, 1812 were illegal and could properly be declared null and void.⁷³ But as they reported any such action must seriously injure the public revenues, for the dar-

68. B. O. R. to G. G. in C. 1 May 1819, B. R. C. 4 May 1819, No. 8, P58/8.

69. *Ibid.*

70. *Ibid.*

71. *Ibid.*

72. Raja of Burdwan to Sadar Diwani Adalat, C. I. P., 8 Oct. 1819, No. 30, p149/66.

73. B. O. R. to G. G. in C., B. R. C., 4 May 1819, No. 8, para, 10. P58/8.

patnidars threatened that any move to annul their tenures would plunge the district into confusion.⁷⁴ The Board was therefore driven to recommend the reform of *dar-patni* tenures rather than any attempt to declare them altogether annulled.⁷⁵

Accordingly the Council deputed R. T. Prinsep, the superintendent and remembrancer of legal affairs, to Burdwan, "for the special purposes of conducting a full and careful investigation into the nature, number, and circumstances of the various classes of the undertenants, in the Burdwan Zamin-dary."⁷⁶ Prinsep went to Burdwan on 29 May 1819, and submitted his report and draft Regulation on 12 July 1819. In his report he observed that any move to alter the status quo would inevitably be resisted by the injured *patnidars* to the detriment of the public revenue and law and order in the country.⁷⁷ On the basis of his findings he drew up a draft Regulation which was approved by the Council without alteration and enacted as Regulations 8 of 1819. The following were the main provisions of the Regulation.⁷⁷

First, all leases and engagements with under tenure holders, for a term of years, or in perpetuity, granted by zamindars were declared valid, even if they had been executed before 1812 while the ten year limit was in force.⁷⁸ Second, all *patni* tenures were heritable and transferable by sale, gift or otherwise, at the discretion of the holder and he would be treated in the Court as if he was the zamindar.⁷⁹ Third, *patnidars* were at liberty to let out their land in any manner they might deem most conducive to their interest.⁸⁰ Fourth,

74. *Ibid*, para. 21.

75. *Ibid*. para. 10.

76. G. G. in C. to B. O. R., 13 May 1819, *C. J. P.*, 8 October 1819, No. 31, p149/66.

77. Prinsep's Report on the Patni Tenures, 12 July 1819, *C. J. P.*, 8 Oct. p1819, No. 35, 149/67.

78. Regulation 8, 1819.

79. Clause 1, Sec. 3, 1819.

80. Clause 2, Sec. 3, 1819.

in case of arrear occurring upon any tenure, it was liable to be brought to sale by public auction. Fifth, the holders of all patni taluqas of third, fourth or any more degree were declared to have acquired all the rights and immunities attached to patni taluqa of the first degree.

Thus, while under the former Regulations, viz., Regulations 35 of 1795 ; 7 of 1799 ; and 5 of 1812, the zamindars got the feudalistic powers to distrain, arrest, confine and evict their defaulting tenants and to determine the rate of rent by any criterion of their own, the present Patni Act empowered them to create their own prototype permanent landed interests themselves holding the position of paramount chiefs. This Act fully secured their collections of revenue from their patnidars, inasmuch as the defaulting patni tenures were made liable to be sold in public auction, in the same manner as the land of the defaulting zamindars was being sold.

CHAPTER FOUR

THE REVENUE SALE LAWS IN OPERATION

(I) THE FALL OF THE GREAT FAMILIES

This chapter considers the territorial aristocracies in their worst days of crisis when the great families of Bengal, who had taken some hundred years or more to achieve their paramount position, suddenly found their estates dismembered within the first decade of the permanent settlement. These *grands seigneurs*, the rajas of Burdwan, Rajshahi, Dinajpur, Nadia, Birbhum, Bishnapur, etc. were controlling precisely half of the landed property of Bengal at the time of the permanent settlement. They had earlier suffered great distress during the early British experiment in revenue assessment and collection. But until the 1790s their wealth, influence and lifestyle still distinguished them from the inferior ranks of the landed society and enabled them to support a great *rajbari* or the great palace of a raja, and to employ it as a centre of social influence. It is intended here to examine the factors that forced them to be the victims of the Revenue Sale Laws.

What was the British attitude towards the unequal distribution of landed property? Did they think it politic to allow the monopolistic control of land after they had created property in land? It seems that from the very beginning of the British rule in Bengal these territorial potentates were commonly a target for attack. As early as 1772, Alexander Dow, one of the earliest British historians to write about India, preached to the authorities the need to impose a ceiling on the size of individual holdings by breaking up the estates of the great families.¹

1. See R. Guha, *Rule of Property for Bengal*, p. 38.

Hastings and Barwell were likewise in favour of the split-up of these families both for political and financial reasons.² Philip Francis too desired the same thing but from a different motive. His rivals were motivated by political expediency, for "the proprietors of the very extensive zamindaries possess influence which they employ in opposition to Government, and in case of war they might even become formidable, as was the case in former times."³ Francis, on the other hand, emphasized the economic importance of easily manageable small holdings. "The preserving the little Zamindaries entire would certainly be attended with many conveniences," he wrote, "but this is not an object of near so much importance as dividing the great ones."⁴ In 1786 Robert Kyd, the Military Secretary to Government, urged the authorities to destroy the landed monopoly for both political and economic considerations. He wrote that the power and authority of the great territorial houses must be circumscribed "so as to render their wealth and influence less dangerous to the governing power, whether on any crisis of foreign invasion, default in the members of the administration itself, to the perversion of justice or peculation of the public revenue by the corrupt influence of the wealth now possessed by the landholders."⁵

The writings of all these officers and administrators who advocated the abolition of the monopoly of landed property must have influenced the Court of Directors to think along the same lines. They apprehended that at some appropriate time these great families might create a grave financial or political crisis, either by spontaneous risings or by playing into the hands of an invading force. They accordingly advised the Bengal

2 *Ibid.* p. 107.

3 Quoted in *Ibid.* The author did not mention whose statement was it, Barwell's or Hastings.

4 Philip Francis to C. W. B. Rous, 22 June 1776. Quoted in R. Guha, P. 107.

5 R. Kyd Papers, MSS. BUR. F 95, pp 114-5, para 2.

Government to keep them under constant surveillance. "The history of every province in India," they argued, "shows that a confederacy of the zamindars is attended with dangerous effects. You must, therefore be always on your guard against any intrigues they might form, or any symptoms of disaffection towards this country."⁶ Such apprehension was not, of course, without foundation. In 1757, the principal zamindars joined the British forces to overthrow Sirajuddowla, and again they joined hands with the Emperor Shah Alam when he marched down to Bengal in 1760 to re-assert his authority there.⁷

With the arrival of Cornwallis, political considerations receded into the background, but the need to dismember the great estates on economic ground was more keenly felt. Cornwallis's idea was to consolidate British rule in Bengal through a regenerated and revitalised zamindar class who would increase the wealth and prosperity of the country by various improving measures.⁸ For such improvements he relied heavily on the small zamindars. He believed that the overgrown zamindars as a group were extravagant, incapable and lazy, whereas the smaller zamindars were mindful of improvement of their estates.⁹ Hence he adopted three methods to expedite the subdivision of the larger zamindaris. Firstly, he abolished the customary rule of primogeniture among the great families. He felt that the new Regulation that abolished primogeniture would be "productive of the desired effect in due course of time, as it is to be presumed that many

6. C. D. to G. G. in C., *General Revenue Letter*, 12 April 1786, para. 43, p. 351/4/630.

7. See, A. Broome, *History of the Rise and Progress of the Bengal Army* vol. 1, pp. 181, 192, 319-20; S. C. Hill, *Bengal in 1756-57*, vol. 11, pp. 418-9. General Letter from Bengal, No. 9A, pp. 229-30 (I. O. R., Parliamentary Branch).

8. For details see, R. Guha, *Rule of Property for Bengal* pp. 167-173.

9. See, Cornwallis to B. O. R., 3 February 1790, W. K. Firminger (wd.), *The Fifth Report*, vol. 11, p. 530.

of the principal landholders from motives of affection to their children or with a view to conform to the dictates of the law, [would] divide their property among their sons or heirs, or by making no will, leave it to devolve to them in the proportions which they may be respectively entitled to inherit.”¹⁰ Secondly, Regulations were enacted to separate different categories of *talukas* from their parent zamindari estates.¹¹ The separation of *talukas*, he wrote, would “not only promote the improvement of the talooks but also operate to the prosperity of the country at large... It [would] tend to subdivide the great zamindaries the evils arising from the extent of which/had/long been felt in various shapes...”¹² Thirdly, he enacted some laws, commonly known as Sunset Laws, which laid down for immediate and invariable sale of the revenue defaulter’s lands. All these legal provisions were intended to secure to the zamindars “the fruits of industry and economy,” he wrote, “and at the same time leave them to experience the consequence of idleness and extravagance ; they must either render themselves capable of transacting their own business, or their necessities will oblige them to dispose of their lands to others, who will cultivate and improve them.”¹³

Cornwalli’s idea of improvement through small holdings was no original concept of his own. In eighteenth century England and also in France the appearance of small holdings was recognized as an essential condition of capitalistic enterprise in agriculture.¹⁴ Above abstract theory, it was also common experience that agricultural improvement in eighteenth century England had been “the work of a number of pioneers

10. G. G. in C. C. to C. D., 6 March 1793, para 8, *General Revenue Letter*. E/452 pp292-3.

11. For details, see Chapter two, p. 50-59.

12. Cornwallis’s Minute, 12 May 1790, B.R. C., 12 May 1790 No.36, p52/12.

13. Cornwallis to B. O. R., 3 February 1790, Firminger (ed) P.530.

14. See, R. Guha, *Rule of Property for Bengal* p. 107.

and publicists, country gentlemen, owner occupier and arge tenant farmers, rather than large landholders.”¹⁵

Hence both abstract theory and practical experience warranted the elimination of the concentration of landed property in a few hands. Such a concentration was thought to be detrimental to the interests of the country as well as of the company. Because, if half the country, under the control of a few old proprietors who were by no means distinguished for their ability and enterprise, remained outside the orbit of progress then the whole object of the permanent settlement was bound to be defeated. That in turn would mean that, for the Government’s financial sacrifice in perpetually fixing land revenue demand upon the zamindars, no recompence by way of additional tax yield from increased economic activity could be expected. Stagnation in agricultural production must, therefore, be removed by breaking up these unwieldy great estates into economic units. In their dispatch of 19 September 1792 which contained the formal orders for the conclusion of the permanent settlement, the Court of Directors strongly recommended such a policy, observing that “upon a system of permanent possession and still more of fixed taxation, the inconveniences of them [might] be expected to be more real and serious. Whenever therefore the claims of justice [did] not interfere it must be extremely desirable to promote sub-divisions of the property in the soil.....”¹⁶

It is thus abundantly clear that both the Home and the Supreme Governments were at one in wishing to level out the gross inequality in the distribution of land in Bengal. Hence Government’s clear stand against the monopolistic zamindari families must be taken into account when we study the circumstances through which the great families were ruined within a decade, subsequent to the permanent settlement.

15. G. E. Mingay, *English Landed Society in the Eighteenth Century*, p. 171

16. C. D. to G. G. in C., *General Revenue Letter*, 19 Sept. 1792, para 2, pp. 7 7-8, P/4/638.

The official policy to dismember the territorial magnates, whenever it was possible legally, does not, however, exonerate the zamindars from their own faults contributing to their fall. Under the new system, every proprietor was free to thrive by hard work, economy and able management or to perish through extravagance and mismanagement. Cornwallis's idea of improvement required them to throw off the garb of a reigning raja and wear the badge of a ruling manager instead. The question, thus, was how readily would these rajas move from ancestry to enterprise. The following pages will try to establish how they behaved under the operation of the new system and what their fortunes were.

The Rajshahi Raj

In 1788, in her old age, rani Bhavani of Rajshahi transferred the zamindari to her adopted son raja Ramkrishna, then forty years old.¹⁷ In 1791, the decennial settlement was concluded with him at a *jama* of Rs. 22,50,200.¹⁸ Ever since the decennial settlement, the Rajshahi zamindari, which was the second biggest in Bengal, had been suffering from three pernicious problems : overassessment, mismanagement and the intrigues of *amla* or officers. Under the operation of these causes, the dismemberment of the zamindari started immediately after the raja's decennial engagement. Before the dawn of the next century, the entire zamindary had been transferred to fresh hands. The following table shows how slice after slice was sold until the last remnant of the zamindari came to an end in 1800. The first column of the table shows the *jama* of the different portions into which the zamindari was parcelled out and sold and the second column gives the sale

17. Rani Bhavani's petition to G. G. in C., *B. R. C.*, 20 August, 1788, p. 381, P51/22.

18. Rajshahi Collector to B. O. R., 16 August 1791. *B. R. C.*, 2 Sept. 1791, No. 11; P52/35.

price of every parcel indicating market price and its variation. The third column gives the sources. As lands were sold in numerous small lots selected from many different *parganas* at random the names of the *mahals* or revenue divisions could not conveniently be inserted against the *jama* of lands sold. The names of *mahals*, however, can be spotted from sales reports as indicated in the third column.

TABLE 4
The sales account of the Rajshahi Raj

Sadar jama of lands sold	Amount realised at sales	Dates of sales	Sources
Rounded to nearest 100 S. Rs.	Rounded to nearest 100 S. Rs.		
1163	1060	4 June 1793	B. O. R. P., 5 June 1793, no number, p72/17
284	674	14 „ „	B. O. R. P., 2 July 1793, no number, p72/18.
2594	2594	27 Apr. 1795	B. O. R. P., 1 May 1795, Nos. 8,9,10, p72/43.
143	190	29 June „	B.O.R.P., 30 June 1795, No. 121, p. 72/44.
104	100	1 Aug. „	B. O. R. P., 4 Aug, 1795, No. 40, p. 72/46.
1919	510	10 Sept. „	B.O.R.P., 11 Sept. 1795, No. 1, p. 72/46.
609	413	13 Oct. „	B. O.R.P., 29 Dec. 1795, No. 44-46, p. 72/50.
102	172	31 Mar. 1796	B.O.R.P., 1 April 1796, No. 10, p. 73/3.
289	452	27 June „	B. O.R.P., 28 June 1796, No. 2, p. 73/5.

TABLE 4 (cont.)

Sadar Jama of lands sold	Amount realised at sales	Dates of sales	Sources
Rounded to nearest 100 S. Rs.	Rounded to nearest 100 S. Rs.		
97	145	27 May 1797	<i>B.O.R.P.</i> , 30 May 1797, No. 29, p. 73/19.
81	34	„ „ „	<i>B.O.R.P.</i> , 30 May 1797, No. 33, p. 73/19.
137	74	„ „ „	<i>B.O.R.P.</i> , 6 June 1797, No. 7, p. 73/20.
738	1280	1 July „	<i>B. O.R.P.</i> , 7 July 1797, App. A. P. 73/21.
231	350	24 „ „	<i>B. O. R.P.</i> , 28 July 1797, App. A., p. 73/21.
65	29	5 Aug. „	<i>B.O.R.P.</i> , 11 Aug. 1797, App. A., p. 73/22.
108	116	14 Sept. 1797	<i>B. O.R.P.</i> , 22 Sept., 1797, No. 17, P73/23.
80	72	15 Oct. „	<i>B. O. R. P.</i> , 3 Nov., 1797, App. A., P73/25.
54	26	4 Jan. 1798	<i>B. O.R. P.</i> , 16 Jan, 1798, No. 15 A, P73/28.
46	50	6 July 1798	<i>B. O. R.P.</i> , 16 July 1798, App. C., P73/34.
306	132	10 July „	<i>B, O. R. P.</i> , 20 July 1798, App. A., P73/34
248	95	23 July „	<i>B, O. R. P.</i> , 7 Aug. 1798, App. C., P73/35.
47	75	23 Sept. „	<i>B. O. R. P.</i> , 2 Oct. 1798, App. B. P73/37.
400	251	12 Nov. „	<i>B. O.R. P.</i> , 23 Nov. 1798, No. 17, P73/39.
696	464	10 Feb. 1799	<i>B. O. R.P.</i> , 15 Feb. 1799, No. 27, P73/43.
815	260	25 Feb. „	<i>B.O.R.P.</i> , 12 March 1799, No. 53, P73/44.
221	99	12 March „	<i>B. O. R. P.</i> , 2 April 1799, App. E, P73/45.

TABLE 4 (cont.)

Sadar Jama of lands sold	Amount realised at sales	Dates of sales	Sources
Rounded to nearest 100 S. Rs.	Rounded to nearest 100 S. Rs.		
669.	603	23	„ „ <i>B. O. R. P.</i> , 5 April 1799. No. 1, P73/45.
992	611	18 May	„ <i>B. O. R. P.</i> , 21 May 1799, App. A., P73/47.
630	304	10 June	„ <i>B. O. R. P.</i> , 25 June 1799, No. 82, P73/49.
270	241	20 July	„ <i>B. O. R. P.</i> , 23 Aug. 1799, App. A., P73/51.
67	23	„ „ „	<i>B. O. R. P.</i> , 23 Aug. 1799 App. A., P. 73/51.
413	160	6 July 1799	<i>B. O. R. P.</i> , 30 July 1799, No. 27, P73/50.
311	697		<i>B. O. R. P.</i> , 2 Aug. 1799 App. A, P73/51.
112	72	28 Aug.	„ <i>B. O. R. P.</i> , 10 Sept. 1799, No. 55, P73/52.
401	139	28 Aug.	„ <i>B. O. R. P.</i> , 13 Sept. 1799, No. 37, P73/52.
254	230	19 Oct.	„ <i>B. O. R. P.</i> , 5 Nov. 1799, No. 1, P74/1.
14	5	7 May 1800	<i>B. O. R. P.</i> , 13 May 1800, App. B, P74/23.
15,71,000	12,80,200		
The decennial jama of the zamindari			= S. Rs. 22,50,200
Deduct Jama of lands publicly sold			S. Rs. 15,71,000
Jama of lands privately sold			2,73,900 ¹⁹
Jama of taluqas separated			3,71,000 ²⁰
			22,15,900
The remaining jama of the estate			34,000

19. Rajshahi Collector to B. O. R., 29 March 1795, *B. R. C.*, 17 April 1795, No. 4A, P53/29.

20. Rahshahi Commissioner to B. O. R., 26 May 1792, *B. R. C.*, 15 June 1792, No. 19, P52/45. Rahshahi Commissioner to B. O. R., 5 June, 1793, *B. R. C.*, 5 July 1793, No. 15, P53/4.

As the resources of the zamindari had never been investigated minutely, it is very difficult to state categorically whether or not the zamindari was rightly assessed. The original decennial assessment exclusive of all deductions on different accounts was S. Rs. 20,27,200.²¹ To this sum was added a *rasad* of S. Rs. 2,25,000.²² Hence the permanent assessment of the zamindari was fixed at S. Rs. 22,50,200. The average annual collection of the estate from 1778-9 to 1788-9 amounted to S. Rs. 21,24,400.²³ The gap between the known revenue yield and the assessment was further widened by the withdrawal without compensation of the customary allowance of *batta* on the payment in sicca currency. The raja had derived an annual income of about one lakh of rupees on account of *batta* and there had never been any hint in the decennial agreement that it would subsequently be resumed without compensation.²⁴ Thus if to the gap between past revenue yield and the 1791 assessment is added the loss of the *batta* allowance, the raja may be seen to have been overburdened by the decennial settlement by about two lakhs of rupees a year.

Raja Ramkrishna at first refused to accept the settlement and persisted in throwing every obstacle and impediment in the way of the execution of the settlement. But ultimately he acceded to it with a note of protest. He wrote to the Council, "the assessment is augmented and the increase required to be made good in 3 years only. Although to realize so heavy a *jumma* in so limited a period seems impracticable, yet to labour under the displeasure of government would be still more distressing."²⁵

21. Rajshahi Collector to B. O. R. 15 March 1795, *B. O. R. P.*, 15 August 1795, No. nil, p 71/42.

22. *Ibid*

23. Rajshahi Collector to B. O. R., 16 June 1789, *B. O. R. P.*, 18 June 1789, No. nil.

24. B. O. R. to G. G. in C., 24 March 1795, *B. R. C.*, 10 April 1795, No. 7.

25. Raja Ramkrishna to G. G. in C., 28 May 1790, quoted in N. K. Sinha, vol. 2, pp, 156-7.

In these circumstances it was not surprising to find that raja Ramkrishna lost two of his big parganas bearing *jama* of about one lakh and fifty thousand rupees within a year after his decennial engagement.²⁶ This, however, did not relieve him from further distress. Every year arrears were accumulating. In July 1795, his outstanding arrears amounted to S.Rs. 5,39,054.²⁷ Stating his difficulties, the raja wrote to the Council "From the heavy *Jumma* and involved revenue of my zemindary, I have several years granted *Muzcoree* Talooks, and made conditional sales to raise money which has been paid to make good the deficiencies of revenue, and many valuable portions of my lands have been sold by public sale."²⁸ He then appealed for the abatement of assessment on account of *batta* abolished and excessive *rasad*.²⁹

The repeated representations of raja Ramkrishna ventilating his difficulties in paying public revenue and his chronic arrears, led to a full scale discussion in the Council about the affairs of his zamindari. For guidance of the Council opinions were sought from the collector and from the Board. The Collector, giving his report in favour of the raja said that his zamindari was overrated by at least half the amount of *rasad* imposed on him. He wrote, "The increase [*rasad*] appears to have been calculated on resources expected from improved cultivation, but in half the zemindary, improvement could add nothing to the rents recoverable by the zemindar, for he could not demand an advanced rent from Talookdars whether dependent or independent."³⁰ Basing his opinion on

26. See first two sales in Table 4, P 124.

27. Rajshahi Collector to B. O. R., 27 July 1795, B. R. C., 14 August 1795, No. 4, p 53/33.

28. Rajshahi Collector to B. O. R., 14 August 1795, enclosure No. 8, B. O. R. P., 18 August 1795, no. 8, p 72/46.

29. *Ibid.*

30. Rajshahi Collector to B. O. R. 29 March 1795, para 4, B. R. C., 17 April 1795, No.4 A, P53/29.

the zamindari records, he said that half of his zamindari was held by taluqdars from whom "the zemindar could not by their tenures, nor by the regulations for the permanent settlement [Regulation VIII, Sec. 51] demand an increase ; and the portion of the zemindary the rent could not be advanced (on account of the expected improvement) amounting at least to S. Rs. 10,33,177 ; the increase of 2,50,000 rupees on the Sudur Jamma fell on the remainder of the zemindary, in the proportion of 4 annas in the rupee nearly."³¹ Graham, the Acting President of the Board of Revenue supported the collector's reasoning as "incontrovertible." He said, "...the other members of the Board will concur in opinion with me, that an encrease of four annas in the rupee, or in other words of five and twenty per cent upon the actual produce of an extensive zemindary, is more than under any circumstances there could be any prospect of realizing in the short span of four years..."³² "In short, "he said, "it would appear to me that Government looked to a provision for the payment of the *russud* from improvement throughout the whole or nearly the whole of the zemindar's estate, so that taking the Jumma of 1197 [1789-90] in round numbers at Rupees 21,78,000, and the *russud* rupees 2,50,000, the increase would be at the rate of about 11 percent, instead of which to revert to the observations contained in the collector's letter, it would appear that the operation of the *russud* in such of the *mehauls* as the zemindar could extend its effects to has been in the proportion of nearly twenty five percent."³³ But his views were opposed by other members of the Board. Vanderheyden was of the view that "total want of capacity or energy in the zamindar" was the cause for his balances. He said, "after relinquishing the whole of the *russud* since the commencement of the settlement or 6,55,000 rupees and the

31. Graham's first minute on the Rajshahi zamindari, 10 April 1795, B, R. C, 17 April 1795, No- 4A, P53/29.

32. *Ibid.*

33. *Ibid.*

whole of the claim for Batta as stated by himself, 2,86,618, there would be still a deficiency of assets since the conclusion of the settlement of near 5 lakhs of Rupees.”³⁴ His opinion was supported by G. Hatch, the third member of the Board.³⁵ Buller, the fourth member, said, “I have no hesitation in declaring it as my opinion that the present defalcation arises not from there having been originally a deficiency of assets, but from the imbecility and entire mismanagement of the zemindar...”³⁶ The Governor General in Council accepted the views of the majority members of the Board. He said, “I do not see that the Government is bound to make allowances for the incapacity or mismanagement of the zemindar, both of which I believe do exist in a very great degree. From all that I can learn of the character and conduct of the zamindar, I believe him to be very dissipated and inattentive to the duties of his situation and that the embarrassments under which he labours are principally imputable to his own misconduct.”³⁷ Moreover, the Government was well aware of the fact that if any reductions on the original assessment were made, then the whole body of zamindars would be led to present claims. Under such circumstances, John Shore maintained, “the permanency of the assessment would be shaken throughout the country.”³⁸ Hence it was resolved that the raja should not be granted any abatement of assessment and his arrears should be recovered by selling his lands.³⁹

When repeated appeals for the reductions of assessment failed to produce any result and several of the parganas had

34. Vanderheyden's first minute, 17 April 1795, *B. R. C.*, 17 April 1795, No. 4A, P53/29.

35. *Ibid.*

36. Buller's Minute, 17 April 1791, *B. R. C.*, 17 April 1795, No. 4A, P53/29.

37. G. G. in C.'s Minute, 17 April 1791, *B. R. C.*, 17 April 1795, No. 5, P53/29.

38. *Ibid.*

39. G. G. in C.'s resolution, 17 April 1795, *B. R. C.*, 17 April 1795, No. 6, P53/29.

already been sold for revenue arrears, the raja adopted negative means in order to save the zamindari. As minor's property under the management of the Court of Wards was not liable to be sold for arrears, raja Ramkrishna transferred the whole of the zamindari by a deed of gift to his fifteen year old son, Kumar Bishwanath in August 1795.⁴⁰ Under the management of the Court of Wards from 1202 to 1204 B. S., (that is, from 1795—6 to 1797—8), the zamindari ran up a gigantic debit balance of Rs. 9,61,260.⁴¹ The details are as follows :

TABLE 5
Demands, Collections and Balances
of the Rajshahi Zamindari

(1202 — 1204 B. S.)					
Districts	Mahals	Years	demand	Collection	Balance
			S. R.	S.R.	S.R.
Rajshahi	Bettoria	1202	6,83,887	4,88,590	1,95,297
		1203	6,43,508	4,38,805	2,04,703
		1204	5,83,295	4,24,304	1,58,991
Murshidabad	Neez	1202	2,40,476	2,21,090	19,386
	Chackla	1203	2,25,507	1,97,099	28,608
	Rajshahi	1204	1,43,796	84,287	59,509
Nadia	Shajeal	1202	1,11,951	1,03,346	8,605
		1003	1,29,236	1,03,305	26,030
		1204	1,29,236	1,07,346	21,880
Jessore	Bhusna	1202	3,28,986	2,82,736	46,249
		1203	2,84,118	1,70,312	1,13,805
		1204	2,84,118	2,05,934	78,183
Total from 1202 to		1204	37,88,320	28,27,059	9,61,260
Source : B. R. C., 17 August 1798, No. 18, P53/57.					

40. B. O. R. P., 18 August 1795, No. 8, P72/26.

41. B. O. R. to G. G. in C., 10 August 1798, para, 20, B. R. C., 17 August 1798, No. 17, P53/57.

The Government's failure to collect the substantial amount of its demands in spite of the use of all administrative machinery at its disposal makes it abundantly clear that the resources of the zamindari were unequal to assessment.

The last phase of the zamindari was most tragic. In April 1798, raja Biswanath attained his majority. The Court of Wards proposed to hand over the zamindari to him, but he refused to accept the zamindari unless reductions in revenue demand were made.⁴² But the Board, refusing to admit any overassessment, handed over the management of the zamindari without taking any engagement from him and made him responsible for all arrears henceforth.⁴³ For some time, the zamindari was left without any caretaker. At last the bewildered raja took over the management at the end of 1798, but within one year under his management the whole of the zamindari was sold for arrears.⁴⁴ In consideration of his past rank and status and present indigence, the Government granted him a subsistence allowance of eight hundred rupees per month in 1805.⁴⁵

It is thus abundantly clear that overassessment made the zamindari helpless. The raja stood little chance of getting rid of continued debit balances and the consequent sale of his lands. But overassessment was certainly not the whole truth behind the dissolution of the zamindari. The raja's own character was also a significant contributory factor. As a believer in the *Vaishnabha* cult which preached love for the Supreme Being instead of for the world, raja Ramkrishna was always engrossed in spiritual meditation oblivious of zamindari

42. B. R. C., I June 1798, No. 9, P53/56.

43. G. G. in C., to B. O. R., 26 June 1798, B. R. C., 13 July 1798, No. 10, P53/57.

44. See, Table 4,

45. G. G. in C., to C. D., *General Revenue Letter*, 15 May 1806, E/4/69.

affairs.⁴⁶ Whatever leisure time he managed to have after meditation and other religious duties, he tried to use it in composing popular *vaishnabha* songs which earned him the title 'Raja-saint' of Bengal.⁴⁷ Krishna Indra Roy, a contemporary zamindar of Bolihar in Rajshahi, wrote about him in verse : "Maharaja Ramkrishna always kept himself busy with religious duties without keeping any eye on his zamindari affairs. In consequence, he lost his zamindari in short time. Every body knows it."⁴⁸

His utter indifference towards the zamindari management made him absolutely dependent on his *amla* who gradually became so powerful that the raja lost all control over them. In 1792, being desperate, he petitioned the council to save him from his overmighty *amla*. The content of the petition would indicate how his officers, in league with Collectorate officials, misused their situations for the advancement of their own families. He wrote, "... by the intrigues of Chaund Takoor [Collector's diwan] and others I was unable to obtain admission in the zamindary concerns... Ram Kishore Roy dewan [raja's diwan] having, thro the patronage of the said Takoor, obtained control over the zamindarry, fixed certain profitable mohauls at an under valuation, and caused them to be given to his relations and dependents ; fraudulently and artfully making himself the actual possessor. My mother was in constant anxiety to make him settle his accounts, but could not by reason of the protection, which he received from Chaund Takoor. The said Dewan, in conjunction with Chaund Takoor, having given the appointments of Chuckladers, Aumeens, Naibs, etc. in the sudder and mofussil, to their own brothers and relations, threw the^d affairs

46. See, Kalinath Roy Chowdhury, *A History of Rajshahi* (Bengali Text), p. 185, *Vera. Tract.* 1885,

47. See, Dinesh Chandra Sen, *A History of Bengali Language and Literature*, p. 721,

48. See, Kalinath Roy Chowdhury, *A History of Rajshahi* (Bengali Text), pp. 183-4.

thereof into confusion and taking deductions on the Jumma of their own talooks, they overassessed the other ryots, who on this account made constant complaints and clamours..."⁴⁹

The raja's statement gives a vivid picture of the management condition of the ramshackle zamindari. It also hints at a struggle for power in the Rajbari among the officers. It is quite unusual that the raja, being so much detached from the actual management, should be so much in the know of the corruption of his officers. This suggests that he was being briefed by some other rival group of officers. It is significant that, in his petition, while he repeatedly mentioned the mischief done by Ramkishore diwan and his creatures, he was silent about his two deputy diwans, Kali Shankar Roy and Balram Roy, both of whom purchased the greater part of the raja's zamindari and founded the families of Narail and Tarash respectively.⁵⁰

It is probable that Kali Shankar Roy had got hold of the raja in 1792 and was trying to oust the rival group which was headed by Ramkishore. According to Kalinath Roy Chowdhury Kali Shankar succeeded in making himself the guide, philosopher and friend of the raja.⁵¹ This story sounds true, because Ramkishore's name is not found in records after that petition and when the zamindari went under the Court of Wards in 1795-6, the *diwan* of the zamindari was found to be Kali Shankar Roy, not Ramkishore. Kali Shankar seemed to have exerted so much influence on the raja that he became the farmer of *pargana* Bhusna, in addition to being the *diwan* of the raja.⁵² In 1795-6, when the Estate went under the Court of Wards,

49. Raja Ramkrishna's petition to Council, B. R. C., 4 May 1792, No. 32, p 52/44.

50. For Kali Shankar's purchases; see Appendix F. for Balram Roy, see Kalinath Roy Chowdhury, *History of Rajshahi*, pp. 39-40.

51. Kalinath Roy Chowdhury, *History of Rajshahi*, p. 164.

52. *Ibid.*

Kali Shankar was dismissed by the Court for established fraud, embezzlement and defalcation.⁵³ But by then much of the damage to the zamindari had already been done.

Raja Biswanath tried to save some parts of his zamindari through *benami* purchases. Thus he bought *pargana* Naldi and Santore, which bore a combined *jama* of about one lakh of rupees, in the names of his peons; but ultimately these had to be disposed of in order to clear off debts.⁵⁴ Other *benami* purchases which he managed to retain were Cheena Dhukhia, Dhees Wazirpur, Phuttea and Arparah in Nadia district, the combined *jama* of which amounted twenty thousand rupees.⁵⁵ All this came to light when the nominal purchasers, who were his own peons, refused subsequently to hand them over to him. Ultimately these were restored to him. He may have made other *benami* purchases, but in the absence of any other legal disputes, it is not possible to ascertain this. His grandmother, rani Bhavani, purchased three *parganas* in her own name. These were Huda Hurer Para, Tarraf Dakhin Jowar and Huda Barnagar in Murshidabad district.⁵⁶ Their combined *jama* stood at S. Rs. 33,706. These *benami* purchases, together with the purchases of rani Bhavani, saved this historic family from total extinction. In 1819, the *sadar jama* of the zamindari on all accounts amounted to Rs. 88,006.

The Dinajpur Raj

The decennial settlement of the Dinajpur raj, the third largest zamindari in Bengal, was concluded in July 1790, while raja Radhanath was still a minor. Ramkanta Roy, his official

53. B. O. R. to G. G. in C., 31 May 1796, B. R. C. 18 June 1796, No. 49, P 53/44.

54. J. Westland, *A Report on the District of Jessore*, p. 125.

55. B. O. R. P., 24 July 1801, Nos. 16217, p 74/33, also B. O. R. P., 2 September 1803, No. 37, P 75/18.

56. B. O. R. P., 30 May 1797, No. 29, P 73/17; B. O. R. P., 30 May 1797, No. 23, p 73/17; B. O. R. P., 2 August 1799, App. A., P 73/51.

guardian and manager of the zamindari, signed the engagement on his behalf. The assessment, based on the average collections of the past ten years was fixed at S. Rs. 14,84,000.⁵⁷

For the next seven years, while all the principal zamindaris of Bengal were collapsing under the ruthless operation of the sale laws, commonly known as "sunset-laws", the Dinajpur raj alone stood unassailed. Not a single advertisement for the sale of any part of this zamindari appeared in the Gazette till the end of 1797. Then, however, when the crisis in the land market caused by the spate of sales was already coming fast to a close, most amazingly the Dinajpur raj, with its unique record of stability, suddenly crashed. In the course of fifteen months from the date of the first sale announcement the whole of the zamindari had been sold for recovery of arrears. The following table will show that the raja first tasted the bitterness of sale proceedings on 30 April 1798 and that by 29 July 1799 the last remnant of his lands had been disposed of.

57. See, Table 1. p. 3.

TABLE 6
The Sales account of the Dinajpur Raj

Amounts of sadar jama of lands sold	Amount raised by land sales	Dates of sales	Sources
Rounded to nearest 100 S. Rs.	Rounded to nearest 100 S. Rs.		
1165	1193	5 May 1798	<i>B. O. R. P.</i> , 11 May 1798, App. B, P73/32.
1297	1171	8 May „	<i>B. O. R. P.</i> , 15 May 1798, App. D, P73/32.
547	401	25 May „	<i>B. O. R. P.</i> , 29 June 1798, App. C, P73/33.
242	201	6 June „	<i>B. O. R. P.</i> , 15 June 1798, App. B, P73/33.
558	533	7 July „	<i>B. O. R. P.</i> , 16 July 1798, App. A, P73/34.
427	152	20 July „	<i>B. O. R. P.</i> , 20 July 1798, No. 1, P73/34.
566	180	28 July „	<i>B. O. R. P.</i> , 7 August 1798, No. 25, P73/35.
1864	1035	16 March 1799	<i>B. O. R. P.</i> , 2 April 1799, App. Q, P73/45.
503	84	20 March „	<i>B. O. R. P.</i> , 5 April 1799, App. C, P73/45.
529	429	10 April „	<i>B. O. R. P.</i> , 10 May 1799, App. F, P73/46.
57	14	18 April „	<i>B. O. R. P.</i> , 17 May 1799, App. E, P73/47.
66	22	29 April „	<i>B. O. R. P.</i> , 14 May 1799, App. A, P73/47.
1879	883	14 May „	<i>B. O. R. P.</i> , 14 May 1799, App. B, P73/47.

TABLE 6 (Cont.)

Amounts of sadar jama of lands sold	Amount raised by land sales	Dates of sales	Sources
Rounded to nearest 100 S. Rs.	Rounded to nearest 100 S. Rs		
783	212	18 May	„ B. O. R. P., 11 June 1799, App. L, P73/49.
644	256	26 May	„ B. O. R. P., 11 June 1799, P73/49.
550	364	8 June 1799	B. O. R. P. 28 June 1799, App. J, P73/49.
1075	734	6 July	„ B. O. R. P., 30 July 1799, App. F, P73/50.
436	435	9 July	„ B. O. R. P. 30 July 1799, App. G, P73/30.
773	241	20 July	„ B, O. R. P. 23 August 1799, App. A2, P73/51.
28	28	19 August	„ B. O. R. P., 30 August 1999, No. 4, P73/51.
717	625	20 August	„ B. O. R. P., 22 August 1800 App. C, P74/23.
14,70,600	9,19,800	5 May 1798 to 20 Aug. 1799	

The decennial jama of the zamindari	= S.Rs. 14,84,000
Deduct Jama of lands sold	= 14,70,600
Remains to the zamindari bearing an annual jama	= S.Rs. 13,400

It will be obvious from the above table first that, while the rate at which sales proceeded was extraordinarily rapid, the amounts realised were also extraordinarily low. Even after the whole of the zamindari had been sold it was not possible to clear off just two seasons' arrears—the raja was left still owing

Rs. 90,400.⁵⁸ Indeed, in the absence of any other asset possessed by the raja, the Board proceeded to order the sale of the buildings of the *Rajbari*.⁵⁹ But the raja's palace was already under the court's attachment waiting to be disposed of in satisfaction of a decree passed in favour of the Calcutta moneylender, Banarashi Ghosh, against the raja.⁶⁰ At last, the raja's "ward-robe, many horses and elephants and thousands of cows and buffaloes, etc., goods and chattels, and household properties, were sold at public sale."⁶¹ In the meantime, hundreds of his creditors sued him to recover their unpaid loans, but he had no money even to pay his officers.⁶² The ruined raja did not long survive the shock of bankruptcy and died on 26 January 1800 at the age of twenty-four only, 'in such a state of poverty as to be kept a prisoner in his own house by his creditors who were bent upon seizing him and throwing him into the common jail.'⁶³

Such a precipitous fall of this historic family was certainly pathetic. Its most immediate cause was a severe drought in 1798, and the consequent debit balance of about eight lakhs of rupees, for the recovery of which the whole of the zamindari was sold. Describing the effects of the drought the collector reported in the same letter that "the crops had been totally burnt up and destroyed", and added, "many

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58. Dinajpur Collector to B. O. R., 11 Feb, 1800, *B. O. R. P.*, 14 Feb. 1800, No. 17, P73/7 ; Dinajpur Collector to B. O. R., 8 March 1800, *B. O. R. P.*, 18 March 1800, No. 35, P73/8.
59. Board's orders, *B. O. R. P.*, 5 August 1800, No. 35, P74/14.
60. Dinajpur Collector to B. O. R., 7 March 1800, *B. O. R. P.*, 18 March, 1800 No. 35, P73/8.
61. Raja's petition to G. G. in C., *B. R. C.*, 6 November 1800, No. 14 P54/14.
62. Collector to B. O. R., 28 November 1800, *B. O. R. P.*, 9 December 1800, No. 9, P74/20.
63. Collector to B. O. R., 14 April 1798, *B. O. R. P.*, 24 April 1798, No. 25, P73/31.

ryots have deserted and gone to other districts in consequence of their inability to pay up the balance due from them." Because of the relative shortage of cultivators in relation to the land available in Dinajpur, the economic relationship between landlord and labour had always been in favour of the latter. Hence, the use of any force on the part of the raja to oblige the *ryots* to pay at times of scarcity led them to "quit their houses and run away."⁶⁴ In this dilemma raja Radhanath could only petition the Board, asking that "whatever balance may occur in the present Bengal year, 1204 B. S., may be added to the revenues of the two ensuing years by *russud*."⁶⁵ But the Board never investigated the effects of the drought and no suspension of revenue was granted to the raja.

Sannyasi and *Fakir* raids in the wake of the great drought further aggravated the difficulties of raja Radhanath, who informed the government that most of his *parganas* had been depopulated, due to their "plundering the houses of the *ryots* and taking away the revenue from the *Katcharis* and also of murdering and wounding the inhabitants, burning their houses and carrying them to the hills."⁶⁶ The collector also gave the same opinion about the *Fakir* raiders, "who plunder the *ryots* of their property and by various means extort money from them."⁶⁷

It is certain that the combined effects of the drought and *Fakir* raids very greatly dislocated the exchequer of the raja. But it is inconceivable that these two factors alone could have ruined the zamindari root and branch in the course of fifteen

64. The Raja's petition to B. O. R., *B. O. R. P.*, 13 March 1798, No. 25 P73/30.

65. *Ibid.*

66. The Raja's petition to B. O. R., *B. O. R. P.* 23 March 1799, No. 11, P77/44. For details of the *Fakir* and *Sannyasi* activities, see Jamini Mohan Ghosh, *Sannyasi and Fakir Raiders in Bengal*.

67. Collector to B. O. R., 23 March 1799, *B. O. R. P.*, 2 April 1799, No. 10 P73/45.

months. A decade of stability in the management of the estate and of regular payments of the revenue demand should normally have made the raja strong enough to withstand one or two natural calamities. In fact, however, the stability and financial strength of the Dinajpur Raj was unreal : the raja never personally enjoyed the fruits of that stability and strength and was never free to regulate his affairs independently. There is strong reason to believe that his officers, protected by the Collector, had misappropriated all the surplus profits of the zamindari and then ultimately plotted to divide the best part of the zamindari among themselves through public sales.

The origin of these developments goes back to a considerable past. Raja Boidhanath, the last vigorous zamindar of Dinajpur, died without a son in 1780. His wife, rani Sarasati, adopted a three-year-old boy, Radhanath, who was declared by Warren Hastings on 31 July 1780 to be the successor to raja Boidhanath. After that date the zamindari was managed by Janaki Ram, a brother of rani Sarasati. In 1786, when G. Hatch came as the first Collector of the district, Janaki Ram fell into a heavy debit balance for which he was forced to abdicate. In a debt case, he was imprisoned in Calcutta where he died in 1790.

Ousting the rani's brother, G. Hatch himself took over the management of the zamindari. He appointed Ramkanta Roy, a relation of Radhanath, as manager of the zamindari and also the guardian of the raja. In order to ensure better administration of the vast zamindari, Hatch divided it into sixtyfour blocks, each under a *Tahsildar* or Collector, who collected from six to ten thousand rupees, receiving 5 p. c. commission on the actual collections.⁶⁸ All the sixty-four *Tahsildars* who were obviously the pivots of the zamindari's administration, were appointed by Hatch on the recommendation of Ramkanta Roy.⁶⁹ The Hatch

68. E. V. Westmacott, 'The Territorial Aristocracies of Bengal: The Dinajpur Raj', *The Calcutta Review*, Vol. 55, 1872, p. 218.

69. *Ibid.*

arrangements worked successfully in the regular collection of rents and payments of public revenues. But in spite of the success of the system, rani Sarasati could not accept it as salutary to her. Aggrieved by the harsh treatment meted out to her brother and various other reforms in which the old loyal servants were removed, the dowager rani constantly maintained a stubborn defiance towards the Government, Hatch and his favourite, Ramkanta Roy. At the time of the conclusion of the decennial settlement, she took away Radhanath from Ramkanta's guardianship and kept him in her own apartment as a hostage. She also took possession of the seal of the raja. In spite of the repeated requests from the Government, she stubbornly refused to release the seal and her son until her grievances were redressed.⁷⁰ As a punishment for her open defiance of Government orders rani Sarasati was exiled from Dinajpur to Govindpur.⁷¹ The reasons for her discontent are aptly described by E. V. Westmacott: "The Ranee's feelings of hostility against the British rule are pardonable. Her husband for twenty years reigned almost as an independent prince, and after his death, her brother Janokee Ram had maintained an equal state. Suddenly her brother was called upon to pay his revenue with a punctuality never known before, and on default was sent in custody to Calcutta, and she never saw him again. The collections of the estate were taken entirely out of the hands of the family, and even the expense of repairs of the Rajbaree, and the monthly wages of the servants, were defrayed by Government officers, without reference to her wishes. The herd of buffaloes belonging to the Rajbaree was sent to the uncultivated part of the district as a public nuisance, and many of the consecrated cattle were sold. The ranee was not even allowed to take care of her adopted son, nine or ten years old, but he was made

70. Collector to B. O. R. 29 January 1790, B. O. R. P. 4 February 1790 No. nil, P 1/21.

71. B. O. R. to G. G. in C., 4 February 1790, B. O. R. P., 4 February 1790. No. nil, P71/21.

over for education to the manager, Ram Kanta Roy, for whom she had a strong personal aversion...she was naturally in no temper to look on Mr. Hatch's reforms as beneficial or to acquiesce in the action of the Government."⁷² While she was in exile at Govindpur about seventy miles north of the Dinajpur town, Ramkanta Roy, at the instance of Hatch, removed all the old servants loyal to the rani and in their places his own men were appointed.⁷³ In protest against such developments rani Sarasati threatened self immolation. She complained: "As Ramkanta is my enemy, also the enemy of the zamindary, and desires my life, and as he has now almost brought me to death-door, I am prepared to put an end to my own existence."⁷⁴

Under this background of the relationship between rani Sarasati and the government, raja Radhanath took over the direct management of the zamindari in January, 1792. It was not expected that Radhanath would forgive Ramkanta Roy who so actively collaborated with Hatch in purging the old servants, resumption of rent-free lands and, on top of all, in the internment of his mother at Govindpur. But his relationship with Ramkanta Roy remained cordial on the surface until the departure of his patron, Hatch, in March 1793. Soon after his departure the raja appointed two *muharrirs* or writers to minutely check all the accounts of the Roy and his man who were charged by him with large scale embezzlement.⁷⁵ The Roy must have realised the sure danger behind such a move on the part of the raja. He convinced the new Collector,

72. E. V. Westmacott, 'The Territorial Aristocracy of Bengal, The Dinajepoor raj.' *The Calcutta Review* Vol. 55, 1872, pp. 220—1.

73. B. O. R. to G. G. in C., 4 February, 1790, *B. O. R. P.*, 4 Feb. 1790, No. nil P71/21

74. Rani to B. O. R., 26 January 1791. *B. O. R. P.*, 26 January 1791, P71/55, G. Hatch joined the Board of Revenue as its fourth member after his departure from Dinajpur.

75. Collectors' Proceedings, 17 Sept. 1795, *B. R. C.*, 11 April 1794, No. 9, P53/15.

J. Eliot, that the appointment of the two *muharrirs* to investigate the accounts was the first step towards overthrowing the system which had hitherto ensured the punctual collection of the public revenues. Since the punctual collection of the revenues was the principal aim of the government's revenue policy, and the most important criterion for judging the efficiency of a Collector, Eliot was easily persuaded to think that the Hatch system which was a resounding success in the collection of rents from the inferior interests in the past must be defended against any alteration. While the author of the system himself sat on the Board as a member, Eliot did not have to take much pain to make the authorities believe that a return of the rani's old officers through any change in the system must jeopardise the security of the public revenues. The Council thus gave the statutory sanction to the Hatch arrangements by a declaration which ran: "You [the Board] immediately order the Collector to acquaint the rajah that we prohibit him from altering in any respect the *sudder* and *mofussul* arrangements made by the late Collector, or removing or depriving of authority, any of the officers appointed by him for the management of the collections and the conduct of the business of the zamindarry who were in office at the time of his departure from Dinajpur."⁷⁶ Such blatant interference in the internal affairs of a zamindari was indeed unexampled. Like Radhanath, the raja of Rajshahi was at first saddled with Collector Henckell's arrangements. But after the execution of the decennial settlement, the raja refused to accept the officers appointed by Henckell. The Council then allowed the raja to settle his zamindari "with whomsoever and in such manner as he may think proper under the general Regulations."⁷⁷

The Council's orders made the raja of Dinajpur a helpless cypher in the hands of his *amla* who were now free to run the

76. G. G. in C. to B. O. R., 27 September 1793, para 3, B. O. R. P. 1 Oct. 1793, P72/21.

77. G. G. in C. to B. O. R., B. R. C., 20 April 1792, No. 16, P52/43.

zamindari quite independently of the raja. Their real master was Ramkanta Roy, the *diwan*, not Radhanath, the zamindar. Two months after this order, the raja complained to the Board: "Ramcant Roy, with his own *amla* is sole manager of my zamindari at the *sudder* and in the *mofussil*.... From the month of Cautick [Seventh month in the Bengali calendar] the Cutcherry was removed to the neighbourhood of Rajegunge, near the house of the said Roy; the Cutcherry and the whole concerns of the zamindarry are under his control, and I am entirely divested of all authority. Whatever papers the Roy sends to me for signature, I seal and sign."⁷⁸ In an earlier representation to the Board, he said that ever since Ramkanta Roy became manager through the patronage of Hatch, who was hostile to his family, he and his creatures were consuming all the surplus profits after the regular payment of the government revenues.⁷⁹ He reiterated: "Gentleman, the *amlah* appointed by the late Collector are nominally my servants, but in fact, my mortal enemies. They are *mohassil* [or spies] over me. The profits of my estate which have of late years been very considerable, have been consumed by Ramkanta Roy, his patron, and his dependents."⁸⁰ Against the blind partisan attitudes of the Collector, J. Eliot, he wrote to the Board "It is extraordinary that although by the oppressions of Ramkanta Roy I have been distressed beyond forbearance, and have repeatedly represented this to Collector that he has not stated the same to your Board but whatever Ramakanta Roy declares; which he knows to be foul roguery, and to secrete his embezzlements and that of his *amlah*, with a view to prevent my having the management of my zamindari he will not permit any one of my well wishers to be about my person, excepting his own ill

78. Raja to Collector, 19 Nov. 1793, in Collectors proceedings of 19 Nov. 1793 forwarded with his letter, 20 Nov. 1793, to B. O. R., B. R. C., 11 April 1794, No. 9, P53/15.

79. *Ibid.*

80. Raja's petition to B. O. R., B. R. C., 11 April 1794, No. 9, P53/15.

advisors." He continued, "I was in expectation that from the present Collector I would have got redress for my past and present grievances, on the contrary, the Collector patronises those who are the enemies of my life and reputation."⁸¹

Collector Eliot defended himself against all these allegations by stating that the raja was too young to understand business. He alleged that the raja was led by some interested and ambitious persons who were leaving no stone unturned to get rid of Ramkanta Roy and his other exceptionally efficient and honest officers.⁸² Giving a comparative picture of the performance of the past regime with that of Ramkanta and his son, he wrote in December 1793: "The contrast to be formed between the man who sell themselves the raja's well wishers and faithful servants and the present man who now manage the zamindary under Ramkanta Roy, is conspicuous. The former from the balances that arose prior to Ramkanta Roy's management, and the manner in which the lands were given away to the loss of government's revenues. (sic) The farm of the *Ander Mohals* shows the extraordinary and curious mode they adopted to bribe and secure the ranny's favour and the creatures about her person, and the latter in having resumed these lands, and realised the revenue punctually for seven years past, besides erecting for the young rajah an elegant palace for his habitation with other buildings."⁸³

The Council's response to all these allegations and counter allegations was again unfavourable to the raja. Without instituting any investigation into the raja's charges, the Council rushed to support the policies of the successive two Collectors, viz., Hatch and Eliot, and charged Radhanath, though he was

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81. The raja to B. O. R., forwarded with Collector's letter, 10 Dec. 1793, enclosure number 9, para 6, *B. R. C.*, 11 April 1794, No. 9, p53/15.
82. Collector, J. Eliot to B. O. R., 10 Dec. 1793, *B. R. C.*, 11 April 1794, No. 9, P53/15.
83. Collector J. Eliot to B. O. R., 10 Dec. 1793. *B. R. C.*, 11 April 1793, No. 9, P53/15.

never administering his estate himself, with "gross misconduct, irresponsibility and incapacity."⁸⁴ All these disqualifications were being ascribed by the Council "Chiefly to the management of it having been committed to him at the early age of fifteen, agreeable to the Regulations then in force,..."⁸⁵ In order to disqualify him, the Council extended the age of minority from the existing fifteenth to the nineteenth year from the date of birth.⁸⁶ As Radhanath was only seventeen years at that time he entered his second minority under the new rules. The Governor General in Council thus wrote to the Board, "We have determined, in consideration of the total incapacity which he has evinced for the management of his extensive zemindary, to place it under the care of the Court of Wards, subject to the rules prescribed respecting minors."⁸⁷

It is possible that as the raja was in his teens, he could be easily used as a figure head by a disgruntled faction of the *Rajbari* to achieve its own ends. It is again possible, as has been alleged by the raja, that the ruling Ramkanta clique efficiently managed the estate for their own best interests, rather than those of the raja. In spite of the raja's most strenuous opposition, the Ramkanta group continued to control the zamindari without any attempt to destroy it. It would be unreasonable to think that they did so because of their disinterested love for the raja who had nothing but hatred for them. It was possibly because they did not think it wise to kill the goose that lay the golden eggs. Through the preservation of the zamindari under their management, they could manage to gobble up the surplus profits after the payment of the public

84. G. G. in C.'s Resolution, 11 April 1794, *B. R. C.*, 11 April 1794, No. 18, P53/15.

85. G. G. in C.'s Resolution, 11 April 1794, *B. R. C.*, 11 April 1794, No. 18, P53/15.

86. *Ibid.*

87. G. G. in C. to B. O. R., 11 April 1794, *B. R. C.*, 11 April 1794, No. 19, P53/15.

revenue, monopolise all the remunerative positions in the zamindari management among their families, and could exert their influence through their association with the officers of the Collectorate and courts, to procure patronage from them for their own dependents and relations. Whatever might have been the case it is certain that Radhanath did not derive any financial gain from the so-called stability so long as the Ramkanta clique remained in power.

In July 1795, Radhanath attained his nineteenth year and was duly reinvested with the management of the zamindari.⁸⁸ As a good gesture to the raja Ramkanta Roy was removed shortly before the estate was handed over to him. But it is very doubtful whether Ramkanta's removal made him entirely free to manage his affairs. The Council passed no new order annulling its previous order that prevented the raja from changing any officer formerly appointed by Hatch. Moreover, Manik Chand who was appointed as the new *diwan* of the raja in August 1795, was a nominee of the Collector, Manik served under Eliot when he was the Collector of Rangpur in 1792. When Eliot was transferred to Dinajpur he came with him and was made Eliot's personal *diwan* in 1793.⁸⁹ When Radhanath's zamindari was under the Court of Wards for the second time, Manik used to maintain the accounts on behalf of the Court and when thus acting as the Court's accountant, he was said to have given several false returns to the Court.⁹⁰ On the grounds of his corrupt practice Thomas Graham, the acting President of the Board, recommended his outright dismissal. Graham wrote : "I consider him [Manik] altogether unworthy of being further employed

88. Collector to B. O. R., 30 July 1795, B. O. R. P., 7 August, 1795, No. 27, P 72/46.

89. Collector to B. O. R., 30 July, 1795, B. O. R. P., 18 August, 1795, No. 25, P72/46.

90. Board's Proceedings, B. O. R. P., 7 August, 1795, No. 30, P72/46

as a public officer, and accordingly propose that the Collector of Dinagepore be forthwith directed to dismiss him from his office of public *dewan*, and that on the same ground we recommend to the Governor General in Council, that Manik Chand be proscribed from ever serving the Company in any capacity whatever in future.”⁹¹ But before any action was taken against Manik Chand by the authorities, his patron Eliot managed to obtain for him the post of the *diwan* from the raja. He however explained his diwan’s sudden departure for the raja’s service by stating that the raja was entreating him for the expert services of Manik Chand and, hence, for the interests of the raja, Manik was dispensed with and that was possible because his worthy grandson, Phool Chand, was readily available to become his own *diwan*.⁹² It is scarcely believable that Radhanath would have entreated Eliot for his toady Manik Chand despite his knowledge that it was Eliot’s backing that made Ramkanta so bold as to defy him so shockingly, and that it was Eliot’s hostile reports against him that influenced the authorities to dispossess him for one and a half year. In short, though Radhanath was invested with his zamindari after the expiry of his period of forced minority in July 1795, he was still encumbered by official pressure and tutelage. Excepting the withdrawal of Ramkanta who was replaced by another creature of the Collector, no other alteration took place in Hatch’s arrangements.

It should be noted that though Manik Chand was promoted through official influence, he could not become as powerful as his predecessor, Ramkanta Roy. By his efficient management Ramkanta ensured the government with the perfect punctuality of the payment of the revenues, and the government, in return, ensured his permanency by a declaration that he

91. Board’s Proceedings, Thomas Graham’s Minute, *B. O. R. P.*, 7 August, 1795, No. 30, P72/46.

92. Collector to B. O. R., 30 July, 1795, *B. O. R. P.*, 18 August, 1795, No. 25, P72/46.

and his men could not be sacked by the raja. But Manik was not entitled to enjoy such immunity. Again, while Ramkanta received official support from the Collector to the Council, Manik got support from Eliot. But Eliot left Dinajpur in January 1795 to become the judge of Tipperah. The succeeding Collector, Cornelius Bird, never tried to meddle into the raja's affairs. No wonder that his comparative weakness and the departure of Eliot, his only pillar of strength, drove him to make alliance with the remaining men of Ramkanta Roy, who felt equally insecure under the changing circumstances and also with the Collector's *amla* whose head, Phool Chand, was none other than his own grandson, in order to dismember the Zamindari and divide it among themselves, before he was cashiered by the raja. The opportunity was provided by the drought of 1798. They exploited the situation by putting the estate into a state of recurring balance and consequent sale till the last acre of the zamindari was sold.

The collusion between the zamindari and Collectorate officers to dismember the raja's estate was first revealed by Babu Ram, a *vakil* of the *diwani adalat* at Dinajpur. He wrote to the Board in July 1800 that the Collector's *amla* were actively involved in the scramble for the raja's lands.⁹³ He added that Phool Chand, the Collector's *diwan* and Bhavani Prasad Taluqdar, who was the Collector's *seristadar*, purchased considerable amount of Radhanath's lands in the names of their brothers, nephews and cousins.⁹⁴ Other prominent Collectorate officers who purchased Radhanath's lands, according to Babu Ram, were Wali Muhammed Nazir, Boydhanath Chowdhuri, Bashu Babu, Radakanta, Ganganarayan Sen and Farendaz.⁹⁵ Babu Ram was not appointed by the raja to plead

93. Babu Ram to B. O. R., 15 July 1800, *B. O. R. P.*, 29 July 1800, Nov, 2-3, P74/14.

94. *Ibid.*

95. *Ibid.* also see, Babu Ram to G. G. in C., *B. R. C.*, 9 June 1803, No. 2, P54/33.

for him, His interest in exposing their collusive transactions was the possibility of a good monetary reward under Regulation VII, 1799, if he could successfully unearth their collusions through the co-operation of the government.⁹⁶ Soon after Babu Ram's exposition, raja Radhanath made representation to the Council that he had lost his great zamindari because of the treacherous conduct of his *amla*. He explained that, at the time of his reinvestment with the zamindari in 1795, he was circumstantially forced to accept Ramkanta's men as his officers and appoint Manik Chand as his *diwan*. But "these officers," he continued, "from wicked and treacherous views, were so negligent and inattentive in collecting the rents of the *mofussil*, and in paying the revenue to the Collector, that in the space of three years, being from the commencement of the Bengal year 1202 until the end of 1205 [1797—1800] they suffered balances to the amount of eight lacs of rupees to accrue in the *mofussil*, and out of the amount of the collections they themselves appropriated nearly five lacs leaving me four lacs of rupees in arrears to government ; in consequence of this my zamindarry was sold at public sale,..."⁹⁷ He added that they in concert with the Collectorate officers undervalued his zamindari which was all sold for a nominal price. He said, "At the time of sale, Phool Chund, *dewan* to the Collector and grandson of the *dewn* of my zamindarry, by name Manick Chund above mentioned, and Wullee Muhummud, Nazir to the Collector and other officers belonging to the Collectorship,...as also those of my zamindarry Manick Chund, etc. having fraudulently concerted and leagued with each other, contrived by means of their collusion to depreciate the value of several fertile and productive *mehauls*, which I thought would have sold for their intrinsic worth, and

96. Babu Ram's petition to B. O. R., 1 Nov. 1804, B. R. O., 15 Nov. 1804, No. 26, P54/40.

97. Raja Radhanath to Council, 10, Sept. 1800 B. R. C.; 6 Nov. 1800, No. 14, P54/14.

bought them in themselves. For instance, Phool Chund, Collector's *dewan*, has purchased lands to the amount of nearly one lac of rupees, and Wullee Muhummud Nazir to the amount of almost eighty thousand rupees under fictitious names; and in the same underhand manner other officers belonging to the Collectorship and the *adawlut*, etc., have purchased the whole of the remainder of my zamindarry, by which I am deprived of my inheritance. Thus in consequence of their villainy and collusion, so extensive a zamindarry has been sold for the liquidation of four lacs of rupees due to government."⁹⁸ The helpless raja then narrated that his *amla* collected the *mofussal* rents for themselves and that they consistently refused to supply him with the zamindari accounts of collections, balances and disbursements.⁹⁹ He thus appealed to the Council to appoint a Commissioner to investigate his charges and render him justice.¹⁰⁰ The Council ordered on his petition that "a particular enquiry may be made into the circumstances represented therein, regarding the purchase of a part of the zamindaris estate by the public servants, in opposition to the Regulations."¹⁰¹

According to the instructions of the Council and the Board, Edward Webb, the acting Collector after the death of Bird in January 1800, made a preliminary investigation into the charges against the Collector's *amla*. Phool Chand, Bhavani Taluqdar, Wali Muhammed and many others were interrogated. Phool Chand disclaimed any complicity in dismembering the raja's estate. He, however, admitted that his grandfather, Manik Chand, lent money to Kirtichand, Sangum Lal and Mittun Lal to buy several lots of the raja's land.¹⁰² When asked to give their family relationship, Phool

98. Raja Radharath to Council, 10 Sept. 1800, *B. R. C.*, 6 Nov. 1800, No. 14, P54/14.

99. *Ibid.*

100. *Ibid.*

101. Council's Order 6 Nov. 1800, *B. R. C.*, 6 Nov. 1800, No. 14, P54/14.

102. Collector's Proceedings on 8 Aug. 1800, *B. O. R. P.*, 4 Nov. 1800, No. 24, P74/19.

Chand said that Kirtichand was his own younger brother, Sangum Lal was the son of Radha Krishna who was the son-in-law of Choni Lal who was the son of Manik Chand's daughter.¹⁰³ He also confessed that all of them lived in their home district, Patna, and their estates were managed by Manik Chand himself.¹⁰⁴ Webb then called Manik Chand for his deposition. Manik admitted that he was managing the estates himself and that he borrowed money from the merchants to buy those lands for his dependents.¹⁰⁵ When asked why did he not buy lands for his competent grandson, Phool Chand, Manik replied that it was needless because he had obtained the equally exalted post of a *diwan* for Phool Chand.¹⁰⁶ Webb then examined Guruprashad. He was the son of Bhavani Taluqdar and was holding the post of a *serestadar* in the raja's *katchari*. He was told that he was only eleven years old in 1800 and asked where from he got five thousand rupees to buy two big lots. Guruprashad replied that he served four years as a *serestadar* of the raja at the time of Hatch and four years at the time of Eliot, drawing a salary of fifteen rupees per month.¹⁰⁷ He further said that besides his salary savings, he had also savings from the presents that he received from his colleagues and *ryots* at the time of his investiture of his Brahmanical thread.¹⁰⁸ The Collector pursued, "You say, you received a salary for four years in Mr. Hatch's time. When Mr. Hatch left this station agreeably to your account you were only three years old, how then did you receive a salary for four

103. *Ibid.*

104. Collector's proceedings on 8 Aug. 1800, *B.O.R.P.*, 4 Nov. 1800, No. 24, P74/10.

105. Collector's Proceedings on 11 Aug. 1800, *B.O.R.P.*, 4 Nov. 1800, No. 24, P74/19.

106. Collector's proceedings, 9 Aug. 1800, *B. O. R. P.*, 4 Nov. 1800, No. P74/19.

107. *Ibid.*

108. Collector's Proceedings, 9 Aug. 1800, *B.O.R.P.*, 4 Nov. 1800, No. 24, P74/19.

years. Who was *dewan* at that time?" "*Dewan* Manik Chand had the management", replied Guruprashed.¹⁰⁹ The poor boy was not expected to know from his cradle that at that time the *diwan* was Ramkanta Roy and Manik Chand was yet to come from Rangpur to Dinajpur. Webb checked the zamindari papers and found that Guruprashed was really appointed as a *serestadar* by Ramkanta Roy at a salary of fifteen rupees per month when he was only three years old.¹¹⁰ Examining many other *amla*, Edward Webb reported to the Board: "I have not the smallest doubt in my own mind that many of the *amla* have been guilty of the charge preferred against them by Babu Ram."¹¹¹ The acting Collector added that Babu Ran had ample evidence in his hands to prove that official power and influence were used by the Collector's *amla* in dismembering the raja's estate.¹¹² The Board called for a full investigation in November 1800.¹¹³ But before Webb started his proceedings against the accused persons, Cornelius Smith joined as the regular Collector in December 1800. In the same month Phool Chand resigned.¹¹⁴ One month later, that is, January, 1801, the raja also died.¹¹⁵ On top of all these changes came Smith's reluctance to prosecute his *amla* immediately after his arrival as the Collector of the district. He wrote to the Board that he was unable to undertake the investigation against his *amla* because he was not conversant with the Bengali language and he had no time to spare for such big proceedings. He requested the Board either to drop the proceedings altogether or appoint an

109. Collector's Proceedings, 16 Aug. 1800, *B.O.R.P.* 4 Nov. 1800, No. 24, P74/19.

110. *Ibid.*

111. Acting Collector to B. O. R., 14 Oct. 1800 *B.O.R.P.*, 4 Nov. 1800, No. 24, P74/19.

112. *Ibid.*

113. Board's order, B. O. R. P., 4 Nov. 1800, No. 23, P74/19.

114. Collector to B. O. R., 4 Dec. 1800, *B.O.R.P.*, 16 Dec. 1800, No. 15, P74/21.

115. Collector to B. O. R., 26 January 1801, *B.O.R.P.*, 3 Feb. 1800, No. 7.

independent Commissioner exclusively for this purpose.¹¹⁶ The Board, accepting neither of his suggestions, instructed him to carry out the investigation whenever he found suitable time after his regular official jobs.¹¹⁷

In short, such orders simply put the problem into cold storage. Now only one man was trying to keep the issue alive. It was Babu Ram. Babu's interest was that if he could prove the collusive transactions of the Collector's *amlā*, then their estates were liable to be confiscated by government under Regulation 7 of 1799, in which case he must get a reward for the trouble he took for the Government. Thus he was constantly pressing upon Smith to resume the investigation. At one stage Smith became so annoyed with his importuning that he complained to the Board that Babu Ram was "perpetually harassing me to prosecute the inquiry, and never failed to state the hardship of his being obliged to attend while the enquiry was making no progress..."¹¹⁸ The Collector further said that Babu Ram was a "wretch who, having been expelled for misconduct and incapacity from the respectable situation of pleader for government in the *adawlut*, has betaken himself to the infamous employment of an informer, and makes a trip every rainy season to the *sudder* in prosecution of his new calling. The true spring of his exertions is not the prospect of the three lacks and a half which, as he asserts, his success will bring into the public treasury but of the ten percent upon that sum with which, he flatters himself, his vile and dirty service is to be rewarded."¹¹⁹ The Council reserved its comment upon the Collector's rude comments about Babu Ram.¹²⁰ But Babu Ram was

116. Collector Smith to B. O. R., B. R. C., 29 January 1801, No. 13, P54/16.

117. Board's Orders, B. R. C., 29 January 1801, No. 13, P54/16.

118. Collector to B. O. R., 11 October 1802, B. R. C. 29 January 1801, No. 13, P54/16.

119. Collector to B. O. R., 11 Oct. 1802, para 4, B. R. C. 28 Oct. 1802, No. 10, P54/28.

120. Council's observation on above, B. R. C., 28 Oct. 1802, No. 10, P54/28.

determined to bring his case to an end. After about four years of his allegation against the illegal and collusive purchases of the Collector's *amla* he at last succeeded in forcing Smith to complete his investigation against only one obscure man, Radakanta. In July 1804, Smith reported that Radakanta, a clerk, fraudulently purchased two lots of the raja's lands, namely Hejelgarry and Chinchra, at a nominal price of only 250 Rupees.¹²¹ After their forfeiture to government according to the Regulation 7 of 1799, these were resold for 12335 Rupees.¹²² The Collector then remarked that the raja and Babu Ram were right in their complaints that the zamindari was collusively sold at a nominal price. It was "completely corroborated by this recent sale which has yielded a sum of 12335 Rupees whilst the same property at the illicit purchase only brought the small sum of 250 Rupees—an amount but little exceeding one fiftieth part of the present sale, and a circumstance which incontrovertibly proves the loss sustained by the defaulter from the undue influence of the purchaser in breach of the Regulations."¹²³ On the same subject the Board wrote to the Council that the result of the latest investigation "fully confirms the justness of the Collector's observations regarding the injury the late raja of Dinagapore sustained from the combination among the former *amlah* of the Collector's office."¹²⁴ To do some justice to the late raja, the Council ordered the Board to hand over the surplus proceeds of the sale to the family of the late raja.¹²⁵ Babu Ram, as a reward, received 10 p. c. of the sale proceeds.¹²⁶

121. Collector to B. O. R., 30 July 1804, *B. O. R. P.*, 7 Aug. 1804, No. 16, P75/29.

122. *Ibid.*

123. *Ibid.*

124. B. O. R. to G. G. in C., 7 Aug. 1804, *B. O. R. P.*, 7 Aug. 1804, No. 17, P75/29.

125. *Ibid.*

126. G. G. in C. to B. O. R., 15 Nov. 1804, *B. R. C.*, 15 Nov. 1804, No. 27, P54/40.

It is not known whether or not the investigation was further carried on. After 1804, no more information about it is found on records. It is possible that Babu Ram, who was the only moving force behind this issue was either dead or made neutral by sufficient bribes or pressure from those against whom he was moving. The authorities were already less enthusiastic about this investigation. It is thus very possible that with the absence of constant reminders from Babu Ram the Government had shelved the investigation for good. But the limited evidence that we get from the preliminary investigation by Edward Webb, and the result of Smith's proceedings against Radakanta, cannot but lead us to believe that the Collector's *amla* joined hands with those of the raja with a view to dismembering his estate and dividing it among themselves through staged auction sales. In consequence, the great zamindari bearing a *jama* of about fifteen lakhs of rupees was sold for only a little over nine lakhs of rupees. The bulk of the zamindari was purchased by the three *diwans*, viz., Manik Chand, Phool Chand and Ramkanta Roy. Obviously, their wealth and connections prevented them from being tried for their breach of Regulations and trust. Manik Chand and his grandson Phool Chand purchased the best parts of the zamindari in the names of their dependents. Manik Chand also bought some lots in his own name. The total *jama* of his purchases so far as could be ascertained amounted to Rs. 136634.¹²⁷ Ramakanta Roy, the ruler of the zamindari from 1786 to 1795, bought 23 lots in all.¹²⁸ It is not known how much their total public *jama* was. But it was reported by the Judge of Dinajpur in 1802 that Ramkanta Roy was the richest landholder in the district.¹²⁹ Referring to the fabulous riches of Ramkanta and Manik, the Collector wrote

127. See, Appendix 7.

128. Dinajpur Collector to B. O. R., 11 Oct. 1802, B. R. C. 28 Oct, 1802, No. 10, P54/28.

129. *Ibid.*

in 1801 that it was tragic that while the raja was starving, his two *diwans* were rich and fat and flourishing, and are proprietors of some of the finest parts of what was their poor lord's very fine estate."¹³⁰

In reporting the ruin of the Dinajpur family to the Court of Directors, the Governor General in Council, however, gave quite a different picture. The Council wrote that the Dinajpur zamindari, which was so productive under the official management, had been "dissipated in a very few years by the idle and profligate extravagance of the zamindar."¹³¹ There is no mention anywhere in the Board's proceedings about the Dinajpur raj that raja Radhanath was ever extravagant and lazy. Collector Eliot once reported against him in December 1793 that he was stupid, incapable of reading and writing and was never unwilling to sign blank papers.¹³² However, in view of Eliot's part in the whole affair it may properly be suspected that this was a biased and misleading report. Only eight months earlier, when he first arrived in the district, he had given a very different picture of Radhanath. He had been so pleased with the raja, and so confident of his ability that he recommended the raja for favouring him "with a *khelut* as an encouragement to his exerting himself in the management of his zemindary."¹³³ He added, "Indeed to me late transactions lead me to expect he will do well, and is inclined to his own interest, and the welfare of his country."¹³⁴ Still earlier in October 1790 Collector George Hatch

130. Collector to B. O. R., 26 January 1801, *B. O. R. P.*, 3 Feb, 1801, No. 7, P74/25.

131. G. G. in C. to C. D., 7 October 1802, *P. P., S. C., H. C.*, 1831-2, vol. XI, P. 132,

132. Collector to B. O. R., 10 December 1793, *B. O. R. P.*, 11 April 1794, No. 9, P53/15.

133. Collector to B. O. R. 30 April 1793, *B. R. C.*; 11 April 1794, No. 7, P53/15,

134. *Ibid.*

reported that four well-qualified teachers were employed to teach him Persian and Bengali. "In both languages", he wrote to the Court of Wards, "he has made suitable progress for the time he has been under their tuition."¹³⁵ During his tutelage under the Court of Wards for the second time in 1794, the Board reported to the Council about his character and ability: "In justice to the young rajah, we feel it incumbent upon us to declare, 1st, that during his minority, and since his coming of age, no serious charges against his moral character have ever come to our knowledge. 2ndly, that with respect to his capacity, if we were to judge from the Persian representations transmitted to us, we should pronounce it above the common standard."¹³⁶ In the face of all these reports to the credit of the raja, the Council's charge of extravagance, incapacity and laziness against him was entirely unfounded and uncharitable. In fact, his struggle for power against the Ramkanta clique first, and his struggle for survival next left him little room for being lazy and extravagant.

As revealed from the sales table the Dinajpur raj was reduced from the third largest zamindari in Bengal at the time of the permanent settlement to a minor estate, assessed at only Rs. 1340 as *sadar jama*. But the last remains of the estate after sale were in fact much bigger than that tiny figure would suggest. Raja Radhanath's wife, rani Tripura Sunduri, sold all her jewellery and other personal properties and purchased some lots in her own name.¹³⁷ Rani Tripura Sunduri appointed his uncle Sadananda Singh to manage the estate on her behalf. Sadananda also became the legal guardian of her three-year-old adopted son raja Gobindanath. Through private negotiations Sadananda succeeded in recovering pargana Akbarabad

135. Collector to Court of Wards, 20 October 1790, *C. O. W. P.*, January 1791, P89/56.

136. B. O. R., to G. G. in C., 3 January 1794, *B. R. C.*, 11 April 1794, No. 8, P53/15.

137. Collector to B. O. R., 11 January 1800, *B. O. R. P.*, 14, February 1800, No. P74/7.

from its auction purchasers. The total *jama* of all these *mahals* amounted to Rs. 1,60,590 in 1808.¹³⁸

The Nadia Raj

The rajas of Nadia stood fourth in territorial possessions at the time of the decennial settlement. The decennial assessment upon the zamindari was based on the net collections of 1195 B. S./1788-9 A. D., the *sadar jama* of the zamindari being fixed at S.Rs. 8,54,000. This was after full allowance had been made for the loss of separated taluqas and the abolition of zamindari collections under the headings of *Pulbandi* or embankments and bridges, and *sayer*. Ever since his engagement, raja Iswar Chandra, who was only eighteen years old at the time of his accession in 1789 A.D., was struggling hard to pay his revenue punctually. He however, succeeded in preserving the zamindar intact up to 1796. In early 1797, he at last submitted to various circumstances that had been operating against him. Huge arrears were accumulating every year in discharge of which different parganas were successively put up for sale both publicly and privately. The greater portion of the zamindari had been sold before he died in 1803. At the time of his death the *sadar jama* of the zamindari had been reduced by the loss of lands to S.Rs. 2,35,600 inclusive of the lands privately sold but not separated officially.¹³⁹ In spite of the unlimited power vested in landholders by Regulation 7 of 1799 and of the general recovery of the zamindar class from 1800, his son and successor, raja Girish Chandra, could not preserve the rest of the zamindari from ruin. The transfer of the zamindari mostly by private sale, continued until 1813 when the last portion of the estate was sold. The following table gives a picture of the process of transfer :

138. Francis Buchanan (Hamilton), *A Geographical, Statistical and Historical Description of Dinajpur*, pp 247-49.

139. Collector to B. O. R., 28 February 1803, B. O. R. P., 4 March 1803, No. 15, P75/12.

TABLE 7
The Sales of the Nadia Raj

Amount of sadar jama of lands sold	Amount raised by land sales	Dates of sales	Sources
Rounded to nearest 100 S. Rs.	Rounded to nearest 100 S. Rs.		
69	152	2 Nov. 1796	B. O. R. P., 11 Nov. 1796,
411	151	2 Nov. 1796	No. 21, p73/10
544	693	24 July 1797	B. O. R. P., 1 Aug. 1797, No. 40, p73/22.
1262	672	29 July „	B. O. R. P., 11 Aug. 1797, No. 1, p73/22.
322	801	10 Aug. „	B. O. R. P., 18 Aug. 1797, No. 41, p73/22.
478	509	12 Aug. „	B. O. R. P., 22 Aug. 1797, No. 36, p73/22.
632	459	19 Aug. „	B. O. R. P., 29 Aug. 1797, No. 58, p73/22.
220	294	5 May. 1798	B. O. R. P., 29 May. 1798, No. 27, p73/32.
97	172	31 May. „	B. O. R. P., 29 May 1798, No. 1, p73/32.
359	192	6 April 1798	B. O. R. P., 19 April 1799, No. 7, P73/45.
146	292	17 April „	B. O. R. P., 3 May 1799, No. 19, P73/46.
235	67	1 July „	B. O. R. P. 16 July 1799, No. 62, P73/50.
271	19	7 Sept. 1799	B. O. R. P., 20 Sept. 1799, No. 14 P73/52.

TABLE 7 (Cont.)

Amount of <i>sadar jama</i> of lands sold	Amount raised by land sales	Dates of sales	Sources
Rounded to nearest 100 S. Rs.	Rounded to nearest 100 S. Rs.		
523	943	18 July 1801	<i>B. O. R. P.</i> 31 July 1801, No. 48, P74/33.
578	6200	29 Dec. 1813	<i>B. O. R. P.</i> 1 Feb. 1814 No. 28, P77/31.
6,14,700	11,31,800		

The decennial *jama* of the zamindari = Rs. 8,54,000

Deduct *jama* of lands publicly sold

Rs. 6,14,700

Deduct *jama* of lands privately sold

Rs. 2,00,000¹⁴⁰

Remains to the zamindary bearing
an annual *jama*

= Rs. 39,300

How is the gradual destruction of the Nadia zamindari to be explained? The decennial assessment of the zamindari cannot be said to have been particularly disadvantageous for the raja, though he strongly represented that the resources of the estate were unequal to the burden imposed.¹⁴¹ The net collections, not the total demand, of 1195 B.S./1788 A.D. were made the basis of the decennial settlement. Since these collections were definitely not made by the use of force, they must be assumed to have reflected the true capability of the estate. Moreover, to make the assessment

140. Acting Secretary's Report, 25 January 1820 *B.O.R.P.*, 28 January 1828 No. 90, P 80/52.

141. Raja's petition to B. O. R., B. R. C., 28 Oct, 1791, No. 4, P52/36.

more moderate, a deduction of Rs. 14,000 from the collections of 1195 was allowed to the raja.¹⁴² What is more important, after the dissolution of the zamindari, the raja himself confessed in 1817, possibly on religious consideration, that raja Iswar Chandra had concealed 2,66,493 *bighas* of lands capable of yielding about one lakh of rupees annually, from the decennial assessment.¹⁴³ The benefits derived from public concession and fraudulent concealment, must have made the *jama* very moderate. This was also testified to by the very high rate of sales of his lands which were sold on an average at eighteen years of purchase at the usual rate of 10 p. c. profit on the *sadar jama*.¹⁴⁴

But though the zamindari was justly assessed, raja Iswar Chandra was never free from the evils of frequent natural calamities. Immediately after the decennial settlement in 1791, the standing winter crops were scorched by long drought. The drought also vitiated the prospects of the next *rabi* or post winter crops.¹⁴⁵ In recognition of the heavy losses of the raja, the government gave him some relief by allowing him a revenue suspension for 50,000 rupees making the sum payable by small instalments spreading over a number of years.¹⁴⁶ Hardly had he recovered from the losses of the drought of 1791 when another drought visited his district in 1793. In consequence of these successive droughts many *ryots* particularly the *paikasht* or non-resident *ryots* ran away.¹⁴⁷ The government again granted a suspension for Rs. 67,954 rupees.¹⁴⁸

142. Collector's Settlement Report, 20 October 1791, *B. R. C.*, 29 October 1791, No. 14, P52/36.

143. B. O. R. to G. G. in C., 23 May 1817, *B. R. C.*, 27 June 1817, No. 2, P. 57/11, para 1.

144. See, Table 7.

145. Collector to B. O. R., 20 October 1791, *B. R. C.*, 28 October 1791, No. 4, P52/36.

146. G. G. in C.'s Resolution, *B. R. C.*, 5 April 1793, No. 44, P53/1.

147. Collector to B. O. R., 2 February 1793, *B. R. C.*, 22 February 1793, No. 5, P52/55.

148. *Ibid.*

In spite of these suspensions, the raja's outstanding arrears to government were increasing every year. In May 1794, his accumulated arrears amounted to Rs. 1,90,092 for which he had been paying interest at the rate of 12 p. c. on the arrears.¹⁴⁹ Two years later, the unlucky raja experienced another calamity. Great masses of *ryots* fled from the district. But this time the raja was deprived of the liberality of the government. In spite of the petitions from the raja, and the *ryots* and the favourable recommendation from the Collector, no suspension was granted to him for the reasons that the raja was already in huge arrears to government and further suspension was liable to endanger the security of the public revenue. After one year's respite, the district was again devastated by successive inundations for three years from the monsoon of 1797. Raja Iswar Chandra pitifully expressed his helplessness and inability to pay the public revenue. On his petition for help the Collector recommended: "The raja's representation that his country has suffered from inundation three years successively is perfectly correct, but as the one which happened last season was the severest ever remembered by the most aged people in the district..."¹⁵⁰ The Board suspended only Rs. 3,500 on account of his losses from inundation for the last three years.¹⁵¹

It is thus evident that since his decennial engagement raja Iswar Chandra Roy of Nadia had rarely been free from the destructions of natural calamities. Within ten years of the decennial settlement, his district was visited by either drought or inundation or both at least six times. The inevitable result was the evergrowing indebtedness of the raja. The government's

149. Collector to B. O. R., 30 September 1796, *B. O. R. P.*, 7 October 1796, Nos. 28-29, P73/9.

150. Nadia Collector to B. O. R., 21 July 1800, *B. O. R. P.*, 25 July 1800, No. 43, P74/14.

151. B. O. R. to Collector, 25 July 1800, *B. O. R. P.*, 25 July 1800, No. 46, P74/14.

partial suspension of revenue demand at times of calamities never approached the real deficiencies caused by those disasters. The balances of the deficiencies were made up by borrowing money at high rates of interest. Thus consequent upon the drought of 1791, raja Iswar Chandra borrowed Rs. 80,000 from Messrs. Joseph and Lewis Baretto, Rs. 25,000 from Durga Chandra Mukherji, Rs. 20,000 from Durpnarayan Babu, Rs. 10,000 from Jagadish Chowdhuri and Rs. 10,000 from Ramlochon Babu.¹⁵² All these men were bankers and money lenders of Calcutta. In addition to all these debts, the raja inherited a huge debt of about two and half lakhs of rupees from his father, raja Krishna Chandra.¹⁵³ He was also to pay Rs. 64,000 to his servants, who were retrenched due to his reduced circumstances.¹⁵⁴

It is therefore certain that the outstanding debt of the raja when he engaged himself for the permanent settlement amounted to Rs. 4,54,000 precisely, exclusive of their cumulative interests. In other words, more than half of his estate was mortgaged to his creditors. The subsequent repeated calamities must have increased his burden of debt so much so that he, at last succumbed to his circumstances in 1797. In his desperate efforts to save the family, he visited Calcutta and tried to influence all the possible purchasers of his zamindari not to come and bid for his lands at auctions.¹⁵⁵ But such efforts was nothing but a drowning

152. See, raja Iswar Chandra to B. O. R., 1 December 1792, *B. O. R. P.*, 21 December 1792 (no number), P72/10; same to B. O. R., 2 March 1792, *B. O. R. P.*, 5 March 1792 (no number), P71/50; same to B. O. R., 5 February 1792, *B. O. R. P.*, 14 August 1792 (no number,) P72/6.

153. See, raja Iswar Chandra to B. O. R., 20 October 1791, *B. R. C.*, 28 October 1791, No. 4, P52/36; Ramratan Tagore to B. O. R., 30 June 1790, *B. R. C.*, 9 July 1790, No. 11, P52/14.

154. Raja Iswar Chandra to B. O. R., 20 October 1791, *B. R. C.*, 28 October 1791, No. 4, P 52/36.

155. Collector to B. O. R., 24 June 1797, *B. O. R. P.*, 4 July 1797, No. 21, P73/21.

man's hope to survive by catching at a straw. From 1797 parganas after parganas were put up for sale to recover the arrears of public revenue. Many *mahals* were also sold privately by the raja by way of paying off his private debts.¹⁵⁶ The sale was temporarily stopped by his death in 1803. At the time of his death, his son and successor, raja Girish Chandra Roy was only sixteen years old. Hence the zamindari was placed under the Court of Wards, till he attained his nineteenth year, during which time the estate, according to the Regulations, was not liable to be sold for arrears.¹⁵⁷

At the time of the death of raja Iswar Chandra the government demand on the estate was reduced to S.Rs. 2,35,581 inclusive of the lands privately sold by the raja but not yet separated from the parent estate.¹⁵⁸ Thus, when Girish Chandra took over the management of the zamindari from the Court of Wards in 1805, his zamindari, excluding the private sales, paid a little more than two lakhs of rupees as government revenue. We are, however, in the dark as to the total liabilities that were passed over to him. But it is quite certain that the indebted condition of the zamindari further increased during his regime. Every year one or other pargana was sold privately in satisfaction of family debts.¹⁵⁹ At last it dwindled to a vanishing point in 1813 when Pargana Okra was sold to pay his creditors.¹⁶⁰

156. Collector to B. O. R., 22 December 1802, *B. O. R. P.*, 28 December 1802, No 41, P75/7, also see, Acting Secretary's Report, 25 January 1828, No 90, P80/52.

157. Collector to B. O. R., 29 June 1803, *B. O. R. P.*, 5 July 1803, No. 72, P75/16,

158. Collector to B. O. R., 28 Feb. 1803, *B.O.R.P.*, 4 March 1802, No. 15, P75/12.

159. B. O. R., to G. G. in C. 21 Jan. 1814, *B. R. C.*, 12 Feb. 1814, No. 2, P56/13.

160. B. O. R., to G. G. in C. 21 Jan. 1814, *B. R. C.*, 12 Feb. 1814, No. 2, P56/13.

After the total ruin of the zamindari, the mother and the wife of raja Girish Chandra appealed to Lord Moira to return Pargana Okra to their family on the grounds that raja Girish Chandra was misled by his chief officers. They complained that raja Girish Chandra was imbecile.¹⁶¹ His evil advisors, such as, Ramlochon Banerji and Tarini Banerji, according to them, encouraged him to maintain the life style of his great ancestors by borrowed money.¹⁶² The two *ranis* submitted that they collusively caused the zamindari to be sold and bought it in themselves in the names of their relations at a low rate.¹⁶³

Though fraud on the part of the zamindari *amla* was a common feature in our period, there is a good deal of doubt as to the validity of the main contention of the *ranis* that the zamindari was sold due to the treachery of the Banerjis. No such allegation came from either the raja or Collector or from any independent man like Babu Ram of Dinajpur. Besides, some contents of their petition suggest that the two *ranis* were blissfully ignorant of the state of affairs of the zamindari. They wrote in the petition that, when raja Girish Chandra came of age, the zamindari paid ten lakhs of rupees as revenue and that the pargana Okra, the last vestige of the estate, was sold at a low rate.¹⁶⁴ In fact, the pargana Okra that bore a *jama* of Rs. 57,800 was sold for Rs. 6,20,000.¹⁶⁵ Such a high rate of sale was indeed unexampled in Bengal at that time. Their utter ignorance of the actual size of the zamindari in their own time and of the current

161. Raja's mother Bishawmoi and his wife Pitambari's petition to Lord Moira, B. R. C., 15 January 1814, No. 25, P56/12.

162. The two rani's petition to Lord Moira, B. R. C., 15 Jan. 1814, No. 25, P56/12.

163. *Ibid.*

164. The two rani's petition to Lord Moira, B. R. C. 15 January 1814, No. 25, P56/12.

165. B. O. R. P., 1 February 1814, No. 28, P77/31.

market value of land suggest that the *harem* or female apartments of the family had been kept secluded from the affairs of the zamindari, and that they got information about the zamindari in the form of gossip. The two *ranis*, themselves disclosed that they were always assured by the raja that the zamindari was increasing fast under his management. But they came to learn in one morning to their dismay that the whole zamindari was sold. They thus wrote to Lord Moira : "Your excellency may form a faint idea of our consternation and dismay on being informed this day that from the highest pinnacle of happiness, affluence and prosperity we were in a moment reduced to misery and the extremity of actual indigence that the raj had become extinct, that instead of it having increased that it had from neglect and attending evil minded and interested advisors been allowed not only to accumulate debt but incur balance of revenue, from the liquidation of which it had been actually disposed of at public sale on the 16 poose last."¹⁶⁶

The two *ranis* were probably right in their allegation that raja Girish Chandra attempted to uphold the glorious but expensive family tradition of the patronage of arts and literature. It is clear that his father Iswar Chandra was forced to sell lands because of his inherited debts and of new debts that were accumulated in consequence of repeated natural calamities. But no natural calamity visited Nadia during the regime of Girish Chandra. Given minimum attention to the zamindari management, the estate was very likely to bring him considerable surplus profits. But nothing happened. Every year he sold lands to pay off his private debts. It is strange that though immersed in debt, he built a new capital at a distance of two miles from the *Rajbari*, and made it "the seat of

166. The two *ranis'* petition to Lord Moira, B. R. C., 15 January 1814, No. 25, P56/12.

luxury resonant with music.”¹⁶⁷ In imitation of his illustrious great grandfather raja Krishnachandra Roy, he invited poets, singers, dancers and eulogists from all over Bengal and Hindustan to his new palace, called Sriban. The famous early nineteenth century Bengali poet Krishnakanta Badhuri was his court poet.¹⁶⁸ Kartic Chandra Roy who was a diwan of the Nadia family in mid nineteenth century wrote that raja Girish Chandra was so luxurious and pompous in his living that he never abandoned his royal life style even after he lost the whole of his zamindari. Once he visited Calcutta in 1817 to express some of his grievances to the Board. He took with him a great number of followers consisting of armed guards, teachers, pundits, family members, etc. To raise the cost, pargana Modarsa near Calcutta had to be sold.¹⁶⁹

The two *ranis* petition to Lord Moira for the restoration of pargana Okra on the ground of collusive sale was sent to the Board of Revenue for their review. The Board, reviewing the whole affair of the zamindari, wrote to the Council that pargana Okra was not sold in liquidation of the arrears of public demand as observed by the *ranis*. The pargana was sold in satisfaction of court decrees against the raja's creditors.¹⁷⁰ The Board observed that “the dissolution of the zemindarri was unavoidable, as it is notorious that it is so involved in debt that nothing short of sale could answer the demands against it.”¹⁷¹

167. Kissory Chand Mitra: “The Territorial Aristocracy of Bengal, The Nadia Raj”, *Calcutta Review*, vol. 55, 1872, p.114.

168. Life of Krishna Kanta Badhuri, pp.1-2, Vern. Tract. 1461.

169 Kartic Chandra Roy, *Khittish Bansabali Charita* (Bengali text) Vern. Tract 1885, p. 175.

170 B. O. R. to G. G. in C., 21 January 1814, para 2, B. R. C., 12 February 1814, No. 2, P56/13.

171 *Ibid.*, para. 4.

The Birbhum Raj

Among the great zamindaris of Bengal only one, the Birbhum raj, was held by a Muslim family, and unlike all others excepting the Bishnapur raj, it was practically an independent principality up to 1760. In 1770, raja Asad-uz-Zaman Khan of Birbhum was defeated and subdued by the combined troops of the Nawab and of the Company Bahadur.¹⁷² Since then the Birbhum Raj was treated on the footing of all other zamindars of Bengal. Raja Asad-uz-Zaman Khan died in September 1788 after a long rule of forty-five years. He was succeeded by his minor son, raja Muhammad Zaman Khan. During his minority the zamindari was managed by diwan Lal Ramnath. In January 1790 raja Zaman Khan attained his sixteenth year and was invested with the management of the zamindari.¹⁷³ In may 1791, the decennial settlement was concluded with him. The *jama* of the zamindari after all deductions on account of *sayer* resumed and *talugas* separated, was fixed at S. Rs. 6,30,628.¹⁷⁴

From the very beginning of the decennial settlment raja Muhammad Zaman Khan found difficulty in paying the revenues punctually. In anticipation of future solvency, he at first tried to pay his outstanding balances of public revenue by mortgaged loans. But that solvency never came. Hence, sales of his historic estate began where the possibility of making further loans ended. In December 1795, he had the first experience of transfer. Since then the process of disintegration continued till the last pargana was sold in liquidation of the arrears of public revenue in December 1800. The following table would illustrate the rapid dismemberment of his zamindari.

172. A Broome, *History of the rise and progress of the Bengal Army*, Vol. 1, pp. 319—20.

173. G. G. in C's Resolution, 13 January 1790, B. R. C., 13 January 1790, No. 4. P51/55.

174. Collector's Settlement Report to B. O. R., 29 May 1791, B. R. C., 17 June 1791, No. 16, P52/26.

TABLE 8
The Sales of the Birbhum Raj

Amount of sadar jama of lands sold	Amount raised by land sales	Dates of sales	Sources of information
Rounded to nearest 100 S. Rs.	Rounded to nearest 100 S. Rs.		
8	17	16 Dec. 1795	<i>B. O. R. P.</i> , 29 Dec. 1795, No. 41, P72/50.
291	851	1 Jan. 1796	<i>B. O. R. P.</i> , 12 Feb. 1796, No. 33, P73/1.
1349	1253	3 Apr. 1797	<i>B. O. R. P.</i> , 14 April 1797, No. 13, P73/18.
342	292	13 Apr. „	<i>B. O. R. P.</i> , 21 April 1797, No. 13 P73/18
166	92	17 June „	<i>B. O. R. P.</i> , 27 June 1797, No. 37, P73/20.
718	1138	27 Apr. 1798	<i>B. O. R. P.</i> , 27 April. 1798, App. C, P73/31.
411	281	1 May „	<i>B. O. R. P.</i> , 18 May 1798, App. C, P73/32.
113	103	1 May „	<i>B. O. R. P.</i> , 18 May 1798, App. B., P73/32,
132	42	2 June „	<i>B. O. R. P.</i> , 19 June 1798, App. B. P73/33.
211	132	7 June „	<i>B. O. R. P.</i> , 31 July 1798, App. D., P73/34.
66	52	3 Sept „	<i>B. O. R. P.</i> , 21 Sept. 1798, App. D., P73/34.
17	19	1 July „	<i>B. O. R. P.</i> , 30 July. 1799, App. A., P73/50.
4	3	19 Oct. „	<i>B. O. R. P.</i> , 1 Nov. 1799, No. 60, P74/2.
3	2	7 Dec. „	<i>B. O. R. P.</i> , 15 Aug. 1800, App. B, P74/23.
298	151	20 & 30 Dec. 1800	<i>B. O. R. P.</i> , 31 March 1801, App. A, P74/41.
4,14,900	4,42,800		

The decennial *jama* of the zamindari was S.Rs.6,30,638. The amount of *jama* of lands publicly sold as illustrated above amounted to S.Rs. 4,14,900. The remaining portion of the property of Zaman Khan, must have been sold privately by him, since we know from the Collector's report that by November 1801, raja Muhammad Zaman Khan was entirely divested of his estate.¹⁷⁵ The Collector noted that the raja possessed only one pargana, namely Deogarh, the government *jama* of which was only S. Rs. 15,172.¹⁷⁶

Several factors were responsible for the ruin of the Birbhum Raj. The most important factor was the treachery of the zamindari *amla*. Before we speak of the treachery of the *amla* it is imperative to say something about the raja's own ability to control them. Firstly, the raja took over the management of the zamindari in 1790, when he was still a minor. As his date of birth was never recorded, the collector accepted the statement submitted by his legal guardian, diwan Ramnath.¹⁷⁷ But the raja himself disclosed later in 1795 that the diwan made a false statement about his age just in order to to get rid of the authority of the Court of Wards.¹⁷⁸ As a teenager he had not only the disadvantage of the lack of administrative experience but also had the problem of lack of education. He did not even know how to read and write.¹⁷⁹ His handicap accrued from his youth and illiteracy was further augmented by his inclination for women rather than for zamindari management. Besides nine wives, he had numerous concubines and slave girls in his harem. Once Commissioner

175. Collector to B. O. R., 24 Nov. 1801, B. O. R. P., 15 Dec. 1801, No. 25, P74/39,

176. *Ibid.*

177. Collector to G. G. in C., 9 Oct, 1795, B. R. C., 9 Oct, 1795, No. 21, P53/36.

178. *Ibid.*

179. Collector to G. G. in C., 9 Oct. 1795, B. R. C., 9 October 1795, No. 21, P53/36,

Ernst advised him to improve his character for the sake of his own family interests. The raja felt so disgraced at this suggestion that he complained to the Council: "Mr. Ernst unjustly accuses me of living in a dissolute manner, and thus asperses my character to the people, by making enquiries respecting my women, which is in every country deplorable."¹⁸⁰ He added, "if my zamindari is sold agreeably to the Regulations to liquidate the balance due to government it is of no consequence, but I cannot bear that I and my family should be involved in disgrace which has never happened to us from the time of the Kings of Hindustan to that of the Company."¹⁸¹

The cumulative effect of all this made the raja utterly ignorant and incapable of handling the intricate zamindari accounts and of administration. In consequence, the greedy zamindari officers got the upper hand. They abused their power by alienating the best lands in their own names or in the name of their dependents and at lower rates of rent.¹⁸² Ernst, the commissioner of Birbhum, informed the Board in August 1795 that the *amla* of the raja made him their virtual prisoner in their hands and the raja was sadly unaware of the treacherous activities of his *amla*.¹⁸³ Two months later in October the collector wrote on the same subject. He explained that the ignorance and incapacity of the raja "prepared the road and inlets for greater and more seriously destructive misfortunes; needy rapacious domesticks, nowhere scarce and never remote on such occasions, of course, found a ready mart for their intrigues in his courts and supported by his ignorance, together with a boyish reluctance to business or to any enquiry into his own affairs public or private.

180. Raja Zaman Khan to G. G. in C., 11 December 1795, *B. R. C.*, 11 December 1795, No. 13 P53/37.

181. *Ibid.*

182. T. H. Ernst's Report to B. O. R., 23 Aug. 1795, *B. O. R. P.*, 9 October, 1795, No. 34, P72/48.

183. *Ibid.*

They found no impediment in involving him and his estate in an almost irretrievable ruin."¹⁸⁴ The collector maintained that according to the *hast-o-bud* or accounts of total income of the zamindari, the raja was supposed to yield upwards of a lakh and twenty thousand rupees above government demands on him.¹⁸⁵ But, according to the collector, the raja never received more than sixty thousand rupees a year, the rest of the surplus revenue being embezzled by Lala Ramnath and other managers.¹⁸⁶ The collector also believed that the daily slaughtering of cows in raja's palace was hated by his officers, who were mostly Hindus. He argued that to bring such a blasphemous activity to an end, they worked to destroy the very existence of the zamindari.¹⁸⁷ The collector was probably ignorant of the fact that the Hindu *amla* were equally ready to ruin even the greatest patrons of Hindu religion, such as the rajas of Rajshahi and Dinajpur. Fitzroy's view as to the participation of the raja's *amla* in the dismemberment of the zamindari was however confirmed by his successor, Cowell. Cowell reported in 1802 that the people who purchased the zamindari of Birbhum were mostly the raja's own officers.¹⁸⁸

It is intriguing that whereas, in Dinajpur, the raja always complained against the corrupt practices of his overmighty officers, here in Birbhum, the collector, not the raja, was complaining and exposing the treacherous activities of the raja's officers. Only once it is found that the raja dismissed one

184. Collector's Report on the zamindari of Birbhum, 9 Oct. 1795, B. R. C., 9 October, 1795, No. 21, P53/36.

185. Collector to B. O. R., 9 October, 1795, B. R. C., 9 Oct. 1795, No. 21, P53/36.

186. *Ibid.*

187. Collector to B. O. R., 9 October 1795, B. R. C., 9 October 1795, No. 21, P53/36

188. Collector to the Secretary, Revenue Department, 10 April 1802, C. J. P. 8 July 1802, No. 79, para. 26, P147/57.

Shamcharan Chatterji, one of his diwans, for misconduct. One strong reason for such silence on the part of the raja might be that unlike raja Radhanath of Dinajpur, he was absolutely free to manage his own affairs. He had thus no grievance to raise against his officers to the government, since all of his officers were appointed by himself and no court faction was backed by the collector as it happened in Dinajpur. The collector, on the other hand, had to explain every month the reasons for extensive balances in his district. Hence it is not unusual that he would have reported as to the internal troubles of the raja.

It leaves little doubt that the unscrupulous *amla* of the raja took advantage of his ignorance and embezzled funds to his ruin. But it should also be noted that the Birbhum family was already on the brink of financial ruin at the time of the decennial settlement. When collector Keating supervised the zamindari during the minority of the raja from 1788 to 1793 he perceived that the total income from the estate "was by no means adequate to the support of his family, more especially when compared to the state in which they had been used to live....."¹⁸⁹ Three months after his accession, raja Zaman Khan made it known to the government that he had to support about four hundred of his family members from the income of his estate and that his income was too insufficient for him to live according to his rank and status.¹⁹¹

The poverty of the raja was further increased by the effects of natural calamities subsequent to the decennial settlement. The drought of 1791 that visited throughout Bengal was particularly devastating in Birbhum. The drought

189. Raja to G. G. in C. 11 December 1795, B. R. C., 11 December 1795, No. 13, P53/37.

190. Collector to B. O. R., 1 January 1792, B. R. C., 25 January 1792, No. 18, P52/40.

191. Raja Zaman Khan to G. G. in C., 28 April 1790, B. O. R. P., 3 May 1790, P71/24.

entirely destroyed the major autumn and winter crops.¹⁹² The collector reported that the raja was too poor to make up the deficits of revenue caused by the late drought.¹⁹³ The government granted him a suspension of S. Rs. 40,000 though his total balance due to government amounted to about one lakh rupees.¹⁹⁴ To avoid starvation and oppression of rent collectors, tens of thousands of cultivators fled from the district and on that account the raja lost an income of some thirty thousand rupees annually.¹⁹⁵ In the wake of the drought two of his parganas, namely Mahmudabad and Bulputta, were heavily damaged by a visit of wild elephants from the highlands. In consequence, the raja incurred a further loss of about twelve thousand rupees annually.¹⁹⁶ Thus an account of these two calamities alone he was deprived of revenues to the amount of forty four thousand rupees annually. He did not get any remission of revenue demand on account of these permanent losses. He tried to make up the deficits by borrowing money from the moneylenders.¹⁹⁷ But the preservation of the zamindari by borrowing money from the moneylenders could not last long. In January 1795, his accumulated balances to government amounted to two lakhs of rupees in liquidation of which the Council ordered for the attachment of the whole of his zamindari for sale.¹⁹⁸ Once the sale

192. Raja's petition to B. O. R., 17 Dec. 1791, *B. R. C.* 13 January 1792, No. 36, P52/40.

193. Collector to B. O. R., 3 Jan. 1792, *B. R. C.*; 13 January 1792, No. 36, P52/40.

194. Collector to B. O. R., 6 April 1792, *B. R. C.*, 20 April 1792, No. 25, P52/43.

195. Raja to B. O. R., 10 July 1791, *B. R. C.*, 25 January 1792, No. 18, P52/40.

196. Raja to B. O. R., 6 August 1791, *B. R. C.*, 17 February 1792, No. 4, P52/41.

197. Raja's petition to B. O. R., 10 July 1791, *B. R. C.*, 25 January 1792, No. 18, P52/40.

198. G. G. in C. to B. O. R., 20 January 1795, *B. R. C.*, 13 February 1795, No. 3, P53/28.

started it did not stop until the whole zamindari was lost to the raja in 1801.

It has already been stated that by 1801 raja Zaman Khan was left with only one pargana, the *sadar jama* of which was only S. Rs. 15,172. Government intelligence revealed that the impoverished condition of the raja forced him to plan a general insurrection to turn out all the auction purchasers by a reign of terror.¹⁹⁹ The magistrate feared that, as the ruling family for centuries, the raja and his large cousinhood might be successful in exciting the people against the British. The magistrate thus recommended the immediate expulsion of the raja and his family from Birbhum as remedy for the problem.²⁰⁰ But the Board thought the exile of the raja was likely to further complicate the situation. The Board ordered the raja to be given a hereditary pension of Rs. 500 per month instead of expelling him from his birthplace.²⁰¹ One month after this order raja Zaman Khan died.²⁰² His son Dilwar Khan succeeded him to hold the empty title of raja.²⁰³

The Bishnapur Raj

Of all the great zamindaris, the Bishnapur Raj was the most ancient, for it had existed as an independent principality even before the Muslim period. At the time of the decennial settlement, however, the Bishnapur family was already entering the last phase of a decay which had started long before the commencement of British rule. In the very first year of his

199. B. O. R. to G. G. in C., 15 December 1801, *B. O. R. P.*, 15 December 1801, No. 24, P74/39.

200. Magistrate to the B. O. R., 24 November 1801, *B. O. R. P.*, 15 December 1801, No. 23 P74/39.

201. B. O. R. to G. G. in C., 15 December 1801, *B. O. R. P.*, 15 December 1801, No. 24, P74/39.

202. *Ibid.*, also see, G. G. in C. to B. O. R., 20 August 1802, *B. R. C.*, 20 August 1802, No. 33, P54/26.

203. *C. O. W. P.*, 29 June 1810, No. 7A, P114/29.

decennial engagement, fixed in 1790 at four lakhs of rupees, raja Choyton Singh's financial position showed itself desperate.²⁰⁴ Within ten months he lost half of his zamindari,²⁰⁵ and though the other half survived artificially that too was lost in 1806 when the government purchased the whole zamindari.²⁰⁶ The family was then pensioned off on a monthly allowance of Rs. 1,160.²⁰⁷

Three main causes were responsible for the ruin of this oldest zamindari. These were family disputes over the succession, overassessment and mismanagement.

Choyton Singh and Damudhar Singh, two brothers, had been engaged in legal battle for the possession of the zamindari since 1773. Choyton Singh, as the elder son of his father, claimed the whole of the zamindari according to the customary law of primogeniture, but his brother, Damudhar Singh, demanded half the estate according to the Hindu law of succession. The marathon legal battle that was fought at different levels from the Revenue Council to the Supreme Court at last ended in 1795 when the *Sadar Diwani Adalat* adjudged Choyton Singh to be the sole proprietor of the zamindari.²⁰⁸ But the irony of the case was that he had meanwhile spent so much in litigation for the full share of the property and had become so impoverished in the process that long before he got the decree for the whole of it, half the zamindari had been sold for revenue arrears.

204. B. O. R. P., to G. G. in C. 7 October 1791, B. R. C. 7 October 1791, No. 25, P52/36.

205. B. O. R. to G. G. in C. I August 1791, B. R. C. 26 August 1791 No. 5, P52/34.

206. B. O. R. to G. G. in C., 12 August 1806, B. R. C., 21 August 1806, No 5, P54/56.

207. Magistrate to B. O. R., 4 February 1807, B. R. C., 12 February 1807 No. 10, P54/61.

208. G. G. in C. to B. O. R., B. R. C., 6 Feb. 1795, No. 33, P53/27.

Moreover, no sooner as the legal battle with his brother was over than a war of succession began among his eleven grown up sons. The Sadar Diwani Adalat decided the case in favour of primogeniture on the ground that customary law of primogeniture was the prevailing law when Choyton Singh succeeded to the zamindari in 1772. But such a decision was considered by his ten younger sons as a direct threat to their inheritance of the zamindari according to Hindu law of succession, in spite of the fact that the Cornwallis Constitution had abolished the customary law of primogeniture. At the age of seventy, Choyton Singh lacked the strength to administer the zamindari himself nor could he nominate any of his sons to act for him, for that might have been interpreted by his other sons as nomination for the *godi* or throne as well. In the midst of chaos and confusion in the zamindari administration, all Choyton Singh's eleven sons claimed different parts of the estate and occupied what they claimed to be their respective shares.²⁰⁹ The result was the prevalence of confusion everywhere. The *ryots* did not know whom to pay their rents and the *amla* did not know whom to render their allegiance. The helpless raja appealed to the Council: "This zemindari has been in my family during a period of no less than eleven hundred and three years...I myself am now an old man seventy years of age and cannot pay that attention to the management of my affairs which is requisite, my children too, are at variance with each other...Under all these circumstances I petition and hope that Government will grant me some fixed allowance, as a support to me and my family—and I shall ever pray for their prosperity and welfare."²¹⁰ On the petition of the raja, collector Ireland remarked that due to the infirmity of the raja and the constant fight among his sons and grand sons, the zamindari affairs were sadly neglected and consequently the deficiency of assets was

209. Collector to B. O. R., 15 May 1797 B. R. C., 2 June 1797, No. 2 P53/51.

210. Raja's petition to G. G. in C., enclosed with the Collectors letter, 15 May 1794, B. R. C., 2 June 1797, No. 2, P53/51.

growing fast. Illustrating this point, the Collector said that recently the raja's lands bearing a *jama* of S. Rs. 40,668 were sold for S. Rs. 17,650 only.²¹¹ He continued that for the sake of the security of the public revenue the zamindari should be managed by the government for some time. Concurring in the Collector's views, the Board also recommended that in view of the raja's old age and infirmity and the bloody disputes among his sons, the government should take over the management of the zamindari for some years, which would save the government from permanent loss of revenue as well as the oldest family from inevitable ruin.²¹² But the Board's suggestion was not accepted by the Governor General in Council on the ground that such benevolence would encourage other landholders whose estates were equally mismanaged to come and seek protection from the authorities.²¹³ The Council rather issued orders to attach the whole of the zamindari preparatory to sale for the balance of 1796-7, which amounted to S.Rs. 25,000.²¹⁴

In November 1798, the Collector reported that the sons of the raja were fighting pitched battles for the possession of the zamindari that still remained in skeleton scale.²¹⁵ He said that the estate had lost all capacity to pay the public revenue and recommended that immediate attachment of the whole estate now bearing *amla* of S. Rs. 58,129 only. Otherwise, he added "the whole property I conceive will be inadequate to liquidate the accumulated arrears already due from him [Choyton Singh]."²¹⁶ The Council thus ordered the immediate attach-

211. Collector to B. O. R. 15 May 1797, B. R. C., 2 June 1797, No. 2, P53/51.

212. *Ibid.*

213. G. G. in C. to B. O. R., 2 June 1797, B. R. C., 2 June 1797, No. 17, P53/53.

214. *Ibid.*

215. Collector to B. O. R. 5 November 1798, B. R. C., 16 November 1798, No. 10, P53/58.

216. Collector to B. O. R., 15 December 1798, B. O. R. P., 28 December 1798, No. 50 P73/40.

ment of the entire estate and that it be sold for the recovery of arrears.²¹⁷

The long-drawn law suits and the violent behaviour of the raja's sons were the most obvious causes of the downfall of the Bishnapur Raj. But besides these dramatic events there were other reasons, scarcely less important, for its ultimate collapse. Bishnapur was involved in the great famine of 1770 and the drought of 1791, and these seriously depleted the assets of the zamindari. Such depreciation of assets was not taken into consideration when the decennial settlement was concluded in 1791. Raja Choyton Singh frequently expressed his grievances that his zamindari was unequal to public assessment. That his claims were not without foundation was proved when, in 1791, his lands, assessed to a *jama* of S. Rs. 2,14,147, were sold for arrears, and fetched only S. Rs. 39,300.²¹⁸ This unbelievably low purchase price persuaded the government to investigate the resources of the estate. It was found that the zamindari had without doubt been seriously overassessed and on this account an abatement of *jama* to the amount of S. Rs. 26,205 was granted to the raja.²¹⁹ But such a small reduction, an adjustment of only six per cent, did not put the assessment right. All the subsequent purchasers of Bishnapur lands claimed further reductions on account of the failure of their lots to yield revenues capable of answering the government revenue demands. Faced with claims for reduction from almost all the purchasers of the raja's lands, the government refunded all the purchase money and took over the entire former zamindari under its

217. G. G. in C. to B. O. R., 25 November 1802, B. R. C., 25 November 1802 No. 36, P54/28.

218. B. O. R. to G. G. in C., 12 August 1791, B. R. C., 12 August 1791, No. 5.

219. B. O. R. to G. G. in C., 18 August 1795, B. R. C. 18 September 1795 No. 11. P53/35.

own management.²²⁰ Under government management it was found that the assets of the zamindari were inadequate to answer the government demands even after the abatement was granted in 1795.²²¹

It has already been said in the beginning that, after the total dissolution of the zamindari in 1806, the government granted the family a monthly subsistence allowance of 1160 rupees in 1807. But the militant members of the family were not satisfied with this meagre grant. They claimed their natural right to rule instead of leading pensioners lives. In 1808, they openly took up arms against the government in order to regain their lost territory. After some regular pitched battles they were subdued and arrested by government forces.²²² They were, at last, all removed from Bishnapur and provided with a residence at Chinsura.²²³

In the above analysis of the causes and circumstances for the fall of the great territorial families of Rajshahi, Dinajpur, Nadia, Birbhum and Bishnapur, we find that natural calamities, intrigues of zamindari *amla*, overassessment, extravagance and incapacity of the proprietors played the most important roles. But the most common and dominant factors were natural calamities and intrigues of zamindrri *amla*.

It is well known that the famine of 1770 and the government's quest for higher and higher revenue through different revenue experiments ruined the zamindar class economically, if not territorially. Under such fallen conditions of the

220. B. O. R. to O. G. in C., 12 August 1806, B. R. C., 21 August 1806, No. 5, P54/56,

221. B. O. R. to G. G. in C., 3 October 1806, B. R. C., 9 October 1806, No. 7, P54/57,

222. G. G. in C. to C. D. 15 September 1808, para 2, *General Judicial Letter*, E/4/73

223. G. G. in C. to C. D. 15 September 1808, *General Judicial Letter*, para. 22.E/4/73,

zamindars, their share of revenue, which was only one-tenth of the *sadar jama*, was indeed, too small to leave them with any surplus above their expenditure to compensate risk.²²⁴ Nor could they depend on the government for help at times of calamity. Government's firm policy was not to "attend to any pleas for remissions excepting in particular cases in which justice and policy may require a departure from the rule."²²⁵ It has already been explained in the beginning of this chapter that it was the policy of the British to destroy the monopoly ownership of land as far as was possible within the bounds of law. Hence it was no wonder that the great territorial families received far less indulgence from the state on account of natural calamities than they deserved. They were thus compelled to borrow money in order to pay the public revenue at high interest. Once in debt, this inevitably threw them into a vicious circle from which they could hardly escape unhurt. Balances forced them to borrow and borrowing, in turn, produced further deficits and balances again, until their whole patrimonies were sold in liquidation of public revenue and debt. As the money lenders always dictated the terms they forced the borrowing zamindaries to make them their farmers and renters on terms highly disadvantageous and ruinous for the borrowers. To quote Collector Maxwell who reported from Jessore in 1823, "...the greedy money lenders who taking advantage of their distressed situation, have in every instance clogged their estates with leases and mortgages until the family had not the means of extricating themselves. Every fresh demand for money, however small the sum, was sure to be followed either with a demand for the decreased rent or a fresh mortgage or lease of

224. T. H. Colebrooke, *Remarks of the Present State of the Husbandry and Commerce of Bengal*, pp. 62 - 3.

225. G. G. in C. to C. D., 8 August 1793, para. 11. *General Revenue Letter*, E/4/54.

certain villages and even estates on most ruinous terms and at inadequate rents."²²⁶

But the people who took the greatest advantage of the indebted condition of the zamindars were their own *amla* who always thrived through the difficulties of their masters. They were not slow to understand that under the operation of the revenue sale laws, they could easily upgrade themselves into zamindars by turning out their old masters, if they could somehow force them to fall into arrears and debts. Such opportunity was provided by natural calamities when they could most successfully embezzle *mufassal* collections on the pretext of the *ryots*' inability to pay their rents. It is interesting to find that similar forces were at work in Guntur district in Madras as well. Robert Eric Frykenberg has found that many great families in Guntur were ruined because of the treacherous conduct of their *diwans* at times of natural calamity.²²⁷

Under the influence of the above common factors other middling zamindari were similarly ruined. Eusufpur raj of Jessore and Idrikpur raj of Rangpur were entirely disposed of for arrears. The Eusufpur raja was granted a monthly government pension of Rs. 100.²²⁸ The Idrikpur family became extinct.²²⁹ Muhammedshahi family was reduced to insignificance by sale of almost the whole of the zamindari.²³⁰

226. Jessore Collector to C. O. W. 10 August 1823, para.3, C. O. W. P., 15 April 1823, No. 23, P79/37. The Collector was narrating how the zamindars in the Jessore district were being exploited by the money lenders.

227. R. E. Frykenberg, *Gunter District 1788-1848, A History of Local Influence and Central Authority in South India*, p. 45.

228. B. R. C, Council's orders, 23 September, 1802 No. 26, P54/27.

229. B. G. Glazier, *Further Notes on Rangpur Records*, vol. 1. p. 30.

230. C. O. W. P. 12 February 1822, No. 4, P74/13.

Three great families survived the landed crisis. They were the rajas of Burdwan, Tipperah and Lashkarpur. By creating *patni* tenures the Burdwan raja shifted his responsibilities on to the *patnidars* with whom he had concluded another permanent settlement. The Lashkarpur family rather thrived through the crisis. Bavindranarayan Chowdhury, the zamindar of Lashkarpur, besides preserving his ancient patrimony intact, had bought, in addition, two extensive *parganas* from the Rajshahi raj. The *sadar jama* of these two *parganas* amounted to S. Rs. 1,16,279.²³¹ But the survival of a few families does not mean the survival of the leadership of the old landed aristocracies. On their ruins emerged new leadership in land control. The following chapter will show the transfer of zamindari lands in general.

231. B. O. R. P., 5 June 1793, number nil/P7/17.

CHAPTER V

THE REVENUE SALE LAWS IN OPERATION

(2) THE TRANSFER OF ZAMINDARI LANDS

The creation of property in land by Cornwallis's constitution, easy transferability of landed rights and above all the statutory order to recover arrears of public revenue by selling the defaulters' lands, obviously tended to increase the mutation of landed property. But what was its velocity? In the preceding chapter, it has been found that almost all the great territorial estates collapsed within the first decade of the operation of the permanent settlement. Their sudden dissolution prompts us to inquire into the fate of the lesser zamindars. Another problem which is germane to the mutation of land and which is material to our clearer understanding of the newly created land market is the value at which land was bought and sold on the market. Hence this chapter will in the main attempt to do two things: firstly, to determine the transfer of landed rights within the period under survey and to ascertain its distribution between different groups of zamindars in order to see whether or not the lesser landed classes had experienced the same vicissitudes of fortune as that of the rajas, secondly, to look at the trends in the value of landed property under the operation of the land market.

Hitherto our knowledge of the changes in the ownership of landed property under the operation of the permanent settlement has been essentially conjectural and speculative. Though there is almost invariably reference to great upheavals in the structure and constitution of the landed society in standard text books of British Indian history and also in the more serious

monograph literature dealing with the social and economic developments of Bengal during the Company's period, no writer has hitherto gone much beyond the information supplied by the Fifth Report of 1812 which, for the first time pointed out to drastic changes in the ownership of Bengal's landed property. After specific mention of the fall of some great families, the Fifth Report gave the figures of the total sales of lands in Bengal, Behar and Orissa for 1796-7 and 1797-8. According to that report, lands that comprehended a *sadar jama* of S. Rs. 14,18,756 were sold in 1796-7 and, in the following year, a still larger area paying S. Rs. 22,74,074.¹ Ever since the publication of this Parliamentary Report, the sales figures for these two years have been universally quoted, as for example by Baden-Powell and Hunter—and writers have been adding their own inference about transfers, formed on the basis of the figures for the above two years.² Thus supposing the sales of 1796-7 and 1797-8 to have indicated the probable trends of transfers in succeeding years, George Campbell concluded that within the half century after 1793 "excepting one or two great rajahs, the proprietary rights in Bengal have been sold over and over again, and are now in no way derived from any old hereditary source."³ Quoting the sales figures of the Fifth Report, McNeille said, "Within the ten years that followed the permanent settlement, a complete revolution took place in the constitution and ownership of estates, which formed the subject of that settlement."⁴ According to J. C. Sinha, within the twenty-five years subsequent to the decennial settlement, "probably one-third or one-half

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1. P. P., *The Fifth Report*, 1812 vol. 7, Report p. 56.
 2. Henry Baden-Powell, *The Land Systems of British India* vol. 1 p. 440.
 3. G. Campbell, *Modern India, A Sketch of the System of Civil Government*, p. 313.
 4. D. J. McNeille *Memorandum on the Revenue Administration of the Lower Provinces of Bengal*, p. 9.

of the landed property in Bengal may have been transferred by public sale on account of the arrears of revenue.”⁵

All such statements, though confidently made, were based essentially on inference. But the doubts inherent in such conjectural statements might obviously be removed if the actual transfer of land under the operation of the new system could be systematically ascertained over a definite length of time. Such an unbroken time series would help us to understand better both the extent and the social significance of such transfers. Such a quantification can, and will be, attempted here.

Before proceeding to an assessment and analysis of land sales, some explanation of the tools used in such quantification is required. To get an intimate knowledge of the operation of the newly created land market, which was supposed to reflect the state of the economy of the country, the Government in Calcutta was required by the Court of Directors to send an annual account of all sales of landed property. The Governor General in Council accordingly promised that the Indian Government would “in future furnish [the Court] with an annual statement of the lands ordered to be put up to sale for the discharge of arrears of revenue, distinguishing the lands that [might] be actually sold from those, the sale of which [might] be countermanded.”⁶ This annual statement of sales, contained six columns. These columns set out the amount of balance due from the defaulters, the *jama* of the lands ordered to be sold, the *jama* of lands actually sold, the *jama* of lands the sale of which was revoked upon payment of arrears or otherwise, the amount realised by sale of lands and lastly the year of purchase. Details of sales for all the districts of Bengal under these headings were inserted

5. J. C. Sinha, *The Economic Annals of Bengal*, p. 272. W. W. Hunter also made the same remark which was borrowed by J.C. Sinha in verbatim though without acknowledgement. See W. W. Hunter, *Bengal M. S. Records*, p. 101.

6. G. G. in C., to C.D., 27 October 1793, P.P., S. C., H.C., 1831-2, vol. XI. App.No. 26, p. 128.

in the annual statements of transfers. It is thus possible to figure out both the total transfers and their district-wise distributions. It is also possible to estimate the sale value at which all those land transfers took place.

But all these seemingly bright prospects of a more accurate understanding are marred by two serious limitations in the records. Firstly, the annual account of sales does not include private transfers. The Collectors reported only those transfers which occurred by way of recovery of revenue arrears from defaulting zamindars. Hence, we are entirely ignorant of the volume of private transfers, which were allowed under the regulations. Secondly, all the transfers that occurred on account of revenue arrears were not genuine sales. For various reasons to be explained subsequently, the zamindars frequently caused their lands to be sold at public auction, but they then bought them back again *benami*, that is, covertly or anonymously, either under false names or in the names of their relations, and servants. The Board of Revenue rightly observed that due to the practice of *benami* purchase on the part of the original proprietors, "it is impossible to form any accurate judgement of the quantity of land which has been actually transferred ..."⁷ Due to these two formidable shortcomings, all our conclusions based on purely quantitative material on transfers are bound to be incomplete and tentative in nature. They can at best indicate the probable trends rather than the complete truth about transfers.

*Gross Transfers**

The total value of advertisements of lands for sales on account of arrears of public revenue and of actual sales from

7. B.O.R. to G. G. in C., 22 October 1799, para 2, B.R.C. 7 November 1799, No. 7, P54/6.

* Unlike in Europe lands in Bengal at that time were bought and sold in terms of public revenue on them. Hence all calculations about transfers have been made on the basis of public revenue on lands rather than on their actual areas.

1794 to 1819 has been set out in Appendix 1. The appendix shows that between 1794 and 1819 lands which bore a *jama* of S. Rs. 10,70,25,500 or 563% of the annual revenue of Bengal were advertised for sales, but that only lands paying S. Rs. 1,30,14,800 or 68% of the total annual revenue were actually sold.⁸ It further shows that 95% of the total sales occurred within the first ten years of the permanent settlement.⁹ Absurdly enough the appendix also shows that though the volume of true sales after 1805 was absolutely nominal compared to the land revenue of the country, the number of advertisements threatening sale did not fall. Rather it further increased. As a result, the disparity between advertisements and actual sales became so bewilderingly wide that between 1805 and 1819 only less than one per cent of all advertised lands was actually sold.¹⁰

We should perhaps begin by examining why this gap between the advertisement and the actual sales existed at all. At first it was believed by the authorities that the zamindars intentionally withheld the public revenue till the last moment possible before auction proceeding and used the unpaid public revenue for their private purpose at least for a minimum of one month between the date of advertisement and the sale. This allegation was probably largely justified. As the advertisement had to be published at least one month before the actual sale and the order for sale could be countermanded at any time upon the payment of arrears, defaulters could withhold their revenues and utilise them for private purposes till the final date of sale. The temptation to do this must have been particularly strong among those who had been forced to borrow from the money lenders at high rates of interest, for the later their revenue payments, the less the interest they had to pay, the minimum saving being one month's interest. In order to discourage such prac-

8. See, Appendix 1.

9. *Ibid.*

10. *Ibid.*

tices, a fine of one per cent per month on outstanding arrears was imposed from August 1794 onwards.¹¹ But this measure did not improve the situation. The rate of advertisement continued to be as high as before. Thinking that the one per cent monthly interest, charged upon private loans, a further one per cent monthly fine was imposed on the arrears.¹² But these regressive fines proved to be of no effect in curbing the rise in the number of advertisements. From the beginning of the nineteenth century, the figure went up still further and, since the number of actual sales had drastically declined, it lost all its significance as an index of the real operation of the land market.

The Court of Directors asked the Government of Bengal to explain the reasons for the great gulf between advertised and actual sales of land. The Government's explanation was that "in the Lower Provinces, almost all measures of coercion have been superseded by the process of advertisement for public sale, and the number of estates advertised for payment [would] always be very great."¹³ But the real reasons for the lack of correlation between advertisements and sales, went far beyond the simple explanation given by the Council.

The zamindars' habit of waiting until the latest possible date to pay their revenues and the Regulation I of 1801 and the Board's resolution of 13 April 1802 relating to the recovery of revenues from the zamindars tended to create an artificial flow of advertisement. In Regulation I of 1801, which was intended to achieve greater punctuality of the payment of the public revenue, provided for the advertisement of the land of defaulters immediately they fell into arrears, without the original one month's grace of which so much advantage had hitherto been taken.¹⁴ The same Regulation also laid down

11. *Ibid.*

12. Section 2, Regulation 12, 1801.

13. G.G. in C. to C. D., 1 Aug. 1812. P.P., 1831-2. vol. XI. App. No. 46.

14. Section 3, Regulation I, 1801.

that if information enabling only such part of the estate as would cover the arrears to be put up for sale were not received, then the whole would be included in the advertisement.¹⁵ A resolution of the Board of revenue passed in the following year ensured that the value of land annually advertised for sale would mount still further. The measure was designed to prevent the undue fragmentation of estates and it therefore laid down that any estate of which the annual *jama* was less than five hundred rupees must be put up for sale, on default, as a single block.¹⁶ It also prescribed that where the sale of a part of an estate to clear arrears would reduce the truncated estate to below the five hundred mark, then once again the whole estate must be put up for sale.¹⁷ The purpose of the resolution was duly served but only by further inflating the figures of land advertised for sale.

The total effect of these measures was to transform the advertisement into a sort of final demand note and one often ostensibly involving far larger areas than were required to answer the default. It often happened that the annual *jama* of the lands advertised for sale in a district far exceeded that district's total annual government *jama*.¹⁸ Ultimately, in 1819, when it was quite clear that the scheme of advertisement bore scarcely any relation to actual sales, the authorities decided to discontinue the practice of advertisement in the gazette altogether, except for major genuine sales to be held at the Presidency.¹⁹ Having discussed why earlier historians were led into errors and misconceptions about the effect of the permanent settlement upon property in land by the inflated figures of lands advertised for sale in default of public revenue,

15. *Ibid.*, Section 2, pp. 555-6.

16. B. O. R., to G. G. in C., 13 April 1802, B. R. C., 22 April 1802, No. 5, P54/24.

17. *Ibid.*

18. See Appendix I.

19. G. G. in C. to B, O. R., B. R. C., 1 July 1819, No. 29, P58/11.

and having outlined the reasons for the inflation of those figures, it is necessary now to grapple with the question, how much land did genuinely change hands ?

The Bengal Government's own figures for land sales are, as has been seen, startlingly small over the total period compared with those for lands advertised for sale. But are the sale figures —indicating that land with a total *jama* of S. Rs. 130,48,000 or 68 per cent of the whole provincial *jama* was sold during the course of our twenty-five years period—themselves to be relied upon ? The answer is no. For, as already indicated, many lands were sold which were in fact bought back by their original owners, in *benami* transactions.

But why should zamindars have found it worthwhile to go through the elaborate process of auction sale and *benami* repurchase ? There are two main reasons—one administrative, another economic. Firstly, by Regulation 44 of 1793 all previous leases and encumbrances attached to a lot sold at public auction were thereby cancelled. So, the best and, indeed, the only legal way to procure the cancellation of disadvantageous agreements with under-tenants was to cause the land to be publicly sold, and to buy it again in *benami*.²⁰ Secondly, it was possible, by *benami* transactions, largely to defraud the government of its revenue dues. This was done, by cunning landholders, by transferring their lands to nominal proprietors, men of straw, who would then designedly fall into arrears for the purpose of having the estate put up to auction. The true zamindar would then either secure the estate directly or perhaps *benami* through yet another agent at a very low price, any would-be competitor at the auction being intimidated by the zamindar's local influence. The zamindar thus secured his estate at a cheap rate while "throwing

20. G. G. in C., to C. D., 23 September 1798, P. P.; S. C., H. C., 1831 -2, vol. XI., App. 31, p.131.

upon government the remaining balance as the former proprietor [possessed] no further property nor [was] he to be found.”²¹

Some *benami* transactions also happened because zamindars whose lands were going to be genuinely sold wished to take precautionary measures to guard themselves against collusion among their own *amla*. Trusted agents of the zamindar were sent to the auction centre to make false bids in order to boost the price of the lands under sale. If the calls of the genuine bidders were too far below the expected price, then the real sale was postponed by the zamindar's buying in the lands *benami*, in expectation of a higher sale price next time.²²

It is impossible to detect the *benami* purchase among the total gross transfers. Only a few cases which were specially investigated by the Collectors can be determined. The biggest *benami* purchaser was the raja of Burdwan who in the earliest years of the period, transferred almost the whole of his zamindari to his lawyers and officers through public sales.²³ Thus, the entire *sadar* revenue of this zamindari, that is Rs. 32,66,000, may reasonably be deducted from the gross total transfers. Another prominent *benami* purchaser in Burdwan was Rogonath Singh, the zamindar of Pargana Chotteah. His zamindari, paying Rs. 60,000 in government revenue, was proved to have been collusively sold over and over again in order to defraud the public revenue.²⁴ The computed *jama* of the lands subject to his *benami* transactions amounted, according to the Collector to one lakh of rupees.²⁵

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21. Burdwan Collector to B. O. R., 12 June 1799, enclosure with Harington's Minute, B. R. C., 29 August 1799, No. 5, P54/4.
 22. Rajshahi Collector's investigation into a *benami* case, B. O. R. P., 24 July 1801, No. 17, P74/23.
 23. Burdwan Collector to B. O. R., 12 May 1800, B. O. R. P., 16 May 1800, No. 8, P74/11.
 24. Burdwan Collector to B. O. R., 12 June 1799, B. R. C., 29 August 1799, No. 5, enclosure with Haringtons' minute, P54/4.
 25. *Ibid.*

The combined purchases of the wife and mother of the raja of Dinajpur, which must be considered to be *benami*, amounted to a *sadar jama* of S. Rs. 79,000.²⁶ As mentioned earlier the raja of Rajshahi and his grandmother rani Bhavani were also officially recorded as having purchased property bearing a *sadar jama* of S. Rs. 54,000. Thus the total transfers which can be definitely traced as *benami* are as follows :

Proprietors	Sadar jama S. Rs.
Raja of Burdwan	32,66,000
Rognath Singh	1,00,000
Raja of Dinajpur	79,000
Raja of Rajshahi	54,000
	Total 34,99,000

Besides the above cases there were further considerable *benami* transfers, though no precise figures are available about them. In the 24 Parganas, lands bearing a total *jama* of S. Rs. 2,31,000 were sold between 1794 and 1802.²⁷ But the Collector of the district reported in 1802 that very few genuine sales had taken place in that district.²⁸ Similarly lands bearing a total *jama* of eight lakhs of rupees were sold in Dacca between 1794 and 1802 ;²⁹ but the Collector reported in 1802 that a significant portion of these transfers had been purchased by the original proprietors.³⁰ The Collector of Murshidabad was likewise of opinion that in his district the

26. Francis Buchanan, *A Geographical Statistical and Historical Description of Dinajpur*, pp. 284-9.

27. See, Appendix 1.

28. 24-Parganas Collector to Wellesley, *C. J. P.*, 8 July 1802, para. 26, No. 109, P147/57.

29. See, Appendix 1.

30. Dacca Collector to Wellesley. 8 June 1802, *C. J. P.*, 8 July 1802, para. 26. No. 97. P147/57.

genuine transfers from the original zamindars were much less than the gross sales.³¹ In Rangpur and Sylhet, the Collectors reported that a significant portion of the gross sales was purchased by the original zamindars.³² Such was believed to be the case in Tipperah and Mymensingh too.³³ All these reports were made by the Collectors in response to Wellesley's request that they should let him know what type of persons had bought the auction-lands. In the absence of definite figures about these nominal transfers reported by the Collectors, a deduction of fifteen per cent from the total transfers, from 1794 upto 1802 in those districts, may be taken as the most conservative estimate of *benami* transfer.* If fifteen per cent be accepted, the amount of *benami* transfers up to 1802 would be S. Rs. 3,00,000, since the gross transfers in those districts for that period amounted to S. Rs. 19,97,200.³⁴ To this sum must be added the already quoted official account of *benami* purchasers by four major landholders amounting to S. Rs. 34,99,000, together with a further sum for the other districts of Bengal, viz. Birbhum, Chittagong, Jessore, Nadia and Purnia, not yet carried. It is true that there is no statement from collectors of these districts about *benami* transfers, but the absence of any estimate almost certainly does not mean that none took place in those districts. It might be on a lesser scale, but the practice certainly did exist. Assuming the low percentage of

31. Murshidabad Collector to Wellesley, 8 February 1802, C. J. P., 8 July 1802, No. 104, P147/57.

32. Rangpur Collector to Wellesley, 6 January 1802, C. J. P., 8 July 1802, No. 113, P147/57; Sylhet Collector to Wellesley, 12 December 1801, C. J. P., 8 July 1802, No. 177, P147/57.

33. Tipperah Collector to Wellesley, 20 April 1802, C. J. P., 8 July 1802, No. 106, P147/57; Mymensingh collector to Wellesley, 9 January 1802, C. J. P., 8 July 1802, No. 121, P147/57.

34. See, Appendix I,

* All deductions on account of *benami* transfers are entirely presumptive. Such conclusions I have based on my personal feeling only.

benami transactions, which may not be true, eight per cent may be the safest figure. If so, the total *benami* transactions, in these five districts upto 1801, would be S. Rs. 2,06,000, since the total transfers in those districts upto 1801 amounted to S. Rs. 25,73,000.^{35*} Thus, the grand total of *benami* transfers for the Province might then be a minimum of S. Rs. 40,00,000.

If attention is concentrated upon land which changed hands, rather than upon the number of persons who at one point or another bought or sold land, then the government sales figures contain at least one more definable source of confusion. This is because the figures do not separately take note of land which was sold more than once. Yet it is quite clear that over the period of years here considered, while some property would remain within the same original family, other properties would be sold to a series of new owners. It is known, indeed, that many outside purchasers at auction sales very soon either withdrew from land ownership or sold their acquisitions in one area in order to buy lands elsewhere. Though there is little direct evidence of the new proprietor's motives in selling up, there is a strong presumption that secondary transfers were mostly occasioned by the resistance and hostility of the dispossessed zamindars and their loyal tenants to the new-comers, who in some cases were previously unacquainted with the problems of zamindari management.

As all small-scale sales were reported under the common head of 'sundry proprietors' without the names and addresses of the sellers and buyers being given, it is impossible to prepare a detailed list of all secondary transfers. Only seventeen important cases of secondary transfers could have been traced. The value of the original purchases and subsequent retransfers have been listed in the following table :

35. *Ibid.*

* The Regulation 7 of 1799 that came into operation in late 1800 strictly prohibited *benami* transaction with the heavy punishment of forfeiture of the *benami* property. Hence sales up to 1801 have been included in our calculation. Moreover volume of sales were extremely nominal after 1801.

TABLE 9
Statement of Persons who Purchased
Lands and Sold them again

SL. No.	Names of Purchasers	Residence	Situation of lands purchased	Jama of lands purchased	Jama of lands subsequently sold
				S. Rs.	S. Rs.
1.	Abhoy Charan Dutt	Calcutta	Nadia	1,30,790	38,677
2.	Balram Bose	Jessore	Jessore	55,629	42,415
3.	Bhavindara Narayan	Rajshahi	Mymensing	1,16,279	40,407
4.	Bhoyrab Chand	24— Parganas	Dinajpur	3,257	3,257
5.	Bhoyrob Chand Adit	Burdwan	„	28,873	23,029
6.	Durpnarayan Roy	Calcutta	Nadia	35,919	35,919
7.	Gourkrishna Sharma	Rajshahi	Rajshahi	10,452	10,452
8.	Gourmohan Roy	Nadia	Nadia	8,250	8,250
9.	Kirtinarayan Roy	Calcutta	Nadia	17,171	25,858
10.	Krishna Chandra	Patna	Dinajpur	17,513	12,787
11.	Madhushudhan	Nadia	Nadia	8,072	16,420
12.	Natto Singh	Burdwan	Burdwan	94,233	90,000
13.	Nittananda Sen	Calcutta	Rajshahi	31,847	15,278
14.	Ramkrishna Chowdhury	Rajshahi	Rajshahi	13,685	13,685
15.	Rammohon Chowdhury	„	„	30,604	30,604
16.	Ramnaryan Sarkar	„	Jessore	69,603	19,198
17.	Shambhu Chandra and Krishna Chandra Chatterji	Calcutta	Birbhum	67,691	60,843
Total				7,39,868	4,87,077

Sources : See Appendix 2 according to serial number.

We are now in a position to make an estimate of the total real turnover of land in the generation following the permanent settlement. The total gross sales were of land upon which the *jama* amounted to S. Rs. 1,30,14,800 or 68.42 per cent of the total *jama* of Bengal. If from this is deducted S. Rs. 34,99,000, the known figure of *benami* purchases by the four big families, and a notional further fifteen per cent of all sales in seven districts, and eight per cent in five other districts which would amount to S. Rs. 3,00,000 and S. Rs. 2,06,000 respectively, together with the S. Rs. 4,87,079 for known retransfers—seventeen cases in all, then we are left with known true sales of not more than S. Rs. 86,03,000, that is to say, 45 per cent of the annual value of the land revenues of Bengal.

Our argument can, however, be carried further, so as to enable us to see how the loss of landed property was shared between the greater and lesser proprietors. The figures are as follows. In 1793 the total revenue demand upon the lands of Bengal was S. Rs. 1,90,19,600. Of that, lands paying S. Rs. 1,01,13,000 were held by twelve great families, holding 53.11 percent of the total, while lands paying S. Rs. 89,06,600 were held by all the other smaller families, or 46.89 percent of the total between them.

We have shown that in the next twenty five years, if we deduct and discount *benami* purchases and retransfers, lands paying S. Rs. 86,03,000 were actually sold. But in the preceding chapter it has been seen that the ten great families alone lost lands valued at S. Rs. 61,75,000 or 61 percent of their original holdings. It follows that the loss sustained by sale among the lesser zamindars in the same period must have been S. Rs. 24,28,000 or 26% of their original holdings. The losses of the great families were thus vastly greater than those of the lesser proprietors both absolutely and proportionately.

The comparative stability of the lesser zamindars was probably due to their relative freedom from certain difficulties that operated to the ruin of their social superiors. The vast

extent of the big estates compelled their proprietors to place their trust on their local managers who never hesitated to misuse that trust. But the small proprietors themselves managed their own affairs without depending on an elaborate bureaucracy, and consequently they were free from the intrigues of the *amla*. Because they maintained direct relationship with their tenants they could easily collect their rents more punctually by using their influence than could the big zamindars who were removed from their *ryots* by various degrees of intermediary farmers and sub-farmers. Besides their relative managerial advantage over the big zamindars, the small zamindars could depend on the government's help more confidently in case of calamity than could the principal zamindars under similar circumstances. It has been already explained in chapter three that the government preferred economically manageable small estates to overgrown great zamindaris. Hence, it is not unreasonable to assume that as the most favoured group, the small zamindars derived various advantages from the administration.

It is not to be supposed that all the genuine transfers within our period, that is to say about 45 per cent of the landed property of Bengal, were occupied by the new comers. Rather, a large percentage of them doubtlessly remained within the established landed class. Due to the scarcity of statistical data it is not possible to prove this assertion quantitatively. But if the impressionistic statements from the district Collectors are to be relied on, we should be persuaded to think that probably not less than one third of all the genuine transfers were purchased by the members of the established landed class. In September 1801, the Governor General in Council issued a circular letter to all the district Collectors, requiring them to answer some interrogatories relating the success and failure of the system of the permanent settlement. One interrogatory was "What description of persons are in general the purchasers of lands disposed of by public sale in your district?" Their replies may be condensed into the following tabular description :

TABLE 10

**The Collector's descriptions of the professions of
the purchasers of auction-lands disposed of
from 1794 to 1801**

Districts	Description of the profession of the most exten- sive purchasers	Description of the profess- ion of the next most extensive purchasers	sources
Birbhum	Zamindari Amla	Merchants	10 April 1802, <i>C. J. P.</i> , 8 July 1802, No. 79, Interrogatory No. 26, P147/57.
Burdwan	Merchants	Officers	29 Oct. 1801, <i>C. J. P.</i> , 8 July 1802 No. 83, Interrogatory No. 26, P147/57.
Chittagong	Zamindars	Officers	17 March 1802, <i>C. J. P.</i> , 8 July 1802, No. 96. Interrogatory No. 26, P147/57.
Dacca	Zamindars	Merchants	8 June 1802, <i>C. J. P.</i> , 8 July 1802, No. 97, Interrogatory No. 26, P147/57.
Dinajpur	Moneylenders	Zamiadari Amla	12 Dec, 1801, <i>C. J. P.</i> , 8 July 1802, No. 99. Interrogatory No. 26. P147/57.

TABLE 10 (cont.)

Districts	Description of the profession of the most exten- sive purchasers	Description of the profess- ion of the next most extensive purchasers	Sources
Jessore	Merchants	Zamindars	31 Dec, 1801. <i>C. J. P.</i> , 8 July 1802, No. 101, Interrogatory No. 26, P147/57.
Murshida- bad	Zamindars	Merchants	8 Feb. 1802 <i>C. J. P.</i> , 8 July 1802, No. 104, Interrogatory No. 26, P147/57.
Mymen- singh	Zamindars	Merchants	9 January 1802, <i>C. J. P.</i> , 8 July 1802, No. 106, Interrogatory No. 26. P147/57.
Nadia	Merchants	Zamindars	16 Jan. 1802, <i>C. J. P.</i> , 8 July 1802. No. 108, In- terrogatory No. 26, P147/57
24-Parganas	Zamindars	Zamindars	1 May 1802, <i>C. J. P.</i> , 8 July 1802, No. 109 In- terrogatory No. 26, P147/57.
Rajshahi	Officers	Zamindars	22 Dec. 1801, <i>C. J. P.</i> 8 July 1802, No. 112, Interrogatory No. 26, P147/57.

TABLE 9 (Cont.)

Districts	Description of the profession of the most extensive purchasers	Description of the profession of the next most extensive purchasers	Sources
Rangpur	Zamindars	Officers	6 January, 1802. <i>C. J. P.</i> , 8 July 1802, No. 113, Interrogatory No. 26, P147/57.
Sylhet	Zamindars	Officers	12 December 1801, <i>C. J. P.</i> , 8 July 1802. No. 177 Interrogatory No. 26, P147/57.
Tipperah	Zamindars	Officers	20 April 1802. <i>C. J. P.</i> , 8 July 1802, No. 121, Interrogatory No. 26, P147/57,

It is thus evident from Collectors' reports that the established zamindar class was the most predominant group among the purchasers of auction lands. The zamindars were being followed by traders and government officers. Raja Rammohan Roy who had seen all the early scenes of the drama of the permanent settlement with his own eyes and who, as a landholder himself, must have known the changing fortunes of his peers more clearly than any European Collector, also stated the same view in his evidence before a Parliamentary Select Committee in 1832. He was asked: "What class of persons become the principal purchasers of lands?" Raja Rammohan Roy replied: "Frequently other landlords become purchasers, and sometimes the proprietors

themselves in the name of a trusty agent. Sometimes persons engaged in trade, and sometimes the native revenue officers in the name of other confidential friends.”³⁶ It is therefore almost certain that in spite of great upheavals in the traditional structure of the Bengali landed society under the operation of the permanent settlement, the old landed interest remained the most predominant force at least until the end of our period, though their supremacy was under serious threat from the new men. How far and how long were they able to maintain their domination during the subsequent period is, indeed, worth further investigation.

A look at Appendix I will show that ninetyfive percent of the total transfers took place during the first ten years of the permanent settlement and only five percent in the next fifteen years. The greatest single factor for this spectacular recovery, from the opening years of the nineteenth century onwards, according to the Governor General in Council, was Regulation VII of 1799, which restored to the zamindars all the coercive powers over their tenants. The Governor General Wellesley reported to the Court that this Act facilitated the collections of rent so much so that it made large scale transfers on account of the zamindars’ inability to collect rents from their under tenants, a story of the past.³⁷ This is surely an overexaggerated claim. Nowhere has it been found that any zamindari collapsed because of its inability to collect rents from its undertenants. It is clear to us now that the crisis of the land market in the wake of the permanent settlement was essentially the crisis of the territorial aristocracies who collapsed, as has been stated before, not because of their inability to collect rents from their under tenants, but because of their being notoriously handicapped by poverty, natural calamities,

36. Raja Rammohan Roy : “Exposition of the Practical Operation of Judicial and Revenue system of India”, “*Tract* 545, p. 67.

37. G. G. in C. to C. D., 31 January 1802, *General Revenue Letter*, E/4/62.

intrigues of *amla*, incapacity, overassessment in some cases and government's indifference towards their sufferings. By 1801, the dissolution of these monopolistic families was complete. So, for obvious reasons, the rate of transfer fell drastically after this. Of course, Act Seven of 1799, by making all *benami* transfers liable to forfeiture to state, helped minimise all artificial sales that hitherto inflated our transfer figures.

The two important factors for the comparative stability of the land market since 1802 were the growth of population and the economic recovery from the beginning of the nineteenth century. In 1789, the district Collectors returned the population of Bengal, Bihar and Orissa at 23,94,8000.³⁸ In 1802, the average of the population returned by the Collectors and Judges stood at 25,49,2000.³⁹ In 1822, it rose, according to a police report, to 37,50,3000.⁴⁰ Thus there was a growth of about fourteen million people from 1789 to 1822. In view of the crude method of calculation of population in those days, it will be illogical to suppose that the above figures were one hundred percent right. They might be either more or less. But it is established that there was a considerable growth of population ever since the decennial settlement. Its direct impact on the economy of the country was the rapid expansion of agriculture leading to proportionate increase in the profit margin of the zamindars.⁴¹ Besides the growth of population, there was another factor that immensely helped the uninterrupted extension of agriculture. It was the absence of any major natural calamity in the first quarter of the nineteenth century.

38. R. Montgomery Martin, *History of the Possession of the Honourable East India Company*, vol. 1, pp. 250-1.

39. *P. R.*, vol. 1, No. 82, p. 379.

40. *P. P.*, 1831, vol. 5, App. 42, p. 762.

41. See Dowdeswell's minute. 16 October 1811, *B. O. R. P.*, 16 Oct. 1811 No. 22, P76/160. (Dowdeswell was then the President of the Board of Revenue). Councillor Colebrook's minute, 20 June 1808, para. 27, *Minto Papers*, M 338.

The second major factor was the growth of trade and commerce from the beginning of the nineteenth century. According to Tripathi, the import and export trades in the Bengal Presidency increased by about 259 percent from 1795 to 1812.⁴² The opening of a free trade further bolstered up the over all productivity and economic activity of the country. These will be indicated by the ever increasing trends in the import and export sectors as indicated below.⁴³

TABLE 11
Imports and Exports through Calcutta Port
1813-1819

Years	Imports	Exports
	S. Rs.'00000	S. Rs.'00000
1813-4	212,	539,
1814-5	261,	561,
1815-6	344,	666,
1816-7	584,	699,
1817-8	685,	781,
1819-9	762,	709,

Such expansion of agriculture, trade and commerce upon the fixed government demand on the zamindars must have made them much better off than before when they groaned under the crushing pressure of the economic depression of the last quarter of the eighteenth century, which was caused by famine, decline in population and industries, the drainage of specie and uncertainties and indecisions in the revenue administration.

42. A. Tripathi, *Trade and Finance in the Bengal Presidency*, 253,

43. P. P. 1831, vol. 5, Evidence p. 2.

The Value of Landed Property

The creation of property in land and of a competitive land market, and the growth of population, trade and commerce, must all have had their impact on the value of land. It was fervently believed by Cornwallis that under the new system, "landed property [would] acquire a value hitherto unknown in Hindoostan, and the large capitals possessed by many of the natives in Calcutta, which [were] now employed in usury or monopolising salt and other necessities of life, [would] be appropriated to the more useful purposes of purchasing and improving lands."⁴⁴

The authorities were so infused with such optimism that they set their hopes on seeing a flow of capital into land and its consequent improvement immediately after the permanent settlement. Thus, when some parts of the Burdwan zamindari were sold for arrears in 1794, at a high price, the Governor General in Council wrote to the Court: "The price at which these lands have been sold merits your notice, as affording the most satisfactory proof of the improving state of the country, and that the capitals of the moneyed men are flowing fast into that channel in which they will be most beneficially employed for the country, the extension and improvement of agriculture."⁴⁵ In fact, those lands had been actually purchased by the raja himself in *benami*.⁴⁶

In order to avoid such delusions and to ascertain rightly the changes in the value of landed property, it would be desirable to use the detailed rent-rolls of the estates to ascertain the productivity of land under sale and the market prices of

44. G. G. in C. to C. D., 12 April 1790, para 3, *General Revenue Letter*, B/4/48, pp. 839-40

45. G. G. in C. to C. D., 29 Dec. 1794, para 13, *General Revenue Letter*, E/4/54.

46. Burdwan Collector to B. O. R., 20 April 1795, B. R. C., 8 May 1795, No. 25, P53/30.

agricultural product and to establish the opportunity cost of investment. However, in the absence of data about nearly all these variables, the economic historian cannot proceed very far. He is, in fact, only rescued from near total ignorance about changes in the value of land by the Accountant General's practice of inserting in annual statement of sales a column headed 'Years of Purchase'. By years of purchase was meant the number of years required by the purchaser to recover the capital he had invested in land out of the normal returns from land, estimated at ten percent of the *sadar jama*. The greater the number of years of purchase, therefore, higher was the current value of land under sale, and vice versa. The years of purchase column relating to all transfers within our period have been tabulated in Appendix 3. The Appendix shows that the years of purchase, in other words, the market value of land, was decreasing from 1795-6 to the closing year of the eighteenth century. Conversely, from the beginning of the nineteenth century, the value line was steadily rising, though with occasional fluctuations.

The downward trend in the value of land in the early years may be attributed to a glut in the land market consequent upon the sudden and simultaneous fall of the great families. The scarce supply of land in consequence of the establishment of stability on the land market and economic recovery from the beginning of the nineteenth century may be again, the cause of the rising trend of the value of land. But it is not always easy to explain the behaviour of the land value figures as we find them in Appendix 3, by normal economic principles of demand and supply, productivity, and marketability. The obvious difficulty is in explaining the very wide fluctuations over short periods of time from about 1812 onwards, for these fluctuations are evident in the figures for individual districts as for the province as a whole. Thus the figures for the district of Murshidabad swing widely from 12 years purchase in 1814-15 to 144 years in 1815-16 and back to one year in 1816-17 and

other districts show similar incomparabilities.⁴⁷ Moreover, it is also perplexing that land in such unhealthy jungle tracts, remote from the principal cities of the province, as Rangpur and Chittagong, should consistently have the higher average value expressed in years of purchase.⁴⁸ It is equally odd that land in Burdwan which was called the 'Garden of Bengal' and which was near to both Calcutta and Murshidabad, should have had one of the lowest average values.⁴⁹

By 1814, these anomalies had attracted the attention of the Court of Directors. The Court felt that the years of purchase figure was not reflecting the true state of land values, the Court therefore asked for information about the level of rents which was undoubtedly the principal determinant of the value of lands under sale. The Court wrote, "To enable us to judge of the value of landed property in the Lower Provinces, it is desirable that the next statement you transmit of a similar kind should be accompanied with an estimate of the rent payable to the Zamindar from the lands exposed to sale."⁵⁰

But it was not easy to gather information as to rents which, under the Regulations, were a purely private matter between the zamindars and their tenants. The zamindars zealously guarded their interests and tried to suppress all information leading to the discovery of the real worth of their estates. So the Governor General in Council replied: "We apprehend that considerable difficulty would be experienced in any attempt to form an accurate estimate of the rent payable to the zamindars from estates exposed to public sale for arrears of revenue."⁵¹ The Council further said: "The abolition of the office of can-

47. See Appendix 3.

48. *Ibid.*

49. *Ibid.*

50. C. D. to G. G. in C., 28 October 1814, P. P., 1831-2, vol. XI, App. No. 39, P. 135.

51. G. G. in C. to C. D., 7 October 1815. P. P., 1831,-2, vol. XI, App, No. 41, p. 136.

ongoe, and the want of village records in which confidence could be reposed, combined with the habitual jealousy of the proprietors, would render any scrutiny of that nature generally fruitless, and it would seldom, we apprehend, be practicable to procure that accurate information, and those detailed accounts on which alone such an estimate could be formed."⁵²

Thus the government's lack of interest in tracing the factors for wide variation in the value of land has made its analysis inexplicably difficult for us. It may be noted, however, that from 1810 onwards, the amount of land entering the market was very small, though the amount of advertisement was so large. It therefore becomes a small statistical sample we are dealing with, and normally, the smaller the sample the more probable that the reading will be eccentric, dependent on local, accidental circumstances.

Again, the anomalous contrast of land value between different districts, say, for example, between Burdwan and Rangpur, was largely due to variation in the decennial assessment. The decennial settlement took into consideration for assessment only those lands which were actually under the plough. The vast waste land attached to an estate, though recognised as the sole property of the zamindar, was entirely excluded from the assessment, as it was considered that these unassessed waste lands would tempt capitalists and landholders for capital investment and expansion of agriculture.⁵³ It is well known that while the Burdwan district was almost fully under cultivation, most of the district of Rangpur was lying waste. Hence it was no wonder that the principal purchasers for the Rangpur lands were the great capitalists like raja Luknath Nandi and raja Devi Singh of Murshidabad, Gopimohon Tagore

52. G. G. in C. to C. D., 7 October 1815, P. P. 1831-32, vol. XI Appendix 41, p. 136.

53. G. G. in C. to C. D., 6 March 1793, para 13, *General Revenue Letter*, E/4/52.

of Calcutta and Danishmand Nittananda of Birbhum.⁵⁴ They must have realised that while the proceeds from lands already under cultivation were enough to pay the government revenue, the immense profits accruable from the wastelands, if brought under cultivation would entirely belong to them. The strong competition among the capitalists for the Rangpur lands thus boosted up the market value. On the other hand, almost all transfers of lands in Burdwan, as has been stated earlier were fake and consequently the rate of sale was also nominal for obvious reasons. There were other general causes for the variation of market prices of land. Of them, the most important was unequal assessment at the time of the decennial settlement. The Government unreservedly admitted in 1807 that while some districts were lowly assessed, some others were overrated.⁵⁵ Consequently, the overrated districts had more sales, but attracted a lesser number of investors. The result was a low or nominal value of land. Just opposite was the case with the lowly assessed districts. Many often, as we have noticed in the sales of large zamindaris, zamindari officers and collectorate officers entered into collusions to undersell the lands of their victims. In such cases "purchasers [were] intimidated from coming forward, bankers [were] threatened if they attempted to aid the defaulter; and the estate was sold to one of the gang for perhaps a tenth of its value."⁵⁶

In spite of a great many puzzling eccentricities in the behaviour of the market value of land at district level, there is no ground to disregard entirely the upward trend in land values indicated by the average figures of the Appendix 3. Mentioning

54. Rangpur Judge to Judicial Department, 13 April 1802, *C. J. P.*, 8 July 1802, No. 69, para. 26, P147/56.

55. G. G. in C. to C. D., 7 February 1807, para 21, *General Revenue Letter* E/4/71.

56. Lord Hastings' Diary, 13 February 1816, *The Marchioness of Bute* (ed.) *The Private Journal of the Marques of Hastings* (Allahabad 1907) pp. 247-48.

the ever rising trend in values, the *Bangadut*, a Bengali journal owned by Dwarkanath Tagore, commented that, ever since the recovery from the initial set-back in consequence of the great depression on the land market, land had been gaining greater value and that land which had sold only fifteen rupees before 1800 A. D. was selling in the 1820s at three hundred rupees.⁵⁷ In the eyes of the Court of Directors such a phenomenal increase was beyond expectation and the Court doubted whether or not such increase was backed by a proportionate increase of resources in the country. The Court was at one with the Governor General in Council that the Province was blessed with a growth of population and consequent growth of agriculture that led to increased profits of the landholders. But at the same time the Court stated its feeling: "Of the increased value of estates, the increase of cultivation is not the only possible cause. The sacrifice of all the rights of the *ryots* may possibly be another; and the increased confidence in the stability of the permanent settlement may be a third..."⁵⁸ The Court's observation was logical in the sense that the summary powers vested in the zamindars by the Regulation VII of 1799 greatly enhanced their power to squeeze their tenants. Socially, these feudal powers crowned them with more prestige and status which might be considered by many as additional reasons for investing capital in land.

57. *Bangadut*, 13 June 1829, in *Sambad Patre Shekaler Katha* (hereafter cited as S. P. S. K.) vol. 1, p. 398, ed. B. N. Bandopadhye.

58. C. D. to G. G. in C., 21 March 1811 P. P., 1831-2, vol. XI, p. 138, App. 45, para 47. p. 138.

CHAPTER SIX

THE EMERGENCE OF NEW LANDED FAMILIES

We have seen in the preceding two chapters the nature and extent of the transfer of landed property under the operation of the Revenue Sale Laws. It was found that within twenty-five years of the operation of the Revenue Sale Laws about 45% of the landed property of Bengal in terms of the public *jama* changed hands. These great transfers are indicative of a tremendous upheaval in the land market and a degree of social and economic mobility among the landowning classes never known before. The fall of the traditional landed families has already been generally dealt with in the two preceding chapters. In this chapter an attempt will be made to describe and examine the upward mobility of the principal new families who forced their way to the top of the society by buying up the lands of the old zamindars. Before we proceed to the actual description it is important here to discuss the limitation and scope of such an attempt. The collectors' sales reports give the names and addresses of the purchasers of lands. These reports also contained the names of the former proprietors, the names of *mahals* under sale, *sadar jama* on them and the amount of purchase. The only important information lacking in the report is the purchaser's profession or occupation. However, from the sales reports which were unfailingly recorded in the Board of Revenue proceedings, it is possible to make a complete list of the purchasers and also of the sellers of lands, including the amount of lands they lost and gained. The working out of such lists is normally supposed to reveal the rise and fall of individual families and, ultimately, the social mobility

and change. But unfortunately the wide prevalence of *benami* practice among the purchasers has made this invaluable source of information as to land transfer greatly, if not wholly, unreliable for us. It is evident that the zamindari and public officers, for reasons of secrecy, universally purchased lands in the names of their dependents and also under assumed names.¹ For the same reasons, the government suppliers, trade agents and others who happened to hold positions of public trust rarely bought zamindaris in their own names. Moreover, many resorted to *benami* transactions without any clear motive. As a result, it has become almost impossible to determine accurately the amount of lands purchased by them. Only when an estate went under the supervision of the Court of Wards in consequence of the death of a proprietor who left behind a minor successor, can we know the exact extent of a new estate. But, within the period under survey, few new families were supervised by the Court of Wards. Another difficulty is the want of information as to the purchaser's profession, family details and achievements. Excepting some successful families there is practically no information for numerous others beyond their names in the sales reports. Even their names are often misleading as many of the purchasers came from different families yet bore the same names and caste appellations.

In spite of these serious limitations it is not however entirely impossible to trace the origin and achievements of those families who happened to purchase extensive landed property in different parts of Bengal. In an earlier chapter we have seen that the zamindari and government employees constituted the biggest professional group among the newcomers. The Kandi Family of Murshidabad that emerged as the greatest landholders among the new men, indeed, made their first fortune by serving under government. Kissory Chand Mitra, a famous mid-nineteenth century Bengali writer, stated on the basis of the Kandi Family

1. See, *B. O. R. P.*, 4 November, 1800, No. 24, P74/19.

papers that the total public *jama* of lands that the family purchased in different parts of Bengal and Upper Provinces stood at S. Rs. 4,75, 413.²

The Kandi Family, though comparatively new as land owners, was one of the principal families among the ex-Mughal officialdom. Radhagovinda Sinha, an ancestor of this family, was one of the diwans of Alivardi Khan and also of his successor, Sirajuddoulah.³ He was also one of the top revenue administrators in the team of Reza Khan.⁴ But more celebrated was his younger brother, Ganga Govinda Sinha who was the principal favourite of Hastings.⁵ The successive key posts held by Ganga Govinda Sinha were that of the amin of Birbhum, diwan of the Committee of Calcutta, guardian of the minor raja of Dinajpur.⁶ His son, Pran Krishna Sinha, who was the real territorial founder of the family, was made a diwan of the Committee of Calcutta by Hastings.⁷ Thus both father and son held the highest offices and exercised immense influence by virtue of their position. In fact, for the zamindars of Bengal, he was the second Hastings. Ramchandra Sen, a staunch enemy of Ganga Govinda Sinha, wrote, "The long reign of Hastings and extraordinary countenance given by him to Ganga Govind Singh has fixed this mischievous and corrupt subject in such complete authority that even the orders of the Company without his approbation and consent are not carried into execution."⁸

2. See Appendix 4.

3. J. Westland, *A Report on the District of Jessore* p. 190.

4. Kissory Chand Mitra, "Territorial Aristocracy of Bengal: Kandi Family" *The Calcutta Review*, vol. 158, 1874, pp. 95-97.

5. *Ibid.*, also see, P. J. Marshall, *Impeachment of Warren Hastings*, P. 513.

6. Kissory Chand Mitra, PP. 95-97.

7. *Ibid.*

8. Ramchandra Sen to John Macpherson, Letter No. 594, B. R. C., 9 Sept. 1786 (no pagination and consulation number), P51/1.

The influence of the family ebbed after Hastings' departure from India and, with the exclusion of the natives from high posts, they were entirely eliminated later from the high offices. But the vast wealth accumulated by them during the early British rule soon found its easy way into land after the permanent settlement. Pran Krishna Sinha started buying landed property wherever it was found, with the great fortune that he himself made and that he inherited from his uncle and adopted father Radha Govinda Sinha and his father Ganga Govinda Sinha. Pran Krishna's son and successor, Krishna Chandra Sinha, further increased the zamindari by new purchases. It is not however possible to give a detailed picture of the gradual growth of the zamindari, because most of the purchases were made in fictitious names. But it is almost certain that after 1808 there was little territorial expansion of the Kandi estate. In that year Krishna Chandra Sinha suddenly renounced the world and retired to Brindaban and lived there as a rigid ascetic till his death in 1820.⁹

The Banerji family of Telinipara in the Hughli district were zamindari officers before they promoted themselves to the rank of zamindar after the permanent settlement. Baiddanath Banerji and his younger brother Ramlochan Banerji were foudjars. In the 1780s Baiddanath migrated from Mankundu, a village in Burdwan, and settled at Telinipara as an officer of the raja of Burdwan.¹⁰ He had three sons, namely Abhoycharan, Kasinath and Ramdhan. His brother was the principal *diwan* of the raja of Nadia. After the dissolution of the Nadia Raj it was complained by the wife of the raja of Nadia that Ramlochan Banerji was instrumental in the dismemberment of the Nadia zamindari. She complained that Ramlochan conspired against the zamindari so as to bestow favours on his nephews Abhoycharan and his

9. C. O. W. P., 9 May 1820, No. 17, P111/53; also see, B. O. R. to G. G. in C., 28 March 1820, B. R. C., 25 April 1820, Nos. 8-10, P58/33.

10. Loke Nath Ghose, *The Modern History of the Indian Chiefs, Rajas, Zamindars, etc.*, part 11, p. 301.

brothers and to deprive her husband of his great zamindari.¹¹ There is no other allegation or evidence in the records as to Ramlochan's participation in the spoils of his master's lands. But it is quite legitimate to think, in view of the collusive conduct of the zamindari officers as we have seen earlier in different great zamindaris, that Abhoycharan and his brothers received great lifts from their father and uncle. They laid out a huge capital of about seven lakhs of rupees in buying eleven parganas in the districts of Burdwan and Nadia, bearing a total government *jama* of S. Rs. 1, 73, 888.¹² All these lands were bought in the names of Abhoycharan, Kasinath and Ramdhan Banerjis. Baiddanath and Ramlochan Benerji remained entirely out of the picture.

Kalishankar Roy, the founder of the Narail family of Jessore was a *diwan* of the Natore Raj of Rajshahi. When he began his career as a *lathial* or clubman in the 1770s, he held only a few bighas of lands near Narail and, when he died in 1834, his zamindari paid several lakhs of rupees as revenue to the government.¹³ But, as his zamindari had never come under the stewardship of the Court of Wards, nor had he made any will for his successors which could have revealed all his extensive *benami* purchases, the exact limits of his acquisitions could not be ascertained. Westland surmised that Kalishankar purchased more than 100 estates in different districts in different names.¹⁴ If each of the constituents of his zamindari paid on average, say, three thousand rupees as government revenue, then his estate was supposed to yield at least three lakhs of rupees as public revenue. But the total public *jama* of his zamindari as far as could be ascertained from the records of the Board of Revenue amounted only

11. Rani's petition to Lord Moira, B. R. C., 15 January 1814, No. 25.

12. See Appendix 5.

13. "Samachar Darpan", 14 February 1835, Brajendra Nath Banerji (ed.) *Sambad Patre Shekaler Katha*, vol. 11, p. 451; also see J. Westland pp. 7, 201-6.

14. J. Westland *A Report on Jessore District*, pp. 201-6.

S. Rs. 1,68,673 and the capital that he laid out to buy all these lots amounted to S. Rs. 66,783 only.¹⁵ It means that his total investment represented only about 39 per cent of the *sadar jama* of lands that he purchased. Such a low rate of purchases partly explains the fraudulent and collusive nature of his acquisitions. All of his newly acquired lands formerly belonged to the raja of Rajshahi whose *diwan* he was till 1796. Westland described Kalishankar as "extremely intelligent, energetic, selfish, mean and unscrupulous,"¹⁶ "The process by which he acquired his wealth", said Westland, "was this, that he abused his position of diwan to transfer part of his master's wealth into his own pockets. It was during his management that the Nattore rajah's estates began to default and to be sold up for arrears of revenue."¹⁷ When the zamindari went under the supervision of the Court of Wards in 1796, the Court tried to recover some of Kalishankar's illegal gains. But Kalishankar successfully concealed himself from the eye of the authority till the zamindari was transferred to the raja when the minor raja came of age in 1798.¹⁸ In his old age Kalishankar Roy became extremely religious. He liberally contributed to numerous educational religious and humanitarian institutions.¹⁹ Lately he became so pious that he left Narail and settled at Kasi where he purchased some estates and donated them to alms houses and temples.²⁰ He also repaired the crumbling public houses and temples which were formerly built by rani Bhavani in Banares.²¹

Balram Bose and Ramnarayan Sarkar were two other senior officers of the raja of Rajshahi, who made large

15. See Appendix 6.

16. J. Westland, *A Report on Jessore District*, pp. 201-6

17. *Ibid.*

18. *B. R. C.*, 5 July 1798, No. 25, P53/56.

19. Brajendrana Nath Banarji, (ed.), vol. 11, p. 137.

20. *Ibid.*, vol. 11, 451-2.

21. *Ibid.*, vol. 1, p. 130.

territorial acquisitions.²² The *jama* of lands that Balram Bose purchased purely in his own name amounted to S.Rs. 77, 300,²³ and that of Ramnarayan Sarkar amounted to S. Rs. 92,400.²⁴ Total ignorance, of course, prevails as regards their *benami* purchases.

One of the most important families to come from the background of zamindari service was the Manik Family of Dinajpur. Originally from Patna, Manik Chand settled in Rangpur and worked as an assistant to John Eliot when he was the Collector there in 1791.²⁵ On his transfer to Dinajpur as Collector in 1793, Eliot took his favourite Manik Chand together with all his family members with him.²⁶ Manik was made his own *diwan* and his grandson, Phool Chand, was made his deputy *diwan*.²⁷ Later, Eliot appointed Manik Chand as the *diwan* of the raja of Dinajpur and Phool Chand was made his own *diwan*. Thus through Eliot's patronage Manik Chand and his grandson occupied the highest posts open to the natives. We have already seen in an earlier chapter how Manik Chand and his grandson abused their official power and influence in order to dismember the Dinajpur Raj and buy it for themselves in staged auctions. So far as it could be ascertained Manik Chand bought twenty one lots in the names of his dependents, the total *sadar jama* of all these lots being S. Rs. 1,36,334,²⁸ His capital investment in buying these lots amounted to S. Rs. 67,965.²⁹

22. Kalinath Chowdhury, *A Short History of Rajshahi* (Bengali text), PP. 39-40.

23. See sales reports, *B. O. R. P.*; 20 July 1797, App. 4; 17 April 1798, App. 3, P73/31, 8 June 1798 Appendix E, P73/33.

24. See sales reports, *B. O. R. P.*, 15 February 1799, No. 27, P73/43; 21 May 1799, Appendix A, 173/47.

25. Dinajpur Collector to *B. O. R.*, 30 July 1795, No. 25, P72/46.

26. *Ibid.*

27. *Ibid.*

28. See Appendix 7.

29. *Ibid.*

Manik Chand was, of course, not the only officer who purchased zamindari lands on a large scale in Dinajpur. In our account of the Dinajpur Raj we have seen that diwan Ramkanta Roy had managed the zamindari as an absolute ruler for eight years and had purchased many parganas in the names of his dependents. In 1802, the Judge of Dinajpur reported that Ramkanta Roy was the richest landholder in the district of Dinajpur.³⁰ But as all of his acquisitions were *benami* we do not have any definite knowledge as to the real extent of his newly acquired estate. Collector Smith however believed that Ramkanta purchased as many as twenty three big lots, in fictitious names.³¹ Among the collectorate officers who bought extensive landed property in Dinajpur the most notable were Wali Muhammed, Baiddanath Chowdhury, Radakanta, Rashu Babu, Ganganarayan Sen and Ferendez.³² But in the absence of any official investigation into their *benami* transactions it is impossible to ascertain the extent of lands that each of those officers had purchased.

The family of Krishnacharan Dutt and his nephew Abhoycharan Dutt of Calcutta achieved their first distinction as government officers. Both of them were *diwans* to the Collectors of Dacca and the 24-Parganas' respectively at the time of the permanent settlement. Krishnacharan's brother Anandamoi also held the position of a diwan to the Collector of Rajshahi. By exerting official influence they seemed to have amassed immense wealth which they used in buying extensive landed property and in setting up a banking business in Calcutta and Banares.³³

30. The Dinajpur Judge to the Chief Secretary, 16 January 1802, C. J. P., 8 July 1802, No. 51, P147/56.

31. The Dinajpur Collector to B. O. R., 11 October 1802, para 3, B. R. C., 28 October 1802, No. 10, P54/28.

32. Baburam's Petition to G. G. in C., B. R. C., 9 June 1803, No. 2, P54/33.

33. B. S. Cohn, "Structural Change in the Indian Rural Society, 1596-1885" in R. E. Frykenberg (ed.), *Land Control and Social Structure in Indian History*, p. 81.

But very little is known about the real size of their zamindaris. Only the eleven lots which were purchased by Abhoycharan Dutt in Nadia are definitely known to us. Their total *sadar jama* was only S. Rs. 59,479.³⁴ Nothing is known about the purchases of the senior branch of the family, that is, Krishnacharan and his brother.

It seems that after two generations the descendents of Krishnacharan Dutt and Abhoycharan Dutt promoted themselves from Dutt to Mitter. One anonymous member of the family published a family history in 1869. He claimed that Krishnacharan Mitter and Abhoycharan Mitter were uncle and nephew. Krishnacharan got the diwanship of Dacca through the patronage of Edward Colebrooke and Henry Colebrooke.³⁵ Krishnacharan recommended his nephew, Abhoycharan to Edward Colebrooke who appointed him as the diwan of the 24-Parganas.³⁶ Krishnacharan's brother Anandamoi was later pushed to the diwanship of Rajshahi.³⁷ It is thus obvious that family chronicler's *Mitters*, and *Dutts* as we find in the sales reports are the same family. With great prosperity and higher social standing the Dutts of the late eighteenth and early nineteenth centuries moved to Mitter caste in the late nineteenth century.

Who were the principal new families coming from the professions of merchants and *banians*? The families of the elder banians like Nabakrishna Deb, Gocul Ghoshal, Ramchandra Sen, Naku Dhar, Joykrishna Sinha, Kashinath Babu and others were content with acquiring urban properties and whatever property they had made outside Calcutta and Murshidabad was acquired before the permanent settlement. After that they did not make any such significant additions to their possession as would qualify them to be discussed along with

34. See Appendix 8.

35. *An account of the late Govindram Mitter and of his descendents in Calcutta and Banares*, by a member of the family, p. 11.

36. *Ibid.*

37. *Ibid.*

the emergent families after the permanent settlement. Moreover, by the 1790s they were already considered to be the established members of the aristocracies. Among the elder banians only the family of Kantu Babu of Kassimbazar bought considerable landed property after the permanent settlement. Kantu Babu was a *muhrrer* in the Company's Kassimbazar factory before Plassey.³⁸ In that capacity he came to know Warren Hastings, at that time the commercial resident at Kassimbazar. After Plassey he became Hastings' banian, Kantu Babu's relation with Hastings was, indeed more than that of mere banian. He was instrumental in many of Hastings' questionable means of income and in return for his numerous services. Hastings bestowed on him many profitable farms and salt contracts including some *jagirs* in the districts of Rangpur, Gazipur and Azimgarh.³⁹ In search of establishing a ranking family, Kantu Babu procured from Hastings, the 'raja' title for his son, Loknath Nandi.⁴⁰ In connection with a family dispute over the shares of the zamindari raja, Harinath submitted the following deposition before the Supreme Court in 1832 about the career of his grandfather, Kantu Babu.

"Radhakissen Nandy your orator's great grand father, held a small piece of land in Sreepore. He had two or three mud and straw huts in which his family resided. In one of these straw huts he kept a retail moody grocery shop in which he sold paper kites, rice, ghee, salt and other things of small value. His earnings were very small. He had five sons—Krishnakanta, Joyram, Krishnacharan, Nursing and Goruchand. Krishnakanta—'Cantoo', in his father's life time—obtained employment as a mohrar

38. Gokulnath Dhar, "Krishnakanta Nandi", *B. P. P.*, Jan.—June, 1924, vol. 27, Serial 53-54, p. 182.

39. See, P. J. Marshall, *The Impeachment of Warren Hastings*, pp. 106, 137, 144-5, 153, 155,

40. Gokulnath Dhar, "Krishnakanta Nandi" p. 183.

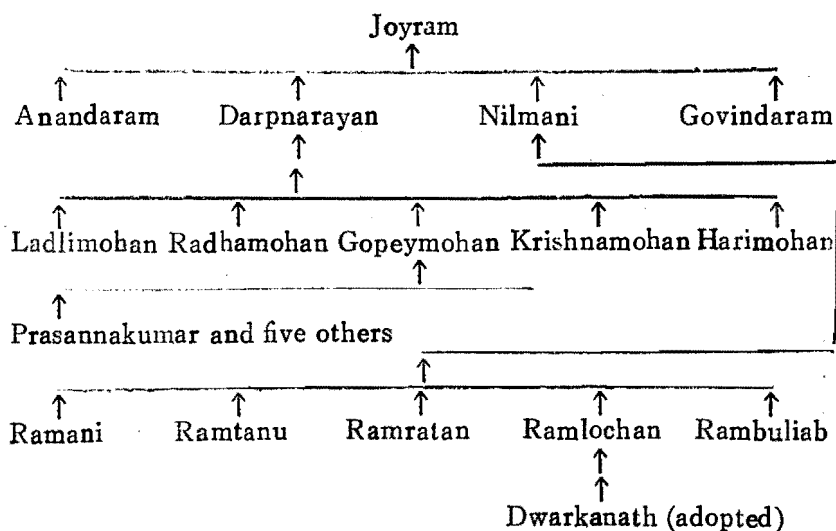
in the factory at Cossimbazar under Watts. His wages were small. But from his earnings he maintained his father and brothers in comfort. Radhakissen Nandy died in 1757. His *sradh* was performed in a very poor manner. When restitution claims were made after Plassey, Cantoo Baboo had no claims to make though the Cossimbazar factory had been taken by Siraj. But his service to his British superiors before and after Plassey were appreciated. He succeeded in securing the friendship and patronage of Sykes and held various appointments and situations of great trust and importance. He was dewan and banian to Sykes and Warren Hastings. Because of his importance under Watts, Sykes and Hastings, his good offices were sought by zamindars and talukdars. In return he got presents and grants of land in his own name as also in the name of his son Lokenath. He also carried on trade. He succeeded in getting 158 mouzas and mahals in pargana Coolberis and others in Muhamudshahi. They were formed into a new pargana called Cantoonaagar".⁴¹

Kantu Babu's estate was confined only to pargana Baharband in Rangpur and some petty jagirs in Bhagalpur. But his son and successor Lokenath Nandi turned it into a vast zamindari after the permanent settlement by purchasing new lands in almost all the districts from Dacca to Bhagalpur. But most of his purchases were in *benami*. The whole of his zamindari however came to light when the zamindari came under the control of the Court of Wards in consequence of his death in 1808, leaving behind his minor son, raja Harinath Nandi. The details of the parganas were not given by the Court of Wards. Instead, the Court supplied the total *jama* as was paid from each district where his estate was situated. The

41. Quoted in N. K. Sinha, *The Economic History of Bengal 1793-1844*, vol. 111, pp. 93-4.

total government *jama* of his zamindari in 1808 was returned at S. Rs. 2,42,905.⁴²

The next most important new landed family coming from the occupation of a banian were the Tagores of Calcutta. The Tagores trace their descent from Bhattanarayan, the chief of the five Brahmins who, at the invitation of king Adisura, came from Kanauj in 1072 A. D. in order to give religious leadership in Bengal. Joyram Tagore, who claimed to be one of the descendents of Bhattanarayan, worked as an amin in the settlement of the 24 Parganas when it came under the East India Company.⁴³ The brief geneological table of the Tagores for two generations from Joyram is as follows :⁴⁴



The descendents of Darpanarayan Tagore formed the senior branch and that of Nilmani Tagore formed the junior branch

42. See Appendix 9.

43. Lokenath Ghose, *Modern history of the Indian chiefs rajas and zamindars*, p. 162.

44. *Ibid.*, p. 221.

of the Tagore family. The other two sons of Joyram died early and without heirs. All of these members of the family purchased extensive lands all over Bengal. By the 1830s, the size of the combined Tagore estates became so big that Dwarkanath Tagore once boasted that the Tagore family was a house-hold word in Bengal in view of their authority in almost all the districts of Bengal as landholders.⁴⁵ He said that nearly one fifteenth of the total land revenue of Bengal was paid by the Tagores alone.⁴⁶

But before the decennial settlement the Tagores had virtually no position among the landowning class. Darnarayan Tagore, the pioneer of the family, at first served the French at Chandannagar and later became a banian to Edward Wheeler who succeeded Colonel Monson as member of the Supreme Council.⁴⁷ The wealth that he acquired in the course of his service and business was invested in purchasing a large pargana in Rangpur from the Natore raj in 1790. The Total *jama* of that pargana amounted to S. Rs. 60,000. But the real lustre on the family was shed by the subsequent purchases of his son, Gopeymohan Tagore who happened to be the first celebrated member of the great Tagore family. He purchased lands mainly from the rajas of Rajshahi, Nadia and Jessore. The total *jama* of his estates, excluding his father's acquisitions, amounted to S. Rs. 86,405 and his capital investment in buying those lands amounted to S. Rs. 1,11,600.⁴⁸ It is not known how much land he purchased in the names of his servants and relations. When, he died in 1818, it was reported by *Samachar Darpan* that his landed estates and other properties bore a value of about eighty lakhs of rupees.⁴⁹ In a supreme court affidavit his immovable

45. West Bengal State Archives, *Criminal Department*, 15 December 1840.

46. *Ibid.*

47. J. Westland, *A report on Jessore District* p. 186 ; also see, Pramathanath Mallik, "Notable Bengalis in 1806", *B. P. P.*, vol. 30, July-December, 1925, p. 199.

48. See Appendix 10.

49. Quoted in Brajendra Nath Banerji (ed.), *S. P. S. K.* vol. 1, P. 216.

property was estimated at twenty lakhs of rupees and other personal property was valued at forty lakhs of rupees.⁵⁰ It may be noted that all other brothers and cousins of Gopeymohan Tagore bought large landed property though on a much lesser scale than him. All these estates purchased by sons of Darnarayan Tagore and Nilmani Tagore were further enlarged by their grandsons, Prasanna Kumar Tagore and Dwarkanath Tagore, both of whom were large scale purchasers of lands in the 1820s and 1830s.

The Pal Chowdhuries of Ranaghat were salt agents in Calcutta before they embarked upon purchasing zamindaris. Krishnachandra Pal and Shambhuchandra Pal, the founding members of the family, were brothers. Beyond this, nothing is known about their family position. Tradition says that they were ordinary betel leaf vendors at the early stage of their lives. Whatever might have been their position, it is certain that in the 1790s the Pals of Ranaghat were important members of the moneyed society of Calcutta. These brothers jointly bought twenty lots in their own names. Most of these lands formerly belonged to the rajas of Jessore and Nadia. All these lots bore a total government jama of S. Rs. 1,32,714 and the total capital investment was 1,82,100.⁵¹ One peculiarity about the Pals is that they did not give up business after purchasing zamindaris. Rather they further expanded their business to money-lending, stock speculation, grain, sugar, ghee, cloth, indigo, and to various other commodities.⁵²

The banian who emerged as one of the landholders in Bengal after the permanent settlement but who has been entirely unnoticed so far by any modern writer was Roy Danishmand Nittananda of Murshidabad. Little is known about the life and

50. Abalya Devi vs. Chunder Coomar Tagore, 1820, quoted in N. K. Sinha, *Economic History of Bengal* vol. 111, p. 91.

51. See Appendix 11.

52. See N. K. Sinha, *Economic History of Bengal*, vol. 111, p. 90.

family background of the Roy. It appears from a civil honours list drawn up in 1872, that the Roy's father, Jagadindra Banwari, was a general of the Mughal army. Emperor Shah Alam was said to have conferred on Jagadindra the title *Maharajah-Azimutullah-Amirul Mulk Jagodindra-Danishand-Nittananda-Sepadhar Jang Bahadur*.⁵³ Hence all his descendents were known as Danishmand Nittananda. Thus the Roy always used his family title in all transactions though his real name was Banwari Lal. But Francis Buchanan gave a quite different account of his family background. He reported that Danishmand Nittananda was a weaver in his early life and subsequently became the Company's commercial agent.⁵⁴ In the capacity of the Company's banian he made a great fortune and in order to improve his social status he purchased the Danishmand Nittananda title from the Nawab of Murshidabad. Buchanan's account seems to be more reliable because he gave this report after visiting Nittananda's estate in Rangpur and after having a personal interview with the Roy himself.⁵⁵

Danishmand Nittananda purchased most of his lands from the rajas of Birbhum, Rajshahi, Dinajpur and Idrikpur.⁵⁶ The annual *sadar jama* of his lands as far as can be ascertained from the sales reports amounted to S. Rs. 1,20,613 and the total capital investment was S. Rs. 1,97,259.⁵⁷ It is evident that Danishmand Nittananda purchased a much larger amount of landed property than appears in the sales reports. It is gathered from a report of the judge of Rangpur that he had bought great landed estates in his home district Murshidabad.⁵⁸ He

53. *Temple Papers*, MSS. EUR. F. 85/158.

54. Francis Buchanan (Hamilton) Papers, vol. 1, Book 1 P.235-6, MSS. EUR. D. 74.

55. *Ibid.*

56. *Ibid.*

57. See Appendix 12.

58. Judge Sisson's Report from Rangpur, 2 April 1815, quoted in E. G. Glazier, *Report on Rangpur*, Appendix A, P. XXXIII.

must have acquired his Murshidabad lands in *benami*. In Rangpur, lands yielding *sadar jama* of S. Rs. 23,358⁵⁹ were purchased by him in his own name. Under assumed names he purchased much more. In 1815, his Rangpur lands were paying a total *sadar jama* of S. Rs. 69,742.⁶⁰ It will not be thus inappropriate to assume that he had similar large scale *benami* lands in other districts.

It is well known that the system of the permanent settlement opened the flood-gate of litigations leading to booming business for the lawyers. But in spite of the soaring incomes in the legal professions we find very few men from that profession purchasing considerable landed property. The most outstanding among these few was Nilmani Halder of Noapara in Hughli. He bought seven large lots in his home district yielding a *sadar jama* of about one lakh of rupees.⁶¹ The circumstances leading to the rise of Nilmani Halder to prosperity and power are obscure to us. Though his son, Nilratna Halder was a prolific writer, owner of a printing press, and an editor of the weekly, *Bangadut*, he did not care to write anything about his own family.⁶² It is however gathered from the sales reports and the judicial proceedings that Nilmani Halder came from the village Noapara in the Hughli district and that he was a practising lawyer in the *sadar diwani adalat*.⁶³

Of all the principal newcomers, Dwarkanath Babu of Singhur, Hughli district, seemed to be next to the Kandi family in territorial acquisitions and he was again the most obscure one before he embarked upon buying zamindari lands in early 1799.

59. See Appendix 13.

60. Judge Sisson's Report from Rangpur, 2 April 1815. Quoted in E. G. Glazier, Appendix A, P. XXXIII.

61. See Appendix 13.

62. See Brajendra Nath Banarji (ed.), *S. P. S. K.*, vol. 1, pp. 381, 456.

63. For address, see *B. O. R. P.*, 10 May 1799, Appendix E, P73/47, and for profession, see Panchnanda Mitter's case, *B. O. R. P.*, 3 September 1799, No. 74, P73/52.

Within a few years after 1799 Dwarkanath surpassed most other wealthy banians, merchants and officers in the acquisition of landed rights. In 1807, he was considered to be one of the richest men of Bengal. By then, his vast zamindari paid a *sadar* revenue of S. Rs. 4,74,852.⁶⁴ In the absence of reliable information about his life nothing definite can be said as to the sources of his great income. According to Pramatha Nath Barma who wrote a small history of the family of Dwarkanath, his father Gopinath Shil migrated from the Panjab in search of fortune and worked as a domestic servant of the Mallik family of Singhur.⁶⁵ Dwarkanath lost his father when he was still a boy.⁶⁶ But being blessed by a great saint Dwarkanath was said to have made an unimaginable fortune within a short time.⁶⁷ Pramatha Nath said that he made best use of his godsent money by buying zamindaris and setting up some indigo factories.⁶⁸ The writer however also mentioned a popular story that he owed his fortune to his early career as a dacoit.⁶⁹ It is possible that, as he was under the shelter of the malliks, he might have acquired his initial fortune through their favour and subsequently augmented it by dint of his own energy and drive. The possibility of his being a dacoit cannot also be entirely ruled out. Under the late eighteenth century conditions in Bengal, dacoity was a widespread practice and it was frequently carried out under the protection of zamindars themselves. Whatever might have been the secret of his success, it is certain that though Dwarkanath Babu had no ancestry to boast of, he made his way to the top of the new landed aristocracy without being, like most others, a banian, or a merchant or zamindari officer.

64. See, Appendix 14.

65. Pramatha Nath Barma, *The life of Dwarkanath Babu of Singhur* (Bengali Text), p. 2.

66. *Ibid.*, p. 3.

67. *Ibid.*, pp. 7-8

68. *Ibid.*

69. *Ibid.*, pp. 10, 15.

Besides these above mentioned large emerging families there were many others whose newly acquired zamindaris were presumably equally extensive. But because their acquisitive process was almost entirely in *benami* we are in the dark about the details of their property. For instance, raja Devi Singh of Murshidabad, who was a famous revenue farmer before the permanent settlement, had subsequently acquired "zamindaris, taluqas, and other landed estates, *kothees*, company's paper and other securities valued at 1 crore of rupees".⁷⁰ Hence, as landholder he must have been paying lakhs of rupees as government revenue. But the government *jama* of his zamindari in his own name amounted to only S. Rs. 17,898. The will of Joykrishna Singh of Calcutta, whose father, Santiram Singh, was a government officer before the permanent settlement, reveals that "he left behind him Rs. 20,04,915—houses, lands and garden in Calcutta valued at Rs. 7,40,430 and the rest zamindari."⁷¹ But in records his zamindari was worth only a few thousand rupees. Thakoor Das Gossain of Serampur in Nadia is said to have accumulated a fabulous fortune by trading with the Danes at Serampur and he laid out his entire capital in buying vast zamindaris in Nadia, Jessore, Purnia, Hughli, Burdwan and Midnapur.⁷² But the wonder is that his name did not appear in the sales reports at all. In our account of the Dinajpur raj we have seen that diwan Ramkanta Roy managed the zamindari as absolute ruler for eight years and he purchased the greater portion of the Dinajpur zamindari in the names of his dependents. So, in 1802, he was returned by the Judge to be the largest landholder in Dinajpur though in his own name he had no property at all.⁷³

70. N. K. Sinha, *Economic History of Bengal* vol. III, p. 91.

71. *Ibid.*

72. J. Westland, *Report on Jessore District*, p. 189.

73. The Dinajpur Judge to the Chief Secretary, 16 January 1802, *C. J. P.*, 8 July 1802, No. 51, P147/56.

Thus it is abundantly clear that unless and until the property of these great anonymous proprietors can be discovered it is impossible to deduce any conclusion from the known figures of about a dozen great new families especially when it is evident that each one of them possessed much more land than their figures indicate. To cite only one typical example here, one Krishnakanta Sen from the Rajshahi district purchased a zamindari in Jessore bearing a *jama* of S. Rs. 27,649 and he had no other estate in his own name on record. But, when he became mentally deranged in 1800 and the zamindari went under the supervision of the Court of Wards, it was found that his real zamindari bore a *sadar jama* of S. Rs. 57,425.⁷⁴ So more than half of his property was hitherto hidden from our view.

We have previously seen that the total genuine transfer of land in the course of twenty five years stood at about eighty six lakhs of rupees or 45 percent of the landed property of Bengal in terms of *jama*. According to the statements of the district collectors as mentioned earlier, a large percentage of these transfers was circulated among the established landed class. Gallaway estimated in 1830 that about one half or two thirds of the lands transferred within ten years from 1793 were purchased by the traditional neighbouring zamindars.⁷⁵ Thus, if we exclude the purchases of the old proprietors from our calculation for the purpose of ascertaining the size of the new comers into land, and if we again take the Purchases of the numerous *benami* proprietors into consideration, then it will not be unreasonable to conclude that about two thirds of the lands transferred to new hands were purchased by not more than thirty families only.

Even a cursory look at the formation of these principal new families as quantified in the Appendices will make it

74. The Petition of Kajal Mani and Tara Mani Dasl, two wives of Krishnakanta Sen, to B. Q. R., *B. O. R. P.*, 7 Feb. 1800, No. 32, P74,7.

75. A. Gallaway, *Observations on the law and Constitution and Present Government of India*. p. 180.

crystal clear that the constituents of almost all of them were situated in the districts of Birbhum, Burdwan, Dinajpur, Jessore, Murshidabad, Nadia and Rangpur, and most of their founders also came from those districts. No large new family did emerge from the eastern districts of Bengal.⁷⁶ It was for the obvious reasons that these districts which were characterised by small holdings showed remarkable stability compared with other districts which were owned by a few raja families whose fall facilitated the rise of the new territorial houses. Above the consideration of the relative stability of the small estates was the transfer of lands in these districts in very tiny lots which hardly attracted large capital investors. Most of these lands were circulated among the neighbouring established zamindars. Hence it can be forcibly argued that the structural changes under the operation of the permanent settlement were not even in all parts of Bengal. There were phenomenal changes in the traditional structure in those districts which were formerly owned by the great rajas, whereas, the old Mughal landed structure remained more or less intact in the eastern parts of Bengal especially in the districts of Dacca, Mymensingh, Tipperah, Chittagong and Sylhet.

76. The family of Nawab Khaja Abdul Gani of Dacca became substantial as a landed family in 1830s and 40s. Its founder, Khaja Alimullah who was formerly a trader, bought several low priced sparsely populated jungle parganas in Dacca, Barisal, and Mymensingh districts after the permanent settlement. With the growth of population these parganas gradually came under plough. In 1830s, the zamindari incomes increased to about six lakhs of rupees. In 1840s, the Khaja family became the greatest landed proprietor in Eastern Bengal.

CHAPTER SEVEN

EXPECTATIONS AND ACHIEVEMENTS

We have come a long way through the discussions of the zamindars' position in 1790, their reactions to the new system, operation of the revenue sale laws, and consequent reorganisation of the landed society. We are now in position to explore whether or not the permanent settlement system could produce the results as expected by its authors.

The authors of the permanent settlement anticipated that revolutionary changes in the character and habits of the zamindars would result from the stimulus given by the new system. The absolute proprietary rights conferred on them, coupled with the perpetually fixed government demand, were expected to inspire the zamindars to exert themselves for the improvement of their estates. Thus the government controlled Calcutta Gazette came out with its editorial declaring the permanent settlement 'as a political truth with practical benefit.' "Under this system," the editorial continued, "strongest inducement is held out to the proprietor to improve the value of his estate, for as that is improved, not only his general comfort and wealth are increasing, but the very tax itself is rendered more light by bearing a smaller proportion to the increased value and produce; or government is excluded from sharing in these advantages, ... for, the immediate consequences of an increasing produce is an increase of the population of the country, whose industry returns again to the fields, or overflows into the manufactures which work upon their productions".¹ It was reckoned

1. The Calcutta Gazette, 9 May 1793.

that the creation of property in land and the operation of the newly created land market would create an atmosphere in which the lands of "the ignorant, extravagant, or indigent [would] fall to the able, prudent, or wealthy, who [would] improve the lands and add to the stock of labour."² It was the firm belief of Cornwallis that the permanent settlement would make revolutionary changes in agriculture and agrarian relations. He said: "This system will excite a spirit of industry and economy, and be the means of bringing into cultivation the very great proportion of desolate land which is to be found in almost every district throughout the Provinces...the proprietors of the soil will be enabled from the profits arising from their estates to keep the embankments and reservoirs in proper repair, and thereby avert those calamities to a great degree; and instead of being necessitated to oppress their tenants whilst labouring under any temporary distress in order to answer the demands of Government upon themselves, they will have it in their power to afford them relief."³ Were these expectations fulfilled? To answer this question, which will be our task in this chapter, we must at first look at the zamindari management methods, because all these improvements must precede industry and enterprise, economy and efficiency, investment and innovation. Did the Zamindars possess these qualities?

Zamindari Management

An examination of the different aspects of zamindari management will show how far the zamindars responded to Cornwallis's idea of improvement. It has been persuasively argued that methods of estate management, as an independent science of local revenue administration, had been developed

2. T. Law, *A Sketch of some late arrangements and a view of the Rising Resources in Bengal*, p. 56.

3. G. G. in C. to C. D., 12 April 1790, para. 3, *General Revenue Letter*, E/4/48, pp. 338-9.

throughout the Mughal period, and even before that, and long tradition had acquired such structural stability that the Mughal method of estate management remained almost unaffected by the British rule.⁴ Keeping this structural stability in view, all changes therefore must be sought in the roles personally played by the zamindars themselves, either as capitalistic entrepreneurs, or as sybaritic owners living on their unearned incomes, often as absentees. Even then, a short description of the traditional methods of management is imperative, because of the considerable institutional influence on the character and habits of the managers.

Every zamindari, excepting the very small ones, used to maintain two sets of establishments, that is to say, a *sadar kachari* or central office and a group of *mufassal kacharis* or local offices in the different territorial unit of the zamindari. The *sadar kachari* was headed by a *sadar naib*, also known as diwan in some places. He was the final working link between the zamindar and the rest of the *amla*. His position in the zamindari *serestah* or establishment was so important that much of the success or failure of an estate, even of the most vigilant and enterprising owner, depended on his sagacity, integrity and leadership. As head of the whole establishment, he superintended the work of all the officers at the *sadar* and *mufassal kacharis* and was personally responsible to the zamindar for all the affairs of the estate. He organised his secretariat into main five *daftars* or divisions in order to facilitate his work :⁵

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4. Tapan Roychaudhuri, "Permanent Settlement in Operation : Bakarganj District, East Bengal," in P. E. Frykenberg (ed.), *Land Control and Social Structure in Indian History*, p. 171, also F. D. Ascoli *Survey and Settlement Operations in Dacca*, p. 162.
 5. See, Haridash Gongopadhye : *Zamindari Accounts*, pp. 25-26. He wrote this book in 1860 for the use of those who wanted to join the zamindaris service, and he said in the introduction of the book that he wrote the book on the basis of his experience as a zamindari officer himself.

- (i) *Sumar Daftar*—This department kept the accounts of all income and expenditure of the *sadar* office. It maintained the detailed accounts of every *mahal*, its total rents, the rents payable at every kist, the actual collections made and the balances due. The chief officer of this department was called a *sumar-navis* or *karkun*.
- (ii) *Jama Daftar*—This division estimated the area of every *mahal*, determined the varieties and qualities of its lands and rates of rent to be paid by every *ryot*. The *jamanavis*, the chief officer who was also known as *serestadar*, maintained the *jama wasil baki* or the record of the demand collection and balance of each *mahal*.
- (iii) *Khajanchi Daftar*—This office received all the collections of the zamindari and the *khajanchi*, the chief of this division, disbursed money according to the written orders of the *naib* or *diwan*.
- (iv) *Amin Daftar*—This department conducted the survey and measurement of the zamindari. The *amin*, the head, determined and kept records of the extent and quality of lands under every *ryot*. The rate of rent was determined by the *jamanavis* on the basis of his reports.
- (v) *Munshi Daftar*—This office maintained correspondence between the *sadar* and *mufassal kacharis*. The *munshi*, its head, made notes of all correspondence and forwarded them to the *naib* for necessary orders and again issued letters according to the orders of the *naib*.

Many wealthy zamindars also maintained a *mukhtar* daftar which dealt with legal affairs and kept some vakils at the district headquarters and in Calcutta. The smaller zamindars sometimes jointly appointed a vakil. The principal zamindars

also maintained a *mohafizkhana*, or record-room, where all records were deposited after they ceased to be in current use.

How the *mufassal* establishments were organised? Excepting for those small zamindaris which could be managed from the head quarters, all considerable estates were divided into a number of units for the convenience of revenue collection and the regulation of local affairs. The whole zamindari was broadly divided into parganas which were again subdivided into *tarafs*, each of which in turn comprhended a number of villages. In each unit, at all three levels, a *kachari* was set up to manage the revenue collection.⁶

The village organisation under every *taraf* consisted of the village *mandal*, a *patwari* and *karmachari*. The *mandal* or headman sometimes known as *muqoddam*, was the most influential *ryot* of a village and held his office at the goodwill of the inhabitants of the village. His duty and situation led him to act as a mediator between the *ryots* and the local collector of revenue, assisting them in collecting and selling their crops when rent was paid in kind, and in raising money to pay their rents and to settle little disputes that arose in the neighbourhood.⁷ The *patwari* kept the accounts and the *karmachari* collected the rents, and managed the general business of the village.⁸ In the small villages, the functions of both officers were combined in the *patwari*. The permanent settlement rules made the zamindars legally bound to keep one *patwari* in every village, who was required, when called upon to furnish necessary village papers to the government.⁹ A *Halshana* was also employed in every local *kachari*.

6. Amini Commission Report, 1778, H. Misc. S, vol. 206, p. 355. In some places *taraf* merely designated the lands or estate belonging to an individual which was named after him, as, *Taraf Joynarayan Ghoshal*.

7. *Ibid.*

8. *Ibid.*, p. 356.

9. *Ibid.* also see, Section 62, Regulation 8, 1793 ; R. Clarke, *The Regulations of the Government of Fort William in Bengal*, vol. 1, pp. 75-76.

He was responsible for measuring and marking out the ground in the possession of every *ryot* and also for distributing wastelands to new tenants, and where the rents were paid in kind, he gathered that proportion of the crop which was due to the zamindar.¹⁰ All these three officers, the *patwaris*, *karmacharis* and *halshanas*, were permanent officers and were seldom charged by their employers, because of their expert knowledge of rural accounts and rural affairs.¹¹ Even when the zamindari was farmed out, the farmers had to collect their rents and control local affairs through these permanent zamindari officers who thus served, at least in theory, as a check on the farmers' rack-renting.¹² These officers kept a number of *kutwals* or messengers who were a sort of zamindari postmen stationed in fixed places to relay messages from one station to another.¹³ In order to protect the treasure on its way to *sadar kachari* and also to threaten the refractory *ryots* two kinds of armed guards were kept, one called *barkundaz* or matchlock-men, commanded by a *dafadar*, and of *jamadars*, the other called pikes who were commanded by a *mridhan* and *sardars*.¹⁴ Over the headman, *patwari*, measurer and collector in charge of the village *kacharis* of the *taraf* was placed a *gomostha*, then came the *edmandar*, *shiqdar*, or *peshkar*, as he was called in some districts, who was responsible for a whole *pargana*. All directions, from the *naib* at the *sadar kachari* came to the *pargana* head—and indeed—the *edmandar* or *shiqdar* was really as great a man in the *mufassal* as the *naib* was at headquarters.¹⁵

10. Amini Commission Report, 1778, *H. Misc. S.*, vol. 206, p. 356.

11. *Ibid.*

12. *Ibid.*, p. 357.

13. Francis Buchanan, *A Geographical Statistical and Historical description of Dinajpur*. p. 251.

14. *Ibid.*

15. Amini Commission Report, 1778, *H. Misc. S.*, vol. 206, p. 357.

The considerable body of zamindari officials including their attending myrmidons amounting to several thousand on a major estate had a variety of functions—organising, supervising, accounting, collecting, guarding and coercing. The whole structure, however, was held together by ligaments and sinews of papers. Before we look into their ultimate effect on the fate of the zamindars, it is essential to describe in brief the most complicated aspect of the zamindari management, that is, the methods of accounting at different levels from the village to the *sadar kachari*.

Most complicated was the accounting system. The main object of the zamindari accounts may be set out under four heads: the ascertainment of the quantity and quality of lands, the apportionment of the *jama* of revenue demand, the recording of the revenue received and lastly, the discovery of the balances or arrears due. The fullness and accuracy of the information recorded under these four heads determined whether an estate was capable of being properly and successfully managed.

The work of ascertaining the quantity and quality of the land—its suitability for dry or irrigated crops, and its comparative fertility within those categories—was done in the field by the *halshana* and his survey team, equipped with their measuring ropes or staffs.¹⁶ What they found was recorded in a document called the *chita*, in which was set down an account of all the lands of a village, divided into *dag* or portions according to the order of time in which they were measured. It listed the quality of land in each *dag*, description of its boundaries, the different crops with which it was sown, and the names of the occupying *ryots*. Whenever a measurement took place, which was generally in the course of ten or fifteen years, such an account was drawn up.¹⁷ But as one *ryot* might hold lands in several different *dags*, the holding of each *ryot* was not

16. *Ibid.*, p. 364.

17. *Ibid.*

separately distinguished in this account. That information appeared in another account, called an *Ekwal*, which brought together in one place the measurements of all the scattered holdings, grouped under the names of their individual holders.¹⁸

The *Chita* and *Ekwal* accounts provided the basis for revenue assessment. From these two accounts the *jama daftar* could find out how much land there was under different categories. Accordingly, the *jama daftar* prepared a *jamabandi* account which specified first, the name of the *ryot*, second, the quality of land which he held, third, the crops cultivated on that lands, fourth, the rate attracted by crops and the area under them and, lastly, the total amount of rent payable by each *ryot*.¹⁹ As the rate of rent was determined by the quality of lands and nature of crops produced on them, there could be no flat or single rate of rent for the whole zamindari. Because the quality of land the nature of crops varied from pargana to pargana, so the rate of rent also varied from pargana to pargana. But once a rate was fixed for a pargana, it remained fixed till a new *jamabundi* was prepared after a survey. As that new survey did not take place frequently, the original *jamabundi* was subject to changes. Thus, if one *ryot* relinquished a portion of his land and another took it, or if a *dag* lay waste, in that case an alteration in the original *jamabundi* would have to be made by the *halshana*.²⁰

From the *jamabundi* papers a *hal-hakikat* account was formed at the beginning of the year. This specified the *asal jama* of each *ryot*, the various other taxes on his holding, the increase or decrease in the rent in consequence of changes in the quality of lands or in the nature of crops.²¹ This account,

18. Amini Commission Report, 1778, *H. Misc. S.* vol. 206, p. 364.

19. *Ibid.*

20. *Ibid.*, P. 365, Amini Commission Report, 1778, *H. Misc. S.* vol. 206, P. 365.

21. *Ibid.*, PP. 365—6.

therefore, contained the settlement of the revenues to be collected from the *ryots* in the current year.

Once the rent to be demanded during the course of the years had been determined it then became necessary to work out the *kists* or instalment by which it should be paid. The document in which this was set out was called a *kistbundi*. The entire *jama* payable by the tenants was divided into twelve *kists*. All *kists* were not, however, of equal size. The *Aghun* and *Poush kists*, that is, the eighth and ninth instalments, were the heaviest, because the principal crops were harvested in those two months.

A further series of accounts was prepared to complete the assembling of information about the revenues collected and the arrears and balances owing. The first of these was the *akher hisab-kharcha* which was an adjustment of the individual *ryot's* account prepared at the end of the year. This set out the *jama*, the receipts and the balances for the year. It also recorded any *arxis* or pleas for abatement of rent, which being allowed and deducted, established the sum of the undisputed balance.²²

The *akheri-hisab-kharcha* was prepared by the *Halshana* and *Patwari*. On the basis of this account the *pargana gomostha* made an *akheri jama wasil baki* which was an aggregate of the above mentioned individual account and which contained a statement of the revenues of the whole village distinguished into *jama*, receipts and balances.²³ First, it stated, the *jama* of the preceding year, the increase or decrease in the demand which had since taken place, the undisputed balance outstanding advanced for *takavi*, all of which added together constituted the *jama* for the current year.²⁴ The same account also

22. *Ibid.*, P. 368.

23. *Ibid.*, pp. 368-9. Amini Commission Report, 1778, *H. Misc.* vol. 206, pp. 368-9.

24. *Ibid.*

analysed the above amounts under their various heads, balances, *takavi* advances and any reduction granted upon petition.²⁵

The accounts and papers hitherto considered were analytical in form and offered the basic structural material required by the zamindari management. There were, of course, other papers to be found among the working papers of the officials, such as the *Shomar*, which was a day ledger recording daily receipts of whatever kind they might be as they came in. The jungle of receipts, presents, repayment of advances, collections according to *kistbundi* in the *Shomar*, was later regularly arranged under the different heads in a *siah* account which also contained an analysed statement of expenses under all heads.²⁶ From these two daily accounts was in turn constructed the comprehensive monthly treasury account known as the *Puttani jama kharcha*, with the month's receipts and expenditure tabulated under their appropriate heads.²⁷ Finally from the monthly statistics was formed the annual treasury account called the *terji jama kharcha*.²⁸

All these foregoing accounts were kept by the village *patwaris* and *karmacharis*. The *gomostha* of the *pargana* or *taraf* compared and ascertained annually the amounts collected from each individual *ryot*. He also set down all the revenue paid in by the *karmacharis*. The *gomostha* then checked and made allowance for the necessary expenses of the *karmachari*. Finally, he ascertained the sum due from them and the arrears due from the *ryots*. This adjustment was called the *Akheri-Nikash* or last counting.²⁹ Abstracts of all these accounts were maintained by the *pargana* officers and transmitted to the *sadar kachahri* of the zamindar. In

25. *Ibid.*

26. *Ibid.*, p. 369.

27. *Ibid.* Amini Commission Report, 1778, *H. Misc. S.* vol. 206, p. 369.

28. *Ibid.*

29. *Ibid.*, p. 370.

one enormously long sheet of paper, the *Akheri Nikash*, exhibited the rents, the payments, and the balances of the whole zamindari.

With *Akheri Nikash* the year's accounts reached their final stage. The annual cycle was then ready to start again with the preparation by the zamindar of the *Doul Bandubasta* at the commencement of the new revenue year. This contained the rent rolls of the zamindari and was formed by adding together the rent due from each dependent taluqdar, the sum each farmer had agreed to pay for his farm and the estimated revenue of the zamindari which was to be collected by the immediate field officers.³⁰

The above description of the management, especially its accounting system at its different levels from top to bottom, indicates the highly complicated but thoroughly methodical arrangement of zamindari management and organisation. "In short," said the Collector of Dacca in 1800, "nothing can be more methodical than the mode in which the business of the collections is carried out by the proprietors."³¹ But mere method is meaningless if it cannot be easily fathomed by the outsiders and if it cannot work as a safety-valve against the abuse of powers and misappropriation of funds by the officers. As for the first point, the principles of the zamindari management were made so complex and complicated, particularly the accounting branch, that it was almost impossible for any outsider to comprehend them. George Blake, an indigo planter in Purnia, spoke about his failure to understand zamindari management for his own use, in spite of his serious attempt to do so. For nineteen years, he said, he had been a resident in Purnia and throughout observed the methods of zamindari management, but still he

30. Amini Commission Report, 1778, *H. Misc. S.* vol. 206, p. 369.

31. Dacca Collector to B. O. R., 17 March 1800, quoted in F. D. Ascoli *Survey and Settlement Operations in Dacca*, p. 162.

could not well comprehend them. Zamindari management, he declared, was 'so complicated that it would require the sole occupation of a life employed in the business to master its intricate details in all its branches.'³² A similar frank confession was made by J. W. Kaye.³³ One reason for the continued complexities of the methods of the zamindari management and the bewildering difficulties faced by outsiders attempting to understand them, may be found in the hereditary character of the zamindari officers.³⁴ Their exclusive knowledge in their respective branch in the hierarchical bureaucracy of the zamindari *daftars* handed down from father to son, made them both indispensable to the zamindars and a mystery to outsiders. It was correspondingly difficult for the zamindars to introduce new men into the services so as to secure change and improvement.

For the zamindars the greatest harm came from the village officers, such as *mandals*, *patwaris*, *karmacharis* and *halshana*. The zamindars and their *sadar* officers were absolutely dependent on them for the most vital primary accounts, like *chita*, *jamabundi*. Such dependence on them obviously imposed some limitations even upon the most enterprising zamindars. Their indispensability and permanent residence in their constituencies gave them the opportunity, while their low pay impelled them into collusion with the revenue farmers and influential *ryots*, and also with the superior officers at the *pargana* and *sadar*

32. G. A. Blake to B. O. R., B. O. R. P., (Lower Province), 16 October 1827 No. 36, P. 80/45.

33. See, J. W. Kaye, *The Administration of the East India Company, A history of Indian Progress*. P. 162.

34. For the hereditary Character of the officials, See, P. J. Marshall, "Indian officials under the East India Company in Eighteenth Century Bengal", B. P. P. vol. No. 158, Part 11, July-December 1965, P. 102. B. O. R. to G. G. in C., 8 September 1786, B. R. C., 9 September 1786, P51/1. and Nadia Collector to B. O. R., 29 April 1817, B. R. C., 27 June 1817, No. 4.

kacharis, against the zamindars.³⁵ The Burdwan Collector wrote in 1788 that these village officers were freely alienating zamindari lands with impunity, because the zamindars had not effective means to detect their malpractices.³⁶ They placated the influential *ryots* by allowing them to occupy the superior lands at the rate of rent for inferior lands.³⁷ In 1827, G. A. Blake reported from Purnia that, through fraud and collusion with the local officers, the village leaders obtained all the best lands at the lowest rates of rent and again re-let them to the poorer classes of *ryots* from whom they exacted the highest rates in money or took a moiety of the produce.³⁸ In this way there was a concentration of authority and lands in the hands of a powerful section of the rural population thus forming a *jotedar* class which over the course of years became too powerful and too well organised to be dislodged by the zamindars. Especially the new men, often tried either to resume the unauthorised lands held by the *jotedar* or to increase their rents. But such attempts were mostly foiled by their violent resistance.³⁹

It was not only the village officials, however, who abused their positions of authority to the loss of the zamindars and poorer *ryots*. In fact, they often carried out their treacherous trade with the full cognizance of the superior *amla* who had regular shares in their spoils.⁴⁰ The *sadar amla* had other lucrative opportunities to enrich themselves at the expense of their masters. In collusion with the revenue

35. F. D. Ascoli, p. 162.

36. Burdwan Collector to B. O. R., 5 July 1788, B. R. C., 20 August 1788, P. 51/22.

37. F. G. Glazier, P. 28,

38. G. A. Blake to B. O. R., 5 August 1827, B. O. R. P., 16 October 1827, No. 37, Query No. 2.

39. Petition of the Zamindar of Dinajpur, B. R. C., 29 August 1799, No. 5, enclosure no. 6, P54/4.

40. Judge and Magistrate of Burdwan to G. G. in C., 9 March 1802, P. P., The fifth Report, 1812, P544, App. 10, vol. 7.

farmers they alienated lands by various subtle means, so the judge and magistrate of Burdwan declared, beyond the comprehension of any other man not directly in the business.⁴¹ In short, the whole structure of the zamindari management and organisation was such that no amount of ability, and vigilance on the part of the proprietors was sufficient to prevent their officers from indulging in malpractices completely. These officers were so powerful in their positions that it was never impossible to dismember an estate if they wished to do so.

But the management picture of the very small estates was not so dismal. Unlike the considerable estates, the small families could not afford to maintain elaborate *amla*. How then were the small zamindaris, such as were found especially in Sylhet, Chittagong, Tipperah, Dacca, Mymensingh and Jessore districts, managed? In these districts most proprietors were so small that many of their *sadar jama* was as nominal as a fraction of a rupee. Those of the small zamindars who were comparatively rich managed their estates themselves with the help of a number of officers and pikes.⁴² But a great many of them could not afford any establishment at all. Their poverty and illiteracy prevented them from keeping up any formal establishment while their intimate contact with their tenants made it unnecessary. "Many of the landholders," the Rangpur collector reported, could "neither read nor write, and only [kept] their accounts by notching a stick or tying knots in a string."⁴³ A great many of the proprietors in Chittagong also never kept any accounts for their estates. Memory was their only guide.⁴⁴ In Dacca,

41. P. P. The Fifth Report, 1812, vol. 7 Appendix 10, 544.

42. Francis Buchanan, P. 252.

43. Rangpur collector to B. O. R., 17 August 1793, B. O. R. P., 28 February 1794, No. 3, para. 3, P72/27.

44. Chittagong collector to B. O. R., 20 July 1793, B. O. R. P., 28 February 1794, No. 14, P72/27.

the Majority of the small zamindars, according to Ascoli, never kept any record or rent-roll.⁴⁵ Such methods of management must have been almost universal among all those proprietors who were nothing but respectable peasants paying their revenues direct to Government. "Of the aggregate number of landholders paying revenue immediately to Government in this zillah, more than three quarters, or upwards of 1600 persons, are proprietors of from merely one to two connies to less than three doons of lands, bearing an assessment of from one to fifty rupees per annum," wrote the Chittagong collector.⁴⁶ In Tipperah, out of two thousand proprietors, 1,288 paid less than one thousand rupees as government revenue.⁴⁷ Naturally, for these peasant proprietors, it was not absolutely necessary to maintain records. Their amla, if they had any at all, were also their domestic servants responsible for cattle and cultivation. Hence the small proprietors were comparatively free from the ruinous effects of the intrigues and embezzlements of the rapacious amla as almost invariably existed among the considerable families.

Costs and Profits

While we have discussed so far the general patterns of the zamindari managements, it is important here to say something about the costs and profits of such management. In other words what was the average percentage of profit that the zamindars derived from land control? How far that profit was drawn from the real improvement of land?

In the absence of zamindari records relating to their rent-rolls and costs of collection, it is impossible to determine the

45. F. D. Ascoli, Survey and Settlement Operations in Dacca District, p. 162.

46. Chittagong collector to B. O. R., 2 August 1797, quoted in H. J. S. Cotton, p. 75, One conny or kani of land is equal to about one third of an acre.

average percentage of profit that accrued from land control. However, from other supplementary sources some idea, inaccurate though it must be, can be formed about their income and expenditure.

The costs of zamindari establishments employed in revenue collection were met in three ways : by the payment of regular salaries, by the grant of commissions and by the assignment of rent free lands. Most of the senior officers at the *sadar* who were the subject to change, were paid monthly salaries, while almost all the *mufassal* officers were paid either by commission or in rent-free lands. Such assignment were known in the revenue records as *chakaran* lands, that is, the lands granted to zamindari servants in lieu of money wages. The *chakaran* lands of the Dinajpur raj, for example, will indicate the types of servants who enjoyed free lands instead of salaries.

TABLE 12

Chakaran lands for the Amla of the Dinajpur Raj, 1803.

Types of servants	Lands in bighas
House servants of the rajbari	22,878
Servants attending to the house of the family deity	14,073
Peons	11,925
Dak Paikes	1,070
Horsemen	6,006
Officers (for their houses)	916
Chaukidars	261
Thatchers	557
Bearers	9,747
Washermen	108

TABLE—12 (Cont.)

Types of servants	Lands in bighas
Drummers	67
Barbers	369
A honey furnisher	12
Tailors	226
Market servants	191
Poddar	93
Matchmakers	64
Slaves	1,152
Khidmatgar or personal attendents	211
Boatmen	211
Nakibs or heralds	75
Kulis	558
Grooms	23
Idolmakers	15
Carpenters	75
Bricklayers	25
Woodcutters	113
Flowermen	11
Mango attendants	71
Mistri	101
Paikes	77,993
Grant total	<u>1,61,483</u>

Source : B. R. C., 9 June 1803, No. 2, P54/33.

It is obvious that only the servants like the peons, paikes, chaukidars, bearers, poddars, boatmen and kulis were directly or indirectly connected with actual zamindari management and all the others were pure domestic servants in various capacities. It will be noticed that the village officers, such as the mandals, patwaris, karmacharia and halshanas have not appeared in the chakaran list. Customarily, all of them received

a percentage of commission on the rental collected.⁴⁸ The rate of commission varied from district to district. In Dinajpur, the mandals received one percent commission on the rental and the commissions of the patwari and other officers varied from four to six percent.⁴⁹ The custom of granting commission for village officers probably grew out of the necessity for punctuality in the collections. As the acknowledged profit of these officers depended on the amount of the collections, it was supposed that they would exert themselves to secure maximum collections so as to obtain the maximum commission possible. Besides their usual remuneration all the zamindari officers, whether paid in terms of money wage or assignment of land, increased their usual income by receiving *tahuri* or unauthorised excess collections from the farmers and tenants.⁵⁰

How much did the zamindars normally derive as net profit from their estates after meeting all their costs? The decennial settlement was intended to allow the zamindars only one eleventh of the net proceeds of their estates. In 1802, the collectors were required to answer this question :

“Do the proprietors of estates in general derive a profit exceeding the ten per cent on the Jumma—the profit estimated to be left to them on the conclusion of the Decennial Settlement?”

The Burdwan Collector replied that the Raja of Burdwan derived not more than five percent on the rental and other zamindars in the district even less than that.⁵¹ The Rajshahi Collector's opinion was that some proprietors received more and some less than ten percent.⁵² All others reported that the

48. Francis Buchanan, *Dinajpur* p. 252.

49. *Ibid.*

50. *Ibid.*, also see, F. D. Ascoli, *Survey and Settlement of Dacca District*, p. 162.

51. *C. J. P.*, 8 July 1802, No. 83, Q. 8, P147/57.

52. *Ibid.*, No. 112.

proprietors derived far more than ten percent. Thus, the profit of the proprietors of Chittagong, it was stated, ranged from sixteen to twenty percent on the rental,⁵³ of Jessore upwards of twenty percent,⁵⁴ of Mymensingh from twenty to fifty percent and in some cases more than one hundred percent.⁵⁵ The Collector of the 24 Parganas even went so far as to say that "some proprietors do not on average pay more than one rupee in a thousand of their gross collections."⁵⁶ Others reported that the zamindars never admitted their true incomes.⁵⁷ With the increase in population, commercial activity and agricultural prices, the profit margin must have increased during the later period. But, as the actual profit was always influenced by the original assessment, the quality of management and the productivity of the land, the percentage of profit always varied from one estate to another. The following three select examples will provide a clearer idea about the variation of profit.

TABLE 13

1. Estimate of the expensess and profit for 1809 of the eight lots of the Dinajpur raja which were purchased by rani Tripura Sundari and rani Sarasati.

Sadar jama Rs. 79,000, Gross rental Rs. 1,10,000.

Outgoings

The eight lots required the following establishments.

	Land grants in bighas.	Annual salaries in rupees
1 Diwan		1,200
8 Tahsildars or collectors		2,440
40 Muharrirs or writers		3,800

53. *Ibid.*, No. 96,

54. *Ibid.*, No. 101,

55. *Ibid.*, No. 106,

56. *Ibid.*, No. 83.

57. C. J. P., 8 July 1802, Nos. 97,104, Q. 8, P.147/57.

TABLE 13 (cont.)

	Land grants in bighas	Annual salaries in rupees
24 Sardars or officers of the old militia	1,200	
16 Mridhas of the same militia	480	
200 Paiks	4,000	
8 Dafadars		384
24 Barkanduz		864
16 Daftaries or keepers of papers	192	
200 Kutwals or messengers	2,000	
	7,872	8,688
7,872 bighas of land at ten annas per bigha		4,924
Total costs of establishment		13,612
Commission, at four percent, to the ijaradars		4,400
Government revenue demand		79,000
Total outgoings		97,012
Total receipts		1,14,924
Net income		17,912

The profit here is about fifteen and a half percent on the gross rental. The expense of collection is about sixteen percent

TABLE 14

2. Estimate of the expences and profits for 1809 of the estate of Wahid Chowdhuri, a merchant, who did not reside on his estate in Dinajpur.

Sadar jama Rs. 4,500. Gross rental Rs. 6,300		
Outgoings	Land grants in bighas.	Annual salaries in rupees
1 Tahsildar		120
1 Jamanavis or accountant		84
1 Muharrir		36
1 Poddar		24
2 Barkandus		51
1 Sardar or chief paik	20	
10 Paiks	120	
7 Kutwals	56	
	196	315
196 bighas at 10 annas per bigha		112
Total costs of establishment		427
Ijaradar's commission at 4 percent		252
Government's revenue demand		4,500
Total outgoings		5,179
Total receipts		6,300
Net income		1,120

Here the profit was about eighteen percent on the gross rental and the expense of collection was ten percent.

Source : Francis Buchanan, *A Geographical, statistical and Historical Description of the District of Dinajpur*, p. 248

TABLE 15

3. Estimate of the expences and profits for 1828 of the estate of Mir Karimuddin in Hughli.

Sadar jama	Rs. 17,781.	Gross rental	Rs. 45,212
Receipts			Rs. 45,212
Outgoings			
Collection charges	2,724	}	21,470
Taxes	188		
Upkeep of a mosque	777		
Government demand	17,781		
Net income			<u>Rs. 23,742</u>

Here the profit was fifty two percent on the rental and the cost of collection was only six percent.

Source : George Toyabee, *A sketch of the Administration of Hughli District from 1795 to 1845*, p. 63.

Collectors' reports and the above select cases suggest that, by the end of the eighteenth century, the zamindars' profits certainly exceeded the limit of ten percent intended to be left by the decennial settlement. There cannot be any doubt that the tempo of their rising incomes from their estates continued all throughout the first quarter of the nineteenth century. By the 1820s, according to A. D. Campbell, the zamindars became an affluent class. He said in his evidence before the Parliamentary Select Committee : Most of the ancient aristocratic zamindars are in easy circumstances, and some of them are wealthy men. I have, as a member of the Board of Revenue, acting in the capacity of Court of Wards for minor zamindars, known of surplus funds in some zamindaries to the extent of four or five lacs of rupees. Similar accumulations occur in zamindaries contested in our courts ; and generally all persons

of that description expend a great deal of money in celebrating marriage or festivals, and in keeping up the usual establishments of the family, such as elephants, horses and also houses."⁵⁸ The negligible transfer of landed property due to arrears from the beginning of the nineteenth century is another added testimony to the affluent condition of the zamindars. It may then be asked what were the reasons for their prosperity? Was it due to a general increase in rents or due to actual improvement in agricultural techniques or the prosperity of the country as a whole?

To take up the rent question first, all the evidence leads us to believe that, as raja Rammohan Roy put it, "under the permanent settlement since 1793, the landholders have adopted every measure to raise the rents, by means of the power put into their hands".⁵⁹ The rules of the permanent settlement made the regulation of rent entirely a private subject to be mutually settled between the zamindars and other parties. It was only required that "rents to be paid by the *ryots*, by whatever rule or custom they may be regulated, [should] be specifically stated in the Pottah."⁶⁰ For the *khudkast* or long resident *ryot* it was vaguely provided that their rents should be regulated by the *pargana nirk* or rate.⁶¹ But the notion of *pargana* rates utterly failed to give any legal protection to them because the courts found themselves confused by the bewildering variation of *nirk* from one *pargana* to another, even from one village to the next. The *nirkibandi* of *Pargana Pullua* in Burdwan district will indicate how widely the rate varied from one village to another, even within the same *pargana*, though land was more or less of same quality.

58. A. D. Campbell's evidence, 14 April 1832, P. P. 1831-2, vol. XI, Evidence, p. 198, Q. 2386.

59. Raja Rammohan Roy's evidence, P. P., 1831, vol. 5, Q. 7, p. 716-Appendix No 39.

60. Regulation 8 of 1793; Section 57, Clause 1. R. Clarks, *The regulations of the government of Fort William in Bengal*, vol. 1, p. 75.

61. *Ibid.*

TABLE 16
Nirkibandi of Taraf Pullua, Burdwan, 1799

Types of lands	Pullua village one		Fulbari village two		Padapukaria village three	
	Rate per bigha					
	Rs. Annas		Rs. Annas		Rs. Annas	
Paddy land/Aus	0	12	1	0	1	0
„ /Aman	0	2	1	0	0	15
House plots	1	4	1	4	1	2
Garden	1	14	1	8	—	—
Cotton	0	15	0	14	0	14
Long pepper	3	2	3	0	—	—
Bamboo	1	4	1	4	—	—
Indigo	1	1	1	6	1	2
Tobacco	1	20	1	10	1	8
Chilly	1	6	0	12	0	8
Danga/udbasto	0	14	0	12	—	—
Waste/cultivable	0	6	0	0	0	7

Source : B. O. R. P., 24 May 1799, Appendix G, P73/47.

The claims of the *khudkast ryots* to perpetual rates and the zamindars' attempts to fix new rates at the expiry of every lease, which never exceeded ten years in duration, led to conflicting verdicts in the courts. At last this customary right to *nirk* was invalidated by Act 5 of 1812 which empowered the zamindars to grant "lease for whatever period they may seem proper and at whatever rent."⁶² Thereafter the zamindars pushed up their rents though their claims could rarely be met by increased wealth in the hands of the tenants.⁶³ Continuous increase in rents led to peasant disturbances in some parts of Bengal, as in Rangpur, where there were constant breaches

62. Regulation 5 of 1812, Section 2, see R. Clarke, *Digest, or, consolidated arrangement of the regulations and acts of the Bengal Government from 1793 to 1854*, p.175.

63. T. Fortescue's evidence, 3 April 1832, P. P., vol. XII, Q. 484, p. 49, Fortescue held various high judicial posts from 1789 to 1830.

of the peace. The Commissioner reported from that district in 1825 that the rise in the rents since the decennial settlement had been considerable.⁶⁴ The peasants of pargana Sherpur in Mymensingh openly revolted against their oppressive landlords in 1825. The judicial investigation found inhuman exactions which had led to their actual rebellion. The Commission gave the following table of rents for five select villages, showing the enormous increase in the rents since the permanent settlement.

TABLE 17
Rents in five select villages in

Villages	Sherpur Pargana		
	Rent in 1793	Rent fixed in 1826	Ijaradar's demands on the ryots
	Rs.	Rs.	Rs.
1. Ghosh Gaon	652	1,300	2,650
2. Gonai	134	400	—
3. Bangaon Dubah	11	72	200
4. Borak	40	150	301
5. Telikhali	—	40	160

Source: B. O. R. to G. G. in C., 19 November 1827, *B. O. R. P.*, 19 November 1827, No. 32, para. 3, P.80/47.

A similar kind of rack-renting was reported from other districts. Considering all these, the Board of Revenue at last recommended the Council to enact such regulations as would ascertain and clearly define the rights of the respective parties. Otherwise, the Board apprehended, "the landholders will continue to increase their rents whenever a convenient opportunity may present itself for doing so."⁶⁵

64. Rangpur Commissioner to B. O. R., 8 August 1826, *B. O. R. P.*, 18 May 1827, No. 75, P.80/39.

65. B. O. R. to G. G. in C., 19 November 1827, para. 3, *B. O. R. P.*, 19 November 1827, No. 32, P.80/47.

Zamindars' role in the improvement of agriculture

It would be a serious mistake, however, to suppose that the zamindars' prosperity rested only on the arbitrary increase of their rent rolls. It is beyond question that there was also a considerable expansion of agriculture from the permanent settlement onward. All the district collectors were unanimous in their opinions that from 1790 to 1801 there had been a remarkable extension of agriculture in their respective districts.⁶⁶ In 1811, Dowdeswell, the Secretary to the Board of Revenue, said that vast tracts of land were brought under cultivation since the permanent settlement.⁶⁷ The expansion of agriculture inevitably led to an increase in the profits of the zamindars. But opinions differed as to who had been responsible for such expansion. One school believed that the permanent settlement was itself responsible for the boost to agricultural production. Colebrooke, the champion of this school, believed that the incentive given by the fixed government demand and by government's recognition of the zamindars' proprietary rights over the waste land surrounding their estates was responsible for the reviving prosperity of the province. He wrote: "The happy result of the permanent settlement was now witnessed in Bengal. The reviving prosperity of the country, its increasing wealth, and rapid improvement are unquestionably due to the permanent settlement the principle of which was so wise that even the serious errors which were committed in filling up the outline of the plan, could not ultimately disappoint its views."⁶⁸ But Colebrooke's opinion was seriously challenged by other groups, especially the utilitarians. They admitted without reserve that cultiva-

66. Collectors to the Chief Secretary, *C. J. P.*, 8 July 1802, Nos. 79, 83, 96-7, 101, 106, 108, 111-12, 21, p.147/57.

67. Dowdeswell's Minute, 16 October 1811, *B.O.R.P.*, 16 October 1811, No. 22, p.76/160

68. Councillor Colebrooke's Minute, 20 June 1808, para. 27. Minto Papers: M 338 (Scottish National Library).

tion had expanded phenomenally since 1793. But for all such progress, according to them, it was the *ryots*, not the zamindars, who were actually responsible. In his evidence, James Mill said: "I have no idea that the zemindary system is favourable to the accumulation of capital in the hands of the *ryots*, and there is express evidence of the fact, that it is the *ryots*, and not the zemindars who have extended the cultivation."⁶⁹ Mill further continued: "I am not aware of any instance of encouragements having been given by the zemindars, and I have a distinct recollection of statements, more than one, by the collectors in those districts, that the progress of cultivation is owing entirely to the *ryots*, and not to the zemindars."⁷⁰ The role of the *ryot* in the agricultural expansion was further emphasised by Henry Newnham of Bengal Civil Service, who declared: "Many persons advocate the zemindari cause by alleging outlay of capital, but it is seldom more than a mere current loan, repayable at a very high interest, or, which is worse, the repayment in commodity at a very much lower price than the market price; but as for any permanent outlay of capital in digging wells and making tanks, I fear that there are very few instances of the zemindars laying out capital in that way; the great improvements in the country take place from the junction of the *ryots* in different labours, at least I have seen them making bunds across rivers, sinking wells, making water courses from tanks or collections of water, and undertaking many important works of that kind."⁷¹

Newnham was probably right in his belief that the zamindars paid little attention to laying out capital in the development of the agricultural infrastructure. Instead, they gave small takavi loans towards the reclamation of wasteland, repayable with inter-

69. J. Mill's evidence, P. P., 1831, Vol.5. P.314, Q. 3348-49.

70. *Ibid*, Q. 3355.

71. H. Newnham's evidence, 7 May 1832, P. P. 1831-2, vol. XI. Q. 2737, Evidence, p. 233.

est either in cash or in kind.) In 1802, the collectors were required to inform the Council whether or not the zamindars had turned themselves into improving landlords after the permanent settlement. The interrogatory was: "Do the proprietors of land in general attend to the permanent improvement of their estates by the making of embankments, digging of tanks and establishing such other works as are calculated to increase the produce of lands?" The collectors without any exception replied that they found no trace of such works undertaken by the zamindars.⁷² But why? Why did not they, like their British contemporaries, develop agricultural capitalism in Bengal? This query does not admit any simple and straightforward answer. It has social, psychological, economic, historical and political reasons. We do not, of course, intend here to engage in a grave and detailed discussions on the problem. The zamindars were under crushing pressure during the first decade of the permanent settlement. The dusts raised by the storm in the land market during this period quite settled down from the beginning of the nineteenth century. By then the zamindars got themselves adjusted with the new system. But that does not mean that they would at once embark upon a campaign of land improvement.

Under the normal economic behaviour the capitalists would invest his capital only in those section where his capital would enjoy maximum safety and at the same time fetch satisfactory dividends. Capital investment in land was certainly most safe and profitable compared to other opportunities available at the time. Land control was also socially prestigious. To the investors there were several alternative modes of capital investment in land: firstly, to undertake improving measures, such as, irrigation, agricultural loans, supply of seeds, implements, etc.; secondly, to extend cultivation by clearing the wastelands; and thirdly, to buy new estates. The zamindars, old and new, usually

72. District Collectors to the Chief Secretary, Government of Bengal, C. J.P., 8 July 1802, Nos. 79, 83, 96-97, 101, 106, 108, 111-112, Q. 10, P147/57.

preferred the last alternative. Instead of improving or extending cultivation, it was much wiser for them to buy new estates already under cultivation. Such purchase enlarged their parent estates, consolidated their social positions, and at the same time opened up new sources of incomes.

Besides land purchase, the zamindars had other lucrative opportunities, such as the purchase of government bonds, the financing of agency houses, money-lending, etc. The affluent zamindars mostly bought new lands and also purchased government securities. They liked to buy securities, because these pleased the government and brought certain dividends too.⁷³ The raja of Burdwan, as for an instance, bought numerous new lots at auctions to enlarge his already great estate. He also bought government securities worth several lakhs of rupees.⁷⁴ That other wealthy zamindars also followed his footstep is made clear by the Council's advice to the Board of Revenue in 1819, not to liquidate the bonds of the raja of Burdwan to make good his huge arrears, because such action, the Council feared, would "shake the confidence of other landholders" who [had] purchased bonds.⁷⁵

This will be quite unhistorical to suggest that zamindars were always guided by the economic considerations. In explaining their economic behaviour we must not lose sight of their social and religious roles. Historically, a zamindari in Bengal was more a political and social institution than an economic one. With the coming of the British their political role was ruined, but their social role remained. The society expected that a zamindar must befittingly spend in marriages, religious festivals, *shradhs*, pilgrimages, and numerous other ceremonies in which the tenantry would participate directly or indirectly and would

73. Prinsep's Report, *C. J. P.*, 8 October 1819, No. 38, P149/67.

74. Burdwan Collector to B. O. R., 27 May 1819,
B. O. R. P., 1 June 1819, No. 12, P78/35.

75. G. G. in C. to B. O. R., 15 June 1819, Nos. 40, 40A, P78/35.

boast of their landlords, power of consumptions. It was expected that he would support the Brahmins, pundits, *pirs* (muslim spiritual guides), etc, by liberal land grants and cash donations. It was also the people's expectation that their zamindars would finance educational institutions, charitable houses, and build temples and mosques, for them. All zamindars seeking social recognition and leadership, rank and status were socially bound to spend generously on all these economically unproductive projects and purposes. The whole social philosophy was otherworldly and fatalistic. Under such an anti-life environment we can hardly expect that a zamindar as an integral part of society, would behave like an economic man.

(Even if we suppose that the zamindars were quite ready to participate in developments, could they have really done so profitably? Did the conditions under which the British landlords brought agricultural revolution exist in Bengal? Certainly not. A certain amount of industrialisation is an essential prerequisite for agricultural growth. No trace of such industrialisation was there in Bengal. Rather, whatever industries were previously there steeply declined ever since the coming of the British. The landholders in Britain were basking under a rising economy. Steadily rising prices of agricultural products induced the landholders to improve land and maximise their profits. But in Bengal the prices of agricultural products showed decreasing trends upto the end of the eighteenth century. From the beginning of the nineteenth century prices tended to rise. But it was too dim and dull for capital investment in land. The British landholders, again, got patronage from the state. Infrastructure was developed to minimise the time and cost of transports. Agricultural industries were built up to absorb the farm products, Board of Agriculture was established to co ordinate agricultural developments. But such kind of state responsibility was always avoided by the alien merchant government of Bengal. The Company's government was interested only in the punctual collection of revenues and their due home remittance. It is quite utopian to expect that under

such circumstances zamindars would develop capitalistic outlook and improve agriculture.

One remarkable feature of the post permanent settlement developments was the increasing tendency of the landholders not to reside on their estates. Towards the end of the eighteenth century a great many rich landholders retired to the cities.⁷⁶ With greater prosperity from the beginning of the nineteenth century, the city-ward march increased its momentum. By the 1820s, according to Holt Mackenzie, the Secretary to the territorial department, a majority of the rich zamindars had taken up their residence in the cities. Thus 'the Bengal Baboos,' wrote Sutherland,' and persons of that description, who now appear to be the principal zemindars, are as much foreigners in their habits and pursuits to the cultivating classes as we are. They live in cities and towns far away from their zemindarees, and know less of the people than either our judges or collectors who live amongst them.'⁷⁷

It does not seem that this new social development grew merely out of the zamindars' urge for greater comforts and luxuries, as the popular belief goes. It seems that absenteeism was the direct product of the competitive land market that was introduced under the aegis of the Government. Every aspirant bought auction land wherever it was to be found and thus built up a patch-work zamindari with estates unconnected and distant from each other. The Kassimbazar family thus purchased some hundreds of estates all over the country. The Kandi zamindari was scattered from Agra in the west to Noakhali in the east. The state of all other considerable new families was very similar. Under these circumstances, the proprietors had no alternative but to choose a convenient city base wherefrom they could well operate their remote control system.

76. Judges of Burdwan, Dacca, Jessore and Rangpur to Judicial Secretary, C. J. P., 8 July 1802, Q.26, Nos. 26, 45, P147/55, 53, 69, P147/56

77. J. Sutherland, *Sketches of the Relation Subsisting between the British Government and the different native States*, P14.

Frequent local resistance to the auction-purchasers whose possession was often disputed was another important factor for absenteeism. The dispossessed zamindars in combination with the chief *ryots* applied all their local influence to beat off the *nilamdar* or *lotdar* as they were called in ridicule. Their fierce resistance took the form of endless civil and criminal suits, of physical violence, of non-co-operation, and of social excommunication."⁷⁸ Being put into such predicaments, the new purchaser was often forced either to sell his right or make terms with the old proprietor installing him as the perpetual leaseholder. In either case he was then likely to leave again for the city. A great many old proprietors, again, made themselves functionally absentees in the sense that they, though physically present on their estates, abstained from any personal supervision of their zamindaris. From the disgust and annoyance they received from all public and private importunities under the new system, they found "it more safe and convenient to their estates, to relieve themselves and thus leave the onus of these impositions or duties to be executed and undertaken by their representatives, the *mustageers*."⁷⁹ In the words of Buchanan, these resident landlords, "never pass the threshold of their doors, except to assist at some religious ceremony and are either sunk in a miserable superstition, a prey to religious mendicants, and other idle persons, or are totally abandoned to dissipation, and some are addicted to both vices."⁸⁰

In short, the permanent settlement, as expected by its authors, did not turn the zamindars of Bengal into landed entrepreneurs. The zamindars faithfully preserved and practised the Mughal pattern of management. Their traditional dependence on their underlings rather increased with the increase of absenteeism. If they formed an affluent class at the end

78. R. Carstairs, *Human Nature in Rural Bengal*, PP. 287-308.

79. G. A. Blake to B. O. R., 3 August 1827, *B. O. R. P.*, 16 October, 1827, No. 37, Query No. 5, P80/45.

80. Francis Buchanan, *Dinajpur*, P.251

of our period, it was positively not because of their capitalistic enterprise and capital investment but because of the increased population, increased rent, increased prices and increased value of landed property.

Zamindar Ryot Relations

Cornwallis believed that, since the prosperity of "zemindars was inextricable bound up with [that of] their *ryots*, they could not but be lenient with their tenants; and for the sake of their own interests they must look after the welfare of the *ryots* under them.'⁸¹ The noble man's belief was based on his European experience. Moreover, he himself was an improving landlord. But in the context of Bengal his idea was utterly utopian. Here the conduct of zamindars was not regulated by the economic dictums but by dictates of their needs and avarice, their rank and status. His rank and status constrained him to live economically. The society around him expected of him to be generous in spending. As regards expenditure at times of births, deaths, marriages, pilgrimage, festivals, etc. it was aristocratic not to count the cost. It was again aristocratic not to inquire into how the money was raised for his consumption. So long vigour of life kept them lively they must remain immersed in sensual pleasures, ceremonies and consumptions. But when weakened by age they tended to turn into mystic and otherworldly to the utmost. That was how the typical Bengali zamindars ended up their lives.⁸²

In records we find numerous letters, petitions, memoranda, from collectors, judges, magistrates, missionaries, about the zamindari oppressions. But as to the methods of oppression we

81. G. G. in C., to C. D., 12 April 1790, *General Revenue Letter* E/4/638, also in G. G. in C. to C. D., 19 September 1792, *General Revenue Letter* G. G. in C. to C. D., 6 March 1793, *General Revenue Letter* E/4/52.

82. See Sirajul Islam, "The lifestyle of zamindars in the nineteenth century, *Dacca University Studies*, vol. XXI, June 1973.

got very little idea from those evidences. The Thakbust and Revenue Surveys of 1850s revealed that the zamindar's process of social control and exploitations was much more oppressive than we thought to be. Over and above the normal rents the *ryots* were subjected to uncertain number of illegal *abwabs* under various denominations, such as *tahuri*, *bhet*, *naib nazar*, *khod nazar*, *roshan*, *dakhila chanda*, and so on. Following was the nature of *abwabs*, prevalent in the village of Patuakhali in Barisal district in 1820s.

Mauza Patuakhali

Estate Touzi No. 4645

Zilla Barisal

Kanungo Kagajat

Bundle No. 123

Nathi No. 7.

Barisal Collectorate Record Room

Khod nazar or present to zamindar Rs. 4 per jama.

Naib nazar or present to the naib Rs. 2 per jama.

Tuhuri or miscellaneous 1 anna per rupee.

Roshan or charges for light in the zamindar's house and kacharies 1 anna per kura of land,
(Rent of 1 kura = Rs. 5).

Bhandari and *Muhuri*, 12 annas per jama.

Dakhila or possession charge 2 annas per jama.

Peada and *mridha*, Rs. 3 per jama,

Matbari or charge for village leaders, Rs. 1 per jama.

The amount of *abwabs* paid by each tenant averaged of about one fourth of the actual rent. The Revenue Survey reports from each revenue circles in Bengal indicate that one fourth of the actual rent was the usual rate everywhere.⁸³ The *rabkari* or papers challenging the decisions of the Thakbust and Revenue surveyors tell us that the practice of *abwab* exactions existed

83. The Thakbust and Revenue Survey reports are now preserved at the district collectorate record rooms in manuscript forms.

from the time of Warren Hastings, even before. In spite of the abolition of all these oppressive taxes with proper compensations in 1790, the zamindars never stopped collecting these illegal cesses. Besides these cesses to which the ryots were more or less accustomed, the zamindars had other devices of extortions. 'No marriage could take place without the permission and sanction of the landlords and the interference of the agents (peadas and mridhas, etc.) who conducted the matrimonial affairs of the tenants as they liked. An abwab called "*sadiana*" was exacted on each case of marriage."⁸⁴ As the lord of his area, the zamindar used to maintain *cutchery* court to try all cases of offence and complaint, both civil and criminal, and fine the guilty persons very heavily and realise the finge so exacted, with iron hands.⁸⁵ Of all the means of making money the *chanda* or subscription system was the most important. By this method the zamindars realised large sums of money, and it seemed to be the chief concern of them to invent any means to demand *chanda* from their ryots. On the following occasions the ryots were required to pay *chanda* :⁸⁶

- (i) If a zamindar or any one of his family happened to go in pilgrimage ;
- (ii) if the sons of the landlord or himself took any pleasure trip to Calcutta, Dacca or any distant place ;
- (iii) on the occasions of marriage, death and feasting etc. of the zamindar's family or of a relative of his ;
- (iv) the auspicious arrival of the zamindar at the local cutcheries, etc.

On payment of satisfactory *salami*, *sanad* or patent was issued to these affluent ryots who sought higher social status

84. J. C. Jack, *Final Report on the Survey and Settlement Operations in the Bakarganj District, 1900 to 1908*, Appendix p. ciii

85. *Ibid.*

86. Colonel Gastrell's report on the operations of the Revenue survey in Dacca, Barisal, and Jessore, 18 December 1859, Jessore District Records, Jessore Collectorate Record Room.

in the village society. The tenants who enjoyed higher social status, but not on the basis of zamindari *sanad* were required to give fines occasionally particularly during the Durga Puja and Nabanna or new harvest, and failure to this was dealt with further fine, etc. In most zamindaris tenants were also required to pay a *salami* to zamindar before they used a palanquin, umbrella, shoes, etc. These feudal charges were collected as tokens of submissions.⁸⁷

It may be asked, why did the ryots submit to all these oppressions? Every zamindar used to maintain an army of *lathials*, *pykes*, *peadas*, *mridhas*, etc. to resist internal risings or external attack from the neighbouring zamindars. Tenants were made docile and submissive by a policy of divide and rule. In order to check the possibility of the tenants being combined against them, the zamindars contrived to take into their services, the most articulate and influential tenants, as *peada*, *mridhas*, *sikdars*, *jamadars*, and *matbars*, etc. They were granted the best land of the village at the lowest rates of rent, and they were also exempted from the payments of *abwabs* and other feudal exactions. In return of these privileges they were required to render blind support to all measures of zamindars. Through the agency of these privileged men the zamindars dominated over the social and private affairs of their tenants. In the absence of any leadership and organisation the poor ryots were forced to resign to their fate and survival in the midst of servility, ignorance, fatalism and all attended superstitions.

In short, whatever the theory and principle of permanent settlement might have been, the zamindars never appreciated the intentions of its authors. Through their greed, chicanery and evil devices the whole purpose of the system was defeated and the rights of *ryots* were robbed.⁸⁸ The *ryots* were thrown

87. *Ibid.*

88. Thomas Fortescue's evidence, 12 April 1832, P. P. 1831-2, vol. XI, Q. 2312,

to such a vicious circle of subsistence economy as would never enable them to accumulate capital in their hands and rise from the vicious life of poverty and ignorance. To quote Raja Rammohan, "when grain is abundant, and therefore, cheap, they are obliged to sell their whole produce to satisfy the demands of their landlords, and to subsist themselves by their own labour...In short, such is the melancholy of agricultural labourers, that it always gives me the greatest pain to allude to it."⁸⁹ The Governor General Lord Hastings recorded in 1819, "Never was there a measure conceived in a purer spirit of generous humanity and disinterested justice, than the Plan for the Permanent Settlement in the Lower Provinces. It was worthy the soul of a Cornwallis. Yet this truly benevolent purpose, fashioned with great care and deliberation, has, to our painful knowledge, subjected almost the whole of the Lower classes throughout these provinces to most grievous oppression too, so guaranteed by our pledge, that we are unable to relieve the sufferers."⁹⁰ In the same tone the Parliamentary Select Committee from the House of Commons announced the complete failure of the permanent settlement. The Committee reported: "A great body of Evidence has been taken on the nature, object and consequences of this Permanent Zemindary Settlement, and our Committee cannot refrain from observing that it does not appear to have answered the purposes for which it was benevolently intended by its author, Lord Cornwallis, in 1792-93."⁹¹

89. Raja Rammohan Roy's evidence, *P. P.* 1831, vo 15, Appendix No, 39.

90. Lord Hastings Minute, *P. P.* 1831-2, vol. XI, Report, pp. IV-V.

91. *Ibid.*

CHAPTER EIGHT

THE LIFESTYLE OF THE ZAMINDAR CLASS

It was theoretically assumed by the authors of the permanent settlement that the new system will turn the zamindars into improving landlords as their counterparts in Europe. But practically it never happened. Why? It has been partly explained in the preceding chapter why the zamindars failed to turn themselves into improving landlords. In this chapter a further attempt shall be made to illustrate the lifestyle of the zamindars in order to show that the feudal values were still too triumphant to permit them to give up the habits of consumption for enterprise and improvement. For our treatment mainly the lifestyle of the leading zamindars will be considered here. The paucity or absence of information of all landed groups makes it impossible to classify the zamindars into different social groups on the basis of their origins, incomes, caste and professions, and then to look at their social behaviour, tastes and attitudes towards life as various social groups. The life of the great zamindars certainly differed from that of their inferiors with modest incomes. Again, it was also to be expected that the mode of life of an established old family should differ in many respects from that of an upstart one. But whatever the differences among themselves in regard to their origins and incomes and consequent attitudes towards life, it is true that for the contemporaries they formed a reasonably homogenous group quite distinct from the rest of the society. The zamindar class as a whole formed the solid core of the society, mainstay of its religious and cultural activities and backbone of the local committees that managed the social affairs. In spite of many differences the smaller zamindars always tried

to imitate the lifestyle of their social superiors as their means permitted them.

A zamindar's attitude to money, when he was once accepted by the established society, was generally extravagant especially when an occasion called for display. At birth, marriage, or *shradh* and above all at a *Puja*, the Durga Puja most of all, it was aristocratic not to count the cost.¹ A man of rank must behave like a man of rank and the acid test was expenditure. His every activity involving expenditure was to be marked by a publicity which served to emphasise and enhance the standing of his family.

The chief annual occasion of display was the Durga Puja when the keenest competition was exhibited to see, "who shall have the most splendid illuminations, the choicest singers, the richest viands, the most distinguished guests, and the greatest fame for liberality."² The great *Rajas* and *Babus* "had not the moral courage to think of abating one item of extravagance, or running the hazard of being eclipsed in one particular, in the approaching contest: for such it truly is."³ The widest gateway to social reputation was to entertain the senior civil, judicial and military officers who were invited far in advance lest they had the misfortune of having no European to adorn their houses at all.⁴ The most splendid feature of the celebration of the Durga Puja was the *natch* or dances performed by the professional girls. Most of these *natch* girls were Muslims and came from Hindustan. The most celebrated and expensive Muslim *natch* girls whose performance was frequently displayed to the Europeans were Niki, Ashroom, Ninnat, Faiz Baksh, Begam Jan, Hingul, Nani, Supajan

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1. See, N. K. Sinha, vol. II¹. pp. 95-101. On the basis of the Supreme court records, he has given some case examples as to the religious extravagance of the zamindars.
 2. *Friend of India*, Editorial, 24 Sept. 1833, vol. 1. p. 305, col. 1.
 3. *Friend of India*, Editorial, 24 September 1835, vol. 1, p. 305, col. 1.
 4. *Calcutta Courier*, 6 Oct. 1833, also, 10 Oct. 1832, p. 2.

and Baiji Bhai.⁵ The Banaras branch of the famous Dutt family of Calcutta performed Durga Puja in Banaras in such a gorgeous style that they appointed dozens of top ranking dancing girls for a whole fortnight and entertained the stream of visitors by their non-stop performance.⁶ Even a man like Raja Rammohan Roy did not lag behind with regard to the pomp of life. Fanny Parkes narrated an expensive party given by him. As she recorded in her diary: "1823, May.—The other evening we went to a party given by Ram Mohun Roy, a rich Bengallee baboo; the grounds, which are extensive, were well illuminated, and excellent fireworks displayed. In various rooms of the house nach girls were dancing and singing. The style of singing was curious; at times the tunes proceeded finely from their noses; some of the girls were very pretty; one of the women was Nickee, the Catalani of the East."⁷ The *Asiatic Journal* reported in August 1816 that most of the landed families in Calcutta maintained dancing girls for entertainment.⁸

The maintenance of expensive dancing girls in the households of zamindars whose rise to power and consequence was a recent phenomenon, was a direct imitation of the *darbar* of the established landed aristocracy.⁹ Most of the zamindars of rank and status held regular *darbar*. The audience was composed of important visitors, estate officers, local gentry, priests, poets, pundits, etc. all of whom customarily offered some presents as a mark of their respect and loyalty to their masters. Dance and music constituted an important part of that *darbar* life. The following extract from a description of the *darbar* of the Raja of Nadia in the late eighteenth century by the Raja's court

5. See Brajendra Nath Banarji (ed.), vol. I, pp. 465-66, and *Calcutta Courier*, 6 Oct. 1832.

6. Mitter Family at Banaras, *Tract* 369 (V. O. L.), p. 21.

7. Fanny Parkes, *Wanderings of a Pilgrim*, vol. I, pp. 29-30.

8. See, Brajendra Nath Banarji (ed.), vol. I, p. 466.

9. See, Dinesh Chandra Sen, *Glimpses of Bengal Life*, pp. 38, 45.

poet Bharat Chandra would give an idea of the court etiquette of the old aristocracy: "The sepoys (soldiers) stood in rows in the audience hall with clasped hands, with shields on their breasts and swords hanging from their belts. The *gharials* or officers-in-charge of royal clocks stood on either side. *Chapdars*, or office peons, stood in a line with golden staffs in their hands. In a prominent place stood the *arajbegi*, the officer who received applications and submitted them to the king. The *Bhats*, or the court minstrels, sang His Majesty's praises, the *Masahibs* or the court parasites, were all there. The latter watched the mood of their royal patron. There were the Munshis, the Baxis, the physicians, the Kazis or the magistrates, the *Kanungos* or the surveyors and others whom the king allowed access to his court. The musicians with the *Rarab*, the *Tammura*, the *Vina*, the *Mridanga* and other instruments had a place reserved for them."¹⁰

In many darbars there were also male dancers performed along with their female partners¹¹ The atmosphere in the dancing hall was always rigidly formal. Any loud laughter, talk or display of jubilation was considered as serious violation of the darbar etiquette. So grave an atmosphere at the time of music and dance was a strange phenomenon for the invited European guests. An anonymous English poet wrote about the scene in the dancing hall in the following words:¹²

"native grandee thinks of songs and dancing
But as amusement to be heard and seen ;
He'd be *be-boormuttet* who came in prancing,
and roaring out a persian stave, I ween.
Grave looks and solemn carriage is the screen,

10. Translated by and quoted in, Dinesh Chandra Sen, pp. 45-46.

11. Nadia Collector to B. O. R., 29 April 1817, B. R. C., 27 June 1817, No. 4.

12. *Bengal Harkuru*, 2 Aug. 1822, "India", Stanza 19.

To many a merry thought and droll conception,
 Intrigues, collusions, heart burning and spleen,
 That play within—they an unguarded step shun,
 And all without is merely flummery and deception."

Religion provided the great occasions for extravagance and the prestige of a family in the eyes of the society increased or decreased according to the amount of money spent upon religious ceremony. According to N. K. Sinha, "Gangagobind Singh spent 15 lakhs on the occasion of his mother's *sradh*. Nobkissen spent 9 lakhs on a similar occasion."¹³ Maharaja Nabakrishna wrote in his will: "I direct and order that my son Raja Rajkissen shall erect or cause a pagoda to be erected and built in Sootanoty or near to the house I now inhabit and that he shall lay out and spend on the erecting or building the same a sum of 50,000 rupees. My son Raja Rajkissen and his heirs shall constantly furnish and supply to my four *thakoors* (idols)—Salgram, Gopeenath, Gobinda and Madangopal and the *Thakuranis* of the said Gopeenath, Gobinda and Madangopal—all the expenses, money and property for keeping the usual and accustomed *pooja* (worship) in the same manner in which they were kept in my life time."¹⁴ Mohini Mohan Tagore similarly wrote in his will: "You will perform the services of my paternal idol according to my share. 30,000 rupees are set apart with the interest of which you will perform that service. You will cause the *Bhagbat* to be read once for me for Rs. 500/-, Mahabharat Rs. 1500/-, Ramayan Rs. 500/-. Establish the worship of 12 shivas and images of Thakur and Thakurani Rs. 30,000/-. After the images are installed, make an endowment of Rs. 30,000 to feed persons, lay out Rs. 3,000/- for digging a tank."¹⁵

13. N. K. Sinha, vol. III, p. 98.

14. Maharaja Seebkistro Bahadur vs. Kisto Chunder Ghosh, April, 1835 quoted in N. K. Sinha, vol. III, p. 97.

15. Connylol Tagore and another vs. Ladleymohan Tagore and another, 1828 quoted in N. K. Sinha, vol. III, pp. 97-98.

The contemporary newspapers and periodicals widely reported how the wealthy aristocrats were vying with each other in reckless spending in the name of religion. The shradh of the wife of Raja Gopimohan Deb of Sobha Bazar was so gorgeously performed that tens of thousands of poor people and Brahmins received cash presents from the Raja and such was the rush when money was distributed that fourteen men were trampled to death and a great many others were injured in spite of the fact that magistrates and the Raja's officers had taken special precaution to avoid such incidents.¹⁶ The Serampur based Samachar Darpan elaborately reported these Hindu shrads including the massive amount of money spent. In the shradh of Gopimohan Tagore about three lakhs of rupees were spent.¹⁷ More than two lakhs of people attended his shradh and they were accommodated in a hundred and six houses till their final departure with presents for all.¹⁸

Pilgrimage to holy places was another wide outlet for expenditure. No zamindar of any social standing could avoid social criticism if he failed to visit the holy shrines at least once every two or three years. It was such a common practice that many zamindars purposely left their homes in order to avoid payment of revenue.¹⁹ When they moved out for genuine pilgrimage it was customary to take the entire household with them. For instance, the Kandi zamindar of Murshidabad when he proceeded to Gaya and Kasi in July 1822 was accompanied by some seven or eight hundred family members, relations, private tutors, priests, pundits, friends,

16. *The Bengal Hurkaru and Chronicle*, 29 January 1833, p. 3, col. 3.

17. *The Samachar Darpan*, 24 Oct, 1818, see Brajendar Nath Banarji (ed.), vol. I, p. 294.

18. *The Samachar Darpan*, 24 October 1818; See, B. N. Banarji (ed.), vol. I, p. 294.

19. B. O. R. to G. G. in C. 1 11 April 1794. B. O. R. P. 11 April 1794, Nos 30. 34. P72/29

estate officers and *Baisnava* singers, accommodated in twenty eight luxury boats.²⁰

To build temples, *ghats*, tanks, alms-houses, and to live in Banares or in other holy places during one's old age, were other features of the religious behaviour of the zamindars. In the following words, N. K. Sinha has rightly described the minds of the wealthy Hindus, especially of the banians of that time. "Almost all banians could be regarded as upstarts but so overwhelming was the Hindu religious tradition that every one felt a natural yearning, as he grew in years, to earmark or to spend a very considerable portion of his accumulated wealth on religion and charity. The overwhelming Hindu tradition was that all great accumulations were for subsequent distribution. The greedy astute banian, as he grew in years, was no longer the economic man. There was now a mellow serenity about him. Enterprise, calculations, vanity, greed, ambition, parsimony were suddenly replaced by a religious urge."²¹ To cite some typical examples may not be out of place here. Krishna Chandra Sinha grandson of the famous Ganga Gobinda Sinha, made a large fortune by his astute business deals with the Europeans and built up a large but scattered zamindari stretching from Noakhali in the East to Agra in the West. But gradually he began to lose interest in worldly affairs. In the end he forsook the zamindari that he had built up so strenuously and turned into a *Baishnabh Bhikhari* or beggar residing permanently in Brindaban till his death in 1820.²² Kalisankar Roy, the founder of the Narail family of Jessore started his career as a *lathial* or club-man.²³ It has been said earlier that his intrigues and defalcations were partly responsible for the

20. *Samachar Darpan*. 6 July 1822, quoted in Brajendra Nath Banarji (ed) vol. 1, p. 265.

21. N. K. Sinha, vol. III, pp. 95-6.

22. Krishna Chandra's will, *B.R.C.*, 25 April 1820, Nos. 8 - 10, P58/33.

23. James Westland, p. 78.

break-up of the Rajshahi Raj. But when he grew old he became so devout that he repaired all the decaying temples formerly built by Rani Bhavani of Rajshahi.²⁴ About his piety in his old age the *Chandrika* reported : "We have heard that Kalisankar Roy lived a long life of eighty eight-years. His first seventy three years were spent in accumulation of immense wealth which is manifested in his acquisition of a vast zamindari. At the end of his life he entirely retired from worldly life and settled in Banares where he died in 1835 after fifteen years of constant prayer and distribution of alms."²⁵ Joynarayan Ghoshal, as a merchant and banian, acquired great landed property in Chittagong, Bakarganj and Banares. But with the approach of old age he lost all interest in worldly affairs and putting his son Krishna Chandra Ghoshal in charge of his zamindari, he retired to Banares.²⁶ He wrote in an introduction to one of his books : "The prime of my life was spent in worldly affairs. Sickness began at the end of my middle age. After fifty, decline of my body and health started. Then fear of death penetrated into my mind. I was thinking how to achieve salvation. For sometime I moved from temple to temple in Banares in search of God. At last I got the scent of Krishna. I developed love for Him and now I see nothing but Krishna."

Such other worldly attitudes after achieving success were to be found among most of the new families. It is difficult to say whether they adopted such an attitude in imitation of the old established families, most of whom were immersed in religious bigotry. About the habits of the old established landed families Francis Buchanan wrote : "A great part of them never pass the threshold of their doors, except to assist at some religious cere-

24. Samachar Darpan, 10 April 1824, quoted in Brajendra Nath Banerji (ed.) vol. I, p. 316.

25. *Chandrika*, 14 February 1835, Brajendra Nath Banerji (ed.), vol. II, pp. 451-2.

26. Translated from an extract of "Karunanidhan Bilash" quoted in Brajendra Nath Banerji (ed.), vol. 8, p.433.

mony, and are either sunk in a miserable superstition, a prey to religious mendicants, and other idle persons, or are totally abandoned to dissipation; and some are addicted to both vices.”²⁷ The name of the Rani Bhavani of Rajshahi became a household word in Bengal for her munificent activities. Her son Raja Ram Krishna was likewise known as the Raja saint of Bengal for his whole hearted devotion to religious causes.²⁸ He was a devotee of the Sakti cult and composed spiritual songs. The following extract from one of his songs would indicate his attitude towards life. He sang :

“If only my mind can reach realisation,
you may do with me whatever you will ; no
matter if you place me on a band of sand.
Only recite the name of the divine Mother
in my ears. This body of mine is so difficult
to control ; it yields to passion. O Bhola,
my guide, bring me my rosary ; I shall throw
it into the Ganges, no more formality.”²⁹

The mother and wife of Raja Girish Chandra Roy of Nadia narrated that the Raja had “devoted himself since he came of age to the most austere performance of his religious rites and being a Brahmin of the highest degree his chief time has been spent in religious *stuti* without respect to worldly affairs...”³⁰ Raja Banikanta Roy of Jessore was so much under the influence of the religious mendicants that he granted taluqas to them without considering his own fate as a result of alienating much of his lands.³¹

27. Francis Buchanan, Dinapur, p.251.

28. Dinesh Chandra Sen, *History of Bengali Language and Literature*, p. 721.

29. *Ibid.*, pp. 721-2.

30. B. R. C. 15 January 1814 No. 25. P. 56/12.

31. See B. O. R. P. 19 Nov, 1827, No. 8, P80/47.

Births and marriages were marked in the aristocratic circles by a publicity which served to emphasize and enhance the standing of the family. The usual practice, when a successor was born, was to entertain the neighbouring members of the aristocracy, distribute food and money among the Brahmins and poor and to arrange a performance by the dancing girls.³² But the greatest publicity through extravagant expenditure was reserved for the occasion of a marriage. The marriage of Raja Harinath Roy of Kassimbazar, for example, was continuously celebrated for fifteen days, during the course of which more than two lakhs of rupees were spent.³³ From the principal tenantry of the zamindari to the Governor General and the Nawab of Murshidabad, all were invited to attend the ceremony on various days fixed for each category of invitees.³⁴ Hundreds and thousands of people thronged to look at the adjuncts of the ceremony, such as horse and elephant shows, band parties, two and a half miles long fence of fireworks, dances and songs, drama, comics and caricatures.³⁵ After describing all the scenes the *Samachar Darpan* commented, "It would not have been a wonder if Raja Harinath had spent much more, because one must not forget that he is the grandson of Kantu Babu."³⁶

The Durga puja, births, marriages and deaths were thus the principal occasions when the zamindars vied with each other in spending money and tried to make people marvel at their wealth and bounties.

32. See, Brajendra Nath Banarji (ed.), vol. 1. pp. 217, 221.

33. *Samachar Darpan*, 27 March 1819 ; see, Brajendra Nath Banarji (ed.), vol. 1. pp. 267-8.

34. *Ibid.*, p. 268.

35. *Samachar Darpan*, 27 March 1819 ; see, Brajendra Nath Banarji (ed.), vol. 1. p. 268.

36. *Ibid.*, p. 269. For more instance of similar kind, see Brajendra Nath Banarji (ed.), vol. 1, pp. 266-275.

It was considered both unsafe and unaristocratic to keep the family mansions unguarded or to move out alone. Rajshing, an old zamindar of Pargana Susang in Mymensing paying government revenue of about thirty thousand rupees, kept one hundred matchlockmen and numerous other armed guards and when he moved out he was attended by his officers and friends in palanquin or on horseback and was guarded by about twenty five matchlockmen.³⁷ Bhabindranarayan Chowdhury, an old zamindar with a $5\frac{1}{2}$ annas share of Pargana Lashkarpur in Rajshahi kept more than one hundred men armed with swords, shields and matchlocks.³⁸ The greatest part of them were employed in guarding his family mansions and about fifteen of them attended him abroad.³⁹

The aristocratic custom of keeping armed guards was quickly borrowed by the new aspirants to social status. Shambhuchandra Pal and Krishnachandra Pal, the two founding brothers of the Ranaghat family of Nadia, as has been stated before, were men of humbly birth. But when they became wealthy zamindars they adopted the stately mode of life of an established aristocrat. Each of the brothers maintained about fifty armed guards, about half of whom attended upon them when they came out of their mansions.⁴⁰ The palace of Rajendra Mitter, another new zamindar from Calcutta, was encircled by a regular set of sentinels, with muskets and fixed bayonets. Besides, he maintained a big set of drummers and pipers to play at particular intervals every day in royal style.⁴¹ He always moved out in a silver *tanjam* (a sort of palanquin resembling a buggy, with

37. Dacca Provincial Court of Circuit, 9 June 1801, *C. J. P.*, 8 July 1802, No. 26, Interrogatory 26, P147/55.

38. Rajshahi Judge to Judicial Department, 10 April 1802, *C. J. P.*, 8 July 1802, No. 65, Interrogatory 26, P147/56.

39. *Ibid*

40. Nadia Judge to Judicial Department' 16 June 1802, *C. J. P.* 8 July 1802, No. 65, Interrogatory 26, P147/56.

41. An account of Mitter family, p. 20, *Tract* 369.

poles borne on the shoulders of bearers) accompanied by numerous bodyguards armed with gold and silver sticks, swords and spears.⁴²

There is no statistical data indicating the expense towards the maintenance of armed guards. The Raja of Nadia granted them rent-free lands called *chakeran-lands*.⁴³ The other zamindars probably followed the same principle of payment. But their visits abroad seemed to entail great expense. On such occasions they were invariably accompanied by a crowd of family members, officers, friends and flatterers whose maintenance involved a huge expenditure. The Raja of Nadia for example, paid a visit to the Governor General in 1814 when he had practically no zamindar to boast of. But so many friends, family members and other armed Gvards accompanied him to uphold his rank and status that he had to sell pargana Modarsa, one of his last remaining estates, in order to raise the cost of his stately travel.⁴⁴

A zamindar's family was wide in extent, embracing several generations and degrees of cousinhood. The inner family lived on the incomes of the estate and the estate was expected to succour the distant members of the family. In 1799, Graham, a member of the Board of Revenue, was in favour of abolishing the practice of selling defaulting zamindars' estates on the humanitarian ground that every landed family had numerous dependents who at once turned into beggars with the sale of their patron's property.⁴⁵ The religious and social obligation to support their kith and kin, including the families of their

42. An account of Mitter family, p. 20, Tract 369.

43. Nadia Collector to B. O. R., 29 April 1817, B. R. C., 27 June 1817, No. 4.

44. Kartik Chandra Roy, *Khitish Banshaballi Charita* (The Story of the Nadia Raj), p. 172, Tract Ben. 1855. In the introduction of the book, the author says that he and his ancestors were the Principal officers of the Raja of Nadia.

45. B. R. C., Graham's Minute, 29 August 1799, No. 5, P54/4.

slaves, imposed a great burden on the exchequer of a zamindar. The Raja of Birbhum had about four hundred family members on the roll of his regular monthly allowances.⁴⁶ However, very few zamindars employed their own relations in the zamindari services as farmers, renters, collectors or clerical officers. Europeans like G. A. Blake, who was an indigo planter in Purnia for about twenty years from 1788 believed that such exclusion of relations from the offices of the zamindari emanated from "the native jealousy against immediate relatives."⁴⁷ But while the element of jealousy may have been present in many cases, the most important factor was probably the family pride. It was considered a family disgrace in the context of the Bengali society of those days for a zamindar's relations to have to work for him into zamindari seresta along with others of humble birth. That strong feelings of kinship predominated in their attitude towards their relations is manifested in their common habit of buying lands benami in the names of their relations and also in their habit of granting lands collusively in the names of their relatives at a reduced rate of rent.⁴⁸

Instead of employing the junior members in their own seresta, the zamindars tried to provide them in Government services or in any European business firm by using their influence. The official posts appeared valuable in their eyes, from the dignity and standing which they gave in society, and from the opening which they afforded for indirect gains. "A good situation in the judicial, revenue, or commercial line is moreover considered as a provision for a whole family ; since a native who may have obtained one always pushes his own relatives into

46. Raja Zaman Khan's Petition to B. O. R., 28 April 1790, see *B. O. R. P.*, 3 May 1790 (no number and pagination). P71/24.

47. G. A. Blake to B. O. R., 5 Aug, 1827, *B. O. R. P.*, 16 Oct, 1827, No. 37. P80/45.

48. Burdwan Collector to B. O. R., 16 January 1802. *B. R. C.*, 11 Feb. 1802, No. 13-14, P54/23.

every employment within his reach."⁴⁹ To give a typical example, Krishnachandra Mitter, was appointed diwan to the Collector of Dacca in 1790 through the patronage of Edward Colebrooke.⁵⁰ He then influenced his superior officer to appoint his nephew Abhoycharan Mitter as the diwan to the Collector of the 24 Parganas.⁵¹ He also pushed his brother Ananda Mitter into the post of diwan in the Rajshahi collectorate.⁵² Abhoycharan then in his turn pushed his cousin, Shambhu Chandra Mitter to the post of a deputy in Mynpuri.⁵³ Besides government and other services, the junior members of the zamindar families also took up law and other professions, or entered into the old professions of the families before their entry into and. This flow from landed circles into business and other services and professions was one factor in preventing those families from being fully isolated from the rest of the society.

While religious ceremonial and the pleasures of social life occupied most of the zamindars, some at least devoted their lives to the cultivation of literature and music. The greatest figure among the writer-zaminders was Radhakanta Deb of Calcutta. His range of activities as a writer and as a patron of education among the Bengalis had been best expressed in one of his letters to Government in 1833. He wrote about himself in the third person: "Babu Radhakanta Deb, who is a Director of the Hindoo College, Member of the Calcutta School Book Society, Native Secretary of the Calcutta School Society, Vice-President of the Agricultural and Horticultural Society of India, Corresponding Member of the Royal Asiatic Society of Great Britain and Ireland, Member of the Asiatic Society

49. *Friend of India*, 19 Nov. 1835, p. 369, vol. 1, col. 1.

50. An Account of Mitter Family, p. 11, *Tract* 369.

51. *Ibid.*, p. 12.

52. *Ibid.*, p. 14.

53. *Ibid.*, p. 18

of Bengal and was a member of the late Saugor Island Society, has compiled, translated, and corrected several publications for the School Book Society. In 1821, he published a Bengali Spelling Book after Lindley Murray's plan, and also an Abridgement thereof in 1827. He translated a Collection of Fables [*Nitikatha*] from English into Bengali and revised the Bengali translation of an Early Introduction to Astronomy...He has for many years been engaged in the compilation of a Sanskrit dictionary, entitled *Sabda-Kalpa-Druma* in imitation of the Encyclopaedia Britannica, of which three volumes have since been issued from the Press, containing nearly 3000 quarto pages, and it will take some years more to complete the work."⁵⁴ His uncle Raja Rajkrishna, son of Raja Babukrishna and Raja Rajkrishna's son Raja Kalikrishna also earned considerable reputations as writers.⁵⁵ His brother Gopi Mohon Deb was elected as one of the original directors of the Hindu College for his liberal contribution to the College at the time of its foundation.⁵⁶ Like the the Debs, the Tagores were also given to intensive literary cultivation and to the patronage of education. Gopi Mohon Tagore, the actual founder of the Tagore family, gave the biggest subscription at the time of the foundation of the Hindu College and he was honoured by his fellow founders of the College who made him the hereditary Governor of the College.⁵⁷ Kali Mirza whose songs and hymns are still known in Bengal, Lakhi Kanta, the famous comic lyric poet, Radha Goala, the greatest wrestler of that time and great many other talented people from different professions lived and flourished on his bounties.⁵⁸ Joynarayan Ghoshal, the zamindar

54. Radhakanta Deb to W. H. Macnaghten, Secretary to Government 9 Nov. 1833, Public Consultation' 25 Nov. 1833, No. 59, quoted in Brajendra Nath Banarji, vol. I, pp. 445-6,

55. *Ibid.*, p. 477.

56. *The Calcutta Annual Directory*, Bengal Register for 1817, p. 118.

57. *Ibid.*

58. Loke Nath Ghose, part 2, p. 164.

of Sandwip, a big island near Noakhali, was the author of of about a dozen books, written on religion, music, philosophy and language.⁵⁹ In Banaras he "spent 80,000 Rs to build a college for the instruction of the poor, and 50,000 to defray its expense....."⁶⁰ The greatest patron of learning was Prankrishna Biswas, zamindar of Khardah of Calcutta district. His father, Ramhari Biswas was a diwan to the salt agent of Noakhali.⁶¹ Prankrishna inherited the vast zamindari that was newly built by his father in 1805.⁶² He appointed many scholars to write books about religion, medicines, language and music and got them printed and distributed among scholars and students entirely at his own cost.⁶³

For the education of the sons of the aristocrats of Bengal there were no public schools as in England. Instead they obtained their education mainly from private tutors who taught them Persian, Bengali, Sanskrit, Arabic and English.⁶⁴ But such an education from private tutors liberated few of them from a life of mere ceremonial and display. Citing a typical example, an anonymous writer wrote in the *Samachar Darpan* that the scions of the aristocratic families could make hardly any progress in education because of the flattering servants who surrounded them day and night and also because of insecure service of the tutors who had to pamper their pupils in order to retain their jobs.⁶⁵ In a satire called 'Babu Bilash' or 'The Babu's Luxury'

59. See Brajendra Nath Banarji (ed.), vol. 1, p.433.

60. Samad Kumudi, 5 Feb, 1822, quoted in Brajendra Nath Banarji vol. I, pp. 434-5.

61. See Brajendra Nath Banarji, vol. 1, p. 480.

62. *Ibid.* He did not appear in the list of the great new families because of the benami nature of his purchases.

63. *Ibid.*, pp. 73, 75, 480-1.

64. Dacca Provincial Court of Circuit, *C. J. P.*, 8 July 1802, No. 23, Inter, 14, P147/55.

65. *Samachar Darpan*; 24 Feb, 1821, Brajendra Nath Banarji, vol. 1, pp. 108-12.

published in 1823, Babu Pramatha Nath Sarma, the author of the book, attacked the aristocratic class as an ignorant lot incapable of supervising the education of their own children. The tale of a representative aristocrat was told by him with sparkling humour. The following is an extract from the book, describing the selection of a tutor : "After a long search made for a Persian teacher for the young boys, Dhar, the officer of the Babu, at last succeeded in securing one from Jessore. The Babu said, 'Listen to me, Munshi, you are to teach my boys Persian. You will put up in the outer apartments of my house. When my boys have occasion to go abroad, you should accompany them in their carriage. You will have free board and lodging besides a pay of Rs. 3 a month. The Munshi of Jessore heard this and departed without saying anything. Then many more Munshis were called in from Natore, Faridpur, Sylhet, Dacca, Comilla, Backerganj and other places. For full two months this coming and going went on, but no selection could be made. The Babu was not pleased with their pronunciation and dismissed them all on that ground. Finally a sweet tongued Munshi from the Chittagong side was appointed. He produced a certificate, showing that he had worked as a boatman. We have already indicated the extent of the knowledge of the Babu possessed in languages. He glanced at the certificate that was written in English and affecting a full knowledge of its contents said Yes this certificate says that you worked for a long time as tutor of Persian, the reason why your services were dispensed with have also been stated in this certificate.' Then he looked at the teacher and asked, 'How long did you serve under this European gentleman ? The Munshi said, 'Why, that is also written in the certificate. You may kindly read it again and see.' The Babu said, 'Yes, it is written alright, here. Under whom did you serve ?' The boatman replied, 'Sir, I served under the Balabar Company.' The Babu was very much pleased to learn that he had been a servant in the office of a European company. The boatman

was thus appointed to teach the boys Persian on the pay and conditions stated above.’⁶⁶

The very title of the book indicates that the writer was merciless in scorning the efforts of the newcomers to adapt themselves to aristocratic culture. But the established aristocrats were reluctant to recognise them as their equals. Their court poets and writers always ridiculed the strivings of the upstarts for recognition and expressed the greatest disappointment at the breakdown of the social structure in consequence of the entry of new men from diverse social backgrounds. Krishnakanta Bhaduri, the early nineteenth century court poet of the Raja of Nadia wrote in a poem : “This country has no future at all, because the whole social structure has become so upset now that to-day the sudras recite the vedas and the Brahmins listen to them. The thirty six major castes are now amalgamated into one. Its proof is ‘Huku’ or hubble-bubble [Implying that now the people of different castes smoke the same huku which was not the custom before].”⁶⁷ The most glaring example of the destruction of the country, for Krishna Kanta, was that his patron Raja Girish Chandra “who was the chief of the princes was now being looted and robbed by other forces”.⁶⁸

But if the old zamindars were proud of their ancestry, so were the new zamindars of their wealth, ability, enterprise and above all their closer association with the Government officials. They squarely attacked the older aristocracy for their false pride, ignorance, dissipation and profligacy. Ramlochon Ghosh, a new zamindar of Dacca and formerly a diwan of Hastings wrote in a signed article that “The old zamindars were victims of their uncontrolled passions and lead their lives like animals”. He continued, “one can see very few old zamindars

66. Quoted in Dinesh Chandra Sen, *Glimpses of Bengal Life*, pp. 278-279.

67. Life of poet Rashshagar, p. 44. Vern. Tract 2013 (I. O. L.)

68. *Ibid.*

of wealth and substance who follow a civilised mode of life".⁶⁹ He was advocating that the Government should take over all of their rent free lands, the sources of their lazy life, in order to activate them towards education and enlightenment.⁷⁰

One most important aspect of a zamindar's life was his building activities. In his *Kalikata-Kamalalay*, which was published in 1823, Bhavani Chnran Banerji observed that it was socially and religiously unbecoming on the part of a wealthy aristocrat not to leave behind him some lasting memorials such as roads, tanks, ghats, temples, schools, alms houses, inns etc.⁷¹ They also liberally contributed to government sponsored public works. One main aim behind all these charities, however, was to come into the good books of the government so as to get some title of rank which would fulfil the highest ambition of a native.⁷² Raja Bodynath's letter to goveanment provides a typical example of the nature of zamindar's contribution to public works. The Raja wrote that his family deserved the highest appreciation from the authorities, because his family contributed lakhs of rupees to public works. He claimed that from 1790 to 1826 his family built numerous roads, ghats, tanks, alms houses and hospitals.⁷³ In 1835, the

69. Ramlochan Ghosh to Bangabhasha. *Prakashika*, 31 Dec, 1836, Quoted in Brajendra Nath Banarji (ed.), vol. 11, p. 404,

70. *Ibid.*

71. Bhavani Charan Banarji, *Kalikatta-Kumalalay*. pp. 10-11. He was one of the greatest writers of early nineteenth century Bengal. Most of his works including *Kalikatta-Kamalalay* were social satires. His other satirical writings were *Babu-Bilash*, *Bibi-Bilash* and *Duti-Bilash*. In all these books he described the life-style of the new riches.

72. *Calcutta Courier*, 10 July 1833, p. 2, col. J.

73. Political Department Proceedings, 7 March 1845, No. 108, See, Brajendra Nath Banarji (ed.), vol. 1, p. 417. Raja Bodynath was the son of Raja Shukhmoy, the founder of the Posta Raj family in Calcutta. Shukhmoy, father of Naku Dhar was an interpreter of the Company before and for sometime after the battle of Plassey.

Board of Revenue made a list of the public works recently done by the zamindars of Bengal. The report gave the following account of remarkable works :⁷⁴

1. 4 iron bridges
2. 86 brick bridges
3. 70 roads, some were about thirty miles long
4. 412 tanks
5. 113 reservoirs
6. 107 ghats
7. 15 inns along the high roads.

All these charitable activities obviously followed after the building of their own mansions and offices befitting their ranks and wealth. A zamindar's house, it was considered, must be big enough to accommodate all the dependents of the zamindar, his principal officers, all his household servants from the meanest slaves to the puruhits or priests and pundits. There must also be houses for storage of grain and for cattle, horses and elephants. Other essential parts of a zamindar's house were schools, playgrounds, orchards, tanks and temples. But the most fashionable thing was to possess a garden house far from the family mansions for receptions, sports and holiday stay. The following account of the garden house of Harimohon Tagore, for example, in the suburb of Calcutta, was given by Bishop Heber : "The house is surrounded by an extensive garden laid out in formal parterres of roses, intersected by straight walks, with some fine trees, and a chain of tanks, fountains and summer houses not ill adapted to a climate where air, water, and sweet smells are almost the only natural objects which can be realised during the greater part of the year. The whole is little less Italian than the facade of his house, ...He himself received us at the head of a whole tribe of relations and descendants on a handsome flight of steps, in a splen-

74. Judicial and Revenue Département, 5 March 1835. See, Brajendra Nath Banarji (ed.), vol. 11, 311-12,

did shawl, by way of mantles with a large rosary of coral set in gold leaning on an ivory crutch with gold head.”⁷⁵

Though the landed families essentially revolved round their men-folk, there were many gifted ladies who ventured into the men's world and established their reputation by their own right. The name of Rani Bhavani of Natore whose active role as a ruler ended before our period is still a household word in Bengal. The most celebrated ladies in our period were Rani Bishnukumari of Burdwan, Rani Tripura Sundari of Dinajpur, Rani Kattani of Kandi, Mannujan Began of Hughli and the two Ranis of Raja Loknath of Kassimbazar. It has already been said how Rani Bishnukumari saved the vast zamindari of Burdwan from disintegration and how Rani Tripura Sundari of Dinajpur saved considerable portions of her husband, zamindari by selling her jewellery and by her subsequent able management after the death of her husband. Rani Kattani, the wife of Krishnachandra Sinha, the builder of the Kandi family most successfully ruled her husband's great but exceedingly scattered zamindari for twelve years when her husband renounced the world and turned into an ascetic in 1808.⁷⁶ But the most capable lady zamindar was Monnujan of Hugli. She was one of the leading aristocrats of Bengal.⁷⁷ She was the only issue of her father, Agha Mutahar, who died before the decennial settlement.⁷⁸ The Permanent Settlement was concluded with Monnujan and she managed her zamindari, called Syedpur, so efficiently that her estate emerged completely unhurt from the landed crisis of the 1790s.⁷⁹

75. Quoted in “Hury Mohun Tagore—A Sketch”, *The Oriental Miscellany*. Dec. 1880, p. 433.

76. B. O. R. to G. G. C., 28 March 1820, B. R. C., 25 April 1820, Nos. 8, 20, P58/33.

77. Hughli Judge to Judicial Secretary, 3 May 1802, C. J. P. 8 July 1802, No. 52, para. 26, P147/56.

78. See Brajendra Nath Banarji, vol. 11, p. 297.

79. *Ibid.*, pp. 296-299.

According to Mrityunjay Biddalankar, a Supreme Court Pundit in the 1820s and formerly a lecturer at the Fort William College, the aristocrats tried to possess many things as status symbols; one was to have one or more suits being heard before the Supreme Court.⁸⁰ The *Samachar Darpan* wrote, "We remember that it was considered by one as a great honour to keep a case in the Supreme Court. The honour which was achieved by proudly announcing that he had three causes in the Supreme Court simultaneously could not be got by spending twenty thousand rupees during the Durga Puja."⁸¹ The zamindars, however, were often compelled to indulge in litigations in view of the undefined boundaries of their estates, transfer of lands by public sale, contumacious conduct of their farmers and renters, etc. But the most ruinous was the litigations between the members of landed families over property shares. On the basis of the Supreme Court records, N. K. Sinha has tried to show that continued litigations between different members, either ruined or impoverished a great many families in Bengal in the early nineteenth century.⁸² Very often family disputes originated from flimsy differences in the day to day life of a joint family and ultimately ended in partitions and continued litigations. The Pal Chowdhuris of Ranaghat, for example, were a happy joint family till 1813 when ruinous litigations among different members of the family started.⁸³ The judicial proceedings continued till the 1840s leading to the total ruin of the family.⁸⁴ The original cause of the quarrel was believed to be a goat.⁸⁵

All our above discussions as to the life style of the zamindars make it sufficiently clear that most of the zamindars were more

80. See Brajendra Nath Banarji, (ed.), vol. I, p. 180.

81. *Ibid.*

82. See N. K. Sinha, vol. II, pp. 88-92.

83. *Ibid.*, p. 90.

84. *Ibid.*

85. Life of Kabi Rashsagar, Tract Vern. 2013, p. 39.

mindful of proudly upholding and extending their authority and state than of trying to place it on a secure foundation by improving their estates. Their religious extravagance, ostentatious public charities, display of wealth on occasions like births and marriages-all sprang from the idea that they were the social superiors and that one method for the preservation and promotion of that superiority was liberal expenditure. Such a tendency was particularly marked among the new families who, in general, tried to use their solid wealth in buying social acceptance. In search of social recognition they not only spent recklessly but also took special care to furnish themselves with a coat of arms, and quite often with a pedigree to match. (In short, most of the zamindars, both old and new, held land more as a means to establish and enhance social standing than to accumulate more and more wealth as landed entrepreneurs.)

CHAPTER NINE

CONCLUSION

It has been pointed out in the beginning of this study that this work is designed to explore the changes in the structure and constitution of the landed society under the operation of the permanent settlement. With this end in view, attempts have been made to explain and illustrate the zamindar's position under the original constitution and subsequent changes in it, the dismemberment of the great territorial families and general turnover of lands, the rise of new landed families in place of the old. It has then been explained whether or not the permanent settlement succeeded in achieving the objects for which it was introduced. It is thus possible now to sum up the important findings.

So far as the structural changes are concerned, Cornwallis's constitution for the permanent settlement was itself revolutionary in the sense that it created a zamindar class privileged with absolute proprietary rights over land which was then, and largely still is, the foundation of the Bengali society. It was still more revolutionary in the sense that the zamindars were shorn of all their traditional powers over their inferiors and, on top of all, it introduced a state sponsored land market by making land the security for public revenue and thereby facilitating the exit of the incapable and indigent proprietors as well as the entry of the new elements into land.

The authors of the system fervently hoped that everything was set for a dramatic change in the country. But after the first flush of excitement their idealism began to wane when they saw that they unduly undermined the strength and resiliency

of the traditional landed class. The zamindars, though appreciating the principle of permanently fixed assessment, never accepted the other details of the constitution such as *rasad*, distribution of assessment, separation of *talukas*, abolition of *sayer*, abatement of traditional powers over tenantry and, above all, the provision for the invariable sale of lands for revenue arrears. They fought hard to preserve their status, authority and power. Their stubborn resistance to the operation of the new constitution made the public revenue so insecure that within six years of the permanent settlement the Government, for the sake of the security of the public revenue, was compelled to compromise with the zamindars. The result of the compromise was the enactment of Regulation 7 of 1799 which restored all the feudal powers. By the same method of agitation zamindars forced the Government to pass Regulation 5 of 1812 which empowered them to let their lands at whatever rate of rent they liked. In 1819, they acquired the power to create *patni* tenures and thereby the right to live on their unearned income. All the subsequent developments of zamindari oppression and exploitation which were so much discussed throughout the late nineteenth and early twentieth centuries originated from these laws which were the outcome of zamindars' pressure and government's compromise with them. Thus all the radical changes in the structure of the zamindar class brought about by the permanent Settlement constitution were nullified by the subsequent developments.

By constant agitations the zamindars could succeed in getting back most of their feudalistic powers and privileges but they failed to persuade the Government to repeal the sale laws which worked as the main engine of their destruction. The worst victims of the sale laws were the great territorial families. The most common factors that forced them to come under the operation of the sale laws were the intrigues of the zamindari amla, natural calamities and the zamindars' own indifference or incapacity to manage their vast estates efficiently.

Besides these common factors, each of these families suffered from some peculiar difficulties. For example, the Rajshahi raj was overrated at the time of the decennial settlement. So was the Bishnapur raj which was also sinking under the pressure of long standing family feuds. The rajas of Nadia, Yusufpur and Birbhum were inextricably immersed in debt. The raja of Dinajpur was never free to manage his estate independently because of the most unjust interference from the authorities.

While the above forces were enough for their fall two other forces worked against the territorial integrity of the principal zamindars. In the first place, it was government policy, from both political and economic considerations, to break up these big estates into more manageable and economic units. Such a state policy of freezing the overgrown zamindaris must have put them into considerable disadvantages, because they were denied all government support and leniency when they needed them in the event of distress from natural calamities or other causes. The next invisible force that hastened their fall was a natural one. It is indeed a strange coincidence that all the great zamindars who were ruined were in their teens when the destructive sale laws were put into full force in 1794. The only exception was the raja of Bishnapur who was, again, disabled by his great age of over seventy. The juvenile zamindars were circumstantially so ill equipped both from their lack of worldly experience and from their traditional reluctance to work to face the challenge of the new system that they became an easy prey to their rapacious amla who could, under the new system promote themselves at ease from zamindari officers to the rank of zamindar by throwing their masters' lands into default and sale. It is, however, impossible here to infer from the survival of the three large zamindaris which were headed by adult proprietors that the eight ruined zamindaris might have survived had they not been piloted by the most inexperienced boys at the time of the greatest crisis in their history as zamindars. The official policy towards the large zamindaris and

the measures that were taken to destroy them made it extremely difficult for them to survive unassailed. Their internal conditions made them still more incompatible with the new system. To endure this system the small-sized holdings were decidedly more capable than the large states. In fact, this realisation led the raja of Burdwan to divide his zamindari into a confederation of *patni taluqas*.

The breakdown of the monopoly ownership of land and its redistribution certainly enlarged the composition of the landed society. But that was a limited enlargement because of the emergence of a few dozen new families who monopolised the purchases of land on the market. One peculiarity of these families was that their estates were invariably scattered all over the country. Because their demands for land were much greater than the limited supply of land available in any one area they were compelled to look for land wherever this was to be found. Such scattered situations of their estates led to unavoidable absenteeism. Powers had to be delegated to the resident *naibs* who thus became the virtual masters of the areas under their management.

The entry of new men of capital into land did not introduce anything new in the methods of zamindari management. They faithfully copied the traditional method of estate management and accounting. Some differences lay in the personal participation in management. While the older class of zamindars were almost wholly dependent on their *amla*, the new proprietors seemed to have taken greater personal interest in the day to day administration of the zamindari. But such interest gradually faded when they got themselves established in society and their successors as recognised members of the aristocracy tended to withdraw themselves from estate management almost entirely, as did most of the other older zamindars.

It is claimed that the medium and small zamindars were less affected by the operation of the sale laws. It has been estimated that about 45 percent of the landed property of Bengal

was transferred through default of revenue during the period under survey. About 70 percent of these transfers belonged to only ten great families. Here we find the relative stability in structure and composition of the medium and small landowning class. Their stability is further emphasised by the fact that among the purchasers of lands the established zamindars constituted the biggest occupational group.

The dismemberment of monopolistic families is the most visible demonstration of structural changes in the districts formerly under their control. But though their lands were purchased by hundreds and thousands of new people they did not represent a significant social force so far as their territorial acquisitions were concerned. For the bulk of the lands transferred to new men was purchased by only about thirty wealthy families, the majority of whom were formerly either zamindari or government officers. It is entirely a wrong notion to believe however that the Calcutta *banians* and merchants monopolised the purchases of the zamindari lands. The banian and merchants from all over the country constituted the third most extensive purchaser of lands. The top group of purchasers were the established zamindars themselves who were followed by their amla and officers of the government.

(In fine, the permanent settlement laid the foundations of the British administrative system in Bengal, at least, though not in the whole of India. But it was done at the expense of social orders. The system put the whole society in a state of flux. The official ideology behind the system was to bring about an agrarian revolution which, in turn, would bring automatic changes in the structure and habits of the landed classes for the better. This ideological pattern and the measures designed to freeze the traditional social structure introduced an environment in which families were moving up and down in the social and economic scale at a faster rate than any time before the permanent settlement. But all these changes unfortunately proved to be mere social disorders.

The loss of rights of *ryots*, growth of subinfeudation, conflicts between old and new houses, absenteeism, pressure of the sale laws, inadequate law courts and police system, exclusion of the natives from the important offices, decline of trade and commerce and industries—all contributed to an extremely tense and unstable social environment. Within that atmosphere the zamindars failed to stand for improvement. Instead of becoming improving landlords they turned out to be tyrannical and unproductive. All expectations of their becoming the agents of progress and improvement thus vanished into a painful frustration from which the people and the government of Bengal suffered till its formal abolition.)

GLOSSARY

- Amin** An Indian judicial functionary, also a zamindari officer responsible for survey and valuation of lands.
- Abwab** Subjects of taxation or the taxes which were imposed under the Mughal government in addition to the regular assessment on land. Miscellaneous cesses and imposts levied by the zamindars on their ryots.
- Bandobast** Settlement or agreement between the zamindars and government and between the zamindars and the farmers and ryots.
- Banian** A Hindu trader; term commonly applied to mean an Indian cashier or man of business in the service of an European officer or trader.
- Hastabud** A comparative account, showing the present and past produce of an estate, a detailed statement of any lands yielding revenue.
- Jama** Revenue demand payable by zamindars to government, also rent payable by ryots to zamindars.
- Jotedar** A farmer or an overgrown ryot who held their lands with some special privileges from the zamindars or government.
- Kachari** An office from where revenue collections were made and general administrations were conducted.
- Kanungo** Under the Mughal administration a kanungo was a district revenue officer who recorded all circumstances within their areas which concerned landed property and the realization of revenue.
- Kist** Instalment of revenue payment by the zamindars to government and also by the tenants to the zamindars.
- Mahal** A revenue division of a zamindari.

<i>Mandal</i>	The headman of a village who acted as a middle-man between the ryots of his village and the government.
<i>Matbar</i>	A village leader.
<i>Mridha</i>	The head peon or messenger.
<i>Mufassal</i>	A relative term meaning outside the headquarters. An officer stationed in Calcutta went to mufassal when he visited any district headquarters; again, an officer stationed in a district headquarters went to mufassal when he visited a place outside his station. A zamindar visited mufassal when he visited one of his mahals. Its exact opposite is 'Sadar'. The zamindari kachari was a sadar for a village officer and the collector's kachari was a sadar for the zamindar.
<i>Mustajir</i>	A farmer or a renter who held lands under a zamindar at stipulated rate; also a revenue farmer appointed to make the collections on behalf of the zamindars on condition of paying a fixed sum.
<i>Lathial</i>	Club-men trained to fight for their masters.
<i>Pargana</i>	A revenue district within zamindari. The smaller units of a pargana were termed as taraf, joar, mouja, etc.
<i>Patta</i>	A deed of lease, a document given by the zamindar to under tenants specifying the condition on which the lands were held and the value to be paid to the authority or person from whom the lands were held.
<i>Patwari</i>	A zamindari village officer who kept accounts of the village.
<i>Patni</i>	Permanent lease at fixed rate of rent. A land tenure at first practised by the raja of Burdwan after the permanent settlement.
<i>Peada</i>	Servant under the zamindari officers.
<i>Rasad</i>	Progressive increase of revenue settlement.

<i>Ryot</i>	Cultivator holding lands from the zamindars under various rights and obligations.
<i>Sajawal</i>	An officer specially appointed to administer an estate the proprietor of which was removed on default.
<i>Serestadar</i>	A head of a department : a superintendent of an office,
<i>Sicca</i>	A newly coined rupee which was the standard money and in terms of which the revenue settlement took place. When the new coins were in circulation, a batta was charged on old ones. One hundred sicca rupees were equal to one hundred and sixteen current rupees which were the money of account.
<i>Tahsildar</i>	A local zamindari or government officer who collected revenue from the ryots.
<i>Takavi</i>	Advances of money made by the government to the cultivators in order to encourage extension of cultivation or sometimes made to the cultivators at the time of bad seasons.
<i>Zila</i>	A territorial subdivision or district.

All figures are in sicca rupees and end in thousands. Upper line of figures against each district indicates jama of lands advertised for sale and lower line gives the jama of lands actually sold.

APPENDIX B
Jama of lands advertised for sale and actually sold
1793-1819

Bengal Districts	Annual jama in 1793	1794-5 1201 B. S.	1795-6 1202	1796-7 1203	1797-8 1204	1798-9 1205	1799-0 1206	1800-1 1207	1801-2 1208	1802-3 1209	1803-4 1210	1804-5 1211	1805-6 1212	1806-7 1213	1807-8 1214	1808-9 1215	1809-10 1216	1810-11 1217	1811-2 1218	1812-3 1219	1813-4 1220	1814-5 1221	1815-6 1222	1816-7 1223	1817-8 1224	1818-9 1225	Total 1794-1819	% on the basis of the district revenue	% on the basis of total sales and advertisements
Birbhum	692.0	nil	254.9	154.6	131.0	132.0	112.0	90.1	125.5	23.8	14.7	32.5	36.5	.4	collectorate												1108.0	160.11	1.03
		nil	53.9	128.3	119.2	93.6	36.6	46.1	91.8	6.4	9.7	nil															385.6	84.53	4.49
Burdwan	4488.3	665.2	65.4	891.9	1033.8	2656.8	6.2	312.7	63.0	719.0	445.3	534.0	1146.9	390.6	241.4	122.1	487.9	1537.6	1411.5	.5	.4	nil	nil	763.7	78.9	900.0	14474.8	322.80	13.52
		632.8	nil	645.0	773.7	2046.2	3.4	212.8	43.0	64.2	47.7	49.4	33.0	128.6	nil	nil	.8	.1	.1	.5	.4	nil	nil	.1	1.4	6.7	4690.1	104.49	36.13
Chittagong	539.9	28.9	26.7	23.0	55.8	46.7	28.7	7.9	30.0	108.7	143.7	278.3	214.0	260.8	152.6	267.6	752.8	33.9	188.8	1.8	59.8	5.4	4.3	563.5	566.3	567.2	4417.2	818.11	4.12
		1.9	7.8	1.6	5.4	4.0	22.2	3.1	6.1	3.2	3.7	8.0	5.8	2.1	1.2	2.7	.3	.4	1.3	1.8	59.8	5.4	4.3	4.5	4.6	5.6	143.9	26.48	1.09
Dacca	1235.8	372.8	856.8	511.1	372.1	295.3	342.9	250.0	335.0	335.8	564.1	674.9	699.4	983.9	262.6	214.7	527.4	1115.0	1290.8	2.7	1.5	3.6	1.9	1657.0	563.6	598.8	12833.7	998.05	11.99
		2.1	26.4	19.0	9.9	73.9	215.0	189.7	262.6	18.9	8.1	3.0	3.0	1.5	2.1	.9	17.7	.7	3.2	2.7	1.5	3.6	1.9	2.6	2.5	2.8	877.3	68.20	6.73
Dinaipur	1839.5	nil	nil	158.2	725.8	129.5	73.2	100.0	216.2	156.4	181.8	59.8	546.9	583.4	79.3	60.8	417.3	1039.0	3081.6	387.3	6.4	3.4	14.2	.4	1140.1	471.2	10722.2	584.14	10.08
		nil	nil	nil	440.9	834.2	72.2	81.7	116.2	33.4	18.3	.8	11.0	nil	nil	15.8	.4	nil	1.5	7.0	6.4	3.4	14.2	nil	5.8	nil	1663.2	90.40	12.99
Jessore	1176.6	113.4	290.0	482.4	72.2	395.2	18.7	216.0	55.6	407.5	591.8	214.7	193.4	365.5	30.8	23.6	623.3	389.1	371.9	.1	nil	1.4	.2	1802.2	1134.4	1405.3	9207.7	782.50	8.60
		10.8	114.4	206.4	45.6	308.2	1.3	116.8	35.5	45.8	7.3	1.8	.4	1.0	1.7	.1	5.6	nil	.1	.1	nil	1.4	.2	1.3	1.1	nil	906.9	77.00	6.96
Murshidabad	1177.1	248.7	13.8	111.7	339.1	280.0	101.1	237.7	41.2	211.3	88.8	135.5	14.9	86.1	163.6	148.7	268.0	470.8	358.1	.1	nil	8.5	.9	1842.4	2296.1	2083.8	9495.9	806.64	8.87
		95.2	1.0	8.1	126.9	57.7	53.7	132.7	24.2	18.5	18.9	12.8	.8	1.0	1.2	2.2	.1	1.4	.2	.1	nil	8.5	.9	.6	6.0	3.2	579.5	49.18	4.44
Mymensingh	747.9	31.4	27.5	60.5	45.2	160.7	37.7	45.9	71.0	534.0	319.1	143.2	161.1	181.8	189.5	142.1	1.3	259.4	27.1	.1	nil	.5	.6	656.3	593.4	948.0	4637.4	620.00	4.33
		14.2	3.4	12.0	5.0	13.6	11.7	23.8	56.0	32.0	2.2	1.1	1.0	.3	.5	1.8	1.3	.1	.9	.1	nil	.5	.6	nil	.4	.5	183.0	24.46	1.40
Nadia	1556.3	504.6	284.9	575.9	681.4	225.8	264.6	359.0	277.0	84.6	66.0	21.4	26.0	8.1	8.1	10.3	101.5	1.9	3.3	nil	58.1	65.2	.6	547.3	761.8	694.5	5571.6	357.96	5.20
		.2	1.0	10.4	371.5	50.6	175.9	257.7	117.7	84.6	66.0	21.4	26.0	8.1	nil	10.3	nil	1.9	3.3	nil	58.1	nil	.6	.8	nil	1.1	1267.2	81.41	9.73
Purnia	1022.8	10.5	8.8	37.1	36.6	59.8	64.4	27.8	30.0	89.9	48.8	25.9	101.9	96.1	48.6	26.5	524.2	76.2	88.3	85.7	101.0	82.4	353.8	172.6	16.9	681.9	2895.7	283.04	2.70
		.6	4.6	11.9	17.6	5.3	30.2	12.8	nil	4.9	20.5	.8	nil	1.2	nil	1.6	1.0	nil	nil	2.4	8.5	nil	nil	.4	nil	nil	124.3	12.12	.95
Rajshahi	1408.8	657.2	1033.6	76.8	84.1	224.4	300.0	1012.0	125.6	212.9	440.0	625.4	320.9	476.0	105.2	56.6	36.6	509.6	755.7	4.5	632.1	193.0	1014.8	618.5	219.1	1108.9	10843.5	769.66	10.13
		.3	105.9	13.1	38.6	64.9	45.7	657.9	82.6	24.7	21.7	7.1	8.6	5.2	8.0	.9	nil	.8	2.6	4.5	.9	3.3	2.7	3.2	1.1	1.0	1105.9	78.43	8.49
Rangpur	882.7	24.7	80.9	99.0	0.1	20.1	26.5	39.7	71.2	99.6	33.7	nil	12.7	40.3	24.1	12.4	.5	45.9	3.1	210.3	216.9	nil	560.4	366.3	452.7	461.0	2882.0	326.49	2.69
		nil	31.1	23.1	nil	13.3	12.6	39.7	38.1	33.2	1.6	nil	4.0	nil	nil	3.2	.5	.2	.2	nil	nil	nil	nil	nil	1.6	16.0	218.4	24.69	1.67
Sylhet	290.6	nil	nil	nil	8.2	10.5	32.5	27.7	50.1	82.8	101.4	1.8	1.5	1.4	1.9	3.2	272.2	.1	.2	.2	.1	nil	nil	31.1	51.3	55.4	730.6	251.29	.68
		nil	nil	nil	2.4	3.4	4.8	19.7	20.6	2.7	4.6	1.8	1.5	.8	1.4	2.7	1.3	.1	.2	.2	nil	nil	nil	.1	.1	nil	68.2	23.40	.55
Tipperah	1046.1	.2	.7	11.4	101.9	134.8	45.4	39.4	7.9	224.4	210.2	100.4	75.6	67.1	94.1	81.0	1389.8	276.7	774.4	2	.9	5.8	1.8	1554.5	819.5	1414.5	7433.6	710.43	6.94
		.1	nil	3.8	31.8	56.3	14.4	9.9	6.9	10.7	9.2	76.2	3.3	2.7	1.4	3.9	39.7	2.7	10.9	2.0	.9	5.8	1.8	3.5	7.1	nil	305.4	29.15	2.34
4 Parganas	865.2	8.4	70.5	284.5	461.9	353.7	64.6	35.0	10.9	171.2	174.9	146.9	392.0	173.7	167.1	170.6	406.8	567.1	nil	1.8	.8	.6	1.6	2213.3	1914.1	1979.1	9771.6	1129.33	9.12
		nil	.9	85.9	109.0	58.2	9.5	21.3	7.0	10.4	9.5	19.2	1.8	.7	.8	16.0	nil	.1	nil	1.4	.8	.6	1.6	nil	.2	nil	295.9	34.09	2.26

Totals :																												
Revenue of lands advertised for sale	19019.6	2666.0	3014.5	3458.1	5149.2	6165.2	1518.5	2800.9	1460.2	3461.9	3419.3	2884.7	3943.7	3715.2	1568.9	1326.9	5818.6	6322.3	8354.8	694.8	1080.0	369.8	1955.1	12789.1	10608.2	13369.6	107025.5	100.00
their percentage of the revenue of Bengal		14.01	15.84	18.18	21.81	32.41	7.98	14.72	7.67	18.19	17.97	15.94	20.73	19.53	8.24	6.97	30.58	33.23	43.92	3.64	5.67	1.94	10.27	67.24	55.77	70.29	562.70	100.00
Revenue of lands actually sold		758.2	350.4	1108.7	2097.8	3685.4	392.8	1825.8	905.5	393.6	249.0	203.5	100.2	153.2	18.3	62.1	68.7	7.9	24.5	22.8	139.3	32.5	28.8	17.1	31.9	36.9	13014.8	
Percentage of total revenue of Bengal		3.98	1.84	5.82	11.02	19.37	3.63	9.59	4.75	2.06	1.30	1.06	.52	.80	.09	.32	.35	.03	.12	.11	.73	.16	.14	.08	.16	.18	68.2	

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B. R. C., 22 April 1796,
No. 59, P53/43

B. R. C., 11 Aug. 1797,
No. 13, P53/52

B. R. C., 23 Feb. 1798,
No. 15, P53/55

B. R. C., 29 Aug. 1799,
No. 5, P54/4

B. R. C., 7 Nov. 1799,
No. 8, P54/6

B. R. C., 5 March 1801,
No. 8, P54/17

Annual Sales
Reports for these
Statement is
prepared from
the sales reports
of district collectors

B. R. C., 18 Oct. 1804,
No. 6, P54/40

B. R. C., 28 Feb. 1805,
No. 5, P54/42

B. R. C., 17 July 1806,
No. 14, P54/55

B. R. C., 30 Oct. 1807,
No. 6, P55/5

B. R. C., 23 Dec. 1808,
No. 30, P55/16

B. R. C., 3 Nov. 1809,
No. 18, P55/25

B. R. C., 24 Nov. 1810,
No. 4, P55/35

B. R. C., 10 Dec. 1811,
No. 24, P55/45

B. R. C., 19 Dec. 1812,
No. 7, P55/57

B. R. C., 26 June 1813,
No. 10, P56/5

B. R. C., 23 Sept. 1814,
No. 21, P56/22

B. R. C., 15 March 1816,
No. 10, P56/43

B. R. C., 11 April 1817,
No. 2, P57/7

B. R. C., 10 July 1818,
No. 21, P57/43

B. R. C., 29 June 1821,
No. 59, P58/61

B. R. C., 21 Aug. 1821,
No. 4, P59/1

APPENDIX 2

Sources of the figures in Table 10

<i>Sl. No. Original Purchases</i>	<i>Sl. No. Subsequent Sales</i>
1. <i>B.O.R.P.</i> , 11 Aug. 1797	1. <i>B.O.R.P.</i> , 8 Aug. 1801,
" No. 1, P73/22	" No. 37, P74/33
" 29 Aug. 1797.	" 30 Sept. 1800,
" No. 58, P73/22	" App. C., P74/23
2. " 17 April 1798,	2. " 29 Sept. 1801,
" App. D, P73/31	" No. 31, P74/35
" 8 June, 1798	" 15 Feb. 1799,
" App. E, P73/33	" App. Q, P73/43
" 3 August 1798,	
" App. D, P73/35	
" 12 Aug. 1800,	
" No. 29, P74/15	
3. " 5 June 1793,	3. " 13 Aug. 1799,
" Board's	" App. A, P73/51
" Proceedings	" 6 Dec. 1799,
" (no number)	" No. P74/13
4. " 15 May 1798,	4. " 18 Sept. 1801,
" App. D, P73/32	" App. B,C, P7/41
5. " 5 April 1799,	5. " 18 August 1801,
" App. C, P73/46	" App. A, P74/41
" 11 June 1799,	" 18 Sept. 1801,
" App. M, P73/49	" App. A., P74/41
" 30 July 1799,	
" App. F, P75/50	
6. " 19 April 1799,	6. " 30 Sept. 1800,
" No. 7	" App. C, P74/23
	" 2 January 1801,
	" App. C.D., P74/4
	" 12 July 1801,
	" App. B, P74/41

7.	,	23 Aug. 1799, No. 49, P73/51	7.	B.O.R.P.	16 Dec. 1800, App. D, P74/23
8.	„	7 July 1801, No. 38, P74/32	8.	„	7 July 1801, No. 38, P74/32
9.	,	11 Aug. 1797, No. 1, P73/22	9.	„	30 Sept. 1800, App. C, P74/23
				„	4 Aug. 1801, App. E, P74/91
10.	„	14 May 1799, App. B, P73/47	10.	„	9 July 1802, App. B.
11.	„	20 Sept. 1799, No. 14, P73/52	11.	„	9 July 1802, App. Q, P75/9
12.	„	18 June 1799, App. D, P73/49	12.	„	5 June 1801, App. A, P74/41
	„	8 July 1800, No. 34, P74/13			
13.	„	11 June 1799, App. O, P73/49	13.	„	13 January 1801, App. H, P74/23
	„	23 Aug. 1799, App. A, P73/51			
14.	„	6 June 1797, No. 7, P73/20	14.	„	20 Feb. 1807, App. B, P73/29
15.	„	23 Aug. 1799, App. A, P73/51	15.	„	16 Dec. 1800, App. E, P74/23
16.	„	21 May 1799, App. A, P73/47	16.	„	7 Oct. 1800 App. F, P74/23
17.	„	11 Nov. 1796, No. 22, P73/10	17.	„	7 Oct. 1800, No. 12, P74/38
	„	14 April 1797, No. 3, P73/18			
	„	21 April 1797, No. 13, P73/18.			

APPENDIX 3

THE VALUE OF LANDED PROPERTY

Year of purchase reckoning zamindars' profits at 10 per cent of the sadar jama

	1201 B. S. 1794-5	1202 — 6	1203 — 7	1204 — 8	1205 — 9	1206 1800	1207 — 1	1208 — 2	1209 — 3	1210 — 4	1211 — 5	1212 — 6	1213 — 7	1214 — 8	1215 — 9	1216 — 10	1217 — 11	1218 — 12	1219 — 13	1220 — 14	1221 — 15	1222 — 16	1223 — 17	1224 — 18	1225 — 19	Average year of purchase
Birbhum		21	14	10	7	5	9	2	3	8	Collectorate abolished in 1805														8	
Burdwan		nil	12	7	6	4	8	9	7	1	4	2	12	30	7	64	46	65	12	8	12	7	160	14	29	22
Chittagong		17	21	12	37	37	10	25	29	33	16	16	26	52	49	17	94	74	71	44	58	72	7	74	56	41
Dacca		23	23	21	12	2	23	7	8	18	10	18	30	7	41	64	7	42	49	32	25	23	48	14	17	24
Dinajpur		nil	nil	10	5	9	10	11	11	19	62	16	nil	nil	18	28	nil	52	28	27	73	15	nil	60	nil	27
Jessore		nil	18	15	7	13	16	21	23	24	9	14	32	83	47	7	23	55	161	10	30	26	9	50	29	30
Murshidabad		30	15	15	nil	16	14	19	23	10	14	21	23	19	12	144	1	1	52	11	61	30	196	44	57	36
Mymensingh		15	24	25	17	6	20	19	12	13	13	19	36	14	82	4	20	101	18	15	26	14	22	25	50	25
Nadia		20	18	10	10	8	15	10	6	16	12	8	54	nil	11	nil	5	23	48	106	nil	50	82	nil	42	24
Purnia		8	16	16	25	9	10	4	2	11	nil	nil	44	nil	8	62	nil	nil	3	36	nil	nil	nil	nil	nil	17
Rajshahi		9	17	7	7	nil	13	5	7	7	8	1	9	29	18	nil	20	3	7	72	11	39	100	66	80	23
Rangpur		15	24	nil	nil	12	7	7	9	1	nil	63	nil	nil	48	44	247	465	nil	nil	123	nil	nil	76	nil	62
Sylhet		nil	nil	2	8	14	5	12	16	3	5	19	9	22	22	21	41	19	12	nil	nil	25	120	8	40	20
Tipperah		nil	18	11	8	7	9	9	8	13	6	18	7	1	27	18	12	39	3	4	10	16	24	8	13	12
24-Parganas		23	9	6	8	10	8	10	10	11	10	23	7	41	36	nil	160	nil	5	38	13	60	nil	80	11	26
Total		20	13	9	6	7	10	12	11	11	9	8	15	24	28	29	23	41	24	68	40	30	70	42	29	

Sources : See the sources of Appendix 1 against every year.

APPENDIX 4

The estates purchased by the Kandid family, Murshidabad

<i>Names of parganas</i>	<i>Districts where situated</i>	<i>Jama</i>
Pargana Bullua	Noakhali	Not given
„ Amidabad		
„ Babupur		
„ Naldi	Jessore	„
Turuf Tulsipur	Rajshahi	„
„ Shasan	24-Parganas	„
Pargana Bagaun	Nadia	„
Lot Hishnulaksipur	Burdwan	„
Taluk Gopalpur	Midnapur	„
Lot Joyi	Birbhum	„
„ Srihati		
„ Dalia		
„ Kagash		
Turuf Saktoria and Sadipur	Burdwan	„
Pargana Radhaballabpur	Murshidabad	„
Kismat Radhaballabpur		
Bhalagachi	Dinajpur	„
Kasimpur		
Amnagur		
Rogupur	Purnia	„
Ramnia		
Pargana Rahuni	Cuttach	„
„ Chabukad		
„ Anupsha	Balandhar	„
Turuf Alampur	Alig	„
„ Mathura	Mathura	„
Total Jama :		<u>S. R. 4,75,413</u>

Source : Kissory Chand Mitra, "Territorial Aristocracy of Bengal, Kandi Family", *The Calcutta Review*, vol. 58, 1874, p. 116,

APPENDIX 5

The estates purchased by the Banarji family of Telinpara, Hughli

<i>Parganas/Districts</i>	<i>Jama</i>	<i>Amount paid</i>	<i>Sources</i>
		<i>at purchase</i>	
	S. R.	S. R.	
Pargana Amirabad, Rajshahi	5,961	665	1
Tuppah Arungnagar	2,252	400	
Bongong Khalsa	21,421	2,525	
Basuras Mahabbatpur	8,738	1,512	
Bongong Jagir	11,495	1,177	
Begamabad Jessore	7,651	1,330	
Berahimpur	19,184	1,205	
Telihati Amirabad	13,805	1,505	
Turf Kachabaria	1,287	185	
Pargana Havelly	—	—	
Sudya	37,989	3,570	2
Tuppa Binudpur	2,841	500	
In the name of his son Joyram Dutt :			
Pargana Eussufpur	14,168	16,100	
Begamabad (the remaining half of the mahal)	7,651	13,500	3
Belgatchi	7,908	15,600	
In the names of Shibnath, Ramnath and Kamal Krishna :			
Pargana Khattia (6 mahals)	6,791	2,309	4
Dhee Shajadpur	10,342	4,700	
Total jama and amount of purchase	S. R. 1,68,673	66,783	

1 B. O. R. P., 11 September 1795, No. 1, P72/46.

2 *Ibid.*, 28 June 1796, No. 2, P73/5.

3 *Ibid.*, 23 August 1799, Appendix A, P73/51.

4 *Ibid.*, No. 49.

APPENDIX 6

The estates purchased by the Narail family Jessore

<i>Names of Parganas</i>	<i>Former Proprietors</i>	<i>Amount of jama</i>	<i>Amount paid at Source purchase</i>	
		<i>S. R.</i>	<i>S. R.</i>	
Tuppa Bhadaressur, Raja of Burdwan Burdwann		2,347	13,100	1
Noapur Burdwan Ramnidhi Ghosh		10,547	2,600	2
Rajgram „ „	„	9,872	2,400	
Khurd Selampur, „	„	11,105	4,500	
Nilganj „	„	13,987	2,000	
Kismat Pandua „	„	43,984	13,100	
Tuppa Ganghadharpur, Burdwan	„	3,395	2,900	
Tuppa Serajabad, Burdwan	„	2,745	1,100	
Turf Ghidganj, Burdwan „	„	6,896	13,100	3
Uzzedia „ Natu Sinha		11,191	2,355	4
Pargana Okra. Nadia Raja of Nadia		57,819	6,20,000	5
Total		<u>S. R. 1,73,888</u>	<u>6,77,155</u>	

1 B. O. R. P., 23 May 1798, No. 37A, P73/19.

2 B. O. R. P., 10 May 1799, Appendix E, P73/47.

3 Ibid., 17 May 1799, No. 1, P73/47.

4 Ibid., 1 February 1814, No. 28, P77/31.

APPENDIX 7

The estates purchased by the Manik family, Dinajpur
Names of mahals Former

Names of mahals Former	Amount	Amount of	Proprietor	District of jama purchase	Sources
	S. R.	S. R.			
<i>In the name of Manik Chand</i>					
Pargana Burbila	Raja of	Dinajpur	35,520	31,100	1
„ Taria	„	„	5,377	2,750	2
Mouja Rogonatpur	„	„	7,927	8,000	3
Kashba Ghajnagar	„	„	4,233	9,000	
Mouja Keshabpur	„	„	7,288	6,000	
„ Singuriganj	„	„	6,675	2,000	
Pargana Madabpur	„	„	5,494	1,400	
<i>In the name of Kirti Chand, his grandson</i>					
Milanpur	„	„	5,590	3,300	4
Pallashbari	„	„	7,335	1,800	
Matikatha	„	„	4,588	1,750	
<i>In the name of Mitunlal Chand, his grandson</i>					
Jatmanpur	„	„	5,592	1,800	4
Fulpur	„	„	4,520	2,300	
<i>In the name of Anand Chand, Bhoyrob Chand Ramchand, his grandsons</i>					
Golabor	„	„	4,835	2,400	5
Shamnagar	„	„	3,842	1,040	
Maheshpur	„	„	5,178	1,775	
<i>In the name of Ullumchand, his grandson from his daughter's side</i>					
Shujapur	„	„	5,140	3,425	5
Krishnapur	„	„	4,694	4,025	
Mariamganj	„	„	2,210	2,500	
Bahuganj	„	„	3,364	3,725	
Tagarah	„	„	4,713	3,550	6
Surbari	„	„	2,219	2,325	
Total			S. R. 1,36,334	67,965	

1 B. O. R. P., 1 August 1797, No. 37, P73/22.

2 Ibid., 2 April 1799, Appendix Q, P73/46.

3 Ibid., 11 May 1798, Appendix B, P73/37.

4 Ibid., 14 May 1799, Appendix, B, P73/47.

5 Ibid., 30 July 1799, Appendix G, P73/50.

6 Ibid., 31 May 1803, Appendix A, P73/23,

APPENDIX 8

The estates purchased by the family of Abhoy Charan Dutt of Calcutta

<i>Names of parganas Former</i>		<i>Amount</i>	<i>Amount of</i>	<i>Sources</i>
<i>Proprietor</i>		<i>of jama</i>	<i>purchase</i>	
		S. R.	S. R.	
Woolusi,	Nadia Raja of Nadia	6,087	1,400	}
Krishnapur	" "	4,169	1,300	
Bashbaria	" "	3,447	2,000	
Rampur	" "	4,977	1,100	
Kanairali	" "	5,066	1,500	
Samtab	" "	4,088	1,600	
Chandurah	" "	5,349	2,800	
Rudrapur	" "	5,381	2,000	
Barakpur	" "	5,186	2,100	
Diarah	" "	4,922	2,000	
Ganganandpur	" "	4,562	1,200	
Malchulah	" "	5,245	4,800	
Total		S. R. 58,479	23,800	

1 B. O. R. P., 11 August 1797, No. 1, P73/22.

2 *Ibid.*, 29 August 1797, No. 58, P73/22.

APPENDIX 9

The estates purchased by the Kassimbazar family of Murshidabad

<i>Districts in which the Kassimbazar estates were situated</i>	<i>Sadar jama of the estate in each district</i>
	S. R.
Murshidabad	29,451
Rajsahahi	46,169
*Rangpur	78,900
Dinajpur	24,588
Nadia	57,257
*Bhagalpur	1,063
Jessore	3,267
Birbhum	1,547
Burdwan	558
Dacca	87
Total jama	S. R. 2,42,905

Source : C. O. W. P., 28 February 1809, No. 23, P114/28.

* Estates that Loknath Nandi inherited from his father.

APPENDIX 10

The estates purchased by the Tagore family (senior branch) Calcutta

Names of Parganas	Former proprietor	Amount of Jama	Amount paid		Source
			S. R.	S. R.	
Chingotteah, Jessore	Raja of Jessore	19,522	36,100		1
Nurnagar	„ „	6,161	10,700		2
Behgong, Nadia	Raja of Nadia	10,672	10,100		3
(He shared it with his brother, Harimmohon Tagore)					
Kaliganj, Rajshahi	Raja of Rajshahi	10,943	5,200		4
Hakimpur	„ „	6,494	8,500		5
Serdah	Balram Roy	32,613	21,000		6
Total		S. R.	86,405	1,11,600	

- 1 B. O. R. P., 17 January 1797, No. 1, P73/19,
- 2 Ibid., 24 January 1797, No. 1, P73/15,
- 3 Ibid., 18 August 1797, No. 41, P73/22,
- 4 Ibid., 10 September 1799, No. 55, P73/52.
- 5 Ibid., 12 August 1800, No. 29, P74/15.
- 6 Ibid., 29 September, 1801, No. 31, P74/35.

APPENDIX 11

The estates purchased by the Pal Chowdhury family of Ranaghat, Nadia

Names of mahals		Districts	Former proptietors	Amount of jama	Amount paid at Sources purchase	
				S. R.	S. R.	
Dhees Sibpur	}	Nadia	Raja of Rajshahi	13,509	11,500	1
„ Digraha						
„ Sikarpur						
Dantia		Jessore	Raja Srikanta	27,580	54,500	}
Hussainpur		„	of Jessore	9,189	19,900	
Magura and		„	„	2,666	6,200	
Gonah		„	„	3,090	9,000	
Munagacha		„	„	2,800	9,900	3
Bhagmarah		„	„			
Alampur		Nadia	Raja of Nadia	11,757	13,700	}
Bagmarah		„	„	9,499	14,700	
Ghoubaria		„	„	5,638	4,500	}
Beezriah		„	„	4,338	3,900	
Anandpur		„	„	3,663	3,000	
Sibpur		„	„	5,473	4,200	
Barbakabad		„	„	4,729	2,100	}
Serampur		„	„	4,708	2,100	
Gourshali		„	„	4,625	2,700	
Kumargorah		„	„	4,944	2,900	
Surapur		„	„	4,145	2,700	}
Maragateh		„	„	5,005	3,400	
Pallah		„	„	5,174	2,700	}
Dhee Alfa		„	Ramlochon Ghosh	8,128	3,400	
				S. R. 1,32,714	1,82,100	

1 B. O. R. P., 22 August 1797, No. 36, P73/22

2 Ibid., 24 January 1797, No. 1, P73/15.

3 Ibid., 17 June 1797, No. 40, p.

4 Ibid., 1 August 1797, No. 40, P73/22.

5 Ibid., 11 August 1797, No. 1, P73/22.

6 Ibid., 29 August 1797, No. 58, P73/22.

7 Ibid., 2 July 1802, Appendix Q, P75/9.

APPENDIX 12

The estates purchased by the Danishmand family, Murshidabad

Names of pargana		Former proprietor	Amount of jama	Amount paid at Source purchase	
			S. R.	S. R.	
Dacca,	Birbhum	Raja of Birbhum	15,665	40,000	1
Giashpur	"	"	14,894	31,100	2
Fatehpur	"	Rajshahi	11,235	14,625	3
Sherpur	"	"	4,383	6,125	4
Sadatpur	Dinajpur	Raja of Dinajpur	7,717	10,460	5
Shanbari	"	"	4,786	9,600	
Kurunjerah	"	"	2,790	1,825	6
Kutchra	"	"	6,610	7,100	7
Woodhub	"	"	6,476	6,575	
Rasulpur	"	"	5,216	5,300	
Khamar	"	"	3,476	3,250	
Durgapur	"	"	4,205	3,400	8
Rogobindpur	"	"	4,409	3,500	
Jat Ganesham	"	"	2,790	1,825	
Kharamjurah	"	"	5,698	3,625	
Shahlam	"	"			
Kalidassi	Rangpur	Raja of Idrickpur in Rangpur	17,999	40,100	9
Harinarayanpur	"	Rajshahi Raja's lands in Rangpur	771	1,736	10
Hajipur	"	"	1,189	3,455	
Chandranarayan	"	"	945	3,061	
Angurpur	"	"	563	1,956	
Bhagabanpur	"	"	523	1,812	
Khurd Miapur	"	"	711	2,435	
Dhunapara	"	"	156		
Balari	"	"	88	1,565	
Bhargallabpur	"	"	103		
Mahal Julkar	"	"	292		
Mahal Bankar	"	"	18	2,829	
Total			S. R. 1,20,613	1,97,259	

- 1 *B. O. R. P.*, 12 February 1797, No. 33, P73/1.
- 2 *Ibid.*, 14 April 1797, No. 3, P73/18.
- 3 *Ibid.*, 30 June 1795, No. 12A, P. 73.
- 4 *Ibid.*, 4 August 1795, No. 40, P.
- 5 *Ibid.*, 2 April 1799, Appendix Q, P73/46.
- 6 *Ibid.*, 22 August 1800, Appendix Q, P74/23.
- 7 *Ibid.*, 10 May 1799, Appendix F, P73/47.
- 8 *Ibid.*, 22 August 1800, Appendix G, P74/23.
- 9 *Ibid.*, 5 May 1797, Appendix A, P73/19.
- 10 *Ibid.*, 12 August 1800, No. P74/23.

APPENDIX 13

**The estates purchased by the Haldar family of
Noapara, Hughli**

<i>Name of pargana</i>	<i>Former proprietor</i>	<i>Amount</i>		
		<i>of jama</i>	<i>paid at Source purchase</i>	
		S. R.	S. R.	
Jagdishpur	Burdwan Raja Tejchandra	6,269	44,500	1
Tuppa	Hughli	50,212	35,100	2
Bhagavatpur	"	9,721	14,300	3
Bahadurpur	"	9,634	7,000	4
Naruttampur	"	5,367	7,200	
Haripur	"	6,391	20,000	
Mahmudpur	" Ramnidhy Ghosh	10,118	4,700	5
Total		S. R. 97,712	1,32,800	

- 1 *B. O. R. P.*, 28 April 1797, No. 33, P73/18.
- 2 *Ibid.*, 30 July 1799, No. 33, P.
- 3 *Ibid.*, 4 May 1796, No. 1, P73/47, and 11 September 1798, App. A, P
- 4 *Ibid.*, 17 May 1799, No. 1, P73/47.
- 5 *Ibid.*, 10 May 1799m Appendix E, P73/47.

APPENDIX 14

The estates purchased by Dwarkanath Babu of Singhur, Hughli

Names of lots	Districts	Former Proprietors	Amount	
			of jama	paid at Source purchase
			S. R.	S. R.
Kismat Khalore	Burdwan	Ramnidhi		
		Ghosh	7,31	7,100
Tuppa Joypur	"	"	43,351	13,500
Pergana Endrain	"	"	24,332	18,100
Kismat Gopalnagar	"	"	8,337	4,500
Birlak	"	"	13,963	3,500
Somidah	"	"	3,275	2,500
Kismat Dashpur	"	"	27,909	21,700
Kismat Gongapur	"	"	225	160
Kismat Musaffarshahi	"	"	9,643	4,000
Hidarampur	"	"	10,982	24,100
Ganashpur	"	"	10,508	4,700
Kismat Joykrishnapur	"	"	3,499	3,500
Saljhaur	"	"	10,010	5,200
Sawarah	"	"	9,718	3,700
Beldhia	"	"	10,170	4,100
Julkarmayal	"	"	9,848	2,000
Ramchandrapur	"	"	9,684	3,000
Paschimparah	"	"	6,106	1,200
Baur Radhakrishnapur,	"	"	10,073	3,100
Huda Sankhakhali	"	Raja of		
		Burdwan	9,597	10,200
Kumarmarah	"	"	9,403	4,100
Turf Beni	"	Ramlochon		
		Kund	9,500	2,380
Turf Bahirgarh	"	"	7,369	5,905
Pargana Mandalghat	"	Govern-		
		ment	2,09,988	5,100
Total			S. R. 4,74,852	1,57,245

1 B. O. R. P., 10 May 1799, Appendix E, P73/47.

2 Ibid., 17 May 1799, No. 1, P73/47.

3 Ibid., 25 May 1799, Appendix C and D, P75/9.

4 Ibid., 20 January 1807, No. 42, p.

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